

The Central Goods and Services Tax Rules, 2017

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The Central Goods and Services Tax Rules, 2017

UNION OF INDIA

India

The Central Goods and Services Tax Rules, 2017

Rule THE-CENTRAL-GOODS-AND-SERVICES-TAX-RULES-2017 of 2017

Published on 19 June 2017

Commenced on 19 June 2017

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The Central Goods and Services Tax Rules, 2017

Published vide Notification No. G.S.R. 610(E), No. 3/2017 - Central Tax, dated 19th June, 2017

Last Updated 19th January, 2022

Ministry of Finance

(Department of Revenue)

(Central Board of Excise and Customs)

G.S.R. 610(E). - In exercise of the powers conferred by section 164 of the Central Goods and Services Tax Act, 2017 (12 of 2017

), the Central Government hereby makes the following rules, namely: -

Chapter I

Preliminary

1.

Short title, [***]

[Omitted 'Extent' by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]
and Commencement.

(1)

These rules may be called the Central Goods and Services Tax Rules, 2017.

(2)

They shall come into force with effect from 22nd June, 2017.

2.

Definitions.

- In these rules, unless the context otherwise requires, -

(a)

"Act" means the Central Goods and Services Tax Act, 2017 (12 of 2017

);

(b)

"Forms" means a Form appended to these rules;

(c)

"section" means a section of the Act;

(d)

"Special Economic Zone" shall have the same meaning as assigned to it in clause (za) of section 2 of the Special Economic Zones Act, 2005 (28 of 2005

);

(e)

words and expressions used herein but not defined and defined in the Act shall have the meanings respectively assigned to them in the Act.

Chapter II

[Composition Levy]

[Substituted 'Composition Rules' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

3.

Intimation for composition levy.

(1)

Any person who has been granted registration on a provisional basis under clause (b) of sub-rule (1) of rule 24 and who opts to pay tax under section 10, shall electronically file an intimation in FORM GST CMP-01, duly signed or verified through electronic verification code, on the common portal, either directly or through a Facilitation Centre notified by the Commissioner, prior to the appointed day, but not later than thirty days after the said day, or such further period as may be extended by the Commissioner in this behalf:

Provided that where the intimation in FORM GST CMP-01 is filed after the appointed day, the registered person shall not collect any tax from the appointed day but shall issue bill of supply for supplies made after the said day.

(2)

Any person who applies for registration under sub-rule (1) of rule 8 may give an option to pay tax under section 10 in Part B of FORM GST REG-01, which shall be considered as an intimation to pay tax under the said section.

(3)

Any registered person who opts to pay tax under section 10 shall electronically file an intimation in FORM GST CMP-02, duly signed or verified through electronic verification code, on the common portal, either directly or through a Facilitation Centre notified by the Commissioner, prior to the commencement of the financial year for which the option to pay tax under the aforesaid section is exercised and shall furnish the statement in FORM GST ITC-03 in accordance with the provisions of sub-rule (4) of rule 44 within a period of sixty days from the commencement of the relevant financial year.

[Provided that any registered person who opts to pay tax under section 10 for the financial year 2020-21 shall electronically file an intimation in FORM GST CMP-02, duly signed or verified through electronic verification code, on the common portal, either directly or through a Facilitation Centre notified by the Commissioner, on or before 30th day of

June, 2020 and shall furnish the statement in FORM GST ITC-03 in accordance with the provisions of sub-rule (4) of rule 44 up to the 31st day of July, 2020.]

[Inserted by Notification No. G.S.R. 230(E), dated 3.4.2020 (w.e.f. 19.6.2017).]

(3A)

[Notwithstanding anything contained in sub-rules (1), (2) and (3), a person who has been granted registration on a provisional basis under rule 24 or who has been granted certificate of registration under sub-rule (1) of rule 10 may opt to pay tax under section 10 with effect from the first day of the month immediately succeeding the month in which he files an intimation in Form GST CMP-02, on the common portal either directly or through a Facilitation Centre notified by the Commissioner, on or before the 31st day of March, 2018, and shall furnish the statement in Form GST ITC-03 in accordance with the provisions of sub-rule (4) of rule 44 within a period of [one hundred and eighty days]

[Substituted by Notification No. G.S.R. 1251(E), dated 13.10.2017 (w.e.f. 19.6.2017).]

from the day on which such person commences to pay tax under section 10:

Provided that the said persons shall not be allowed to furnish the declaration in Form GST TRAN-1 after the statement in Form GST ITC-03 has been furnished.]

(4)

Any person who files an intimation under sub-rule (1) to pay tax under section 10 shall furnish the details of stock, including the inward supply of goods received from unregistered persons, held by him on the day preceding the date from which he opts to pay tax under the said section, electronically, in FORM GST CMP-03, on the common portal, either directly or through a Facilitation Centre notified by the Commissioner, within a period of [ninety days]

[Substituted 'sixty days' by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

from the date on which the option for composition levy is exercised or within such further period as may be extended by the Commissioner in this behalf.

(5)

Any intimation under sub-rule (1) or sub-rule (3) [or sub-rule (3A)]

[Inserted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

in respect of any place of business in any State or Union territory shall be deemed to be an intimation in respect of all other places of business registered on the same Permanent Account Number.

4.

Effective date for composition levy.

(1)

The option to pay tax under section 10 shall be effective from the beginning of the financial year, where the intimation is filed under sub-rule (3) of rule 3 and the appointed day where the intimation is filed under sub-rule (1) of the said rule.

(2)

The intimation under sub-rule (2) of rule 3, shall be considered only after the grant of registration to the applicant and his option to pay tax under section 10 shall be effective from the date fixed under sub-rule (2) or (3) of rule 10.

5.

Conditions and restrictions for composition levy.

(1)

The person exercising the option to pay tax under section 10 shall comply with the following conditions, namely: -

(a)

he is neither a casual taxable person nor a non-resident taxable person;

(b)

the goods held in stock by him on the appointed day have not been purchased in the course of inter-State trade or commerce or imported from a place outside India or received from his branch situated outside the State or from his agent or principal outside the State, where the option is exercised under sub-rule (1) of rule 3;

(c)

the goods held in stock by him have not been purchased from an unregistered supplier and where purchased, he pays the tax under sub-section (4) of section 9;

(d)

he shall pay tax under sub-section (3) or sub-section (4) of section 9 on inward supply of goods or services or both;

(e)

he was not engaged in the manufacture of goods as notified under clause (e) of sub-section (2) of section 10, during the preceding financial year;

(f)

he shall mention the words "composition taxable person, not eligible to collect tax on supplies" at the top of the bill of supply issued by him; and

(g)

he shall mention the words "composition taxable person" on every notice or signboard displayed at a prominent place at his principal place of business and at every additional place or places of business.

(2)

The registered person paying tax under section 10 may not file a fresh intimation every year and he may continue to pay tax under the said section subject to the provisions of the Act and these rules.

6.

Validity of composition levy.

(1)

The option exercised by a registered person to pay tax under section 10 shall remain valid so long as he satisfies all the conditions mentioned in the said section and under these rules.

(2)

The person referred to in sub-rule (1) shall be liable to pay tax under sub-section (1) of section 9 from the day he ceases to satisfy any of the conditions mentioned in section 10 or the provisions of this Chapter and shall issue tax invoice for every taxable supply made thereafter and he shall also file an intimation for withdrawal from the scheme in FORM GST CMP-04 within seven days of the occurrence of such event.

(3)

The registered person who intends to withdraw from the composition scheme shall, before the date of such withdrawal, file an application in FORM GST CMP-04, duly signed or verified through electronic verification code, electronically on the common portal.

(4)

Where the proper officer has reasons to believe that the registered person was not eligible to pay tax under section 10 or has contravened the provisions of the Act or provisions of this Chapter, he may issue a notice to such person in FORM GST CMP-05 to show cause within fifteen days of the receipt of such notice as to why the option to pay tax under section 10 shall not be denied.

(5)

Upon receipt of the reply to the show cause notice issued under sub-rule (4) from the registered person in FORM GST CMP-06, the proper officer shall issue an order in FORM GST CMP-07 within a period of thirty days of the receipt of such reply, either accepting the reply, or denying the option to pay tax under section 10 from the date of the option or from the date of the event concerning such contravention, as the case may be.

(6)

Every person who has furnished an intimation under sub-rule (2) or filed an application for withdrawal under sub-rule (3) or a person in respect of whom an order of withdrawal of option has been passed in FORM GST CMP-07 under sub-rule (5), may electronically furnish at the common portal, either directly or through a Facilitation Centre notified by the Commissioner, a statement in FORM GST ITC-01 containing details of the stock of inputs and inputs contained in semi-finished or finished goods held in stock by him on the date on which the option is withdrawn or denied, within a period of thirty days from the date from which the option is withdrawn or from the date of the order passed in FORM GST CMP-07, as the case may be.

(7)

Any intimation or application for withdrawal under sub-rule (2) or (3) or denial of the option to pay tax under section 10 in accordance with sub-rule (5) in respect of any place of business in any State or Union territory, shall be deemed to be an intimation in respect of all other places of business registered on the same Permanent Account Number.

7.

Rate of tax of the composition levy.

- The category of registered persons, eligible for composition levy under section 10 and the provisions of this Chapter, specified in column (2) of the Table below shall pay tax under section 10 at the rate specified in column (3) of the said

Table: -

[Sl. No.

[Substituted by Notification No. G.S.R. 412(E), dated 25.6.2020.]

Section under which composition levy is opted

Category of registered persons

Rate of tax

(1)

(1A)

(2)

(3)

1.

Sub-sections (1) and (2) of section 10

Manufacturers, other than manufacturers of such goods as may be notified by the Government

half per cent of the turnover in the State or

Union territory

2.

Sub-sections (1) and (2) of section 10

Suppliers making supplies referred to in clause

(b) of paragraph 6 of Schedule II

two and a half per cent of the turnover in the

State or Union territory

3.

Sub-sections (1) and (2) of section 10

Any other supplier eligible for composition levy

under sub-sections (1) and (2) of section 10

half per cent of the turnover of taxable

supplies of goods and services in the State or Union territory

4.

Sub-section (2A) of section 10

Registered persons not eligible under the

composition levy under sub-sections (1) and (2), but eligible to

opt to pay tax under sub-section (2A), of section 10

three per cent of the turnover of supplies of

goods and services in the State or Union territory.]

Chapter III

Registration

8.

Application for registration.

(1)

Every person, other than a non-resident taxable person, a person required to deduct tax at source under section 51, a person required to collect tax at source under section 52 and a person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (

13 of 2017

) who is liable to be registered under sub-section (1) of section 25 and every person seeking registration under sub-section (3) of section 25 (hereafter in this Chapter referred to as "the applicant") shall, before applying for registration, declare his Permanent Account Number, mobile number, e-mail address, State or Union territory in Part A of FORM GST REG-01 on the common portal, either directly or through a Facilitation Centre notified by the Commissioner:

[**]

[Omitted 'first proviso' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

[Provided]

[Substituted 'Provided further' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

that every person being an Input Service Distributor shall make a separate application for registration as such Input Service Distributor.

(2)

(a)

The Permanent Account Number shall be validated online by the common portal from the database maintained by the Central Board of Direct Taxes.

(b)

The mobile number declared under sub-rule (1) shall be verified through a one-time password sent to the said mobile number; and

(c)

The e-mail address declared under sub-rule (1) shall be verified through a separate one-time password sent to the said e-mail address.

(3)

On successful verification of the Permanent Account Number, mobile number and e-mail address, a temporary reference number shall be generated and communicated to the applicant on the said mobile number and e-mail address.

(4)

Using the reference number generated under sub-rule (3), the applicant shall electronically submit an application in Part B of FORM GST REG-01, duly signed or verified through electronic verification code, along with the documents specified in the said Form at the common portal, either directly or through a Facilitation Centre notified by the Commissioner.

(4A)

[Every application made under rule (4) shall be followed by -

(a)

biometric-based Aadhaar authentication and taking photograph, unless exempted under subsection (6D) of section 25, if he has opted for authentication of Aadhaar number; or

(b)

taking biometric information, photograph and verification of such other KYC documents, as notified, unless the applicant is exempted under sub-section (6D) of section 25, if he has opted not to get Aadhaar authentication done, of the applicant where the applicant is an individual or of such individuals in relation to the applicant as notified under sub-section (6C) of section 25 where the applicant is not an individual, along with the verification of the original copy of the documents uploaded with the application in FORM GST REG-01 at one of the Facilitation Centres notified by the Commissioner for the purpose of this sub-rule and the application shall be deemed to be complete only after completion of the process laid down under this sub-rule.]

[Substituted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(5)

On receipt of an application under sub-rule (4), an acknowledgment shall be issued electronically to the applicant in FORM GST REG-02.

(6)

A person applying for registration as a casual taxable person shall be given a temporary reference number by the common portal for making advance deposit of tax in accordance with the provisions of section 27 and the acknowledgment under sub-rule (5) shall be issued electronically only after the said deposit.

9.

Verification of the application and approval.

(1)

The application shall be forwarded to the proper officer who shall examine the application and the accompanying documents and if the same are found to be in order, approve the grant of registration to the applicant within a period of [seven]

[Substituted 'three' by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

working days from the date of submission of the application.

[Provided that where -

(a)

a person, other than a person notified under sub-section (6D) of section 25, fails to undergo authentication of Aadhaar number as specified in sub-rule (4A) of rule 8 or does not opt for authentication of Aadhaar number; or

(b)

the proper officer, with the approval of an officer authorised by the Commissioner not below the rank of Assistant Commissioner, deems it fit to carry out physical verification of places of business, the registration shall be granted within thirty days of submission of application, after physical verification of the place of business in the presence of the said person, in the manner provided under rule 25 and verification of such documents as the proper officer may deem fit.]

[Substituted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(2)

Where the application submitted under rule 8 is found to be deficient, either in terms of any information or any document required to be furnished under the said rule, or where the proper officer requires any clarification with regard to any information provided in the application or documents furnished therewith, he may issue a notice to the applicant electronically in FORM GST REG-03 within a period of [seven]

[Substituted 'three' by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

working days from the date of submission of the application and the applicant shall furnish such clarification, information or documents electronically, in FORM GST REG-04, within a period of seven working days from the date of the receipt of such notice.

[Provided that where -

(a)

a person, other than a person notified under sub-section (6D) of section 25, fails to undergo authentication of Aadhaar number as specified in sub-rule (4A) of rule 8 or does not opt for authentication of Aadhaar number; or

(b)

the proper officer, with the approval of an officer authorised by the Commissioner not below the rank of Assistant Commissioner, deems it fit to carry out physical verification of places of business, the notice in FORM GST REG-03 may be issued not later than thirty days from the date of submission of the application.]

[Substituted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

Explanation. - For the purposes of this sub-rule, the expression "clarification" includes modification or correction of particulars declared in the application for registration, other than Permanent Account Number, State, mobile number and e-mail address declared in Part A of FORM GST REG-01.

(3)

Where the proper officer is satisfied with the clarification, information or documents furnished by the applicant, he may approve the grant of registration to the applicant within a period of seven working days from the date of the receipt of such clarification or information or documents.

(4)

Where no reply is furnished by the applicant in response to the notice issued under sub-rule (2) or where the proper officer is not satisfied with the clarification, information or documents furnished, he [may]

[Substituted 'shall' by Notification No. G.S.R. 517(E), dated, 20.8.2020 (w.e.f. 19.6.2017).]

, for reasons to be recorded in writing, reject such application and inform the applicant electronically in FORM GST REG-05.

(5)

[If the proper officer fails to take any action, -

(a)

within a period of seven working days from the date of submission of the application in cases where the person is not covered under proviso to sub-rule (1); or

(b)

within a period of thirty days from the date of submission of the application in cases where a person is covered under proviso to sub-rule (1); or

(c)

within a period of seven working days from the date of the receipt of the clarification, information or documents furnished by the applicant under sub-rule (2),

the application for grant of registration shall be deemed to have been approved.]

[Substituted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

10.

Issue of registration certificate.

(1)

Subject to the provisions of sub-section (12) of section 25, where the application for grant of registration has been approved under rule 9, a certificate of registration in FORM GST REG-06 showing the principal place of business and additional place or places of business shall be made available to the applicant on the common portal and a Goods and Services Tax Identification Number shall be assigned subject to the following characters, namely:-

(a)

two characters for the State code;

(b)

ten characters for the Permanent Account Number or the Tax Deduction and Collection Account Number;

(c)

two characters for the entity code; and

(d)

one checksum character.

(2)

The registration shall be effective from the date on which the person becomes liable to registration where the application for registration has been submitted within a period of thirty days from such date.

(3)

Where an application for registration has been submitted by the applicant after the expiry of thirty days from the date of his becoming liable to registration, the effective date of registration shall be the date of the grant of registration under sub-rule (1) or sub-rule (3) or sub-rule (5) of rule 9.

(4)

Every certificate of registration shall be [duly signed or verified through electronic verification code]

[Substituted 'digitally signed' by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

by the proper officer under the Act.

(5)

Where the registration has been granted under sub-rule (5) of rule 9, the applicant shall be communicated the registration number, and the certificate of registration under sub-rule (1), duly signed or verified through electronic verification code, shall be made available to him on the common portal, within a period of three days after the expiry of the period specified in sub-rule (5) of rule 9.

10A.

[Furnishing of Bank Account Details.

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

- After a certificate of registration in FORM GST REG-06 has been made available on the common portal and a Goods and Services Tax Identification Number has been assigned, the registered person, except those who have been granted registration under rule 12 or, as the case may be rule 16, shall as soon as may be, but not later than forty five days from the date of grant of registration or the date on which the return required under section 39 is due to be furnished, whichever is earlier, furnish information with respect to details of bank account [which is in name of the registered person and obtained on Permanent Account Number of the registered person], or any other information, as may be required on the common portal in order to comply with any other provision.]

[Provided that in case of a proprietorship concern, the Permanent Account Number of the proprietor shall also be linked with the Aadhaar number of the proprietor.]

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

10B.

[Aadhaar authentication for registered person.

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

- The registered person, other than a person notified under sub-section (6D) of section 25, who has been issued a certificate of registration under rule 10 shall, undergo authentication of the Aadhaar number of the proprietor, in the case of proprietorship firm, or of any partner, in the case of a partnership firm, or of the karta, in the case of a Hindu undivided family, or of the Managing Director or any whole time Director, in the case of a company, or of any of the Members of the Managing Committee of an Association of persons or body of individuals or a Society, or of the Trustee in the Board of Trustees, in the case of a Trust and of the authorized signatory, in order to be eligible for the purposes as specified in column (2) of the Table below:

Table

S. No.

Purpose

(1)

(2)

1.

For filing of application for revocation of
cancellation of registration inFORM GST REG- 21under
Rule 23

2.

For filing of refund application inFORM
RFD-01under rule 89

3.

For refund under rule 96 of the integrated tax
paid on goods exported out of India

Provided that if Aadhaar number has not been assigned to the person required to undergo authentication of the Aadhaar number, such person shall furnish the following identification documents, namely: -

(a)

her/his Aadhaar Enrolment ID slip; and

(b)

(i)

Bank passbook with photograph; or

(ii)

Voter identity card issued by the Election Commission of India; or

(iii)

Passport; or

(iv)

Driving license issued by the Licensing Authority under the Motor Vehicles Act, 1988 (59 of 1988

);

Provided further that such person shall undergo the authentication of Aadhaar number within a period of thirty days of the allotment of the Aadhaar number.]

11.

[Separate registration for multiple places of business within a State or a Union territory.

[Substituted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(1)

Any person having multiple places of business within a State or a Union territory, requiring a separate registration for any such place of business under sub-section (2) of section 25 shall be granted separate registration in respect of each such place of business subject to the following conditions, namely: -

(a)

such person has more than one place of business as defined in clause (85) of section 2;

(b)

such person shall not pay tax under section 10 for any of his places of business if he is paying tax under section 9 for any other place of business;

(c)

all separately registered places of business of such person shall pay tax under the Act on supply of goods or services or both made to another registered place of business of such person and issue a tax invoice or a bill of supply, as the case may be, for such supply.

Explanation. - For the purposes of clause (b), it is hereby clarified that where any place of business of a registered person that has been granted a separate registration becomes ineligible to pay tax under section 10, all other registered places of business of the said person shall become ineligible to pay tax under the said section.

(2)

A registered person opting to obtain separate registration for a place of business shall submit a separate application in FORM GST REG-01 in respect of such place of business.

(3)

The provisions of rule 9 and rule 10 relating to the verification and the grant of registration shall, mutatis mutandis, apply to an application submitted under this rule]

12.

Grant of registration to persons required to deduct tax at source or to collect tax at source.

(1)

Any person required to deduct tax in accordance with the provisions of section 51 or a person required to collect tax at source in accordance with the provisions of section 52 shall electronically submit an application, duly signed or verified through electronic verification code, in FORM GST REG-07 for the grant of registration through the common portal, either directly or through a Facilitation Centre notified by the Commissioner.

(1A)

[A person applying for registration to [deduct or]

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

collect tax in accordance with the provisions of [section 51, or, as the case may be]

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

section 52, in a State or Union territory where he does not have a physical presence, shall mention the name of the State or Union territory in Part A of the application in Form GST REG-07 and mention the name of the State or Union territory in Part B thereof in which the principal place of business is located which may be different from the State or Union territory mentioned in Part A.]

(2)

The proper officer may grant registration after due verification and issue a certificate of registration in FORM GST REG-06 within a period of three working days from the date of submission of the application.

(3)

Where, upon an enquiry or pursuant to any other proceeding under the Act, the proper officer is satisfied that a person to whom a certificate of registration in FORM GST REG-06 has been issued is no longer liable to deduct tax at source under section 51 or collect tax at source under section 52, the said officer may cancel the registration issued under sub-rule (2) and such cancellation shall be communicated to the said person electronically in FORM GST REG-08:

Provided that the proper officer shall follow the procedure as provided in rule 22 for the cancellation of registration.

13.

Grant of registration to non-resident taxable person.

(1)

A non-resident taxable person shall electronically submit an application, along with a self-attested copy of his valid passport, for registration, duly signed or verified through electronic verification code, in FORM GST REG-09, at least five days prior to the commencement of business at the common portal either directly or through a Facilitation Centre notified by the Commissioner:

Provided that in the case of a business entity incorporated or established outside India, the application for registration shall be submitted along with its tax identification number or unique number on the basis of which the entity is identified by the Government of that country or its Permanent Account Number, if available.

(2)

A person applying for registration as a non-resident taxable person shall be given a temporary reference number by the common portal for making an advance deposit of tax in accordance with the provisions of section 27 and the acknowledgment under sub-rule (5) of rule 8 shall be issued electronically only after the said deposit in his electronic cash ledger.

(3)

The provisions of rule 9 and rule 10 relating to the verification and the grant of registration shall, mutatis mutandis, apply to an application submitted under this rule.

(4)

The application for registration made by a non-resident taxable person shall be [duly signed or verified through electronic verification code]

[Substituted 'signed' by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

by his authorised signatory who shall be a person resident in India having a valid Permanent Account Number.

14.

Grant of registration to a person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient.

(1)

Any person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient shall electronically submit an application for registration, duly signed or verified through electronic verification code, in FORM GST REG-10, at the common portal, either directly or through a Facilitation Centre notified by the Commissioner.

(2)

The applicant referred to in sub-rule (1) shall be granted registration, in FORM GST REG-06, subject to such conditions and restrictions and by such officer as may be notified by the Central Government on the recommendations of the Council.

15.

Extension in period of operation by casual taxable person and non-resident taxable person.

(1)

Where a registered casual taxable person or a non-resident taxable person intends to extend the period of registration indicated in his application of registration, an application in FORM GST REG-11 shall be submitted electronically through the common portal, either directly or through a Facilitation Centre notified by the Commissioner, by such person before the end of the validity of registration granted to him.

(2)

The application under sub-rule (1) shall be acknowledged only on payment of the amount specified in sub-section (2) of section 27.

16.

Suo moto registration.

(1)

Where, pursuant to any survey, enquiry, inspection, search or any other proceedings under the Act, the proper officer finds that a person liable to registration under the Act has failed to apply for such registration, such officer may register the said person on a temporary basis and issue an order in FORM GST REG-12.

(2)

The registration granted under sub-rule (1) shall be effective from the date of such order granting registration.

(3)

Every person to whom a temporary registration has been granted under sub-rule (1) shall, within a period of ninety days from the date of the grant of such registration, submit an application for registration in the form and manner provided in rule 8 or rule 12:

Provided that where the said person has filed an appeal against the grant of temporary registration, in such case, the application for registration shall be submitted within a period of thirty days from the date of the issuance of the order upholding the liability to registration by the Appellate Authority.

(4)

The provisions of rule 9 and rule 10 relating to verification and the issue of the certificate of registration shall, mutatis mutandis, apply to an application submitted under sub-rule (3).

(5)

The Goods and Services Tax Identification Number assigned, pursuant to the verification under sub-rule (4), shall be effective from the date of the order granting registration under sub-rule (1).

17.

Assignment of Unique Identity Number to certain special entities.

(1)

Every person required to be granted a Unique Identity Number in accordance with the provisions of sub-section (9) of section 25 may submit an application electronically in FORM GST REG-13, duly signed or verified through electronic verification code, in the manner specified in rule 8 at the common portal, either directly or through a Facilitation Centre notified by the Commissioner.

(1A)

[The Unique Identity Number granted under sub-rule (1) to a person under clause (a) of sub-section (9) of section 25 shall be applicable to the territory of India.]

[Inserted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

(2)

The proper officer may, upon submission of an application in FORM GST REG-13 or after filling up the said form, [or after receiving a recommendation from the Ministry of External Affairs, Government of India]

[Inserted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 22.6.2017).]

assign a Unique Identity Number to the said person and issue a certificate in FORM GST REG-06 within a period of three working days from the date of the submission of the application.

18.

Display of registration certificate and Goods and Services Tax Identification Number on the name board.

(1)

Every registered person shall display his certificate of registration in a prominent location at his principal place of business and at every additional place or places of business.

(2)

Every registered person shall display his Goods and Services Tax Identification Number on the name board exhibited at the entry of his principal place of business and at every additional place or places of business.

19.

Amendment of registration.

(1)

Where there is any change in any of the particulars furnished in the application for registration in FORM GST REG-01 or FORM GST REG-07 or FORM GST REG-09 or FORM GST REG-10 or for Unique Identity Number in FORM GST-REG-13, either at the time of obtaining registration or Unique Identity Number or as amended from time to time, the registered person shall, within a period of fifteen days of such change, submit an application, duly signed or verified through electronic verification code, electronically in FORM GST REG-14, along with the documents relating to such change at the common portal, either directly or through a Facilitation Centre notified by the Commissioner:

Provided that -

(a)

where the change relates to, -

(i)

legal name of business;

(ii)

address of the principal place of business or any additional place(s) of business; or

(iii)

addition, deletion or retirement of partners or directors, Karta, Managing Committee, Board of Trustees, Chief Executive Officer or equivalent, responsible for the day to day affairs of the business,-

which does not warrant cancellation of registration under section 29, the proper officer shall, after due verification, approve the amendment within a period of fifteen working days from the date of the receipt of the application in FORM

GST REG-14 and issue an order in FORM GST REG-15 electronically and such amendment shall take effect from the date of the occurrence of the event warranting such amendment;

(b)

the change relating to sub-clause (i) and sub-clause (iii) of clause (a) in any State or Union territory shall be applicable for all registrations of the registered person obtained under the provisions of this Chapter on the same Permanent Account Number;

(c)

where the change relates to any particulars other than those specified in clause (a), the certificate of registration shall stand amended upon submission of the application in FORM GST REG-14 on the common portal;

(d)

where a change in the constitution of any business results in the change of the Permanent Account Number of a registered person, the said person shall apply for fresh registration in FORM GST REG-01:

Provided further that any change in the mobile number or e-mail address of the authorised signatory submitted under this rule, as amended from time to time, shall be carried out only after online verification through the common portal in the manner provided under [sub-rule (2) of rule 8]

[Substituted 'the said rule' by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

.

(1A)

[Notwithstanding anything contained in sub-rule (1), any particular of the application for registration shall not stand amended with effect from a date earlier than the date of submission of the application in FORM GST REG-14 on the common portal except with the order of the Commissioner for reasons to be recorded in writing and subject to such conditions as the Commissioner may, in the said order, specify.]

[Inserted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017)]

(2)

Where the proper officer is of the opinion that the amendment sought under sub-rule (1) is either not warranted or the documents furnished therewith are incomplete or incorrect, he may, within a period of fifteen working days from the date of the receipt of the application in FORM GST REG-14, serve a notice in FORM GST REG-03, requiring the registered person to show cause, within a period of seven working days of the service of the said notice, as to why the application submitted under sub-rule (1) shall not be rejected.

(3)

The registered person shall furnish a reply to the notice to show cause, issued under sub-rule (2), in FORM GST REG-04, within a period of seven working days from the date of the service of the said notice.

(4)

Where the reply furnished under sub-rule (3) is found to be not satisfactory or where no reply is furnished in response to the notice issued under sub-rule (2) within the period prescribed in sub-rule (3), the proper officer shall reject the application submitted under sub-rule (1) and pass an order in FORM GST REG-05.

(5)

If the proper officer fails to take any action,-

(a)

within a period of fifteen working days from the date of submission of the application, or

(b)

within a period of seven working days from the date of the receipt of the reply to the notice to show cause under sub-rule (3),

the certificate of registration shall stand amended to the extent applied for and the amended certificate shall be made available to the registered person on the common portal.

20.

Application for cancellation of registration.

- A registered person, other than a person to whom a registration has been granted under rule 12 or a person to whom a Unique Identity Number has been granted under rule 17, seeking cancellation of his registration under sub-section (1) of section 29 shall electronically submit an application in FORM GST REG-16, including therein the details of inputs held in stock or inputs contained in semi-finished or finished goods held in stock and of capital goods held in stock on the date

from which the cancellation of registration is sought, liability thereon, the details of the payment, if any, made against such liability and may furnish, along with the application, relevant documents in support thereof, at the common portal within a period of thirty days of the occurrence of the event warranting the cancellation, either directly or through a Facilitation Centre notified by the Commissioner:

[***]

[Omitted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

21.

Registration to be cancelled in certain cases.

- The registration granted to a person is liable to be cancelled, if the said person,-

(a)

does not conduct any business from the declared place of business; or

(b)

[issues invoice or bill without supply of goods or services [or both]

[Substituted by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

in violation of the provisions of the Act, or the rules made thereunder; or

(c)

violates the provisions of section 171 of the Act or the rules made thereunder.]

(d)

[violates the provision of rule 10A.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

(e)

[avails input tax credit in violation of the provisions of section 16 of the Act or the rules made thereunder; or

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(f)

furnishes the details of outward supplies in FORM GSTR-1 under section 37 for one or more tax periods which is in excess of the outward supplies declared by him in his valid return under section 39 for the said tax periods; or

(g)

violates the provision of rule 86B.]

21A.

[Suspension of registration.

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(1)

Where a registered person has applied for cancellation of registration under rule 20, the registration shall be deemed to be suspended from the date of submission of the application or the date from which the cancellation is sought, whichever is later, pending the completion of proceedings for cancellation of registration under rule 22.

(2)

Where the proper officer has reasons to believe that the registration of a person is liable to be cancelled under section 29 or under rule 21, he may, [***] suspend the registration of such person with effect from a date to be determined by him, pending the completion of the proceedings for cancellation of registration under rule 22.

(2A)

[Where, a comparison of the returns furnished by a registered person under section 39 with

(a)

the details of outward supplies furnished in FORM GSTR-1; or

(b)

the details of inward supplies derived based on the details of outward supplies furnished by his suppliers in their FORM GSTR-1,

or such other analysis, as may be carried out on the recommendations of the Council, show that there are significant differences or anomalies indicating contravention of the provisions of the Act or the rules made thereunder, leading to cancellation of registration of the said person, his registration shall be suspended and the said person shall be intimated in FORM GST REG-31, electronically, on the common portal, or by sending a communication to his e-mail address provided at the time of registration or as amended from time to time, highlighting the said differences and anomalies and

asking him to explain, within a period of thirty days, as to why his registration shall not be cancelled.]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(3)

A registered person, whose registration has been suspended under sub-rule (1) or sub-rule (2) [or sub-rule (2A)]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

, shall not make any taxable supply during the period of suspension and shall not be required to furnish any return under section 39.

[Explanation.

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

- For the purposes of this sub-rule, the expression "shall not make any taxable supply" shall mean that the registered person shall not issue a tax invoice and, accordingly, not charge tax on supplies made by him during the period of suspension.]

(3A)

[A registered person, whose registration has been suspended under sub-rule (2) or sub-rule (2A), shall not be granted any refund under section 54, during the period of suspension of his registration.]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(4)

The suspension of registration under sub-rule (1) or sub-rule (2) [or sub-rule (2A)]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

shall be deemed to be revoked upon completion of the proceedings by the proper officer under rule 22 and such revocation shall be effective from the date on which the suspension had come into effect.]

[Provided that the suspension of registration under this rule may be revoked by the proper officer, anytime during the pendency of the proceedings for cancellation, if he deems fit.]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(5)

[Where any order having the effect of revocation of suspension of registration has been passed, the provisions of clause (a) of sub-section (3) of section 31 and section 40 in respect of the supplies made during the period of suspension and the procedure specified therein shall apply.]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

22.

Cancellation of registration.

(1)

Where the proper officer has reasons to believe that the registration of a person is liable to be cancelled under section 29, he shall issue a notice to such person in FORM GST REG-17, requiring him to show cause, within a period of seven working days from the date of the service of such notice, as to why his registration shall not be cancelled.

(2)

The reply to the show cause notice issued under sub-rule (1) shall be furnished in FORM REG-18 within the period specified in the said sub-rule.

(3)

Where a person who has submitted an application for cancellation of his registration is no longer liable to be registered or his registration is liable to be cancelled, the proper officer shall issue an order in FORM GST REG-19, within a period of thirty days from the date of application submitted under [* * *]

[Omitted 'sub-rule (1) of' by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

rule 20 or, as the case may be, the date of the reply to the show cause issued under sub-rule (1) [or under sub-rule (2A) of rule 21A]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

, cancel the registration, with effect from a date to be determined by him and notify the taxable person, directing him to pay arrears of any tax, interest or penalty including the amount liable to be paid under sub-section (5) of section 29.

(3A)

[Where a certificate of registration has not been made available to the applicant on the common portal within a period of fifteen days from the date of the furnishing of information and particulars referred to in clause (c) of sub-rule (2) and no

notice has been issued under sub-rule (3) within the said period, the registration shall be deemed to have been granted and the said certificate of registration, duly signed or verified through electronic verification code, shall be made available to the registered person on the common portal.]

[Inserted by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

(4)

Where the reply furnished under sub-rule (2) [or in response to the notice issued under sub-rule (2A) of rule 21A]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

is found to be satisfactory, the proper officer shall drop the proceedings and pass an order in FORM GST REG-20.

[Provided that where the person instead of replying to the notice served under sub-rule (1) for contravention of the provisions contained in clause (b) or clause (c) of sub-section (2) of section 29, furnishes all the pending returns and makes full payment of the tax dues along with applicable interest and late fee, the proper officer shall drop the proceedings and pass an order in FORM GST-REG 20.]

[Inserted by Notification No. G.S.R. 831(E), dated 4.9.2018 (w.e.f. 19.6.2017).]

(5)

The provisions of sub-rule (3) shall, mutatis mutandis, apply to the legal heirs of a deceased proprietor, as if the application had been submitted by the proprietor himself.

23.

Revocation of cancellation of registration.

(1)

A registered person, whose registration is cancelled by the proper officer on his own motion, may [subject to the provisions of rule 10B,]

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

submit an application for revocation of cancellation of registration, in FORM GST REG-21, to such proper officer, within a period of thirty days from the date of the service of the order of cancellation of registration [or within such time period as extended by the Additional Commissioner or the Joint Commissioner or the Commissioner, as the case may be, in exercise of the powers provided under the proviso to sub-section (1) of section 30,]

[Inserted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

at the common portal, either directly or through a Facilitation Centre notified by the Commissioner:

Provided that no application for revocation shall be filed, if the registration has been cancelled for the failure of the registered person to furnish returns, unless such returns are furnished and any amount due as tax, in terms of such returns, has been paid along with any amount payable towards interest, penalty and late fee in respect of the said returns.

[Provided further that all returns due for the period from the date of the order of cancellation of registration till the date of the order of revocation of cancellation of registration shall be furnished by the said person within a period of thirty days from the date of order of revocation of cancellation of registration:

Provided also that where the registration has been cancelled with retrospective effect, the registered person shall furnish all returns relating to period from the effective date of cancellation of registration till the date of order of revocation of cancellation of registration within a period of thirty days from the date of order of revocation of cancellation of registration.]

[Inserted by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

(2)

(a)

Where the proper officer is satisfied, for reasons to be recorded in writing, that there are sufficient grounds for revocation of cancellation of registration, he shall revoke the cancellation of registration by an order in FORM GST REG-22 within a period of thirty days from the date of the receipt of the application and communicate the same to the applicant.

(b)

The proper officer may, for reasons to be recorded in writing, under circumstances other than those specified in clause (a), by an order in FORM GST REG-05, reject the application for revocation of cancellation of registration and communicate the same to the applicant.

(3)

The proper officer shall, before passing the order referred to in clause (b) of sub-rule (2), issue a notice in FORM GST

REG-23 requiring the applicant to show cause as to why the application submitted for revocation under sub-rule (1) should not be rejected and the applicant shall furnish the reply within a period of seven working days from the date of the service of the notice in FORM GST REG-24.

(4)

Upon receipt of the information or clarification in FORM GST REG-24, the proper officer shall proceed to dispose of the application in the manner specified in sub-rule (2) within a period of thirty days from the date of the receipt of such information or clarification from the applicant.

24.

Migration of persons registered under the existing law.

(1)

(a)

Every person, other than a person deducting tax at source or an Input Service Distributor, registered under an existing law and having a Permanent Account Number issued under the provisions of the Income-tax Act, 1961 (Act 43 of 1961

) shall enrol on the common portal by validating his e-mail address and mobile number, either directly or through a Facilitation Centre notified by the Commissioner.

(b)

Upon enrollment under clause (a), the said person shall be granted registration on a provisional basis and a certificate of registration in FORM GST REG-25, incorporating the Goods and Services Tax Identification Number therein, shall be made available to him on the common portal:

Provided that a taxable person who has been granted multiple registrations under the existing law on the basis of a single Permanent Account Number shall be granted only one provisional registration under the Act:

Provided further that a person having centralised registration under the provisions of Chapter V of the Finance Act, 1994 (32 of 1994) shall be granted only one provisional registration in the State or Union territory in which he is registered under the existing law.

(2)

(a)

Every person who has been granted a provisional registration under sub-rule (1) shall submit an application electronically in FORM GST REG-26, duly signed or verified through electronic verification code, along with the information and documents specified in the said application, on the common portal either directly or through a Facilitation Centre notified by the Commissioner.

(b)

The information asked for in clause (a) shall be furnished within a period of three months or within such further period as may be extended by the Commissioner in this behalf.

(c)

If the information and the particulars furnished in the application are found, by the proper officer, to be correct and complete, a certificate of registration in FORM GST REG-06 shall be made available to the registered person electronically on the common portal.

(3)

Where the particulars or information specified in sub-rule (2) have either not been furnished or not found to be correct or complete, the proper officer shall, after serving a notice to show cause in FORM GST REG-27 and after affording the person concerned a reasonable opportunity of being heard, cancel the provisional registration granted under sub-rule (1) and issue an order in FORM GST REG-28:

Provided that the show cause notice issued in FORM GST REG-27 can be withdrawn by issuing an order in FORM GST REG-20, if it is found, after affording the person an opportunity of being heard, that no such cause exists for which the notice was issued.

(4)

Every person registered under any of the existing laws, who is not liable to be registered under the Act may, on or before [31st March, 2018]

[Substituted '31st December, 2017' by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017).]

, at his option, submit an application electronically in FORM GST REG-29 at the common portal for the cancellation of

registration granted to him and the proper officer shall, after conducting such enquiry as deemed fit, cancel the said registration.

25.

[Physical verification of business premises in certain cases.

[Substituted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

- Where the proper officer is satisfied that the physical verification of the place of business of a person is required due to failure of Aadhaar authentication [or due to not opting for Aadhaar authentication] before the grant of registration, or due to any other reason after the grant of registration, he may get such verification of the place of business, in the presence of the said person, done and the verification report along with the other documents, including photographs, shall be uploaded in FORM GST REG-30 on the common portal within a period of fifteen working days following the date of such verification.]

26.

Method of authentication.

(1)

All applications, including reply, if any, to the notices, returns including the details of outward and inward supplies, appeals or any other document required to be submitted under the provisions of these rules shall be so submitted electronically with digital signature certificate or through e-signature as specified under the provisions of the Information Technology Act, 2000 (

21 of 2000

) or verified by any other mode of signature or verification as notified by the Board in this behalf:

Provided that a registered person registered under the provisions of the Companies Act, 2013 (

18 of 2013

) shall furnish the documents or application verified through digital signature certificate.

[Provided further that a registered person registered under the provisions of the Companies Act, 2013 (

18 of 2013

) shall, during the period from the 21st day of April, 2020 to the 30th day of September, 2020, also be allowed to furnish the return under section 39 in FORM GSTR-3B verified through electronic verification code (EVC).

Provided also that a registered person registered under the provisions of the Companies Act, 2013 (

18 of 2013

) shall, during the period from the 27th day of May, 2020 to the 30th day of September, 2020, also be allowed to furnish the details of outward supplies under section 37 in FORM GSTR-1 verified through electronic verification code (EVC).]

[Substituted by Notification No. G.S.R. 394(E), dated 19.6.2020 (w.e.f. 19.6.2017).]

[Provided also that a registered person registered under the provisions of the Companies Act, 2013 (

18 of 2013

) shall, during the period from the 27th day of April, 2021 to the [31st day of August, 2021]

[Inserted by Notification No. G.S.R. 292(E), dated 27.04.2021 (w.e.f. 19.6.2017).]

, also be allowed to furnish the return under section 39 in FORM GSTR-3B and the details of outward supplies under section 37 in FORM GSTR-1 or using invoice furnishing facility, verified through electronic verification code (EVC).]

(2)

Each document including the return furnished online shall be signed or verified through electronic verification code -

(a)

in the case of an individual, by the individual himself or where he is absent from India, by some other person duly authorised by him in this behalf, and where the individual is mentally incapacitated from attending to his affairs, by his guardian or by any other person competent to act on his behalf;

(b)

in the case of a Hindu Undivided Family, by a Karta and where the Karta is absent from India or is mentally incapacitated from attending to his affairs, by any other adult member of such family or by the authorised signatory of such Karta;

(c)

in the case of a company, by the chief executive officer or authorised signatory thereof;

(d)

in the case of a Government or any Governmental agency or local authority, by an officer authorised in this behalf;

(e)

in the case of a firm, by any partner thereof, not being a minor or authorised signatory thereof;

(f)

in the case of any other association, by any member of the association or persons or authorised signatory thereof;

(g)

in the case of a trust, by the trustee or any trustee or authorised signatory thereof; or

(h)

in the case of any other person, by some person competent to act on his behalf, or by a person authorised in accordance with the provisions of section 48.

(3)

All notices, certificates and orders under the provisions of this Chapter shall be issued electronically by the proper officer or any other officer authorised to issue such notices or certificates or orders, through digital signature certificate [or through e-signature as specified under the provisions of the Information Technology Act, 2000 (

21 of 2000

) or verified by any other mode of signature or verification as notified by the Board in this behalf.]

[Substituted 'specified under the provisions of the Information Technology Act, 2000 (

21 of 2000

]' by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

[Chapter IV]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Determination of Value of Supply

27.

Value of supply of goods or services where the consideration is not wholly in money.

- Where the supply of goods or services is for a consideration not wholly in money, the value of the supply shall,-

(a)

be the open market value of such supply;

(b)

if the open market value is not available under clause (a), be the sum total of consideration in money and any such further amount in money as is equivalent to the consideration not in money, if such amount is known at the time of supply;

(c)

if the value of supply is not determinable under clause (a) or clause (b), be the value of supply of goods or services or both of like kind and quality;

(d)

if the value is not determinable under clause (a) or clause (b) or clause (c), be the sum total of consideration in money and such further amount in money that is equivalent to consideration not in money as determined by the application of rule 30 or rule 31 in that order.

Illustration. - (1) Where a new phone is supplied for twenty thousand rupees along with the exchange of an old phone and if the price of the new phone without exchange is twenty four thousand rupees, the open market value of the new phone is twenty four thousand rupees.

(2)

Where a laptop is supplied for forty thousand rupees along with the barter of a printer that is manufactured by the recipient and the value of the printer known at the time of supply is four thousand rupees but the open market value of the laptop is not known, the value of the supply of the laptop is forty four thousand rupees.

28.

Value of supply of goods or services or both between distinct or related persons, other than through an agent.

- The value of the supply of goods or services or both between distinct persons as specified in sub-section (4) and (5) of section 25 or where the supplier and recipient are related, other than where the supply is made through an agent, shall-

(a)

be the open market value of such supply;

(b)

if the open market value is not available, be the value of supply of goods or services of like kind and quality;

(c)

if the value is not determinable under clause (a) or (b), be the value as determined by the application of rule 30 or rule 31, in that order:

Provided that where the goods are intended for further supply as such by the recipient, the value shall, at the option of the supplier, be an amount equivalent to ninety percent of the price charged for the supply of goods of like kind and quality by the recipient to his customer not being a related person:

Provided further that where the recipient is eligible for full input tax credit, the value declared in the invoice shall be deemed to be the open market value of the goods or services.

29.

Value of supply of goods made or received through an agent.

- The value of supply of goods between the principal and his agent shall-

(a)

be the open market value of the goods being supplied, or at the option of the supplier, be ninety percent of the price charged for the supply of goods of like kind and quality by the recipient to his customer not being a related person, where the goods are intended for further supply by the said recipient.

Illustration. - A principal supplies groundnut to his agent and the agent is supplying groundnuts of like kind and quality in subsequent supplies at a price of five thousand rupees per quintal on the day of the supply. Another independent supplier is supplying groundnuts of like kind and quality to the said agent at the price of four thousand five hundred and fifty rupees per quintal. The value of the supply made by the principal shall be four thousand five hundred and fifty rupees per quintal or where he exercises the option, the value shall be 90 percent of five thousand rupees i.e., four thousand five hundred rupees per quintal.

(b)

where the value of a supply is not determinable under clause (a), the same shall be determined by the application of rule 30 or rule 31 in that order.

30.

Value of supply of goods or services or both based on cost.

- Where the value of a supply of goods or services or both is not determinable by any of the preceding rules of this Chapter, the value shall be one hundred and ten percent of the cost of production or manufacture or the cost of acquisition of such goods or the cost of provision of such services.

31.

Residual method for determination of value of supply of goods or services or both.

- Where the value of supply of goods or services or both cannot be determined under rules 27 to 30, the same shall be determined using reasonable means consistent with the principles and the general provisions of section 15 and the provisions of this Chapter:

Provided that in the case of supply of services, the supplier may opt for this rule, ignoring rule 30.

31A.

[Value of supply in case of lottery, betting, gambling and horse racing.

[Inserted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

(1)

Notwithstanding anything contained in the provision of this Chapter the value in respect of supplies specified below shall be determined in the manner provided hereinafter.

(2)

[The value of supply of lottery shall be deemed to be 100/128 of the face value of ticket or of the price as notified in the Official Gazette by the Organising State, whichever is higher.

Explanation. - For the purposes of this sub-rule, the expression "Organising State" has the same meaning as assigned to it in clause (f) of sub-rule (1) of rule 2 of the Lotteries (Regulation) Rules, 2010.]

(3)

The value of supply of actionable claim in the form of chance to win in betting, gambling or horse racing in a race club shall be 100% of the face value of the bet or the amount paid into the totalisator.]

32.

Determination of value in respect of certain supplies.

(1)

Notwithstanding anything contained in the provisions of this Chapter, the value in respect of supplies specified below shall, at the option of the supplier, be determined in the manner provided hereinafter.

(2)

The value of supply of services in relation to the purchase or sale of foreign currency, including money changing, shall be determined by the supplier of services in the following manner, namely:-

(a)

for a currency, when exchanged from, or to, Indian Rupees, the value shall be equal to the difference in the buying rate or the selling rate, as the case may be, and the Reserve Bank of India reference rate for that currency at that time, multiplied by the total units of currency:

Provided that in case where the Reserve Bank of India reference rate for a currency is not available, the value shall be one percent of the gross amount of Indian Rupees provided or received by the person changing the money:

Provided further that in case where neither of the currencies exchanged is Indian Rupees, the value shall be equal to one percent of the lesser of the two amounts the person changing the money would have received by converting any of the two currencies into Indian Rupee on that day at the reference rate provided by the Reserve Bank of India.

Provided also that a person supplying the services may exercise the option to ascertain the value in terms of clause (b) for a financial year and such option shall not be withdrawn during the remaining part of that financial year.

(b)

at the option of the supplier of services, the value in relation to the supply of foreign currency, including money changing, shall be deemed to be-

(i)

one percent of the gross amount of currency exchanged for an amount up to one lakh rupees, subject to a minimum amount of two hundred and fifty rupees;

(ii)

one thousand rupees and half of a percent of the gross amount of currency exchanged for an amount exceeding one lakh rupees and up to ten lakh rupees; and

(iii)

five thousand and five hundred rupees and one tenth of a percent of the gross amount of currency exchanged for an amount exceeding ten lakh rupees, subject to a maximum amount of sixty thousand rupees.

(3)

The value of the supply of services in relation to booking of tickets for travel by air provided by an air travel agent shall be deemed to be an amount calculated at the rate of five percent of the basic fare in the case of domestic bookings, and at the rate of ten percent of the basic fare in the case of international bookings of passage for travel by air.

Explanation. - For the purposes of this sub-rule, the expression "basic fare" means that part of the air fare on which commission is normally paid to the air travel agent by the airlines.

(4)

The value of supply of services in relation to life insurance business shall be,-

(a)

the gross premium charged from a policy holder reduced by the amount allocated for investment, or savings on behalf of the policy holder, if such an amount is intimated to the policy holder at the time of supply of service;

(b)

in case of single premium annuity policies other than (a), ten percent of single premium charged from the policy holder; or

(c)

in all other cases, twenty five percent of the premium charged from the policy holder in the first year and twelve and a half percent of the premium charged from the policy holder in subsequent years:

Provided that nothing contained in this sub-rule shall apply where the entire premium paid by the policy holder is only

towards the risk cover in life insurance.

(5)

Where a taxable supply is provided by a person dealing in buying and selling of second hand goods i.e., used goods as such or after such minor processing which does not change the nature of the goods and where no input tax credit has been availed on the purchase of such goods, the value of supply shall be the difference between the selling price and the purchase price and where the value of such supply is negative, it shall be ignored:

Provided that the purchase value of goods repossessed from a defaulting borrower, who is not registered, for the purpose of recovery of a loan or debt shall be deemed to be the purchase price of such goods by the defaulting borrower reduced by five percentage points for every quarter or part thereof, between the date of purchase and the date of disposal by the person making such repossession.

(6)

The value of a token, or a voucher, or a coupon, or a stamp (other than postage stamp) which is redeemable against a supply of goods or services or both shall be equal to the money value of the goods or services or both redeemable against such token, voucher, coupon, or stamp.

(7)

The value of taxable services provided by such class of service providers as may be notified by the Government, on the recommendations of the Council, as referred to in paragraph 2 of Schedule I of the said Act between distinct persons as referred to in section 25, where input tax credit is available, shall be deemed to be NIL.

32A.

[Value of supply in cases where Kerala Flood Cess is applicable.

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

- The value of supply of goods or services or both on which Kerala Flood Cess is levied under clause 14 of the Kerala Finance Bill, 2019 shall be deemed to be the value determined in terms of section 15 of the Act, but shall not include the said cess.]

33.

Value of supply of services in case of pure agent.

- Notwithstanding anything contained in the provisions of this Chapter, the expenditure or costs incurred by a supplier as a pure agent of the recipient of supply shall be excluded from the value of supply, if all the following conditions are satisfied, namely,-

(i)

the supplier acts as a pure agent of the recipient of the supply, when he makes the payment to the third party on authorisation by such recipient;

(ii)

the payment made by the pure agent on behalf of the recipient of supply has been separately indicated in the invoice issued by the pure agent to the recipient of service; and

(iii)

the supplies procured by the pure agent from the third party as a pure agent of the recipient of supply are in addition to the services he supplies on his own account.

Explanation. - For the purposes of this rule, the expression "pure agent" means a person who-

(a)

enters into a contractual agreement with the recipient of supply to act as his pure agent to incur expenditure or costs in the course of supply of goods or services or both;

(b)

neither intends to hold nor holds any title to the goods or services or both so procured or supplied as pure agent of the recipient of supply;

(c)

does not use for his own interest such goods or services so procured; and

(d)

receives only the actual amount incurred to procure such goods or services in addition to the amount received for supply he provides on his own account.

Illustration. - Corporate services firm A is engaged to handle the legal work pertaining to the incorporation of Company

B. Other than its service fees, A also recovers from B, registration fee and approval fee for the name of the company paid to the Registrar of Companies. The fees charged by the Registrar of Companies for the registration and approval of the name are compulsorily levied on B. A is merely acting as a pure agent in the payment of those fees. Therefore, A's recovery of such expenses is a disbursement and not part of the value of supply made by A to B.

34.

[Rate of exchange of currency, other than Indian rupees, for determination of value.

[Substituted 'The rate of exchange for the determination of the value of taxable goods or services or both shall be the applicable reference rate for that currency as determined by the Reserve Bank of India on the date of time of supply in respect of such supply in terms of Section 12 or, as the case may be, section 13 of the Act.' by Notification No. G.S.R. 965(E), dated 27.7.2017 (w.e.f. 19.6.2017).]

(1)

The rate of exchange for determination of value of taxable goods shall be the applicable rate of exchange as notified by the Board under section 14 of the Customs Act, 1962 for the date of time of supply of such goods in terms of section 12 of the Act.

(2)

The rate of exchange for determination of value of taxable services shall be the applicable rate of exchange determined as per the generally accepted accounting principles for the date of time of supply of such services in terms of section 13 of the Act.]

35.

Value of supply inclusive of integrated tax, central tax, State tax, Union territory tax.

- Where the value of supply is inclusive of integrated tax or, as the case may be, central tax, State tax, Union territory tax, the tax amount shall be determined in the following manner, namely,-

Tax amount = (Value inclusive of taxes X tax rate in % of IGST or, as the case may be, CGST, SGST or UTGST) ÷ (100 + sum of tax rates, as applicable, in %)

Explanation. - For the purposes of the provisions of this Chapter, the expressions-

(a)

"open market value" of a supply of goods or services or both means the full value in money, excluding the integrated tax, central tax, State tax, Union territory tax and the cess payable by a person in a transaction, where the supplier and the recipient of the supply are not related and the price is the sole consideration, to obtain such supply at the same time when the supply being valued is made;

(b)

"supply of goods or services or both of like kind and quality" means any other supply of goods or services or both made under similar circumstances that, in respect of the characteristics, quality, quantity, functional components, materials, and the reputation of the goods or services or both first mentioned, is the same as, or closely or substantially resembles, that supply of goods or services or both.

[Chapter V]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Input Tax Credit

36.

Documentary requirements and conditions for claiming input tax credit.

(1)

The input tax credit shall be availed by a registered person, including the Input Service Distributor, on the basis of any of the following documents, namely, -

(a)

an invoice issued by the supplier of goods or services or both in accordance with the provisions of section 31;

(b)

an invoice issued in accordance with the provisions of clause (f) of sub-section (3) of section 31, subject to the payment of tax;

(c)

a debit note issued by a supplier in accordance with the provisions of section 34;

(d)

a bill of entry or any similar document prescribed under the Customs Act, 1962 or rules made thereunder for the assessment of integrated tax on imports;

(e)

an Input Service Distributor invoice or Input Service Distributor credit note or any document issued by an Input Service Distributor in accordance with the provisions of sub-rule (1) of rule 54.

(2)

Input tax credit shall be availed by a registered person only if all the applicable particulars as specified in the provisions of Chapter VI are contained in the said document, and the relevant information, as contained in the said document, is furnished in FORM GSTR-2 by such person.

[Provided that if the said document does not contain all the specified particulars but contains the details of the amount of tax charged, description of goods or services, total value of supply of goods or services or both, GSTIN of the supplier and recipient and place of supply in case of inter-State supply, input tax credit may be availed by such registered person.]

[Inserted by Notification No. G.S.R. 831(E), dated 4.9.2018 (with the effect from the 1st dat of January, 2022).]

(3)

No input tax credit shall be availed by a registered person in respect of any tax that has been paid in pursuance of any order where any demand has been confirmed on account of any fraud, willful misstatement or suppression of facts.

(4)

[No input tax credit shall be availed by a registered person in respect of invoices or debit notes the details of which are required to be furnished under sub-section (1) of section 37 unless, -

(a)

the details of such invoices or debit notes have been furnished by the supplier in the statement of outward supplies in FORM GSTR-1 or using the invoice furnishing facility; and

(b)

the details of such invoices or debit notes have been communicated to the registered person in FORM GSTR-2B under sub-rule (7) of rule 60.]

37.

Reversal of input tax credit in the case of non-payment of consideration.

(1)

A registered person, who has availed of input tax credit on any inward supply of goods or services or both, but fails to pay to the supplier thereof, the value of such supply along with the tax payable thereon, within the time limit specified in the second proviso to subsection (2) of section 16, shall furnish the details of such supply, the amount of value not paid and the amount of input tax credit availed of proportionate to such amount not paid to the supplier in FORM GSTR-2 for the month immediately following the period of one hundred and eighty days from the date of the issue of the invoice:

Provided that the value of supplies made without consideration as specified in Schedule I of the said Act shall be deemed to have been paid for the purposes of the second proviso to sub-section (2) of section 16.

[Provided further that the value of supplies on account of any amount added in accordance with the provisions of clause (b) of sub-section (2) of section 15 shall be deemed to have been paid for the purposes of the second proviso to sub-section (2) of section 16.]

[Inserted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

(2)

The amount of input tax credit referred to in sub-rule (1) shall be added to the output tax liability of the registered person for the month in which the details are furnished.

(3)

The registered person shall be liable to pay interest at the rate notified under sub-section (1) of section 50 for the period starting from the date of availing credit on such supplies till the date when the amount added to the output tax liability, as mentioned in sub-rule (2), is paid.

(4)

The time limit specified in sub-section (4) of section 16 shall not apply to a claim for re-availing of any credit, in

accordance with the provisions of the Act or the provisions of this Chapter, that had been reversed earlier.

38.

Claim of credit by a banking company or a financial institution.

- A banking company or a financial institution, including a non-banking financial company, engaged in the supply of services by way of accepting deposits or extending loans or advances that chooses not to comply with the provisions of sub-section (2) of section 17, in accordance with the option permitted under sub-section (4) of that section, shall follow the following procedure, namely,-

(a)

the said company or institution shall not avail the credit of,-

(i)

the tax paid on inputs and input services that are used for non-business purposes; and

(ii)

the credit attributable to the supplies specified in sub-section (5) of section 17, in FORM GSTR-2;

(b)

the said company or institution shall avail the credit of tax paid on inputs and input services referred to in the second proviso to sub-section (4) of section 17 and not covered under clause (a);

(c)

fifty percent of the remaining amount of input tax shall be the input tax credit admissible to the company or the institution and shall be furnished in FORM GSTR-2;

(d)

the amount referred to in clauses (b) and (c) shall, subject to the provisions of sections 41, 42 and 43, be credited to the electronic credit ledger of the said company or the institution.

39.

Procedure for distribution of input tax credit by Input Service Distributor.

(1)

An Input Service Distributor shall distribute input tax credit in the manner and subject to the following conditions, namely,-

(a)

the input tax credit available for distribution in a month shall be distributed in the same month and the details thereof shall be furnished in FORM GSTR-6 in accordance with the provisions of Chapter VIII of these rules;

(b)

the Input Service Distributor shall, in accordance with the provisions of clause (d), separately distribute the amount of ineligible input tax credit (ineligible under the provisions of sub-section (5) of section 17 or otherwise) and the amount of eligible input tax credit;

(c)

the input tax credit on account of central tax, State tax, Union territory tax and integrated tax shall be distributed separately in accordance with the provisions of clause (d);

(d)

the input tax credit that is required to be distributed in accordance with the provisions of clause (d) and (e) of sub-section (2) of section 20 to one of the recipients 'R1', whether registered or not, from amongst the total of all the recipients to whom input tax credit is attributable, including the recipient(s) who are engaged in making exempt supply, or are otherwise not registered for any reason, shall be the amount, "C1", to be calculated by applying the following formula -

$$C1 = (t1 \div T) \times C$$

where,

"C" is the amount of credit to be distributed.

"t1" is the turnover, as referred to in section 20, of person R1 during the relevant period, and

"T" is the aggregate of the turnover, during the relevant period, of all recipients to whom the input service is attributable in accordance with the provisions of section 20;

(e)

the input tax credit on account of integrated tax shall be distributed as input tax credit of integrated tax to every recipient;

(f)

the input tax credit on account of central tax and State tax or Union territory tax shall-

- (i)
in respect of a recipient located in the same State or Union territory in which the Input Service Distributor is located, be distributed as input tax credit of central tax and State tax or Union territory tax respectively;
 - (ii)
in respect of a recipient located in a State or Union territory other than that of the Input Service Distributor, be distributed as integrated tax and the amount to be so distributed shall be equal to the aggregate of the amount of input tax credit of central tax and State tax or Union territory tax that qualifies for distribution to such recipient in accordance with clause (d);
 - (g)
the Input Service Distributor shall issue an Input Service Distributor invoice, as prescribed in sub-rule (1) of rule 54, clearly indicating in such invoice that it is issued only for distribution of input tax credit;
 - (h)
the Input Service Distributor shall issue an Input Service Distributor credit note, as prescribed in sub-rule (1) of rule 54, for reduction of credit in case the input tax credit already distributed gets reduced for any reason;
 - (i)
any additional amount of input tax credit on account of issuance of a debit note to an Input Service Distributor by the supplier shall be distributed in the manner and subject to the conditions specified in clauses (a) to (f) and the amount attributable to any recipient shall be calculated in the manner provided in clause (d) and such credit shall be distributed in the month in which the debit note is included in the return in FORM GSTR-6;
 - (j)
any input tax credit required to be reduced on account of issuance of a credit note to the Input Service Distributor by the supplier shall be apportioned to each recipient in the same ratio in which the input tax credit contained in the original invoice was distributed in terms of clause (d), and the amount so apportioned shall be-
 - (i)
reduced from the amount to be distributed in the month in which the credit note is included in the return in FORM GSTR-6; or
 - (ii)
added to the output tax liability of the recipient where the amount so apportioned is in the negative by virtue of the amount of credit under distribution being less than the amount to be adjusted.
 - (2)
If the amount of input tax credit distributed by an Input Service Distributor is reduced later on for any other reason for any of the recipients, including that it was distributed to a wrong recipient by the Input Service Distributor, the process specified in clause (j) of sub-rule (1) shall apply, mutatis mutandis, for reduction of credit.
 - (3)
Subject to sub-rule (2), the Input Service Distributor shall, on the basis of the Input Service Distributor credit note specified in clause (h) of sub-rule (1), issue an Input Service Distributor invoice to the recipient entitled to such credit and include the Input Service Distributor credit note and the Input Service Distributor invoice in the return in FORM GSTR-6 for the month in which such credit note and invoice was issued.
40.
Manner of claiming credit in special circumstances.
- (1)
The input tax credit claimed in accordance with the provisions of sub-section (1) of section 18 on the inputs held in stock or inputs contained in semi-finished or finished goods held in stock, or the credit claimed on capital goods in accordance with the provisions of clauses (c) and (d) of the said sub-section, shall be subject to the following conditions, namely,-
 - (a)
the input tax credit on capital goods, in terms of clauses (c) and (d) of sub-section (1) of section 18, shall be claimed after reducing the tax paid on such capital goods by five percentage points per quarter of a year or part thereof from the date of the invoice or such other documents on which the capital goods were received by the taxable person.
 - (b)
[the registered person shall within a period of thirty days from the date of becoming eligible to avail the input tax credit

under sub-section (1) of section 18, or within such further period as may be extended by the Commissioner by a notification in this behalf, shall make a declaration, electronically, on the common portal in FORM GST ITC-01 to the effect that he is eligible to avail the input tax credit as aforesaid:

[Substituted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

Provided that any extension of the time limit notified by the Commissioner of State tax or the Commissioner of Union territory tax shall be deemed to be notified by the Commissioner.]

[Substituted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

(c)

the declaration under clause (b) shall clearly specify the details relating to the inputs held in stock or inputs contained in semi-finished or finished goods held in stock, or as the case may be, capital goods-

(i)

on the day immediately preceding the date from which he becomes liable to pay tax under the provisions of the Act, in the case of a claim under clause (a) of sub-section (1) of section 18;

(ii)

on the day immediately preceding the date of the grant of registration, in the case of a claim under clause (b) of sub-section (1) of section 18;

(iii)

on the day immediately preceding the date from which he becomes liable to pay tax under section 9, in the case of a claim under clause (c) of sub-section (1) of section 18;

(iv)

on the day immediately preceding the date from which the supplies made by the registered person becomes taxable, in the case of a claim under clause (d) of sub-section (1) of section 18;

(d)

the details furnished in the declaration under clause (b) shall be duly certified by a practicing chartered accountant or a cost accountant if the aggregate value of the claim on account of central tax, State tax, Union territory tax and integrated tax exceeds two lakh rupees;

(e)

the input tax credit claimed in accordance with the provisions of clauses (c) and (d) of sub-section (1) of section 18 shall be verified with the corresponding details furnished by the corresponding supplier in FORM GSTR-1 or as the case may be, in FORM GSTR-4, on the common portal.

(2)

The amount of credit in the case of supply of capital goods or plant and machinery, for the purposes of sub-section (6) of section 18, shall be calculated by reducing the input tax on the said goods at the rate of five percentage points for every quarter or part thereof from the date of the issue of the invoice for such goods.

41.

Transfer of credit on sale, merger, amalgamation, lease or transfer of a business.

(1)

A registered person shall, in the event of sale, merger, de-merger, amalgamation, lease or transfer or change in the ownership of business for any reason, furnish the details of sale, merger, de-merger, amalgamation, lease or transfer of business, in FORM GST ITC-02, electronically on the common portal along with a request for transfer of unutilized input tax credit lying in his electronic credit ledger to the transferee:

Provided that in the case of demerger, the input tax credit shall be apportioned in the ratio of the value of assets of the new units as specified in the demerger scheme.

[Explanation. - For the purpose of this sub-rule, it is hereby clarified that the "value of assets" means the value of the entire assets of the business, whether or not input tax credit has been availed thereon.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(2)

The transferor shall also submit a copy of a certificate issued by a practicing chartered accountant or cost accountant certifying that the sale, merger, de-merger, amalgamation, lease or transfer of business has been done with a specific provision for the transfer of liabilities.

(3)

The transferee shall, on the common portal, accept the details so furnished by the transferor and, upon such acceptance, the un-utilized credit specified in FORM GST ITC-02 shall be credited to his electronic credit ledger.

(4)

The inputs and capital goods so transferred shall be duly accounted for by the transferee in his books of account.
41A.

[Transfer of credit on obtaining separate registration for multiple places of business within a State or Union territory.

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(1)

A registered person who has obtained separate registration for multiple places of business in accordance with the provisions of rule 11 and who intends to transfer, either wholly or partly, the unutilised input tax credit lying in his electronic credit ledger to any or all of the newly registered place of business, shall furnish within a period of thirty days from obtaining such separate registrations, the details in FORM GST ITC-02A electronically on the common portal, either directly or through a Facilitation Centre notified in this behalf by the Commissioner:

Provided that the input tax credit shall be transferred to the newly registered entities in the ratio of the value of assets held by them at the time of registration.

Explanation. - For the purposes of this sub-rule, it is hereby clarified that the 'value of assets' means the value of the entire assets of the business whether or not input tax credit has been availed thereon.

(2)

The newly registered person (transferee) shall, on the common portal, accept the details so furnished by the registered person (transferor) and, upon such acceptance, the unutilised input tax credit specified in FORM GST ITC-02A shall be credited to his electronic credit ledger.]

42.

Manner of determination of input tax credit in respect of inputs or input services and reversal thereof.

(1)

The input tax credit in respect of inputs or input services, which attract the provisions of sub-section (1) or sub-section (2) of section 17, being partly used for the purposes of business and partly for other purposes, or partly used for effecting taxable supplies including zero rated supplies and partly for effecting exempt supplies, shall be attributed to the purposes of business or for effecting taxable supplies in the following manner, namely,-

(a)

the total input tax involved on inputs and input services in a tax period, be denoted as 'T';

(b)

the amount of input tax, out of 'T', attributable to inputs and input services intended to be used exclusively for the purposes other than business, be denoted as 'T1';

(c)

the amount of input tax, out of 'T', attributable to inputs and input services intended to be used exclusively for effecting exempt supplies, be denoted as 'T2';

(d)

the amount of input tax, out of 'T', in respect of inputs and input services on which credit is not available under sub-section (5) of section 17, be denoted as 'T3';

(e)

the amount of input tax credit credited to the electronic credit ledger of registered person, be denoted as 'C1' and calculated as-

$C1 = T - (T1 + T2 + T3);$

(f)

the amount of input tax credit attributable to inputs and input services intended to be used exclusively for effecting supplies other than exempted but including zero rated supplies, be denoted as 'T4';

[Explanation. - For the purpose of this clause, it is hereby clarified that in case of supply of services covered by clause (b) of paragraph 5 of Schedule II of the said Act, value of T4 shall be zero during the construction phase because inputs and input services will be commonly used for construction of apartments booked on or before the date of issuance of completion certificate or first occupation of the project, whichever is earlier, and those which are not booked by the said date.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(g)

'T1', 'T2', 'T3' and 'T4' shall be determined and declared by the registered person at the invoice level in Form GSTR-2 [and at summary level in Form GSTR-3B]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

;

(h)

input tax credit left after attribution of input tax credit under clause [(h)]

[Substituted '(g)' by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

shall be called common credit, be denoted as 'C2' and calculated as -

$C2 = C1 - T4$;

(i)

the amount of input tax credit attributable towards exempt supplies, be denoted as 'D1' and calculated as -

$D1 = (E \div F) \times C2$

where,

'E' is the aggregate value of exempt supplies during the tax period, and

'F' is the total turnover in the State of the registered person during the tax period:

[Provided that in case of supply of services covered by clause (b) of paragraph 5 of Schedule II of the Act, the value of 'E/F' for a tax period shall be calculated for each project separately, taking value of E and F as under: -

E= aggregate carpet area of the apartments, construction of which is exempt from tax plus aggregate carpet area of the apartments, construction of which is not exempt from tax, but are identified by the promoter to be sold after issue of completion certificate or first occupation, whichever is earlier;

F= aggregate carpet area of the apartments in the project;

Explanation 1. - In the tax period in which the issuance of completion certificate or first occupation of the project takes place, value of E shall also include aggregate carpet area of the apartments, which have not been booked till the date of issuance of completion certificate or first occupation of the project, whichever is earlier;

Explanation 2. - Carpet area of apartments, tax on construction of which is paid or payable at the rates specified for items (i), (ia), (ib), (ic) or (id), against serial number 3 of the Table in the notification No. 11/2017-Central Tax (Rate), published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) dated 28th June, 2017 vide GSR number 690(E) dated 28th June, 2017, as amended, shall be taken into account for calculation of value of 'E' in view of Explanation (iv) in paragraph 4 of the notification No. 11/2017-Central Tax (Rate), published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) dated 28th June, 2017 vide GSR number 690(E) dated 28th June, 2017, as amended.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[Provided further]

[Substituted 'Provided' by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

that where the registered person does not have any turnover during the said tax period or the aforesaid information is not available, the value of 'E/F' shall be calculated by taking values of 'E' and 'F' of the last tax period for which the details of such turnover are available, previous to the month during which the said value of 'E/F' is to be calculated;

Explanation. - For the purposes of this clause, it is hereby clarified that the aggregate value of exempt supplies and the total turnover shall exclude the amount of any duty or tax levied under entry 84 [and entry 92A]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

of List I of the Seventh Schedule to the Constitution and entry 51 and 54 of List II of the said Schedule;

(j)

the amount of credit attributable to non-business purposes if common inputs and input services are used partly for business and partly for non-business purposes, be denoted as 'D2', and shall be equal to five percent of C2; and

(k)

the remainder of the common credit shall be the eligible input tax credit attributed to the purposes of business and for effecting supplies other than exempted supplies but including zero rated supplies and shall be denoted as 'C3', where,-

$C3 = C2 - (D1 + D2)$;

(l)

[the amount 'C3', 'D1' and 'D2' shall be computed separately for input tax credit of central tax, State tax, Union territory tax and integrated tax and declared in Form GSTR-3B or through Form GST DRC-03;]

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(m)

the amount equal to aggregate of 'D1' and 'D2' shall be [reversed by the registered person in Form GSTR-3B or through Form GST DRC-03]

[Substituted 'added to the output tax liability of the registered person' by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

:

Provided that where the amount of input tax relating to inputs or input services used partly for the purposes other than business and partly for effecting exempt supplies has been identified and segregated at the invoice level by the registered person, the same shall be included in 'T1' and 'T2' respectively, and the remaining amount of credit on such inputs or input services shall be included in 'T4'.

(2)

The [Except in case of supply of services covered by clause (b) of paragraph 5 of the Schedule II of the Act, the input tax credit]

[Substituted 'input tax credit' by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

determined under sub-rule (1) shall be calculated finally for the financial year before the due date for furnishing of the return for the month of September following the end of the financial year to which such credit relates, in the manner specified in the said sub-rule and -

(a)

where the aggregate of the amounts calculated finally in respect of 'D1' and 'D2' exceeds the aggregate of the amounts determined under sub-rule (1) in respect of 'D1' and 'D2', such excess shall be [reversed by the registered person in Form GSTR-3B or through Form GST DRC-03]

[Substituted 'added to the output tax liability of the registered person' by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

in the month not later than the month of September following the end of the financial year to which such credit relates and the said person shall be liable to pay interest on the said excess amount at the rate specified in sub-section (1) of section 50 for the period starting from the first day of April of the succeeding financial year till the date of payment; or

(b)

where the aggregate of the amounts determined under sub-rule (1) in respect of 'D1' and 'D2' exceeds the aggregate of the amounts calculated finally in respect of 'D1' and 'D2', such excess amount shall be claimed as credit by the registered person in his return for a month not later than the month of September following the end of the financial year to which such credit relates.

(3)

[In case of supply of services covered by clause (b) of paragraph 5 of the Schedule II of the Act, the input tax determined under sub-rule (1) shall be calculated finally, for each ongoing project or project which commences on or after 1st April, 2019, which did not undergo or did not require transition of input tax credit consequent to change of rates of tax on 1st April, 2019 in accordance with notification No. 11/2017- Central Tax (Rate), dated the 28th June, 2017, published vide GSR No. 690(E) dated the 28th June, 2017, as amended for the entire period from the commencement of the project or 1st July, 2017, whichever is later, to the completion or first occupation of the project, whichever is earlier, before the due date for furnishing of the return for the month of September following the end of financial year in which the completion certificate is issued or first occupation takes place of the project, in the manner prescribed in the said sub-rule, with the modification that value of E/F shall be calculated taking value of E and F as under:

E= aggregate carpet area of the apartments, construction of which is exempt from tax plus aggregate carpet area of the apartments, construction of which is not exempt from tax, but which have not been booked till the date of issuance of completion certificate or first occupation of the project, whichever is earlier:

F= aggregate carpet area of the apartments in the project;

and, -

(a)

where the aggregate of the amounts calculated finally in respect of 'D1' and 'D2' exceeds the aggregate of the amounts

determined under sub-rule (1) in respect of 'D1' and 'D2', such excess shall be reversed by the registered person in Form GSTR-3B or through Form GST DRC-03 in the month not later than the month of September following the end of the financial year in which the completion certificate is issued or first occupation of the project takes place and the said person shall be liable to pay interest on the said excess amount at the rate specified in sub-section (1) of section 50 for the period starting from the first day of April of the succeeding financial year till the date of payment; or

(b)

where the aggregate of the amounts determined under sub-rule (1) in respect of 'D1' and 'D2' exceeds the aggregate of the amounts calculated finally in respect of 'D1' and 'D2', such excess amount shall be claimed as credit by the registered person in his return for a month not later than the month of September following the end of the financial year in which the completion certificate is issued or first occupation takes place of the project.

(4)

In case of supply of services covered by clause (b) of paragraph 5 of Schedule II of the Act, the input tax determined under sub-rule (1) shall be calculated finally, for commercial portion in each project, other than residential real estate project (RREP), which underwent transition of input tax credit consequent to change of rates of tax on the 1st April, 2019 in accordance with notification No. 11/2017- Central Tax (Rate), dated the 28th June, 2017, published vide GSR No. 690(E) dated the 28th June, 2017, as amended for the entire period from the commencement of the project or 1st July, 2017, whichever is later, to the completion or first occupation of the project, whichever is earlier, before the due date for furnishing of the return for the month of September following the end of financial year in which the completion certificate is issued or first occupation takes place of the project, in the following manner.

(a)

The aggregate amount of common credit on commercial portion in the project (C3aggregate_comm) shall be calculated as under,

$$C3aggregate_comm = [aggregate\ of\ amounts\ of\ C3\ determined\ under\ sub- rule\ (1)\ for\ the\ tax\ periods\ starting\ from\ 1st\ July,\ 2017\ to\ 31st\ March,\ 2019,\ x\ (AC / AT)] + [aggregate\ of\ amounts\ of\ C3\ determined\ under\ sub- rule\ (1)\ for\ the\ tax\ periods\ starting\ from\ 1st\ April,\ 2019\ to\ the\ date\ of\ completion\ or\ first\ occupation\ of\ the\ project,\ whichever\ is\ earlier]$$

Where, -

AC = total carpet area of the commercial apartments in the project

AT = total carpet area of all apartments in the project

(b)

The amount of final eligible common credit on commercial portion in the project (C3final_comm) shall be calculated as under

$$C3final_comm = C3aggregate_comm \times (E / F)$$

Where, -

E = total carpet area of commercial apartments which have not been booked till the date of issuance of completion certificate or first occupation of the project, whichever is earlier.

F = AC = total carpet area of the commercial apartments in the project

(c)

where, C3aggregate_comm exceeds C3final_comm, such excess shall be reversed by the registered person in Form GSTR-3B or through Form GST DRC-03 in the month not later than the month of September following the end of the financial year in which the completion certificate is issued or first occupation takes place of the project and the said person shall be liable to pay interest on the said excess amount at the rate specified in sub-section (1) of section 50 for the period starting from the first day of April of the succeeding financial year till the date of payment;

(d)

where, C3final_comm exceeds C3aggregate_comm, such excess amount shall be claimed as credit by the registered person in his return for a month not later than the month of September following the end of the financial year in which the completion certificate is issued or first occupation takes place of the project.

(5)

Input tax determined under sub- rule (1) shall not be required to be calculated finally on completion or first occupation of an RREP which underwent transition of input tax credit consequent to change of rates of tax on 1st April, 2019 in accordance with notification No. 11/2017- Central Tax (Rate), dated the 28th June, 2017, published vide GSR No. 690(E) dated the 28th June, 2017, as amended.

(6)

Where any input or input service are used for more than one project, input tax credit with respect to such input or input service shall be assigned to each project on a reasonable basis and credit reversal pertaining to each project shall be carried out as per sub-rule (3).]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

43.

Manner of determination of input tax credit in respect of capital goods and reversal thereof in certain cases.

(1)

Subject to the provisions of sub-section (3) of section 16, the input tax credit in respect of capital goods, which attract the provisions of sub-sections (1) and (2) of section 17, being partly used for the purposes of business and partly for other purposes, or partly used for effecting taxable supplies including zero rated supplies and partly for effecting exempt supplies, shall be attributed to the purposes of business or for effecting taxable supplies in the following manner, namely, -

(a)

the amount of input tax in respect of capital goods used or intended to be used exclusively for non-business purposes or used or intended to be used exclusively for effecting exempt supplies shall be indicated in Form GSTR-2 [and Form GSTR-3B]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

and shall not be credited to his electronic credit ledger;

(b)

the amount of input tax in respect of capital goods used or intended to be used exclusively for effecting supplies other than exempted supplies but including zero-rated supplies shall be indicated in Form GSTR-2 [and Form GSTR-3B]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

and shall be credited to the electronic credit ledger;

[Explanation. - For the purpose of this clause, it is hereby clarified that in case of supply of services covered by clause (b) of paragraph 5 of the Schedule II of the said Act, the amount of input tax in respect of capital goods used or intended to be used exclusively for effecting supplies other than exempted supplies but including zero rated supplies, shall be zero during the construction phase because capital goods will be commonly used for construction of apartments booked on or before the date of issuance of completion certificate or first occupation of the project, whichever is earlier, and those which are not booked by the said date.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(c)

[the amount of input tax in respect of capital goods not covered under clauses (a) and (b), denoted as 'A', being the amount of tax as reflected on the invoice, shall credit directly to the electronic credit ledger and the validity of the useful life of such goods shall extend upto five years from the date of the invoice for such goods:

[Substituted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

Provided that where any capital goods earlier covered under clause (a) is subsequently covered under this clause, input tax in respect of such capital goods denoted as 'A' shall be credited to the electronic credit ledger subject to the condition that the ineligible credit attributable to the period during which such capital goods were covered by clause (a), denoted as 'Tie', shall be calculated at the rate of five percentage points for every quarter or part thereof and added to the output tax liability of the tax period in which such credit is claimed:

Provided further that the amount 'Tie' shall be computed separately for input tax credit of central tax, State tax, Union territory tax and integrated tax and declared in FORM GSTR-3B.

Explanation. - An item of capital goods declared under clause (a) on its receipt shall not attract the provisions of sub-section (4) of section 18, if it is subsequently covered under this clause.]

(d)

[the aggregate of the amounts of 'A' credited to the electronic credit ledger under clause (c) in respect of common capital goods whose useful life remains during the tax period, to be denoted as 'Tc', shall be the common credit in respect of such capital goods:

[Substituted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

Provided that where any capital goods earlier covered under clause (b) are subsequently covered under clause (c), the

input tax credit claimed in respect of such capital good(s) shall be added to arrive at the aggregate value 'Tc';]

(e)

the amount of input tax credit attributable to a tax period on common capital goods during their useful life, be denoted as 'Tm' and calculated as-

$$Tm = Tc \div 60$$

[Explanation.

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

- For the removal of doubt, it is clarified that useful life of any capital goods shall be considered as five years from the date of invoice and the said formula shall be applicable during the useful life of the said capital goods.]

[***]

[Omitted 'clause (f)' by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

(g)

the amount of common credit attributable towards exempted supplies, be denoted as 'Te', and calculated as -

$$Te = (E \div F) \times Tr$$

where,

'E' is the aggregate value of exempt supplies, made, during the tax period, and

'F' is the total turnover [in the State]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

of the registered person during the tax period:

[Provided that in case of supply of services covered by clause (b) of paragraph 5 of the Schedule II of the Act, the value of 'E/F' for a tax period shall be calculated for each project separately, taking value of E and F as under:

E= aggregate carpet area of the apartments, construction of which is exempt from tax plus aggregate carpet area of the apartments, construction of which is not exempt from tax, but are identified by the promoter to be sold after issue of completion certificate or first occupation, whichever is earlier;

F= aggregate carpet area of the apartments in the project;

Explanation1. - In the tax period in which the issuance of completion certificate or first occupation of the project takes place, value of E shall also include aggregate carpet area of the apartments, which have not been booked till the date of issuance of completion certificate or first occupation of the project, whichever is earlier.

Explanation 2. - Carpet area of apartments, tax on construction of which is paid or payable at the rates specified for items (i), (ia), (ib), (ic) or (id), against serial number 3 of the Table in notification No. 11/2017-Central Tax (Rate) published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) dated 28th June, 2017 vide GSR No. 690 (E) dated 28th June, 2017, as amended, shall be taken into account for calculation of value of 'E' in view of Explanation (iv) in paragraph 4 of the notification No. 11/2017-Central Tax (Rate) published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) dated the 28th June, 2017 vide GSR No. 690 (E) dated 28th June, 2017, as amended.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[Provided further]

[Substituted 'Provided' by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

that where the registered person does not have any turnover during the said tax period or the aforesaid information is not available, the value of 'E/F' shall be calculated by taking values of 'E' and 'F' of the last tax period for which the details of such turnover are available, previous to the month during which the said value of 'E/F' is to be calculated;

Explanation. - For the purposes of this clause, it is hereby clarified that the aggregate value of exempt supplies and the total turnover shall exclude the amount of any duty or tax levied under entry 84 [and entry 92A]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

of List I of the Seventh Schedule to the Constitution and entry 51 and 54 of List II of the said Schedule;

(h)

the amount Te along with the applicable interest shall, during every tax period of the useful life of the concerned capital goods, be added to the output tax liability of the person making such claim of credit.

(i)

[The amount Te shall be computed separately for input tax credit of central tax, State tax, Union territory tax and integrated tax and declared in Form GSTR-3B.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(2)

[In case of supply of services covered by clause (b) of paragraph 5 of schedule II of the Act, the amount of common credit attributable towards exempted supplies (Tefinal) shall be calculated finally for the entire period from the commencement of the project or 1st July, 2017, whichever is later, to the completion or first occupation of the project, whichever is earlier, for each project separately, before the due date for furnishing of the return for the month of September following the end of financial year in which the completion certificate is issued or first occupation takes place of the project, as under:

$T_{\text{efinal}} = [(E1 + E2 + E3) / F] \times T_{\text{cfinal}}$,

Where, -

E1= aggregate carpet area of the apartments, construction of which is exempt from tax

E2= aggregate carpet area of the apartments, supply of which is partly exempt and partly taxable, consequent to change of rates of tax on 1st April, 2019, which shall be calculated as under, -

$E2 = [\text{Carpet area of such apartments}] \times [V1 / (V1 + V2)]$, -

Where, -

V1 is the total value of supply of such apartments which was exempt from tax; and

V2 is the total value of supply of such apartments which was taxable

E3 = aggregate carpet area of the apartments, construction of which is not exempt from tax, but have not been booked till the date of issuance of completion certificate or first occupation of the project, whichever is earlier:

F= aggregate carpet area of the apartments in the project;

Tcfinal = aggregate of Afinal in respect of all capital goods used in the project and Afinal for each capital goods shall be calculated as under,

$A_{\text{final}} = A \times (\text{number of months for which capital goods is used for the project} / 60)$

and, -

(a)

where value of Tefinal exceeds the aggregate of amounts of Te determined for each tax period under sub-rule (1), such excess shall be reversed by the registered person in FORM GSTR-3B or through FORM GST DRC-03 in the month not later than the month of September following the end of the financial year in which the completion certificate is issued or first occupation takes place of the project and the said person shall be liable to pay interest on the said excess amount at the rate specified in sub-section (1) of section 50 for the period starting from the first day of April of the succeeding financial year till the date of payment; or

(b)

where aggregate of amounts of Te determined for each tax period under sub-rule (1) exceeds Tefinal, such excess amount shall be claimed as credit by the registered person in his return for a month not later than the month of September following the end of the financial year in which the completion certificate is issued or first occupation takes place of the project.

Explanation. - For the purpose of calculation of Tcfinal, part of the month shall be treated as one complete month.

(3)

The amount Tefinal and Tcfinal shall be computed separately for input tax credit of central tax, State tax, Union territory tax and integrated tax.

(4)

Where any capital goods are used for more than one project, input tax credit with respect to such capital goods shall be assigned to each project on a reasonable basis and credit reversal pertaining to each project shall be carried out as per sub-rule (2).

(5)

Where any capital goods used for the project have their useful life remaining on the completion of the project, input tax credit attributable to the remaining life shall be availed in the project in which the capital goods is further used;]

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[Explanation [1]

[Substituted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017).]

. - For the purposes of rule 42 and this rule, it is hereby clarified that the aggregate value of exempt supplies shall

exclude: -

[***]

[Omitted '(a)' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(b)

the value of services by way of accepting deposits, extending loans or advances in so far as the consideration is represented by way of interest or discount, except in case of a banking company or a financial institution including a non-banking financial company, engaged in supplying services by way of accepting deposits, extending loans or advances; and

(c)

the value of supply of services by way of transportation of goods by a vessel from the customs station of clearance in India to a place outside India;]

[Explanation 2. - For the purposes of rule 42 and this rule, -

(i)

the term "apartment" shall have the same meaning as assigned to it in clause (e) of section 2 of the Real Estate (Regulation and Development) Act, 2016 (16 of 2016

);

(ii)

the term "project" shall mean a real estate project or a residential real estate project;

(iii)

the term "Real Estate Project (REP)" shall have the same meaning as assigned to it in in clause (zn) of section 2 of the Real Estate (Regulation and Development) Act, 2016 (16 of 2016

);

(iv)

the term "Residential Real Estate Project (RREP)" shall mean a REP in which the carpet area of the commercial apartments is not more than 15 per cent. of the total carpet area of all the apartments in the REP;

(v)

the term "promoter" shall have the same meaning as assigned to it in in clause (zk) of section 2 of the Real Estate (Regulation and Development) Act, 2016 (16 of 2016

);

(vi)

"Residential apartment" shall mean an apartment intended for residential use as declared to the Real Estate Regulatory Authority or to competent authority;

(vii)

"Commercial apartment" shall mean an apartment other than a residential apartment;

(viii)

the term "competent authority" as mentioned in definition of "residential apartment", means the local authority or any authority created or established under any law for the time being in force by the Central Government or State Government or Union Territory Government, which exercises authority over land under its jurisdiction, and has powers to give permission for development of such immovable property;

(ix)

the term "Real Estate Regulatory Authority" shall mean the Authority established under sub- section (1) of section 20 (1) of the Real Estate (Regulation and Development) Act, 2016 (No. 16 of 2016

) by the Central Government or State Government;

(x)

the term "carpet area" shall have the same meaning assigned to it in in clause (k) of section 2 of the Real Estate (Regulation and Development) Act, 2016 (16 of 2016

);

(xi)

"an apartment booked on or before the date of issuance of completion certificate or first occupation of the project" shall mean an apartment which meets all the following three conditions, namely -

(a)

part of supply of construction of the apartment service has time of supply on or before the said date; and

(b)

consideration equal to at least one installment has been credited to the bank account of the registered person on or before the said date; and

(c)

an allotment letter or sale agreement or any other similar document evidencing booking of the apartment has been issued on or before the said date.

(xii)

The term "ongoing project" shall have the same meaning as assigned to it in notification No. 11/2017- Central Tax (Rate), dated the 28th June, 2017, published vide GSR No. 690(E) dated the 28th June, 2017, as amended;

(xiii)

The term "project which commences on or after 1st April, 2019" shall have the same meaning as assigned to it in notification No. 11/2017- Central Tax (Rate), dated the 28th June, 2017, published vide GSR No. 690(E) dated the 28th June, 2017, as amended;]

44.

Manner of reversal of credit under special circumstances.

(1)

The amount of input tax credit relating to inputs held in stock, inputs contained in semi-finished and finished goods held in stock, and capital goods held in stock shall, for the purposes of sub-section (4) of section 18 or sub-section (5) of section 29, be determined in the following manner, namely,-

(a)

for inputs held in stock and inputs contained in semi-finished and finished goods held in stock, the input tax credit shall be calculated proportionately on the basis of the corresponding invoices on which credit had been availed by the registered taxable person on such inputs;

(b)

for capital goods held in stock, the input tax credit involved in the remaining useful life in months shall be computed on pro-rata basis, taking the useful life as five years.

Illustration. -

Capital goods have been in use for 4 years, 6 month and 15 days.

The useful remaining life in months = 5 months ignoring a part of the month

Input tax credit taken on such capital goods = C

Input tax credit attributable to remaining useful life = C multiplied by 5/60

(2)

[The amount, as specified in sub-rule (1) shall be determined separately for input tax credit of central tax, State tax, Union territory tax and integrated tax.

(3)

Where the tax invoices related to the inputs held in stock are not available, the registered person shall estimate the amount under sub-rule (1) based on the prevailing market price of the goods on the effective date of the occurrence of any of the events specified in sub-section (4) of section 18 or, as the case may be, sub-section (5) of section 29.]

[Substituted by Notification No. G.S.R. 965(E), dated 22.7.2017 (w.e.f. 1.7.2017).]

(4)

The amount determined under sub-rule (1) shall form part of the output tax liability of the registered person and the details of the amount shall be furnished in FORM GST ITC-03, where such amount relates to any event specified in sub-section (4) of section 18 and in FORM GSTR-10, where such amount relates to the cancellation of registration.

(5)

The details furnished in accordance with sub-rule (3) shall be duly certified by a practicing chartered accountant or cost

accountant.

(6)

The amount of input tax credit for the purposes of sub-section (6) of section 18 relating to capital goods shall be determined in the same manner as specified in clause (b) of sub-rule (1) and the amount shall be determined separately for input tax credit of [central tax, State tax, Union territory tax and integrated tax]

[Substituted 'IGST and CGST' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

:

Provided that where the amount so determined is more than the tax determined on the transaction value of the capital goods, the amount determined shall form part of the output tax liability and the same shall be furnished in FORM GSTR-1.

44A.

[Manner of reversal of credit of Additional duty of Customs in respect of Gold dore bar.

[Inserted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

- The credit of Central tax in the electronic credit ledger taken in terms of the provisions of section 140 relating to the CENVAT Credit carried forward which had accrued on account of payment of the additional duty of customs levied under sub-section (1) of section 3 of the Customs Tariff Act, 1975 (

51 of 1975

), paid at the time of importation of gold dore bar, on the stock of gold dore bar held on the 1st day of July, 2017 or contained in gold or gold jewellery held in stock on the 1st day of July, 2017 made out of such imported gold dore bar, shall be restricted to one-sixth of such credit and five-sixth of such credit shall be debited from the electronic credit ledger at the time of supply of such gold dore bar or the gold or the gold jewellery made therefrom and where such supply has already been made, such debit shall be within one week from the date of commencement of these Rules.]

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

45.

Conditions and restrictions in respect of inputs and capital goods sent to the job worker.

(1)

The inputs, semi-finished goods or capital goods shall be sent to the job worker under the cover of a challan issued by the principal, including where such goods are sent directly to a job-worker [, and where the goods are sent from one job worker to another job worker, the challan may be issued either by the principal or the job worker sending the goods to another job worker:

Provided that the challan issued by the principal may be endorsed by the job worker, indicating therein the quantity and description of goods where the goods are sent by one job worker to another or are returned to the principal:

Provided further that the challan endorsed by the job worker may be further endorsed by another job worker, indicating therein the quantity and description of goods where the goods are sent by one job worker to another or are returned to the principal.]

[Inserted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f.19.6.2017).]

(2)

The challan issued by the principal to the job worker shall contain the details specified in rule 55.

(3)

The details of challans in respect of goods dispatched to a job worker or received from a job worker [***]

[Omitted 'or sent from one job worker to another' by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

[during a specified period]

[Substituted for 'during a quarter' by Notification No. G.S.R. 659(E), dated 24.9.2021 (with effect from the 1st day of October, 2021).]

shall be included in FORM GST ITC-04 furnished for that period on or before the twenty-fifth day of the month succeeding [the said period]

[Substituted 'the said quarter' by Notification No. G.S.R. 659(E), dated 24.9.2021 (with effect from the 1st day of October, 2021).]

[or within such further period as may be extended by the Commissioner by a notification in this behalf:

Provided that any extension of the time limit notified by the Commissioner of State tax or the Commissioner of Union

territory tax shall be deemed to be notified by the Commissioner.]

[Inserted by Notification No. 1344(E), dated 28.10.2017 (with effect from the 1st day of October, 2021)]

[Explanation.

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

- For the purposes of this sub-rule, the expression "specified period" shall mean, -

(a)

the period of six consecutive months commencing on the 1st day of April and the 1st day of October in respect of a principal whose aggregate turnover during the immediately preceding financial year exceeds five crore rupees; and

(b)

a financial year in any other case.]

(4)

Where the inputs or capital goods are not returned to the principal within the time stipulated in section 143, it shall be deemed that such inputs or capital goods had been supplied by the principal to the job worker on the day when the said inputs or capital goods were sent out and the said supply shall be declared in FORM GSTR-1 and the principal shall be liable to pay the tax along with applicable interest.

Explanation. - For the purposes of this Chapter, -

(1)

the expressions "capital goods" shall include "plant and machinery" as defined in the Explanation to section 17;

(2)

for determining the value of an exempt supply as referred to in sub-section (3) of section 17-

(a)

the value of land and building shall be taken as the same as adopted for the purpose of paying stamp duty; and

(b)

the value of security shall be taken as one percent of the sale value of such security.

[Chapter VI]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Tax Invoice, Credit and Debit Notes

46.

Tax invoice.

- Subject to rule 54, a tax invoice referred to in section 31 shall be issued by the registered person containing the following particulars, namely, -

(a)

name, address and Goods and Services Tax Identification Number of the supplier;

(b)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters- hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year;

(c)

date of its issue;

(d)

name, address and Goods and Services Tax Identification Number or Unique Identity Number, if registered, of the recipient;

(e)

name and address of the recipient and the address of delivery, along with the name of the State and its code, if such recipient is un-registered and where the value of the taxable supply is fifty thousand rupees or more;

(f)

name and address of the recipient and the address of delivery, along with the name of the State and its code, if such recipient is un-registered and where the value of the taxable supply is less than fifty thousand rupees and the recipient requests that such details be recorded in the tax invoice;

- (g)
Harmonised System of Nomenclature code for goods or services;
- (h)
description of goods or services;
- (i)
quantity in case of goods and unit or Unique Quantity Code thereof;
- (j)
total value of supply of goods or services or both;
- (k)
taxable value of the supply of goods or services or both taking into account discount or abatement, if any;
- (l)
rate of tax (central tax, State tax, integrated tax, Union territory tax or cess);
- (m)
amount of tax charged in respect of taxable goods or services (central tax, State tax, integrated tax, Union territory tax or cess);
- (n)
place of supply along with the name of the State, in the case of a supply in the course of inter-State trade or commerce;
- (o)
address of delivery where the same is different from the place of supply;
- (p)
whether the tax is payable on reverse charge basis; and
- (q)
signature or digital signature of the supplier or his authorised representative:
[Provided that the Board may, on the recommendations of the Council, by notification, specify -
- (i)
the number of digits of Harmonised System of Nomenclature code for goods or services that a class of registered persons shall be required to mention; or
- (ii)
a class of supply of goods or services for which specified number of digits of Harmonised System of Nomenclature code shall be required to be mentioned by all registered taxpayers; and
- (iii)
the class of registered persons that would not be required to mention the Harmonised System of Nomenclature code for goods or services:]
- Provided further that where an invoice is required to be issued under clause (f) of sub-section (3) of section 31, a registered person may issue a consolidated invoice at the end of a month for supplies covered under sub-section (4) of section 9, the aggregate value of such supplies exceeds rupees five thousand in a day from any or all the suppliers:
[Provided also that in the case of the export of goods or services, the invoice shall carry an endorsement "Supply meant for Export/ Supply to SEZ Unit or SEZ Developer for Authorised Operations on Payment of Integrated Tax" or "Supply meant for Export/ Supply to SEZ Unit or SEZ Developer for Authorised Operations under bond or letter of undertaking without payment of Integrated Tax", as the case may be, and shall, in lieu of the details specified in clause (e), contain the following details, namely, -
- (i)
name and address of the recipient;
- (ii)
address of delivery; and
- (iii)
name of the country of destination:]
- Provided also that a registered person [other than the supplier engaged in making supply of services by way of admission to exhibition of cinematograph films in multiplex screens]
[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]
may not issue a tax invoice in accordance with the provisions of clause (b) of sub-section (3) of section 31 subject to the

following conditions, namely,-

(a)

the recipient is not a registered person; and

(b)

the recipient does not require such invoice, and

shall issue a consolidated tax invoice for such supplies at the close of each day in respect of all such supplies.

[Provided also that the signature or digital signature of the supplier or his authorised representative shall not be required in the case of issuance of an electronic invoice in accordance with the provisions of the Information Technology Act, 2000 (

21 of 2000

).]

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

[Provided also that the Government may, by notification, on the recommendations of the Council, and subject to such conditions and restrictions as mentioned therein, specify that the tax invoice shall have Quick Response (QR) code.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

(r)

[Quick Reference code, having embedded Invoice Reference Number (IRN) in it, in case invoice has been issued in the manner prescribed under sub-rule (4) of rule 48.]

[Inserted by Notification No. G.S.R 603(E), dated 30.9.2020 (w.e.f 19.6.2017).]

46A.

[Invoice-cum-bill of supply.

[Inserted by Notification No. G.S.R 1251(E), dated 13.10.2017 (w.e.f 19.6.2017).]

- Notwithstanding anything contained in rule 46 or rule 49 or rule 54, where a registered person is supplying taxable as well as exempted goods or services or both to an unregistered person, a single "invoice-cum-bill of supply" may be issued for all such supplies.]

[Substituted by Notification No. G.S.R. 965(E), dated 27.7.2017 (w.e.f. 19.6.2017).]

47.

Time limit for issuing tax invoice.

- The invoice referred to in rule 46, in the case of the taxable supply of services, shall be issued within a period of thirty days from the date of the supply of service:

Provided that where the supplier of services is an insurer or a banking company or a financial institution, including a non-banking financial company, the period within which the invoice or any document in lieu thereof is to be issued shall be forty five days from the date of the supply of service:

Provided further that an insurer or a banking company or a financial institution, including a non-banking financial company, or a telecom operator, or any other class of supplier of services as may be notified by the Government on the recommendations of the Council, making taxable supplies of services between distinct persons as specified in section 25, may issue the invoice before or at the time such supplier records the same in his books of account or before the expiry of the quarter during which the supply was made.

48.

Manner of issuing invoice.

(1)

The invoice shall be prepared in triplicate, in the case of supply of goods, in the following manner, namely,-

(a)

the original copy being marked as Original for Recipient;

(b)

the duplicate copy being marked as Duplicate for Transporter; and

(c)

the triplicate copy being marked as Triplicate for Supplier.

(2)

The invoice shall be prepared in duplicate, in the case of the supply of services, in the following manner, namely, -

(a)

the original copy being marked as Original for Recipient; and

(b)

the duplicate copy being marked as Duplicate for Supplier.

(3)

The serial number of invoices issued during a tax period shall be furnished electronically through the common portal in FORM GSTR-1.

(4)

[The invoice shall be prepared by such class of registered persons as may be notified by the Government, on the recommendations of the Council, by including such particulars contained in Form GST INV-01 after obtaining an Invoice Reference Number by uploading information contained therein on the Common Goods and Services Tax Electronic Portal in such manner and subject to such conditions and restrictions as may be specified in the notification.

[Provided that the Commissioner may, on the recommendations of the Council, by notification, exempt a person or a class of registered persons from issuance of invoice under this sub-rule for a specified period, subject to such conditions and restrictions as may be specified in the said notification.]

[Inserted by Notification No. G.S.R. 924(E), dated 13.12.2019 (w.e.f. 19.6.2017).]

(5)

Every invoice issued by a person to whom sub-rule (4) applies in any manner other than the manner specified in the said sub-rule shall not be treated as an invoice.

(6)

The provisions of sub-rules (1) and (2) shall not apply to an invoice prepared in the manner specified in sub-rule (4).]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

49.

Bill of supply.

- A bill of supply referred to in clause (c) of sub-section (3) of section 31 shall be issued by the supplier containing the following details, namely,-

(a)

name, address and Goods and Services Tax Identification Number of the supplier;

(b)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters -hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year;

(c)

date of its issue;

(d)

name, address and Goods and Services Tax Identification Number or Unique Identity Number, if registered, of the recipient;

(e)

Harmonised System of Nomenclature Code for goods or services;

(f)

description of goods or services or both;

(g)

value of supply of goods or services or both taking into account discount or abatement, if any; and

(h)

signature or digital signature of the supplier or his authorised representative:

Provided that the provisos to rule 46 shall, mutatis mutandis, apply to the bill of supply issued under this rule:

Provided further that any tax invoice or any other similar document issued under any other Act for the time being in force in respect of any non-taxable supply shall be treated as a bill of supply for the purposes of the Act.

[Provided also that the signature or digital signature of the supplier or his authorised representative shall not be required in the case of issuance of an electronic bill of supply in accordance with the provisions of the Information Technology Act, 2000 (

21 of 2000

).

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

[Provided also that the Government may, by notification, on the recommendations of the Council, and subject to such conditions and restrictions as mentioned therein, specify that the bill of supply shall have Quick Response (QR) code.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

50.

Receipt voucher.

- A receipt voucher referred to in clause (d) of sub-section (3) of section 31 shall contain the following particulars, namely,-

(a)

name, address and Goods and Services Tax Identification Number of the supplier;

(b)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters-hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year;

(c)

date of its issue;

(d)

name, address and Goods and Services Tax Identification Number or Unique Identity Number, if registered, of the recipient;

(e)

description of goods or services;

(f)

amount of advance taken;

(g)

rate of tax (central tax, State tax, integrated tax, Union territory tax or cess);

(h)

amount of tax charged in respect of taxable goods or services (central tax, State tax, integrated tax, Union territory tax or cess);

(i)

place of supply along with the name of State and its code, in case of a supply in the course of inter- State trade or commerce;

(j)

whether the tax is payable on reverse charge basis; and

(k)

signature or digital signature of the supplier or his authorised representative:

Provided that where at the time of receipt of advance,-

(i)

the rate of tax is not determinable, the tax shall be paid at the rate of eighteen percent;

(ii)

the nature of supply is not determinable, the same shall be treated as inter-State supply.

51.

Refund voucher.

- A refund voucher referred to in clause (e) of sub-section (3) of section 31 shall contain the following particulars, namely:-

(a)

name, address and Goods and Services Tax Identification Number of the supplier;

(b)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters-hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year;

- (c)
date of its issue;
- (d)
name, address and Goods and Services Tax Identification Number or Unique Identity Number, if registered, of the recipient;
- (e)
number and date of receipt voucher issued in accordance with the provisions of rule 50;
- (f)
description of goods or services in respect of which refund is made;
- (g)
amount of refund made;
- (h)
rate of tax (central tax, State tax, integrated tax, Union territory tax or cess);
- (i)
amount of tax paid in respect of such goods or services (central tax, State tax, integrated tax, Union territory tax or cess);
- (j)
whether the tax is payable on reverse charge basis; and
- (k)
signature or digital signature of the supplier or his authorised representative.

52.

Payment voucher.

- A payment voucher referred to in clause (g) of sub-section (3) of section 31 shall contain the following particulars, namely:-

- (a)
name, address and Goods and Services Tax Identification Number of the supplier if registered;
- (b)
a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters-hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year;
- (c)
date of its issue;
- (d)
name, address and Goods and Services Tax Identification Number of the recipient;
- (e)
description of goods or services;
- (f)
amount paid;
- (g)
rate of tax (central tax, State tax, integrated tax, Union territory tax or cess);
- (h)
amount of tax payable in respect of taxable goods or services (central tax, State tax, integrated tax, Union territory tax or cess);
- (i)
place of supply along with the name of State and its code, in case of a supply in the course of inter- State trade or commerce; and
- (j)
signature or digital signature of the supplier or his authorised representative.

53.

Revised tax invoice and credit or debit notes.

- (1)

A revised tax invoice referred to in section 31 [***]

[Omitted 'and credit or debit notes referred to in section 34' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

shall contain the following particulars, namely:-

(a)

the word "Revised Invoice", wherever applicable, indicated prominently;

(b)

name, address and Goods and Services Tax Identification Number of the supplier;

[***]

[Omitted '(c) nature of the document;' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(d)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters-hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year;

(e)

date of issue of the document;

(f)

name, address and Goods and Services Tax Identification Number or Unique Identity Number, if registered, of the recipient;

(g)

name and address of the recipient and the address of delivery, along with the name of State and its code, if such recipient is un-registered;

(h)

serial number and date of the corresponding tax invoice or, as the case may be, bill of supply;

[***]

[Omitted 'clause (i)' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(j)

signature or digital signature of the supplier or his authorised representative.

(1A)

[A credit or debit note referred to in section 34 shall contain the following particulars, namely: -

(a)

name, address and Goods and Services Tax Identification Number of the supplier;

(b)

nature of the document;

(c)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters-hyphen or dash and slash symbolised as "-" and "/" respectively, and any combination thereof, unique for a financial year; (d) date of issue of the document;

(e)

name, address and Goods and Services Tax Identification Number or Unique Identity Number, if registered, of the recipient;

(f)

name and address of the recipient and the address of delivery, along with the name of State and its code, if such recipient is un-registered;

(g)

serial number(s) and date(s) of the corresponding tax invoice(s) or, as the case may be, bill(s) of supply;

(h)

value of taxable supply of goods or services, rate of tax and the amount of the tax credited or, as the case may be, debited to the recipient; and

(i)

signature or digital signature of the supplier or his authorised representative.]

(2)

Every registered person who has been granted registration with effect from a date earlier than the date of issuance of certificate of registration to him, may issue revised tax invoices in respect of taxable supplies effected during the period starting from the effective date of registration till the date of the issuance of the certificate of registration:

Provided that the registered person may issue a consolidated revised tax invoice in respect of all taxable supplies made to a recipient who is not registered under the Act during such period:

Provided further that in the case of inter-State supplies, where the value of a supply does not exceed two lakh and fifty thousand rupees, a consolidated revised invoice may be issued separately in respect of all the recipients located in a State, who are not registered under the Act.

(3)

Any invoice or debit note issued in pursuance of any tax payable in accordance with the provisions of section 74 or section 129 or section 130 shall prominently contain the words "Input Tax Credit Not Admissible".

54.

Tax invoice in special cases.

(1)

An Input Service Distributor invoice or, as the case may be, an Input Service Distributor credit note issued by an Input Service Distributor shall contain the following details:-

(a)

name, address and Goods and Services Tax Identification Number of the Input Service Distributor;

(b)

a consecutive serial number not exceeding sixteen characters, in one or multiple series, containing alphabets or numerals or special characters- hyphen or dash and slash symbolised as- "-", "/" respectively, and any combination thereof, unique for a financial year;

(c)

date of its issue;

(d)

name, address and Goods and Services Tax Identification Number of the recipient to whom the credit is distributed;

(e)

amount of the credit distributed; and

(f)

signature or digital signature of the Input Service Distributor or his authorised representative:

Provided that where the Input Service Distributor is an office of a banking company or a financial institution, including a non-banking financial company, a tax invoice shall include any document in lieu thereof, by whatever name called, whether or not serially numbered but containing the information as mentioned above.

1A.

[(a) A registered person having the same PAN and State code as an Input Service Distributor, may issue an invoice or as the case may be , a credit or debit note to transfer the credit of common input services to the Input Services Distributor, which shall contain the following details :-

(i)

name, address and Goods and Services Tax Identification Number of the registered person having the same PAN and same State code as the Input Service Distributor;

(ii)

a consecutive serial number not exceeding sixteen characters, in one or multiple series containing alphabets or numerals or special characters -hyphen or dash and slash symbolised as "-" and "/" respectively and any combination thereof, unique for a financial year;

(iii)

date of its issue;

(iv)

Goods and Services Tax Identification Number of supplier of common services and original invoice number whose credit is sought to be transferred to the Input Services Distributor;

(v)

name, address and Goods and Services Tax Identification Number of the Input Service Distributor;

(vi)

taxable value, rate and amount of the credit to be transferred; and

(vii)

signature or digital signature of the registered person or his authorised representative.

(b)

The taxable value in the invoice issued under clause (a) shall be the same as the value of the common services;]

(2)

Where the supplier of taxable service is an insurer or a banking company or a financial institution, including a non-banking financial company, the said [supplier may issue]

[Substituted 'supplier shall issue' by Notification No. G.S.R. 1411(E), dated 15.11.2017 (w.e.f. 19.6.2017).]

a [consolidated tax invoice]

[Substituted 'tax invoice' by Notification No. G.S.R. 1251(E), dated 13.10.2017 (w.e.f. 19.6.2017).]

or any other document in lieu thereof, by whatever name called, [for the supply of services made during a month at the end of the month]

[Inserted by Notification No. G.S.R. 1251(E), dated 13.10.2017 (w.e.f. 19.6.2017).]

whether issued or made available, physically or electronically whether or not serially numbered, and whether or not containing the address of the recipient of taxable service but containing other information as mentioned under rule 46.

[Provided that the signature or digital signature of the supplier or his authorised representative shall not be required in the case of issuance of a consolidated tax invoice or any other document in lieu thereof in accordance with the provisions of the Information Technology Act, 2000 (

21 of 2000

).]

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

(3)

Where the supplier of taxable service is a goods transport agency supplying services in relation to transportation of goods by road in a goods carriage, the said supplier shall issue a tax invoice or any other document in lieu thereof, by whatever name called, containing the gross weight of the consignment, name of the consigner and the consignee, registration number of goods carriage in which the goods are transported, details of goods transported, details of place of origin and destination, Goods and Services Tax Identification Number of the person liable for paying tax whether as consigner, consignee or goods transport agency, and also containing other information as mentioned under rule 46.

(4)

Where the supplier of taxable service is supplying passenger transportation service, a tax invoice shall include ticket in any form, by whatever name called, whether or not serially numbered, and whether or not containing the address of the recipient of service but containing other information as mentioned under rule 46.

[Provided that the signature or digital signature of the supplier or his authorised representative shall not be required in the case of issuance of ticket in accordance with the provisions of the Information Technology Act, 2000 (

21 of 2000

).]

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

(4A)

[A registered person supplying services by way of admission to exhibition of cinematograph films in multiplex screens shall be required to issue an electronic ticket and the said electronic ticket shall be deemed to be a tax invoice for all purposes of the Act, even if such ticket does not contain the details of the recipient of service but contains the other information as mentioned under rule 46:

Provided that the supplier of such service in a screen other than multiplex screens may, at his option, follow the above procedure.]

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

(5)

The provisions of sub-rule (2) or sub-rule (4) shall apply, mutatis mutandis, to the documents issued under rule 49 or rule 50 or rule 51 or rule 52 or rule 53.

55.

Transportation of goods without issue of invoice.

(1)

For the purposes of-

(a)

supply of liquid gas where the quantity at the time of removal from the place of business of the supplier is not known,

(b)

transportation of goods for job work,

(c)

transportation of goods for reasons other than by way of supply, or

(d)

such other supplies as may be notified by the Board,

the consigner may issue a delivery challan, serially numbered not exceeding sixteen characters, in one or multiple series, in lieu of invoice at the time of removal of goods for transportation, containing the following details, namely:-

(i)

date and number of the delivery challan;

(ii)

name, address and Goods and Services Tax Identification Number of the consigner, if registered;

(iii)

name, address and Goods and Services Tax Identification Number or Unique Identity Number of the consignee, if registered;

(iv)

Harmonised System of Nomenclature code and description of goods;

(v)

quantity (provisional, where the exact quantity being supplied is not known);

(vi)

taxable value;

(vii)

tax rate and tax amount - central tax, State tax, integrated tax, Union territory tax or cess, where the transportation is for supply to the consignee;

(viii)

place of supply, in case of inter-State movement; and

(ix)

signature.

(2)

The delivery challan shall be prepared in triplicate, in case of supply of goods, in the following manner, namely:-

(a)

the original copy being marked as Original for Consignee;

(b)

the duplicate copy being marked as Duplicate for Transporter; and

(c)

the triplicate copy being marked as Triplicate for Consigner.

(3)

Where goods are being transported on a delivery challan in lieu of invoice, the same shall be declared as specified in rule 138.

(4)

Where the goods being transported are for the purpose of supply to the recipient but the tax invoice could not be issued at the time of removal of goods for the purpose of supply, the supplier shall issue a tax invoice after delivery of goods.

(5)

Where the goods are being transported in a semi knocked down or completely knocked down condition [or in batches or lots]

[Inserted by Notification No. G.S.R. 831(E), dated 4.9.2018 (w.e.f. 19.6.2017).]

-

(a)

the supplier shall issue the complete invoice before dispatch of the first consignment;

(b)

the supplier shall issue a delivery challan for each of the subsequent consignments, giving reference of the invoice;

(c)

each consignment shall be accompanied by copies of the corresponding delivery challan along with a duly certified copy of the invoice; and

(d)

the original copy of the invoice shall be sent along with the last consignment.

55A.

[Tax invoice or bill of supply to accompany transport of goods.

[Inserted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

- The person-in-charge of the conveyance shall carry a copy of the tax invoice or the bill of supply issued in accordance with the provisions of rules 46, 46A or 49 in a case where such person is not required to carry an e-way bill under these rules]

[Inserted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

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[Chapter VII]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Accounts and Records

56.

Maintenance of accounts by registered persons.

(1)

Every registered person shall keep and maintain, in addition to the particulars mentioned in sub-section (1) of section 35, a true and correct account of the goods or services imported or exported or of supplies attracting payment of tax on reverse charge along with the relevant documents, including invoices, bills of supply, delivery challans, credit notes, debit notes, receipt vouchers, payment vouchers and refund vouchers.

(2)

Every registered person, other than a person paying tax under section 10, shall maintain the accounts of stock in respect of goods received and supplied by him, and such accounts shall contain particulars of the opening balance, receipt, supply, goods lost, stolen, destroyed, written off or disposed of by way of gift or free sample and the balance of stock including raw materials, finished goods, scrap and wastage thereof.

(3)

Every registered person shall keep and maintain a separate account of advances received, paid and adjustments made thereto.

(4)

Every registered person, other than a person paying tax under section 10, shall keep and maintain an account, containing the details of tax payable (including tax payable in accordance with the provisions of sub-section (3) and sub-section (4) of section 9), tax collected and paid, input tax, input tax credit claimed, together with a register of tax invoice, credit notes, debit notes, delivery challan issued or received during any tax period.

(5)

Every registered person shall keep the particulars of -

(a)

names and complete addresses of suppliers from whom he has received the goods or services chargeable to tax under the Act;

(b)

names and complete addresses of the persons to whom he has supplied goods or services, where required under the

provisions of this Chapter;

(c)

the complete address of the premises where goods are stored by him, including goods stored during transit along with the particulars of the stock stored therein.

(6)

If any taxable goods are found to be stored at any place(s) other than those declared under sub-rule (5) without the cover of any valid documents, the proper officer shall determine the amount of tax payable on such goods as if such goods have been supplied by the registered person.

(7)

Every registered person shall keep the books of account at the principal place of business and books of account relating to additional place of business mentioned in his certificate of registration and such books of account shall include any electronic form of data stored on any electronic device.

(8)

Any entry in registers, accounts and documents shall not be erased, effaced or overwritten, and all incorrect entries, otherwise than those of clerical nature, shall be scored out under attestation and thereafter, the correct entry shall be recorded and where the registers and other documents are maintained electronically, a log of every entry edited or deleted shall be maintained.

(9)

Each volume of books of account maintained manually by the registered person shall be serially numbered.

(10)

Unless proved otherwise, if any documents, registers, or any books of account belonging to a registered person are found at any premises other than those mentioned in the certificate of registration, they shall be presumed to be maintained by the said registered person.

(11)

Every agent referred to in clause (5) of section 2 shall maintain accounts depicting the,-

(a)

particulars of authorisation received by him from each principal to receive or supply goods or services on behalf of such principal separately;

(b)

particulars including description, value and quantity (wherever applicable) of goods or services received on behalf of every principal;

(c)

particulars including description, value and quantity (wherever applicable) of goods or services supplied on behalf of every principal;

(d)

details of accounts furnished to every principal; and

(e)

tax paid on receipts or on supply of goods or services effected on behalf of every principal.

(12)

Every registered person manufacturing goods shall maintain monthly production accounts showing quantitative details of raw materials or services used in the manufacture and quantitative details of the goods so manufactured including the waste and by products thereof.

(13)

Every registered person supplying services shall maintain the accounts showing quantitative details of goods used in the provision of services, details of input services utilised and the services supplied.

(14)

Every registered person executing works contract shall keep separate accounts for works contract showing -

(a)

the names and addresses of the persons on whose behalf the works contract is executed;

(b)

description, value and quantity (wherever applicable) of goods or services received for the execution of works contract;

- (c) description, value and quantity (wherever applicable) of goods or services utilized in the execution of works contract;
- (d) the details of payment received in respect of each works contract; and
- (e) the names and addresses of suppliers from whom he received goods or services.

(15)

The records under the provisions of this Chapter may be maintained in electronic form and the record so maintained shall be authenticated by means of a digital signature.

(16)

Accounts maintained by the registered person together with all the invoices, bills of supply, credit and debit notes, and delivery challans relating to stocks, deliveries, inward supply and outward supply shall be preserved for the period as provided in section 36 and shall, where such accounts and documents are maintained manually, be kept at every related place of business mentioned in the certificate of registration and shall be accessible at every related place of business where such accounts and documents are maintained digitally.

(17)

Any person having custody over the goods in the capacity of a carrier or a clearing and forwarding agent for delivery or dispatch thereof to a recipient on behalf of any registered person shall maintain true and correct records in respect of such goods handled by him on behalf of such registered person and shall produce the details thereof as and when required by the proper officer.

(18)

Every registered person shall, on demand, produce the books of accounts which he is required to maintain under any law for the time being in force.

57.

Generation and maintenance of electronic records.

(1)

Proper electronic back-up of records shall be maintained and preserved in such manner that, in the event of destruction of such records due to accidents or natural causes, the information can be restored within a reasonable period of time.

(2)

The registered person maintaining electronic records shall produce, on demand, the relevant records or documents, duly authenticated by him, in hard copy or in any electronically readable format.

(3)

Where the accounts and records are stored electronically by any registered person, he shall, on demand, provide the details of such files, passwords of such files and explanation for codes used, where necessary, for access and any other information which is required for such access along with a sample copy in print form of the information stored in such files.

58.

Records to be maintained by owner or operator of godown or warehouse and transporters.

(1)

Every person required to maintain records and accounts in accordance with the provisions of sub-section (2) of section 35, if not already registered under the Act, shall submit the details regarding his business electronically on the common portal in FORM GST ENR-01, either directly or through a Facilitation Centre notified by the Commissioner and, upon validation of the details furnished, a unique enrolment number shall be generated and communicated to the said person.

(1A)

[For the purposes of Chapter XVI of these rules, a transporter who is registered in more than one State or Union Territory having the same Permanent Account Number, he may apply for a unique common enrolment number by submitting the details in FORM GST ENR-02 using any one of his Goods and Services Tax Identification Numbers, and upon validation of the details furnished, a unique common enrolment number shall be generated and communicated to the said transporter:

Provided that where the said transporter has obtained a unique common enrolment number, he shall not be eligible to use any of the Goods and Services Tax Identification Numbers for the purposes of the said Chapter XVI.]

[Inserted by Notification No. G.S.R. 574(E), dated 19.6.2018 (w.e.f. 19.6.2017).]

(2)

The person enrolled under sub-rule (1) as aforesaid in any other State or Union territory shall be deemed to be enrolled in the State or Union territory.

(3)

Every person who is enrolled under sub-rule (1) shall, where required, amend the details furnished in FORM GST ENR-01 electronically on the common portal either directly or through a Facilitation Centre notified by the Commissioner.

(4)

Subject to the provisions of rule 56,-

(a)

any person engaged in the business of transporting goods shall maintain records of goods transported, delivered and goods stored in transit by him alongwith the Goods and Services Tax Identification Number of the registered consigner and consignee for each of his branches.

(b)

every owner or operator of a warehouse or godown shall maintain books of accounts with respect to the period for which particular goods remain in the warehouse, including the particulars relating to dispatch, movement, receipt and disposal of such goods.

(5)

The owner or the operator of the godown shall store the goods in such manner that they can be identified item-wise and owner-wise and shall facilitate any physical verification or inspection by the proper officer on demand.

[Chapter VIII]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Returns

59.

[Form and manner of furnishing details of outward supplies.

[Substituted by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

(1)

Every registered person, other than a person referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (

13 of 2017

), required to furnish the details of outward supplies of goods or services or both under section 37, shall furnish such details in FORM GSTR-1 for the month or the quarter, as the case may be, electronically through the common portal, either directly or through a Facilitation Centre as may be notified by the Commissioner.

(2)

The registered persons required to furnish return for every quarter under proviso to sub-section (1) of section 39 may furnish the details of such outward supplies of goods or services or both to a registered person, as he may consider necessary, for the first and second months of a quarter, up to a cumulative value of fifty lakh rupees in each of the months, using invoice furnishing facility (hereafter in this notification referred to as the "IFF") electronically on the common portal, duly authenticated in the manner prescribed under rule 26, from the 1st day of the month succeeding such month till the 13th day of the said month.

[Provided that a registered person may furnish such details, for the month of April, 2021, using IFF from the 1st day of May, 2021 till the 28th day of May, 2021.]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

[Provided further that a registered person may furnish such details, for the month of May, 2021, using IFF from the 1st day of June, 2021 till the 28th day of June, 2021.]

[Inserted by Notification No. G.S.R. 371(E), dated 01.06.2021 (w.e.f. 19.6.2017).]

(3)

The details of outward supplies furnished using the IFF, for the first and second months of a quarter, shall not be furnished in FORM GSTR-1 for the said quarter.

(4)

The details of outward supplies of goods or services or both furnished in FORM GSTR-1 shall include the -

(a)

invoice wise details of all -

(i)

inter-State and intra-State supplies made to the registered persons; and

(ii)

inter-State supplies with invoice value more than two and a half lakh rupees made to the unregistered persons;

(b)

consolidated details of all -

(i)

intra-State supplies made to unregistered persons for each rate of tax; and

(ii)

State wise inter-State supplies with invoice value upto two and a half lakh rupees made to unregistered persons for each rate of tax;

(c)

debit and credit notes, if any, issued during the month for invoices issued previously.]

(5)

[Notwithstanding anything contained in this rule, -

(a)

a registered person shall not be allowed to furnish the details of outward supplies of goods or services or both under section 37 in FORM GSTR-1, if he has not furnished the return in FORM GSTR-3B for preceding two months;

(b)

a registered person, required to furnish return for every quarter under the proviso to sub-section (1) of section 39, shall not be allowed to furnish the details of outward supplies of goods or services or both under section 37 in FORM GSTR-1 or using the invoice furnishing facility, if he has not furnished the return in FORM GSTR-3B for preceding tax period;

(c)

a registered person, who is restricted from using the amount available in electronic credit ledger to discharge his liability towards tax in excess of ninety-nine per cent. of such tax liability under rule 86B, shall not be allowed to furnish the details of outward supplies of goods or services or both under section 37 in FORM GSTR-1 or using the invoice furnishing facility, if he has not furnished the return in FORM GSTR-3B for preceding tax period.]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

(5) The details of outward supplies of goods or services or both furnished using the IFF shall include the -

(a) invoice wise details of inter-State and intra-State supplies made to the registered persons;

(b) debit and credit notes, if any, issued during the month for such invoices issued previously.

(6)

[Notwithstanding anything contained in this rule, -

(a)

a registered person shall not be allowed to furnish the details of outward supplies of goods or services or both under section 37 in FORM GSTR-1, if he has not furnished the return in FORM GSTR-3B [for the preceding month];

(b)

a registered person, required to furnish return for every quarter under the proviso to sub-section (1) of section 39, shall not be allowed to furnish the details of outward supplies of goods or services or both under section 37 in FORM GSTR-1 or using the invoice furnishing facility, if he has not furnished the return in FORM GSTR-3B for preceding tax period;

[***]

[Omitted '(c)' by Notification No. G.S.R. 659(E), dated 24.9.2021 (with effect from the 1st day of January, 2022).]

]

60.

[Form and manner of ascertaining details of inward supplies.

[Substituted by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

(1)

The details of outward supplies furnished by the supplier in FORM GSTR-1 or using the IFF shall be made available electronically to the concerned registered persons (recipients) in Part A of FORM GSTR-2A, in FORM GSTR-4A and in FORM GSTR-6A through the common portal, as the case may be.

(2)

The details of invoices furnished by a non-resident taxable person in his return in FORM GSTR-5 under rule 63 shall be made available to the recipient of credit in Part A of FORM GSTR 2A electronically through the common portal.

(3)

The details of invoices furnished by an Input Service Distributor in his return in FORM GSTR-6 under rule 65 shall be made available to the recipient of credit in Part B of FORM GSTR 2A electronically through the common portal.

(4)

The details of tax deducted at source furnished by the deductor under sub-section (3) of section 39 in FORM GSTR-7 shall be made available to the deductee in Part C of FORM GSTR-2A electronically through the common portal.

(5)

The details of tax collected at source furnished by an e-commerce operator under section 52 in FORM GSTR-8 shall be made available to the concerned person in Part C of FORM GSTR 2A electronically through the common portal.

(6)

The details of the integrated tax paid on the import of goods or goods brought in domestic Tariff Area from Special Economic Zone unit or a Special Economic Zone developer on a bill of entry shall be made available in Part D of FORM GSTR-2A electronically through the common portal.

(7)

An auto-drafted statement containing the details of input tax credit shall be made available to the registered person in FORM GSTR-2B, for every month, electronically through the common portal, and shall consist of -

(i)

the details of outward supplies furnished by his supplier, other than a supplier required to furnish return for every quarter under proviso to sub-section (1) of section 39, in FORM GSTR-1, between the day immediately after the due date of furnishing of FORM GSTR-1 for the previous month to the due date of furnishing of FORM GSTR-1 for the month;

(ii)

the details of invoices furnished by a non-resident taxable person in FORM GSTR-5 and details of invoices furnished by an Input Service Distributor in his return in FORM GSTR-6 and details of outward supplies furnished by his supplier, required to furnish return for every quarter under proviso to sub-section (1) of section 39, in FORM GSTR-1 or using the IFF, as the case may be, -

(a)

for the first month of the quarter, between the day immediately after the due date of furnishing of FORM GSTR-1 for the preceding quarter to the due date of furnishing details using the IFF for the first month of the quarter;

(b)

for the second month of the quarter, between the day immediately after the due date of furnishing details using the IFF for the first month of the quarter to the due date of furnishing details using the IFF for the second month of the quarter;

(c)

for the third month of the quarter, between the day immediately after the due date of furnishing of details using the IFF for the second month of the quarter to the due date of furnishing of FORM GSTR-1 for the quarter;

(iii)

the details of the integrated tax paid on the import of goods or goods brought in the domestic Tariff Area from Special Economic Zone unit or a Special Economic Zone developer on a bill of entry in the month.

(8)

The Statement in FORM GSTR-2B for every month shall be made available to the registered person, -

(i)

for the first and second month of a quarter, a day after the due date of furnishing of details of outward supplies for the said month, in the IFF by a registered person required to furnish return for every quarter under proviso to sub-section (1) of section 39, or in FORM GSTR-1 by a registered person, other than those required to furnish return for every quarter under proviso to sub-section (1) of section 39, whichever is later;

(ii)

in the third month of the quarter, a day after the due date of furnishing of details of outward supplies for the said month, in FORM GSTR-1 by a registered person required to furnish return for every quarter under proviso to sub-section (1) of section 39.]

*61. Form and manner of submission of monthly return. - (1) Every registered person other than a person referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 or an Input Service Distributor or a nonresident taxable person or a person paying tax under section 10 or section 51 or, as the case may be, under section 52 shall furnish a return specified under sub-section (1) of section 39 in FORM GSTR-3 electronically through the common portal either directly or through a Facilitation Centre notified by the Commissioner.

(2)

Part A of the return under sub-rule (1) shall be electronically generated on the basis of information furnished through FORM GSTR-1, FORM GSTR-2 and based on other liabilities of preceding tax periods.

(3)

Every registered person furnishing the return under sub-rule (1) shall, subject to the provisions of section 49, discharge his liability towards tax, interest, penalty, fees or any other amount payable under the Act or the provisions of this Chapter by debiting the electronic cash ledger or electronic credit ledger and include the details in Part B of the return in FORM GSTR-3.

(4)

A registered person, claiming refund of any balance in the electronic cash ledger in accordance with the provisions of sub-section (6) of section 49, may claim such refund in Part B of the return in FORM GSTR-3 and such return shall be deemed to be an application filed under section 54.

(5)

[Where the time limit for furnishing of details in FORM GSTR-1 under section 37 or in FORM GSTR-2 under section 38 has been extended, the return specified in sub-section (1) of section 39 shall, in such manner and subject to such conditions as the Commissioner may, by notification, specify, be furnished in FORM GSTR-3B electronically through the common portal, either directly or through a Facilitation Centre notified by the Commissioner:

Provided that where a return in FORM GSTR-3B is required to be furnished by a person referred to in sub-rule (1) then such person shall not be required to furnish the return in FORM GSTR-3.]

[Substituted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

(6)

[Every registered person other than a person referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (

13 of 2017

) or an Input Service Distributor or a non-resident taxable person or a person paying tax under section 10 or section 51 or, as the case may be, under section 52 shall furnish a return in FORM GSTR-3B, electronically through the common portal either directly or through a Facilitation Centre notified by the Commissioner, on or before the twentieth day of the month succeeding such tax period:

Provided that for taxpayers having an aggregate turnover of up to five crore rupees in the previous financial year, whose principal place of business is in the States of Chhattisgarh, Madhya Pradesh, Gujarat, Maharashtra, Karnataka, Goa, Kerala, Tamil Nadu, Telangana, Andhra Pradesh, the Union territories of Daman and Diu and Dadra and Nagar Haveli, Puducherry, Andaman and Nicobar Islands or Lakshadweep, the return in FORM GSTR-3B of the said rules for the months of October, 2020 to March, 2021 shall be furnished electronically through the common portal, on or before the twenty-second day of the month succeeding such month:

Provided further that for taxpayers having an aggregate turnover of up to five crore rupees in the previous financial year, whose principal place of business is in the States of Himachal Pradesh, Punjab, Uttarakhand, Haryana, Rajasthan, Uttar Pradesh, Bihar, Sikkim, Arunachal Pradesh, Nagaland, Manipur, Mizoram, Tripura, Meghalaya, Assam, West Bengal, Jharkhand or Odisha, the Union territories of Jammu and Kashmir, Ladakh, Chandigarh or Delhi, the return in FORM GSTR-3B of the said rules for the months of October, 2020 to March, 2021 shall be furnished electronically through the common portal, on or before the twenty-fourth day of the month succeeding such month.]

[Inserted by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

61.

[Form and manner of furnishing of return.

[Substituted by Notification No. G.S.R. 698(E), dated 10.11.2020 (with effect from the 1st day of January, 2021).]

(1)

Every registered person other than a person referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (

13 of 2017

) or an Input Service Distributor or a non-resident taxable person or a person paying tax under section 10 or section 51 or, as the case may be, under section 52 shall furnish a return in FORM GSTR-3B, electronically through the common portal either directly or through a Facilitation Centre notified by the Commissioner, as specified under -

(i)

sub-section (1) of section 39, for each month, or part thereof, on or before the twentieth day of the month succeeding such month:

(ii)

proviso to sub-section (1) of section 39, for each quarter, or part thereof, for the class of registered persons mentioned in column (2) of the Table given below, on or before the date mentioned in the corresponding entry in column (3) of the said Table, namely:—

Table

S. No.

Class of registered persons

Due Date

(1)

(2)

(3)

1.

Registered persons whose principal place of business is in the States of Chhattisgarh, Madhya Pradesh, Gujarat, Maharashtra, Karnataka, Goa, Kerala, Tamil Nadu, Telangana, Andhra Pradesh, the Union territories of Daman and Diu and Dadra and Nagar Haveli, Puducherry, Andaman and Nicobar Islands or Lakshadweep.

twenty-second day of the month succeeding such quarter.

2.

Registered persons whose principal place of business is in the States of Himachal Pradesh, Punjab, Uttarakhand, Haryana, Rajasthan, Uttar Pradesh, Bihar, Sikkim, Arunachal Pradesh, Nagaland, Manipur, Mizoram, Tripura, Meghalaya, Assam, West Bengal, Jharkhand or Odisha, the Union territories of Jammu and Kashmir, Ladakh, Chandigarh or Delhi.

twenty-fourth day of the month succeeding such quarter.

(2)

Every registered person required to furnish return, under sub-rule (1) shall, subject to the provisions of section 49, discharge his liability towards tax, interest, penalty, fees or any other amount payable under the Act or the provisions of this Chapter by debiting the electronic cash ledger or electronic credit ledger and include the details in the return in FORM GSTR-3B.

(3)

Every registered person required to furnish return, every quarter, under clause (ii) of sub-rule (1) shall pay the tax due under proviso to sub-section (7) of section 39, for each of the first two months of the quarter, by depositing the said amount in FORM GST PMT-06, by the twenty fifth day of the month succeeding such month:

Provided that the Commissioner may, on the recommendations of the Council, by notification, extend the due date for depositing the said amount in FORM GST PMT-06, for such class of taxable persons as may be specified therein:

Provided further that any extension of time limit notified by the Commissioner of State tax or Union territory tax shall be deemed to be notified by the Commissioner:

Provided also that while making a deposit in FORM GST PMT-06, such a registered person may -

(a)
for the first month of the quarter, take into account the balance in the electronic cash ledger.

(b)
for the second month of the quarter, take into account the balance in the electronic cash ledger excluding the tax due for the first month.

(4)
The amount deposited by the registered persons under sub-rule (3) above, shall be debited while filing the return for the said quarter in FORM GSTR-3B, and any claim of refund of such amount lying in balance in the electronic cash ledger, if any, out of the amount so deposited shall be permitted only after the return in FORM GSTR-3B for the said quarter has been filed.]

[Inserted by Notification No. G.S.R. 2(E), dated 01.01.2021 (w.e.f. 19.6.2017).]

61A.

[Manner of opting for furnishing quarterly return.

[Inserted by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

(1)
Every registered person intending to furnish return on a quarterly basis under proviso to sub-section (1) of section 39, shall in accordance with the conditions and restrictions notified in this regard, indicate his preference for furnishing of return on a quarterly basis, electronically, on the common portal, from the 1st day of the second month of the preceding quarter till the last day of the first month of the quarter for which the option is being exercised:

Provided that where such option has been exercised once, the said registered person shall continue to furnish the return on a quarterly basis for future tax periods, unless the said registered person, -

(a)
becomes ineligible for furnishing the return on a quarterly basis as per the conditions and restrictions notified in this regard; or

(b)
opts for furnishing of return on a monthly basis, electronically, on the common portal:

Provided further that a registered person shall not be eligible to opt for furnishing quarterly return in case the last return due on the date of exercising such option has not been furnished.

(2)
A registered person, whose aggregate turnover exceeds 5 crore rupees during the current financial year, shall opt for furnishing of return on a monthly basis, electronically, on the common portal, from the first month of the quarter, succeeding the quarter during which his aggregate turnover exceeds 5 crore rupees.]

62.

[Form and manner of submission of statement and return]

[Substituted 'Form and manner of submission of quarterly return by the composition supplier' by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

.

(1)
Every registered person [paying tax under section 10 [***]

[Substituted 'paying tax under section 10 shall, on the basis of details contained in FORM GSTR-4A, and where required, after adding, correcting or deleting the details, furnish the quarterly return in FORM GSTR-4' by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

shall -

(i)
furnish a statement, every quarter or, as the case may be, part thereof, containing the details of payment of self-assessed tax in Form GST CMP-08, till the 18th day of the month succeeding such quarter; and

(ii)
furnish a return for every financial year or, as the case may be, part thereof in Form GSTR-4, till the thirtieth day of April

following the end of such financial year.]

electronically through the common portal, either directly or through a Facilitation Centre notified by the Commissioner.

[***]

[Omitted 'Proviso' by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

(2)

Every registered person furnishing the [statement under sub-rule (1) shall discharge his liability towards tax or interest]

[Substituted 'return under sub-rule (1) shall discharge his liability towards tax, interest, penalty, fees or any other amount' by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

payable under the Act or the provisions of this Chapter by debiting the electronic cash ledger.

(3)

The return furnished under sub-rule (1) shall include the -

(a)

invoice wise inter-State and intra-State inward supplies received from registered and un-registered persons; and

(b)

consolidated details of outward supplies made.

(4)

A registered person who has opted to pay tax under section 10 [***]

[Omitted 'or by availing the benefit of notification of the Government of India, Ministry of Finance, Department of Revenue No. 02/2019–Central Tax (Rate), dated the 7th March, 2019, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide number G.S.R.189 (E), dated the 7th March, 2019' by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

from the beginning of a financial year shall, where required, furnish the details of outward and inward supplies and return under rules 59, 60 and 61 relating to the period during which the person was liable to furnish such details and returns till the due date of furnishing the return for the month of September of the succeeding financial year or furnishing of annual return of the preceding financial year, whichever is earlier.

Explanation. - For the purposes of this sub-rule, it is hereby declared that the person shall not be eligible to avail [*]

[Omitted 'of' by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

input tax credit on receipt of invoices or debit notes from the supplier for the period prior to his opting for the composition scheme [

*]

[Omitted 'or opting for paying tax by availing the benefit of notification of the Government of India, Ministry of Finance, Department of Revenue No. 02/2019– Central Tax (Rate), dated the 7th March, 2019, published in the Gazette of India, Extraordinary, Part II, Section 3, Subsection (i) vide number G.S.R.189 (E), dated the 7th March, 2019' by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

.

(5)

A registered person opting to withdraw from the composition scheme at his own motion or where option is withdrawn at the instance of the proper officer shall, where required, furnish [a statement in FORM GST CMP-08 for the period for which he has paid tax under the composition scheme till the 18th day of the month succeeding the quarter in which the date of withdrawal falls and furnish a return in FORM GSTR-4 for the said period till the thirtieth day of April following the end of the financial year during which such withdrawal falls]

[Substituted 'the details relating to the period prior to his opting for payment of tax under section 9 in FORM GSTR- 4 till the due date of furnishing the return for the quarter ending September of the succeeding financial year or furnishing of annual return of the preceding financial year, whichever is earlier' by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

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[***]

[Omitted '(6)' by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

63.

Form and manner of submission of return by non-resident taxable person.

- Every registered non-resident taxable person shall furnish a return in FORM GSTR-5 electronically through the common portal, either directly or through a Facilitation Centre notified by the Commissioner, including therein the details of outward supplies and inward supplies and shall pay the tax, interest, penalty, fees or any other amount payable under the Act or the provisions of this Chapter within twenty days after the end of a tax period or within seven days after the last day of the validity period of registration, whichever is earlier.

64.

Form and manner of submission of return by persons providing online information and database access or retrieval services.

- Every registered person providing online information and data base access or retrieval services from a place outside India to a person in India other than a registered person shall file return in FORM GSTR-5A on or before the twentieth day of the month succeeding the calendar month or part thereof.

65.

Form and manner of submission of return by an Input Service Distributor.

- Every Input Service Distributor shall, on the basis of details contained in FORM GSTR-6A, and where required, after adding, correcting or deleting the details, furnish electronically the return in FORM GSTR-6, containing the details of tax invoices on which credit has been received and those issued under section 20, through the common portal either directly or from a Facilitation Centre notified by the Commissioner.

66.

Form and manner of submission of return by a person required to deduct tax at source.

(1)

Every registered person required to deduct tax at source under section 51 (hereafter in this rule referred to as deductor) shall furnish a return in FORM GSTR-7 electronically through the common portal either directly or from a Facilitation Centre notified by the Commissioner.

(2)

The details furnished by the deductor under sub-rule (1) shall be made available electronically to each of the [deductees] [Substituted 'suppliers in Part C of FORM GSTR-2A and FORM-GSTR-4A' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

on the common portal after the [***]

[Omitted 'the due date of' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

filing of FORM GSTR-7 [for claiming the amount of tax deducted in his electronic cash ledger after validation]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

.

(3)

The certificate referred to in sub-section (3) of section 51 shall be made available electronically to the deductee on the common portal in FORM GSTR-7A on the basis of the return furnished under sub-rule (1).

67.

Form and manner of submission of statement of supplies through an e-commerce operator.

(1)

Every electronic commerce operator required to collect tax at source under section 52 shall furnish a statement in FORM GSTR-8 electronically on the common portal, either directly or from a Facilitation Centre notified by the Commissioner, containing details of supplies effected through such operator and the amount of tax collected as required under sub-section (1) of section 52.

(2)

The details furnished by the operator under sub-rule (1) shall be made available electronically to each of the suppliers [*]

[Omitted 'in Part C of FORM GSTR-2A' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

on the common portal after [

*]

[Omitted 'the due date of' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

filing of FORM GSTR-8 [for claiming the amount of tax collected in his electronic cash ledger after validation]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

67A.

[Manner of furnishing of return or details of outward supplies by short messaging service facility.

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

- Notwithstanding anything contained in this Chapter, for a registered person who is required to furnish a Nil return under section 39 in Form GSTR-3B or a Nil details of outward supplies under section 37 in Form GSTR-1 or a Nil statement in Form GST CMP-08 for a tax period, any reference to electronic furnishing shall include furnishing of the said return or the details of outward supplies or statement through a short messaging service using the registered mobile number and the said return or the details of outward supplies or statement shall be verified by a registered mobile number based One Time Password facility.

Explanation. - For the purpose of this rule, a Nil return or Nil details of outward supplies or Nil statement shall mean a return under section 39 or details of outward supplies under section 37 or statement under rule 62, for a tax period that has nil or no entry in all the Tables in Form GSTR-3B or Form GSTR-1 or Form GST CMP-08, as the case may be.]

68.

Notice to non-filers of returns.

- A notice in FORM GSTR-3A shall be issued, electronically, to a registered person who fails to furnish return under section 39 or section 44 or section 45 or section 52.

69.

Matching of claim of input tax credit.

- The following details relating to the claim of input tax credit on inward supplies including imports, provisionally allowed under section 41, shall be matched under section 42 after the due date for furnishing the return in FORM GSTR-3.

(a)

Goods and Services Tax Identification Number of the supplier;

(b)

Goods and Services Tax Identification Number of the recipient;

(c)

invoice or debit note number;

(d)

invoice or debit note date; and

(e)

tax amount:

Provided that where the time limit for furnishing FORM GSTR-1 specified under section 37 and FORM GSTR-2 specified under section 38 has been extended, the date of matching relating to claim of input tax credit shall also be extended accordingly:

Provided further that the Commissioner may, on the recommendations of the Council, by order, extend the date of matching relating to claim of input tax credit to such date as may be specified therein.

Explanation. - For the purposes of this rule, it is hereby declared that -

(i)

The claim of input tax credit in respect of invoices and debit notes in FORM GSTR-2 that were accepted by the recipient on the basis of FORM GSTR-2A without amendment shall be treated as matched if the corresponding supplier has furnished a valid return;

(ii)

The claim of input tax credit shall be considered as matched where the amount of input tax credit claimed is equal to or less than the output tax paid on such tax invoice or debit note by the corresponding supplier.

70.

Final acceptance of input tax credit and communication thereof.

(1)

The final acceptance of claim of input tax credit in respect of any tax period, specified in sub-section (2) of section 42, shall be made available electronically to the registered person making such claim in FORM GST MIS-1 through the common portal.

(2)

The claim of input tax credit in respect of any tax period which had been communicated as mismatched but is found to be matched after rectification by the supplier or recipient shall be finally accepted and made available electronically to the person making such claim in FORM GST MIS-1 through the common portal.

71.

Communication and rectification of discrepancy in claim of input tax credit and reversal of claim of input tax credit.

(1)

Any discrepancy in the claim of input tax credit in respect of any tax period, specified in sub-section (3) of section 42 and the details of output tax liable to be added under sub-section (5) of the said section on account of continuation of such discrepancy, shall be made available to the recipient making such claim electronically in FORM GST MIS-1 and to the supplier electronically in FORM GST MIS-2 through the common portal on or before the last date of the month in which the matching has been carried out.

(2)

A supplier to whom any discrepancy is made available under sub-rule (1) may make suitable rectifications in the statement of outward supplies to be furnished for the month in which the discrepancy is made available.

(3)

A recipient to whom any discrepancy is made available under sub-rule (1) may make suitable rectifications in the statement of inward supplies to be furnished for the month in which the discrepancy is made available.

(4)

Where the discrepancy is not rectified under sub-rule (2) or sub-rule (3), an amount to the extent of discrepancy shall be added to the output tax liability of the recipient in his return to be furnished in FORM GSTR-3 for the month succeeding the month in which the discrepancy is made available.

Explanation. - For the purposes of this rule, it is hereby declared that -

(i)

Rectification by a supplier means adding or correcting the details of an outward supply in his valid return so as to match the details of corresponding inward supply declared by the recipient;

(ii)

Rectification by the recipient means deleting or correcting the details of an inward supply so as to match the details of corresponding outward supply declared by the supplier.

72.

Claim of input tax credit on the same invoice more than once.

- Duplication of claims of input tax credit in the details of inward supplies shall be communicated to the registered person in FORM GST MIS-1 electronically through the common portal.

73.

Matching of claim of reduction in the output tax liability .

- The following details relating to the claim of reduction in output tax liability shall be matched under section 43 after the due date for furnishing the return in FORM GSTR-3, namely:-

(a)

Goods and Services Tax Identification Number of the supplier;

(b)

Goods and Services Tax Identification Number of the recipient;

(c)

credit note number;

(d)

credit note date; and

(e)

tax amount:

Provided that where the time limit for furnishing FORM GSTR-1 under section 37 and FORM GSTR-2 under section 38 has been extended, the date of matching of claim of reduction in the output tax liability shall be extended accordingly:

Provided further that the Commissioner may, on the recommendations of the Council, by order, extend the date of matching relating to claim of reduction in output tax liability to such date as may be specified therein.

Explanation. - For the purposes of this rule, it is hereby declared that -

(i)
the claim of reduction in output tax liability due to issuance of credit notes in FORM GSTR-1 that were accepted by the corresponding recipient in FORM GSTR-2 without amendment shall be treated as matched if the said recipient has furnished a valid return.

(ii)
the claim of reduction in the output tax liability shall be considered as matched where the amount of output tax liability after taking into account the reduction claimed is equal to or more than the claim of input tax credit after taking into account the reduction admitted and discharged on such credit note by the corresponding recipient in his valid return.

74.

Final acceptance of reduction in output tax liability and communication thereof.

(1)

The final acceptance of claim of reduction in output tax liability in respect of any tax period, specified in subsection (2) of section 43, shall be made available electronically to the person making such claim in FORM GST MIS-1 through the common portal.

(2)

The claim of reduction in output tax liability in respect of any tax period which had been communicated as mis-matched but is found to be matched after rectification by the supplier or recipient shall be finally accepted and made available electronically to the person making such claim in FORM GST MIS-1 through the common portal.

75.

Communication and rectification of discrepancy in reduction in output tax liability and reversal of claim of reduction.

(1)

Any discrepancy in claim of reduction in output tax liability, specified in sub-section (3) of section 43, and the details of output tax liability to be added under sub-section (5) of the said section on account of continuation of such discrepancy, shall be made available to the registered person making such claim electronically in FORM GST MIS- 1 and the recipient electronically in FORM GST MIS-2 through the common portal on or before the last date of the month in which the matching has been carried out.

(2)

A supplier to whom any discrepancy is made available under sub-rule (1) may make suitable rectifications in the statement of outward supplies to be furnished for the month in which the discrepancy is made available.

(3)

A recipient to whom any discrepancy is made available under sub-rule (1) may make suitable rectifications in the statement of inward supplies to be furnished for the month in which the discrepancy is made available.

(4)

Where the discrepancy is not rectified under sub-rule (2) or sub-rule (3), an amount to the extent of discrepancy shall be added to the output tax liability of the supplier and debited to the electronic liability register and also shown in his return in FORM GSTR-3 for the month succeeding the month in which the discrepancy is made available.

Explanation. - For the purposes of this rule, it is hereby declared that -

(i)

rectification by a supplier means deleting or correcting the details of an outward supply in his valid return so as to match the details of corresponding inward supply declared by the recipient;

(ii)

rectification by the recipient means adding or correcting the details of an inward supply so as to match the details of corresponding outward supply declared by the supplier.

76.

Claim of reduction in output tax liability more than once.

- The duplication of claims for reduction in output tax liability in the details of outward supplies shall be communicated to the registered person in FORM GST MIS-1 electronically through the common portal.

77.

Refund of interest paid on reclaim of reversals.

- The interest to be refunded under sub-section (9) of section 42 or sub-section (9) of section 43 shall be claimed by the registered person in his return in FORM GSTR-3 and shall be credited to his electronic cash ledger in FORM GST

PMT-05 and the amount credited shall be available for payment of any future liability towards interest or the taxable person may claim refund of the amount under section 54.

78.

Matching of details furnished by the e-Commerce operator with the details furnished by the supplier.

- The following details relating to the supplies made through an e-Commerce operator, as declared in FORM GSTR-8, shall be matched with the corresponding details declared by the supplier in FORM GSTR-1,

(a)

State of place of supply; and

(b)

net taxable value:

Provided that where the time limit for furnishing FORM GSTR-1 under section 37 has been extended, the date of matching of the above mentioned details shall be extended accordingly.

Provided further that the Commissioner may, on the recommendations of the Council, by order, extend the date of matching to such date as may be specified therein.

79.

Communication and rectification of discrepancy in details furnished by the e-commerce operator and the supplier.

(1)

Any discrepancy in the details furnished by the operator and those declared by the supplier shall be made available to the supplier electronically in FORM GST MIS-3 and to the e-commerce operator electronically in FORM GST MIS-4 on the common portal on or before the last date of the month in which the matching has been carried out.

(2)

A supplier to whom any discrepancy is made available under sub-rule (1) may make suitable rectifications in the statement of outward supplies to be furnished for the month in which the discrepancy is made available.

(3)

An operator to whom any discrepancy is made available under sub-rule (1) may make suitable rectifications in the statement to be furnished for the month in which the discrepancy is made available.

(4)

Where the discrepancy is not rectified under sub-rule (2) or sub-rule (3), an amount to the extent of discrepancy shall be added to the output tax liability of the supplier in his return in FORM GSTR-3 for the month succeeding the month in which the details of discrepancy are made available and such addition to the output tax liability and interest payable thereon shall be made available to the supplier electronically on the common portal in FORM GST MIS-3.

80.

[Annual return.

[Substituted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

(1)

Every registered person, other than those referred to in the second proviso to section 44, an Input Service Distributor, a person paying tax under section 51 or section 52, a casual taxable person and a non-resident taxable person, shall furnish an annual return for every financial year as specified under section 44 electronically in FORM GSTR-9 on or before the thirty-first day of December following the end of such financial year through the common portal either directly or through a Facilitation Centre notified by the Commissioner:

Provided that a person paying tax under section 10 shall furnish the annual return in FORM GSTR-9A.

(1A)

[Notwithstanding anything contained in sub-rule (1), for the financial year 2020-2021 the said annual return shall be furnished on or before the twenty-eighth day of February, 2022.]

(2)

Every electronic commerce operator required to collect tax at source under section 52 shall furnish annual statement referred to in sub-section (5) of the said section in FORM GSTR -9B.

(3)

Every registered person, other than those referred to in the second proviso to section 44, an Input Service Distributor, a person paying tax under section 51 or section 52, a casual taxable person and a nonresident taxable person, whose aggregate turnover during a financial year exceeds five crore rupees, shall also furnish a self-certified reconciliation

statement as specified under section 44 in FORM GSTR-9C along with the annual return referred to in sub-rule (1), on or before the thirty-first day of December following the end of such financial year, electronically through the common portal either directly or through a Facilitation Centre notified by the Commissioner.]

(3A)

[Notwithstanding anything contained in sub-rule (3), for the financial year 2020-2021 the said self-certified reconciliation statement shall be furnished along with the said annual return on or before the twenty-eighth day of February, 2022.]

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (w.e.f. 19.06.2017).]

81.

Final return.

- Every registered person required to furnish a final return under section 45, shall furnish such return electronically in FORM GSTR-10 through the common portal either directly or through a Facilitation Centre notified by the Commissioner.

82.

Details of inward supplies of persons having Unique Identity Number.

(1)

Every person who has been issued a Unique Identity Number and claims refund of the taxes paid on his inward supplies, shall furnish the details of such supplies of taxable goods or services or both electronically in FORM GSTR-11, along with application for such refund claim, through the common portal either directly or through a Facilitation Centre notified by the Commissioner.

(2)

Every person who has been issued a Unique Identity Number for purposes other than refund of the taxes paid shall furnish the details of inward supplies of taxable goods or services or both as may be required by the proper officer in FORM GSTR-11.

83.

Provisions relating to a goods and services tax practitioner.

(1)

An application in FORM GST PCT-01 may be made electronically through the common portal either directly or through a Facilitation Centre notified by the Commissioner for enrolment as goods and services tax practitioner by any person who,

(i)

is a citizen of India;

(ii)

is a person of sound mind;

(iii)

is not adjudicated as insolvent;

(iv)

has not been convicted by a competent court;

and satisfies any of the following conditions, namely:-

(a)

that he is a retired officer of the Commercial Tax Department of any State Government or of the [Central Board of Indirect Taxes]

[Substituted 'Central Board of Excise' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

and Customs, Department of Revenue, Government of India, who, during his service under the Government, had worked in a post not lower than the rank of a Group-B gazetted officer for a period of not less than two years; or

(b)

that he has enrolled as a sales tax practitioner or tax return preparer under the existing law for a period of not less than five years;

(c)

he has passed,

(i)

a graduate or postgraduate degree or its equivalent examination having a degree in Commerce, Law, Banking including

Higher Auditing, or Business Administration or Business Management from any Indian University established by any law for the time being in force; or

(ii)

a degree examination of any Foreign University recognised by any Indian University as equivalent to the degree examination mentioned in sub-clause (i); or

(iii)

any other examination notified by the Government, on the recommendation of the Council, for this purpose; or

(iv)

has passed any of the following examinations, namely:-

(a)

final examination of the Institute of Chartered Accountants of India; or

(b)

final examination of the Institute of Cost Accountants of India; or

(c)

final examination of the Institute of Company Secretaries of India.

(2)

On receipt of the application referred to in sub-rule (1), the officer authorised in this behalf shall, after making such enquiry as he considers necessary, either enrol the applicant as a goods and services tax practitioner and issue a certificate to that effect in FORM GST PCT-02 or reject his application where it is found that the applicant is not qualified to be enrolled as a goods and services tax practitioner.

(3)

The enrolment made under sub-rule (2) shall be valid until it is cancelled:

Provided that no person enrolled as a goods and services tax practitioner shall be eligible to remain enrolled unless he passes such examination conducted at such periods and by such authority as may be notified by the Commissioner on the recommendations of the Council:

Provided further that no person to whom the provisions of clause (b) of [sub-rule]

[Substituted 'sub-section' by Notification No. G.S.R. 965(E), dated 27.7.2017 (w.e.f. 1.7.2017).]

(1) apply shall be eligible to remain enrolled unless he passes the said examination within a period of [thirty months]

[Substituted 'eighteen months' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

from the appointed date.

(4)

If any goods and services tax practitioner is found guilty of misconduct in connection with any proceedings under the Act, the authorised officer may, after giving him a notice to show cause in FORM GST PCT-03 for such misconduct and after giving him a reasonable opportunity of being heard, by order in FORM GST PCT -04 direct that he shall henceforth be disqualified under section 48 to function as a goods and services tax practitioner.

(5)

Any person against whom an order under sub-rule (4) is made may, within thirty days from the date of issue of such order, appeal to the Commissioner against such order.

(6)

Any registered person may, at his option, authorise a goods and services tax practitioner on the common portal in FORM GST PCT-05 or, at any time, withdraw such authorisation in FORM GST PCT-05 and the goods and services tax practitioner so authorised shall be allowed to undertake such tasks as indicated in the said authorisation during the period of authorisation.

(7)

Where a statement required to be furnished by a registered person has been furnished by the goods and services tax practitioner authorised by him, a confirmation shall be sought from the registered person over email or SMS and the statement furnished by the goods and services tax practitioner shall be made available to the registered person on the common portal:

Provided that where the registered person fails to respond to the request for confirmation till the last date of furnishing of such statement, it shall be deemed that he has confirmed the statement furnished by the goods and services tax practitioner.

(8)

[A goods and services tax practitioner can undertake any or all of the following activities on behalf of a registered person, if so authorised by him to -

(a)

furnish the details of outward and inward supplies;

(b)

furnish monthly, quarterly, annual or final return;

(c)

make deposit for credit into the electronic cash ledger;

(d)

file a claim for refund;

(e)

file an application for amendment or cancellation of registration;

(f)

furnish information for generation of e-way bill;

(g)

furnish details of challan in FORM GST ITC-04;

(h)

file an application for amendment or cancellation of enrolment under rule 58; and

(i)

file an intimation to pay tax under the composition scheme or withdraw from the said scheme:

Provided that where any application relating to a claim for refund or an application for amendment or cancellation of registration or where an intimation to pay tax under composition scheme or to withdraw from such scheme has been submitted by the goods and services tax practitioner authorised by the registered person, a confirmation shall be sought from the registered person and the application submitted by the said practitioner shall be made available to the registered person on the common portal and such application shall not be further proceeded with until the registered person gives his consent to the same.]

[Substituted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(9)

Any registered person opting to furnish his return through a goods and services tax practitioner shall-

(a)

give his consent in FORM GST PCT-05 to any goods and services tax practitioner to prepare and furnish his return; and

(b)

before confirming submission of any statement prepared by the goods and services tax practitioner, ensure that the facts mentioned in the return are true and correct.

(10)

The goods and services tax practitioner shall-

(a)

prepare the statements with due diligence; and

(b)

affix his digital signature on the statements prepared by him or electronically verify using his credentials.

(11)

A goods and services tax practitioner enrolled in any other State or Union territory shall be treated as enrolled in the State or Union territory for the purposes specified in sub-rule (8).

83A.

[Examination of Goods and Services Tax Practitioners.

[Inserted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]

(1)

Every person referred to in clause (b) of sub-rule (1) of rule 83 and who is enrolled as a goods and services tax practitioner under sub-rule (2) of the said rule, shall pass an examination as per sub-rule (3) of the said rule.

(2)

The National Academy of Customs, Indirect Taxes and Narcotics (hereinafter referred to as "NACIN") shall conduct the examination.

(3)

Frequency of examination. - The examination shall be conducted twice in a year as per the schedule of the examination published by NACIN every year on the official websites of the Board, NACIN, common portal, GST Council Secretariat and in the leading English and regional newspapers.

(4)

Registration for the examination and payment of fee. - (i) A person who is required to pass the examination shall register online on a website specified by NACIN.

(ii)

A person who registers for the examination shall pay examination fee as specified by NACIN, and the amount for the same and the manner of its payment shall be specified by NACIN on the official websites of the Board, NACIN and common portal.

(5)

Examination centers. - The examination shall be held across India at the designated centers. The candidate shall be given an option to choose from the list of centers as provided by NACIN at the time of registration.

(6)

Period for passing the examination and number of attempts allowed. - [(i) Every person referred to in clause (b) of sub-rule (1) of rule 83 and who is enrolled as a goods and services tax practitioner under sub-rule (2) of the said rule is required to pass the examination within the period as specified in the second proviso of sub-rule (3) of the said rule.]

(ii)

A person required to pass the examination may avail of any number of attempts but these attempts shall be within the period as specified in clause (i).

(iii)

A person shall register and pay the requisite fee every time he intends to appear at the examination.

(iv)

In case the goods and services tax practitioner having applied for appearing in the examination is prevented from availing one or more attempts due to unforeseen circumstances such as critical illness, accident or natural calamity, he may make a request in writing to the jurisdictional Commissioner for granting him one additional attempt to pass the examination, within thirty days of conduct of the said examination. NACIN may consider such requests on merits based on recommendations of the jurisdictional Commissioner.

(7)

Nature of examination. - The examination shall be a Computer Based Test. It shall have one question paper consisting of Multiple Choice Questions. The pattern and syllabus are specified in Annexure-A.

(8)

Qualifying marks. - A person shall be required to secure fifty per cent. of the total marks.

(9)

Guidelines for the candidates. - (i) NACIN shall issue examination guidelines covering issues such as procedure of registration, payment of fee, nature of identity documents, provision of admit card, manner of reporting at the examination center, prohibition on possession of certain items in the examination center, procedure of making representation and the manner of its disposal.

(ii)

Any person who is or has been found to be indulging in unfair means or practices shall be dealt in accordance with the provisions of sub-rule (10) An illustrative list of use of unfair means or practices by a person is as under: -

(a)

obtaining support for his candidature by any means;

(b)

impersonating;

(c)

submitting fabricated documents;

(d)

resorting to any unfair means or practices in connection with the examination or in connection with the result of the examination;

(e)

found in possession of any paper, book, note or any other material, the use of which is not permitted in the examination center;

(f)

communicating with others or exchanging calculators, chits, papers etc. (on which something is written);

(g)

misbehaving in the examination center in any manner;

(h)

tampering with the hardware and/or software deployed; and

(i)

attempting to commit or, as the case may be, to abet in the commission of all or any of the acts specified in the foregoing clauses.

(10)

Disqualification of person using unfair means or practice.- If any person is or has been found to be indulging in use of unfair means or practices, NACIN may, after considering his representation, if any, declare him disqualified for the examination.

(11)

Declaration of result. - NACIN shall declare the results within one month of the conduct of examination on the official websites of the Board, NACIN, GST Council Secretariat, common portal and State Tax Department of the respective States or Union territories, if any. The results shall also be communicated to the applicants by e-mail and/or by post.

(12)

Handling representations. - A person not satisfied with his result may represent in writing, clearly specifying the reasons therein to NACIN or the jurisdictional Commissioner as per the procedure established by NACIN on the official websites of the Board, NACIN and common portal.

(13)

Power to relax. - Where the Board or State Tax Commissioner is of the opinion that it is necessary or expedient to do so, it may, on the recommendations of the Council, relax any of the provisions of this rule with respect to any class or category of persons.

Explanation : - For the purposes of this sub-rule, the expressions -

(a)

"jurisdictional Commissioner" means the Commissioner having jurisdiction over the place declared as address in the application for enrolment as the GST Practitioner in Form GST PCT-1. It shall refer to the Commissioner of Central Tax if the enrolling authority in Form GST PCT-1 has been selected as Centre, or the Commissioner of State Tax if the enrolling authority in Form GST PCT-1 has been selected as State;

(b)

NACIN means as notified by notification No. 24/2018-Central Tax, dated 28.05.2018.

Annexure-A

[See sub-rule 7]

Pattern and Syllabus of the Examination

Paper: GST Law & Procedures:

Time allowed:

2 hours and 30 minutes

Number of Multiple Choice Questions:

100

Language of Questions:

English and Hindi

Maximum marks:

200

Qualifying marks:

100

No negative marking

Syllabus:

1

The Central Goods and Services Tax Act, 2017

2

The Integrated Goods and Services Tax Act, 2017

3

All The State Goods and Services Tax Acts, 2017

4

The Union territory Goods and Services Tax Act,
2017

5

The Goods and Services Tax (Compensation to
States) Act, 2017

6

The Central Goods and Services Tax Rules, 2017

7

The Integrated Goods and Services Tax Rules,
2017

8

All The State Goods and Services Tax Rules, 2017

9

Notifications, Circulars and orders issued from
time to time under the said Acts and Rules.]

83B.

[Surrender of enrolment of goods and services tax practitioner.

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

(1)

A goods and services tax practitioner seeking to surrender his enrolment shall electronically submit an application in FORM GST PCT-06, at the common portal, either directly or through a facilitation centre notified by the Commissioner.

(2)

The Commissioner, or an officer authorised by him, may after causing such enquiry as deemed fit and by order in FORM GST PCT-07, cancel the enrolment of such practitioner.]

84.

Conditions for purposes of appearance.

(1)

No person shall be eligible to attend before any authority as a goods and services tax practitioner in connection with any proceedings under the Act on behalf of any registered or unregistered person unless he has been enrolled under rule 83.

(2)

A goods and services tax practitioner attending on behalf of a registered or an un-registered person in any proceedings under the Act before any authority shall produce before such authority, if required, a copy of the authorisation given by such person in FORM GST PCT-05.

[Chapter IX]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Payment of Tax

85.

Electronic Liability Register.

(1)

The electronic liability register specified under sub-section (7) of section 49 shall be maintained in FORM GST PMT-01 for each person liable to pay tax, interest, penalty, late fee or any other amount on the common portal and all amounts payable by him shall be debited to the said register.

(2)

The electronic liability register of the person shall be debited by-

(a)

the amount payable towards tax, interest, late fee or any other amount payable as per the return furnished by the said person;

(b)

the amount of tax, interest, penalty or any other amount payable as determined by a proper officer in pursuance of any proceedings under the Act or as ascertained by the said person;

(c)

the amount of tax and interest payable as a result of mismatch under section 42 or section 43 or section 50; or

(d)

any amount of interest that may accrue from time to time.

(3)

Subject to the provisions of section 49, [section 49A and section 49B,]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

payment of every liability by a registered person as per his return shall be made by debiting the electronic credit ledger maintained as per rule 86 or the electronic cash ledger maintained as per rule 87 and the electronic liability register shall be credited accordingly.

(4)

The amount deducted under section 51, or the amount collected under section 52, or the amount payable on reverse charge basis, or the amount payable under section 10, any amount payable towards interest, penalty, fee or any other amount under the Act shall be paid by debiting the electronic cash ledger maintained as per rule 87 and the electronic liability register shall be credited accordingly.

(5)

Any amount of demand debited in the electronic liability register shall stand reduced to the extent of relief given by the appellate authority or Appellate Tribunal or court and the electronic tax liability register shall be credited accordingly.

(6)

The amount of penalty imposed or liable to be imposed shall stand reduced partly or fully, as the case may be, if the taxable person makes the payment of tax, interest and penalty specified in the show cause notice or demand order and the electronic liability register shall be credited accordingly.

(7)

A registered person shall, upon noticing any discrepancy in his electronic liability ledger, communicate the same to the officer exercising jurisdiction in the matter, through the common portal in FORM GST PMT-04.

86.

Electronic Credit Ledger.

(1)

The electronic credit ledger shall be maintained in FORM GST PMT-02 for each registered person eligible for input tax credit under the Act on the common portal and every claim of input tax credit under the Act shall be credited to the said ledger.

(2)

The electronic credit ledger shall be debited to the extent of discharge of any liability in accordance with the provisions of section 49 [or section 49A and section 49B,]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

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(3)

Where a registered person has claimed refund of any unutilized amount from the electronic credit ledger in accordance with the provisions of section 54, the amount to the extent of the claim shall be debited in the said ledger.

(4)

If the refund so filed is rejected, either fully or partly, the amount debited under sub-rule (3), to the extent of rejection, shall be re-credited to the electronic credit ledger by the proper officer by an order made in FORM GST PMT-03.

(4A)

[Where a registered person has claimed refund of any amount paid as tax wrongly paid or paid in excess for which debit has been made from the electronic credit ledger, the said amount, if found admissible, shall be recredited to the electronic credit ledger by the proper officer by an order made in FORM GST PMT-03.]

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

(5)

Save as provided in the provisions of this Chapter, no entry shall be made directly in the electronic credit ledger under any circumstance.

(6)

A registered person shall, upon noticing any discrepancy in his electronic credit ledger, communicate the same to the officer exercising jurisdiction in the matter, through the common portal in FORM GST PMT-04.

Explanation. - For the purposes of this rule, it is hereby clarified that a refund shall be deemed to be rejected, if the appeal is finally rejected or if the claimant gives an undertaking to the proper officer that he shall not file an appeal.

86A.

[Conditions of use of amount available in electronic credit ledger.

[Inserted by Notification No. G.S.R. 954(E), dated 26.12.2019 (w.e.f. 19.6.2017).]

(1)

The Commissioner or an officer authorised by him in this behalf, not below the rank of an Assistant Commissioner, having reasons to believe that credit of input tax available in the electronic credit ledger has been fraudulently availed or is ineligible in as much as -

(a)

the credit of input tax has been availed on the strength of tax invoices or debit notes or any other document prescribed under rule 36-

i. issued by a registered person who has been found non-existent or not to be conducting any business from any place for which registration has been obtained; or

ii. without receipt of goods or services or both; or

b) the credit of input tax has been availed on the strength of tax invoices or debit notes or any other document prescribed under rule 36 in respect of any supply, the tax charged in respect of which has not been paid to the Government; or

c) the registered person availing the credit of input tax has been found non-existent or not to be conducting any business from any place for which registration has been obtained; or

d) the registered person availing any credit of input tax is not in possession of a tax invoice or debit note or any other document prescribed under rule 36,

may, for reasons to be recorded in writing, not allow debit of an amount equivalent to such credit in electronic credit ledger for discharge of any liability under section 49 or for claim of any refund of any unutilised amount.

(2)

The Commissioner, or the officer authorised by him under sub-rule (1) may, upon being satisfied that conditions for disallowing debit of electronic credit ledger as above, no longer exist, allow such debit.

(3)

Such restriction shall cease to have effect after the expiry of a period of one year from the date of imposing such restriction.]

86B.

[Restrictions on use of amount available in electronic credit ledger.

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (with effect from the 1st day of January, 2021).]

- Notwithstanding anything contained in these rules, the registered person shall not use the amount available in electronic credit ledger to discharge his liability towards output tax in excess of ninety-nine per cent. of such tax liability, in cases where the value of taxable supply other than exempt supply and zero-rated supply, in a month exceeds fifty lakh rupees:

Provided that the said restriction shall not apply where -

- (a)
the said person or the proprietor or karta or the managing director or any of its two partners, whole-time Directors, Members of Managing Committee of Associations or Board of Trustees, as the case may be, have paid more than one lakh rupees as income tax under the Income-tax Act, 1961 (43 of 1961)
) in each of the last two financial years for which the time limit to file return of income under subsection (1) of section 139 of the said Act has expired; or
- (b)
the registered person has received a refund amount of more than one lakh rupees in the preceding financial year on account of unutilised input tax credit under clause (i) of first proviso of subsection (3) of section 54; or
- (c)
the registered person has received a refund amount of more than one lakh rupees in the preceding financial year on account of unutilised input tax credit under clause (ii) of first proviso of subsection (3) of section 54; or
- (d)
the registered person has discharged his liability towards output tax through the electronic cash ledger for an amount which is in excess of 1% of the total output tax liability, applied cumulatively, upto the said month in the current financial year; or
- (e)
the registered person is -
 - (i)
Government Department; or
 - (ii)
a Public Sector Undertaking; or
 - (iii)
a local authority; or
 - (iv)
a statutory body;

Provided further that the Commissioner or an officer authorised by him in this behalf may remove the said restriction after such verifications and such safeguards as he may deem fit.]

87.

Electronic Cash Ledger.

- (1)
The electronic cash ledger under sub-section (1) of section 49 shall be maintained in FORM GST PMT-05 for each person, liable to pay tax, interest, penalty, late fee or any other amount, on the common portal for crediting the amount deposited and debiting the payment therefrom towards tax, interest, penalty, fee or any other amount.
- (2)
Any person, or a person on his behalf, shall generate a challan in FORM GST PMT-06 on the common portal and enter the details of the amount to be deposited by him towards tax, interest, penalty, fees or any other amount.
[Provided that the challan in FORM GST PMT-06 generated at the common portal shall be valid for a period of fifteen days.

[***]

[Inserted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

]

- (3)
The deposit under sub-rule (2) shall be made through any of the following modes, namely:-
 - (i)
Internet Banking through authorised banks;
 - (ii)
Credit card or Debit card through the authorised bank;
 - (iii)

National Electronic Fund Transfer or Real Time Gross Settlement from any bank; or

(iv)

Over the Counter payment through authorised banks for deposits up to ten thousand rupees per challan per tax period, by cash, cheque or demand draft:

Provided that the restriction for deposit up to ten thousand rupees per challan in case of an Over the Counter payment shall not apply to deposit to be made by -

(a)

Government Departments or any other deposit to be made by persons as may be notified by the Commissioner in this behalf;

(b)

Proper officer or any other officer authorised to recover outstanding dues from any person, whether registered or not, including recovery made through attachment or sale of movable or immovable properties;

(c)

Proper officer or any other officer authorised for the amounts collected by way of cash, cheque or demand draft during any investigation or enforcement activity or any ad hoc deposit:

[Provided further that a person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient referred to in section 14 of the Integrated Goods and Services Tax Act, 2017 (

13 of 2017

) may also make the deposit under sub-rule (2) through international money transfer through Society for Worldwide Interbank Financial Telecommunication payment network, from the date to be notified by the Board.]

[Substituted 'Provided further that the challan in FORM GST PMT-06 generated at the common portal shall be valid for a period of fifteen days.' by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

Explanation. - For the purposes of this sub-rule, it is hereby clarified that for making payment of any amount indicated in the challan, the commission, if any, payable in respect of such payment shall be borne by the person making such payment.

(4)

Any payment required to be made by a person who is not registered under the Act, shall be made on the basis of a temporary identification number generated through the common portal.

(5)

Where the payment is made by way of National Electronic Fund Transfer or Real Time Gross Settlement mode from any bank, the mandate form shall be generated along with the challan on the common portal and the same shall be submitted to the bank from where the payment is to be made:

Provided that the mandate form shall be valid for a period of fifteen days from the date of generation of challan.

(6)

On successful credit of the amount to the concerned government account maintained in the authorised bank, a Challan Identification Number shall be generated by the collecting bank and the same shall be indicated in the challan.

(7)

On receipt of the Challan Identification Number from the collecting bank, the said amount shall be credited to the electronic cash ledger of the person on whose behalf the deposit has been made and the common portal shall make available a receipt to this effect.

(8)

Where the bank account of the person concerned, or the person making the deposit on his behalf, is debited but no Challan Identification Number is generated or generated but not communicated to the common portal, the said person may represent electronically in FORM GST PMT-07 through the common portal to the bank or electronic gateway through which the deposit was initiated.

(9)

Any amount deducted under section 51 or collected under section 52 and claimed [

*)

[Omitted 'in FORM GSTR-02' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

by the registered taxable person from whom the said amount was deducted or, as the case may be, collected shall be

credited to his electronic cash ledger [
*]

[Omitted 'in accordance with the provisions of rule 87' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

(10)

Where a person has claimed refund of any amount from the electronic cash ledger, the said amount shall be debited to the electronic cash ledger.

(11)

If the refund so claimed is rejected, either fully or partly, the amount debited under sub-rule (10), to the extent of rejection, shall be credited to the electronic cash ledger by the proper officer by an order made in FORM GST PMT-03.

(12)

A registered person shall, upon noticing any discrepancy in his electronic cash ledger, communicate the same to the officer exercising jurisdiction in the matter, through the common portal in FORM GST PMT-04.

(13)

[A registered person may, on the common portal, transfer any amount of tax, interest, penalty, fee or any other amount available in the electronic cash ledger under the Act to the electronic cash ledger for integrated tax, central tax, State tax or Union territory tax or cess in FORM GST PMT-09.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

Explanation 1. - The refund shall be deemed to be rejected if the appeal is finally rejected.

Explanation 2. - For the purposes of this rule, it is hereby clarified that a refund shall be deemed to be rejected, if the appeal is finally rejected or if the claimant gives an undertaking to the proper officer that he shall not file an appeal.

88.

Identification number for each transaction.

(1)

A unique identification number shall be generated at the common portal for each debit or credit to the electronic cash or credit ledger, as the case may be.

(2)

The unique identification number relating to discharge of any liability shall be indicated in the corresponding entry in the electronic liability register.

(3)

A unique identification number shall be generated at the common portal for each credit in the electronic liability register for reasons other than those covered under sub-rule (2).

88A.

[Order of utilization of input tax credit.

[Inserted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

- Input tax credit on account of integrated tax shall first be utilised towards payment of integrated tax, and the amount remaining, if any, may be utilised towards the payment of central tax and State tax or Union territory tax, as the case may be, in any order:

Provided that the input tax credit on account of central tax, State tax or Union territory tax shall be utilised towards payment of integrated tax, central tax, State tax or Union territory tax, as the case may be, only after the input tax credit available on account of integrated tax has first been utilised fully.]

[Chapter X]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Refund

89.

Application for refund of tax, interest, penalty, fees or any other amount.

(1)

Any person, except the persons covered under notification issued under section 55, claiming refund of any tax, interest, penalty, fees or any other amount paid by him, other than refund of integrated tax paid on goods exported out of India,

may file [subject to the provisions of rule 10B,]

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

an application electronically in FORM GST RFD-01 through the common portal, either directly or through a Facilitation Centre notified by the Commissioner:

Provided that any claim for refund relating to balance in the electronic cash ledger in accordance with the provisions of sub-section (6) of section 49 may be made through the return furnished for the relevant tax period in FORM GSTR-3 or FORM GSTR-4 or FORM GSTR-7, as the case may be:

Provided further that in respect of supplies to a Special Economic Zone unit or a Special Economic Zone developer, the application for refund shall be filed by the -

(a)

supplier of goods after such goods have been admitted in full in the Special Economic Zone for authorised operations, as endorsed by the specified officer of the Zone;

(b)

supplier of services along with such evidence regarding receipt of services for authorised operations as endorsed by the specified officer of the Zone:

[Provided also that in respect of supplies regarded as deemed exports, the application may be filed by, -

(a)

the recipient of deemed export supplies; or

(b)

the supplier of deemed export supplies in cases where the recipient does not avail of input tax credit on such supplies and furnishes an undertaking to the effect that the supplier may claim the refund;]

Provided also that refund of any amount, after adjusting the tax payable by the applicant out of the advance tax deposited by him under section 27 at the time of registration, shall be claimed in the last return required to be furnished by him.

(1A)

[Any person, claiming refund under section 77 of the Act of any tax paid by him, in respect of a transaction considered by him to be an intra-State supply, which is subsequently held to be an inter-State supply, may, before the expiry of a period of two years from the date of payment of the tax on the inter-State supply, file an application electronically in FORM GST RFD-01 through the common portal, either directly or through a Facilitation Centre notified by the Commissioner:

Provided that the said application may, as regard to any payment of tax on inter-State supply before coming into force of this sub-rule, be filed before the expiry of a period of two years from the date on which this sub-rule comes into force.]

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

(2)

The application under sub-rule (1) shall be accompanied by any of the following documentary evidences in Annexure 1 in Form GST RFD-01, as applicable, to establish that a refund is due to the applicant, namely:-

(a)

the reference number of the order and a copy of the order passed by the proper officer or an appellate authority or Appellate Tribunal or court resulting in such refund or reference number of the payment of the amount specified in sub-section (6) of section 107 and sub-section (8) of section 112 claimed as refund;

(b)

a statement containing the number and date of shipping bills or bills of export and the number and the date of the relevant export invoices, in a case where the refund is on account of export of goods;

(c)

a statement containing the number and date of invoices and the relevant Bank Realisation Certificates or Foreign Inward Remittance Certificates, as the case may be, in a case where the refund is on account of the export of services;

(d)

a statement containing the number and date of invoices as provided in rule 46 along with the evidence regarding the endorsement specified in the second proviso to sub-rule (1) in the case of the supply of goods made to a Special Economic Zone unit or a Special Economic Zone developer;

(e)

a statement containing the number and date of invoices, the evidence regarding the endorsement specified in the second proviso to sub-rule (1) and the details of payment, along with the proof thereof, made by the recipient to the supplier for authorised operations as defined under the Special Economic Zone Act, 2005, in a case where the refund is on account of supply of services made to a Special Economic Zone unit or a Special Economic Zone developer;

(f)

[a declaration to the effect that tax has not been collected from the Special Economic Zone unit or the Special Economic Zone developer, in a case where the refund is on account of supply of goods or services or both made to a Special Economic Zone unit or a Special Economic Zone developer;]

[Substituted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(g)

a statement containing the number and date of invoices along with such other evidence as may be notified in this behalf, in a case where the refund is on account of deemed exports;

(h)

a statement containing the number and the date of the invoices received and issued during a tax period in a case where the claim pertains to refund of any unutilised input tax credit under sub-section (3) of section 54 where the credit has accumulated on account of the rate of tax on the inputs being higher than the rate of tax on output supplies, other than nil-rated or fully exempt supplies;

(i)

the reference number of the final assessment order and a copy of the said order in a case where the refund arises on account of the finalisation of provisional assessment;

(j)

a statement showing the details of transactions considered as intra-State supply but which is subsequently held to be inter-State supply;

(k)

a statement showing the details of the amount of claim on account of excess payment of tax;

(l)

a declaration to the effect that the incidence of tax, interest or any other amount claimed as refund has not been passed on to any other person, in a case where the amount of refund claimed does not exceed two lakh rupees:

Provided that a declaration is not required to be furnished in respect of the cases covered under clause (a) or clause (b) or clause (c) or clause (d) or clause (f) of sub-section (8) of section 54;

(m)

a Certificate in Annexure 2 of FORM GST RFD-01 issued by a chartered accountant or a cost accountant to the effect that the incidence of tax, interest or any other amount claimed as refund has not been passed on to any other person, in a case where the amount of refund claimed exceeds two lakh rupees:

Provided that a certificate is not required to be furnished in respect of cases covered under clause (a) or clause (b) or clause (c) or clause (d) or clause (f) of sub-section (8) of section 54;

Explanation. - For the purposes of this rule-

(i)

in case of refunds referred to in clause (c) of sub-section (8) of section 54, the expression "invoice" means invoice conforming to the provisions contained in section 31;

(ii)

where the amount of tax has been recovered from the recipient, it shall be deemed that the incidence of tax has been passed on to the ultimate consumer.

(3)

Where the application relates to refund of input tax credit, the electronic credit ledger shall be debited by the applicant by an amount equal to the refund so claimed.

(4)

[In the case of zero-rated supply of goods or services or both without payment of tax under bond or letter of undertaking in accordance with the provisions of sub-section (3) of section 16 of the Integrated Goods and Services Tax Act, 2017 (13 of 2017

), refund of input tax credit shall be granted as per the following formula-

Refund Amount = (Turnover of zero-rated supply of goods + Turnover of zero-rated supply of services) x Net ITC ÷ Adjusted Total Turnover

Where, -

(A)

"Refund amount" means the maximum refund that is admissible;

(B)

"Net ITC" means input tax credit availed on inputs and input services during the relevant period other than the input tax credit availed for which refund is claimed under sub-rules (4A) or (4B) or both;

(C)

["Turnover of zero-rated supply of goods" means the value of zero-rated supply of goods made during the relevant period without payment of tax under bond or letter of undertaking or the value which is 1.5 times the value of like goods domestically supplied by the same or, similarly placed, supplier, as declared by the supplier, whichever is less, other than the turnover of supplies in respect of which refund is claimed under sub-rules (4A) or (4B) or both;]

(D)

"Turnover of zero-rated supply of services" means the value of zero-rated supply of services made without payment of tax under bond or letter of undertaking, calculated in the following manner, namely:-

Zero-rated supply of services is the aggregate of the payments received during the relevant period for zero-rated supply of services and zero-rated supply of services where supply has been completed for which payment had been received in advance in any period prior to the relevant period reduced by advances received for zero-rated supply of services for which the supply of services has not been completed during the relevant period;

(E)

["Adjusted Total Turnover" means the sum total of the value of-

[Substituted by Notification No. G.S.R. 831(E), dated 4.9.2018 (w.e.f. 19.6.2017).]

(a)

the turnover in a State or a Union territory, as defined under clause (112) of section 2, excluding the turnover of services; and

(b)

the turnover of zero-rated supply of services determined in terms of clause (D) above and non-zero-rated supply of services, excluding-

(i)

the value of exempt supplies other than zero-rated supplies; and

(ii)

the turnover of supplies in respect of which refund is claimed under sub-rule (4A) or sub-rule (4B) or both, if any, during the relevant period.]

[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

(F)

"Relevant period" means the period for which the claim has been filed.

(4A)

[In the case of supplies received on which the supplier has availed the benefit of the Government of India, Ministry of Finance, notification No. 48/2017 -Central Tax dated the 18th October, 2017 published in the Gazette of India Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R. 1305(E) dated the 18th October, 2017, refund of input tax credit, availed in respect of other inputs or input services used in making zero-rated supply of goods or services or both shall be granted.]

[Substituted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

]

[Substituted by Notification No. G.S.R. 1304(E), dated 18.10.2017 (w.e.f. 19.6.2017).]

(4B)

[Where the person claiming refund of unutilised input tax credit on account of zero rated supplies without payment of tax has -

(a)

received supplies on which the supplier has availed the benefit of the Government of India, Ministry of Finance,

notification No. 40/2017-Central Tax (Rate), dated the 23rd October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1320 (E), dated the 23rd October, 2017 or notification No. 41/2017-Integrated Tax (Rate), dated the 23rd October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1321(E), dated the 23rd October, 2017; or

(b)

availed the benefit of notification No. 78/2017-Customs, dated the 13th October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1272(E), dated the 13th October, 2017 or notification No. 79/2017-Customs, dated the 13th October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1299(E), dated the 13th October, 2017,

the refund of input tax credit, availed in respect of inputs received under the said notifications for export of goods and the input tax credit availed in respect of other inputs or input services to the extent used in making such export of goods, shall be granted.]

[Substituted by Notification No. G.S.R. 1011(E), dated 9.10.2018 (w.e.f. 19.6.2017).]

(5)

[In the case of refund on account of inverted duty structure, refund of input tax credit shall be granted as per the following formula:-

Maximum Refund Amount = {(Turnover of inverted rated supply of goods and services) x Net ITC ÷ Adjusted Total Turnover} - tax payable on such inverted rated supply of goods and services.

Explanation. - For the purposes of this sub rule, the expressions-

(a)

Net ITC shall mean input tax credit availed on inputs during the relevant period other than the input tax credit availed for which refund is claimed under sub-rules (4A) or (4B) or both; and]

(b)

["Adjusted Total turnover" and "relevant period" shall have the same meaning as assigned to them in sub-rule (4).]

[Substituted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

90.

Acknowledgment.

(1)

Where the application relates to a claim for refund from the electronic cash ledger, an acknowledgment in FORM GST RFD-02 shall be made available to the applicant through the common portal electronically, clearly indicating the date of filing of the claim for refund and the time period specified in sub-section (7) of section 54 shall be counted from such date of filing.

(2)

The application for refund, other than claim for refund from electronic cash ledger, shall be forwarded to the proper officer who shall, within a period of fifteen days of filing of the said application, scrutinize the application for its completeness and where the application is found to be complete in terms of sub-rule (2), (3) and (4) of rule 89, an acknowledgment in FORM GST RFD-02 shall be made available to the applicant through the common portal electronically, clearly indicating the date of filing of the claim for refund and the time period specified in sub-section (7) of section 54 shall be counted from such date of filing.

(3)

Where any deficiencies are noticed, the proper officer shall communicate the deficiencies to the applicant in FORM GST RFD-03 through the common portal electronically, requiring him to file a fresh refund application after rectification of such deficiencies.

[Provided that the time period, from the date of filing of the refund claim in FORM GST RFD-01 till the date of communication of the deficiencies in FORM GST RFD-03 by the proper officer, shall be excluded from the period of two years as specified under sub-section (1) of Section 54, in respect of any such fresh refund claim filed by the applicant after rectification of the deficiencies.]

[Inserted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

(4)

Where deficiencies have been communicated in FORM GST RFD-03 under the State Goods and Service Tax Rules, 2017, the same shall also deemed to have been communicated under this rule along with the deficiencies

communicated under sub-rule (3).

(5)

[The applicant may, at any time before issuance of provisional refund sanction order in FORM GST RFD-04 or final refund sanction order in FORM GST RFD-06 or payment order in FORM GST RFD-05 or refund withhold order in FORM GST RFD-07 or notice in FORM GST RFD-08, in respect of any refund application filed in FORM GST RFD-01, withdraw the said application for refund by filing an application in FORM GST RFD-01W.

(6)

On submission of application for withdrawal of refund in FORM GST RFD-01W, any amount debited by the applicant from electronic credit ledger or electronic cash ledger, as the case may be, while filing application for refund in FORM GST RFD-01, shall be credited back to the ledger from which such debit was made.]

[Inserted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

91.

Grant of provisional refund.

(1)

The provisional refund in accordance with the provisions of sub-section (6) of section 54 shall be granted subject to the condition that the person claiming refund has, during any period of five years immediately preceding the tax period to which the claim for refund relates, not been prosecuted for any offence under the Act or under an existing law where the amount of tax evaded exceeds two hundred and fifty lakh rupees.

(2)

The proper officer, after scrutiny of the claim and the evidence submitted in support thereof and on being prima facie satisfied that the amount claimed as refund under sub-rule (1) is due to the applicant in accordance with the provisions of sub-section (6) of section 54, shall make an order in FORM GST RFD-04, sanctioning the amount of refund due to the said applicant on a provisional basis within a period not exceeding seven days from the date of the acknowledgment under sub-rule (1) or sub-rule (2) of rule 90.

[Provided that the order issued in FORM GST RFD-04 shall not be required to be revalidated by the proper officer.]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(3)

The proper officer shall issue a [payment order]

[Substituted 'payment advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

in FORM GST RFD-05 for the amount sanctioned under sub-rule (2) and the same shall be electronically credited to any of the bank accounts of the applicant mentioned in his registration particulars and as specified in the application for refund [on the basis of a consolidated payment advice:]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

.

[Provided that the [payment order]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

in FORM GST RFD-05 shall be required to be revalidated where the refund has not been disbursed within the same financial year in which the said [payment order]

[Substituted 'payment advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

was issued.]

[Substituted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

(4)

[The Central Government shall disburse the refund based on the consolidated payment advice issued under sub-rule (3).]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

92.

Order sanctioning refund.

(1)

Where, upon examination of the application, the proper officer is satisfied that a refund under sub-section (5) of section 54 is due and payable to the applicant, he shall make an order in FORM GST RFD-06 sanctioning the amount of refund to which the applicant is entitled, mentioning therein the amount, if any, refunded to him on a provisional basis under

sub-section (6) of section 54, amount adjusted against any outstanding demand under the Act or under any existing law and the balance amount refundable:

[***]

[Omitted 'proviso' by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

(1A)

[Where, upon examination of the application of refund of any amount paid as tax other than the refund of tax paid on zero-rated supplies or deemed export, the proper officer is satisfied that a refund under sub-section (5) of section 54 of the Act is due and payable to the applicant, he shall make an order in FORM RFD-06 sanctioning the amount of refund to be paid, in cash, proportionate to the amount debited in cash against the total amount paid for discharging tax liability for the relevant period, mentioning therein the amount adjusted against any outstanding demand under the Act or under any existing law and the balance amount refundable and for the remaining amount which has been debited from the electronic credit ledger for making payment of such tax, the proper officer shall issue FORM GST PMT-03 re-crediting the said amount as Input Tax Credit in electronic credit ledger.]

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

(2)

Where the proper officer or the Commissioner is of the opinion that the amount of refund is liable to be withheld under the provisions of sub-section (10) or, as the case may be, sub-section (11) of section 54, he shall pass an order in [Part A]

[Substituted 'Part B' by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

of FORM GST RFD-07 informing him the reasons for withholding of such refund.

[Provided that where the proper officer or the Commissioner is satisfied that the refund is no longer liable to be withheld, he may pass an order for release of withheld refund in Part B of FORM GST RFD- 07.]

[Inserted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

(3)

Where the proper officer is satisfied, for reasons to be recorded in writing, that the whole or any part of the amount claimed as refund is not admissible or is not payable to the applicant, he shall issue a notice in FORM GST RFD-08 to the applicant, requiring him to furnish a reply in FORM GST RFD-09 within a period of fifteen days of the receipt of such notice and after considering the reply, make an order in FORM GST RFD-06 sanctioning the amount of refund in whole or part, or rejecting the said refund claim and the said order shall be made available to the applicant electronically and the provisions of sub-rule (1) shall, mutatis mutandis, apply to the extent refund is allowed:

Provided that no application for refund shall be rejected without giving the applicant an opportunity of being heard.

(4)

Where the proper officer is satisfied that the amount refundable under sub-rule (1) [or sub-rule (1A)]

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

or sub-rule (2) is payable to the applicant under sub-section (8) of section 54, he shall make an order in FORM GST RFD-06 and issue a [payment order]

[Substituted 'payment advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

in FORM GST RFD-05 for the amount of refund and the same shall be electronically credited to any of the bank accounts of the applicant mentioned in his registration particulars and as specified in the application for refund [on the basis of a consolidated payment advice]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

.

(4A)

[The Central Government shall disburse the refund based on the consolidated payment advice issued under sub-rule (4).]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[Provided that the order issued in FORM GST RFD-06 shall not be required to be revalidated by the proper officer:

Provided further that the payment advice in FORM GST RFD-05 shall be required to be revalidated where the refund has not been disbursed within the same financial year in which the said payment advice was issued.]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(5)

Where the proper officer is satisfied that the amount refundable under sub-rule (1) [or sub-rule (1A)]
[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]
or sub-rule (2) is not payable to the applicant under sub-section (8) of section 54, he shall make an order in FORM GST RFD-06 and issue [a payment order]
[Substituted 'an advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]
in FORM GST RFD-05, for the amount of refund to be credited to the Consumer Welfare Fund.

93.

Credit of the amount of rejected refund claim.

(1)

Where any deficiencies have been communicated under sub-rule (3) of rule 90, the amount debited under sub-rule (3) of rule 89 shall be re-credited to the electronic credit ledger.

(2)

Where any amount claimed as refund is rejected under rule 92, either fully or partly, the amount debited, to the extent of rejection, shall be re-credited to the electronic credit ledger by an order made in FORM GST PMT-03.

Explanation. - For the purposes of this rule, a refund shall be deemed to be rejected, if the appeal is finally rejected or if the claimant gives an undertaking in writing to the proper officer that he shall not file an appeal.

94.

Order sanctioning interest on delayed refunds.

- Where any interest is due and payable to the applicant under section 56, the proper officer shall make an order along with a [payment order]

[Substituted 'payment advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

in FORM GST RFD-05, specifying therein the amount of refund which is delayed, the period of delay for which interest is payable and the amount of interest payable, and such amount of interest shall be electronically credited to any of the bank accounts of the applicant mentioned in his registration particulars and as specified in the application for refund.

95.

Refund of tax to certain persons.

- [(1) Any person eligible to claim refund of tax paid by him on his inward supplies as per notification issued under section 55 shall apply for refund in FORM GST RFD-10 once in every quarter, electronically on the common portal or otherwise, either directly or through a Facilitation Centre notified by the Commissioner, along with a statement of the inward supplies of goods or services or both in FORM GSTR-11]

[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

.

(2)

An acknowledgment for the receipt of the application for refund shall be issued in FORM GST RFD-02.

(3)

The refund of tax paid by the applicant shall be available if -

(a)

[the inward supplies of goods or services or both were received from a registered person against a tax invoice;]

[Substituted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

(b)

name and Goods and Services Tax Identification Number or Unique Identity Number of the applicant is mentioned in the tax invoice; and

(c)

such other restrictions or conditions as may be specified in the notification are satisfied.

[Provided that where Unique Identity Number of the applicant is not mentioned in a tax invoice, the refund of tax paid by the applicant on such invoice shall be available only if the copy of the invoice, duly attested by the authorized representative of the applicant, is submitted along with the refund application in FORM GST RFD-10.]

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of April, 2021).]

(4)

The provisions of rule 92 shall, mutatis mutandis, apply for the sanction and payment of refund under this rule.

(5)

Where an express provision in a treaty or other international agreement, to which the President or the Government of India is a party, is inconsistent with the provisions of this Chapter, such treaty or international agreement shall prevail.

95A.

[Refund of taxes to the retail outlets established in departure area of an international Airport beyond immigration counters making tax free supply to an outgoing international tourist.

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

(1)

Retail outlet established in departure area of an international airport, beyond the immigration counters, supplying indigenous goods to an outgoing international tourist who is leaving India shall be eligible to claim refund of tax paid by it on inward supply of such goods.

(2)

Retail outlet claiming refund of the taxes paid on his inward supplies, shall furnish the application for refund claim in FORM GST RFD- 10B on a monthly or quarterly basis, as the case may be, through the common portal either directly or through a Facilitation Centre notified by the Commissioner.

(3)

The self-certified compiled information of invoices issued for the supply made during the month or the quarter, as the case may be, along with concerned purchase invoice shall be submitted along with the refund application.

(4)

The refund of tax paid by the said retail outlet shall be available if -

(a)

the inward supplies of goods were received by the said retail outlet from a registered person against a tax invoice;

(b)

the said goods were supplied by the said retail outlet to an outgoing international tourist against foreign exchange without charging any tax;

(c)

name and Goods and Services Tax Identification Number of the retail outlet is mentioned in the tax invoice for the inward supply; and

(d)

such other restrictions or conditions, as may be specified, are satisfied.

(5)

The provisions of rule 92 shall, mutatis mutandis, apply for the sanction and payment of refund under this rule.

Explanation. - For the purposes of this rule, the expression "outgoing international tourist" shall mean a person not normally resident in India, who enters India for a stay of not more than six months for legitimate non-immigrant purposes.]

96.

Refund of integrated tax paid on goods [or services]

[Inserted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

exported out of India.

(1)

The shipping bill filed by [an exporter of goods]

[Substituted 'an exporter' by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017).]

shall be deemed to be an application for refund of integrated tax paid on the goods exported out of India and such application shall be deemed to have been filed only when:-

(a)

the person in charge of the conveyance carrying the export goods duly files [a departure manifest or]

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

an export manifest or an export report covering the number and the date of shipping bills or bills of export; and

(b)

the applicant has furnished a valid return in FORM GSTR-3 [or FORM GSTR-3B, as the case may be;]

[Inserted by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

(c)

[the applicant has undergone Aadhaar authentication in the manner provided in rule 10B;]

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

(2)

The details of the [relevant export invoices in respect of export of goods]

[Substituted 'relevant export invoices' by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

contained in FORM GSTR-1 shall be transmitted electronically by the common portal to the system designated by the Customs and the said system shall electronically transmit to the common portal, a confirmation that the goods covered by the said invoices have been exported out of India.

[Provided that where the date for furnishing the details of outward supplies in FORM GSTR-1 for a tax period has been extended in exercise of the powers conferred under section 37 of the Act, the supplier shall furnish the information relating to exports as specified in Table 6A of FORM GSTR-1 after the return in FORM GSTR-3B has been furnished and the same shall be transmitted electronically by the common portal to the system designated by the Customs:

Provided further that the information in Table 6A furnished under the first proviso shall be auto-drafted in FORM GSTR-1 for the said tax period.]

[Inserted by Notification No. G.S.R. 1344(E), dated 28.10.2017 (w.e.f. 19.6.2017)]

(3)

Upon the receipt of the information regarding the furnishing of a valid return in FORM GSTR-3 [or FORM GSTR-3B, as the case may be;]

[Inserted by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

from the common portal, [the system designated by the Customs or the proper officer of Customs, as the case may be shall process the claim of refund in respect of export of goods]

[Substituted 'the system designated by the Customs shall process the claim for refund' by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017)]

and an amount equal to the integrated tax paid in respect of each shipping bill or bill of export shall be electronically credited to the bank account of the applicant mentioned in his registration particulars and as intimated to the Customs authorities.

(4)

The claim for refund shall be withheld where,-

(a)

a request has been received from the jurisdictional Commissioner of central tax, State tax or Union territory tax to withhold the payment of refund due to the person claiming refund in accordance with the provisions of sub-section (10) or sub-section (11) of section 54; or

(b)

the proper officer of Customs determines that the goods were exported in violation of the provisions of the Customs Act, 1962.

(5)

Where refund is withheld in accordance with the provisions of clause (a) of sub-rule (4), the proper officer of integrated tax at the Customs station shall intimate the applicant and the jurisdictional Commissioner of central tax, State tax or Union territory tax, as the case may be, and a copy of such intimation shall be transmitted to the common portal.

(6)

Upon transmission of the intimation under sub-rule (5), the proper officer of central tax or State tax or Union territory tax, as the case may be, shall pass an order in [Part A]

[Substituted 'Part B' by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

of FORM GST RFD-07.

(7)

Where the applicant becomes entitled to refund of the amount withheld under clause (a) of sub-rule (4), the concerned jurisdictional officer of central tax, State tax or Union territory tax, as the case may be, shall proceed to refund the amount [by passing an order in FORM GST RFD-06 after passing an order for release of withheld refund in Part B of FORM GST RFD-07]

[Substituted 'after passing an order in FORM GST RFD-06' by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

(8)

The Central Government may pay refund of the integrated tax to the Government of Bhutan on the exports to Bhutan for such class of goods as may be notified in this behalf and where such refund is paid to the Government of Bhutan, the exporter shall not be paid any refund of the integrated tax.

(9)

[The application for refund of integrated tax paid on the services exported out of India shall be filed in FORM GST RFD-01 and shall be dealt with in accordance with the provision of rule 89.]

[Substituted by Notification No. G.S.R. 52(E), dated 23.1.2018 (w.e.f. 19.6.2017).]

(10)

[The persons claiming refund of integrated tax paid on exports of goods or services should not have -

(a)

received supplies on which the benefit of the Government of India, Ministry of Finance notification No. 48/2017-Central Tax, dated the 18th October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1305 (E), dated the 18th October, 2017 except so far it relates to receipt of capital goods by such person against Export Promotion Capital Goods Scheme or notification No. 40/2017-Central Tax (Rate), dated the 23rd October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1320 (E), dated the 23rd October, 2017 or notification No. 41/2017- Integrated Tax (Rate), dated the 23rd October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1321 (E), dated the 23rd October, 2017 has been availed; or

(b)

availed the benefit under notification No. 78/2017-Customs, dated the 13th October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1272(E), dated the 13th October, 2017 or notification No. 79/2017-Customs, dated the 13th October, 2017, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1299 (E), dated the 13th October, 2017 except so far it relates to receipt of capital goods by such person against Export Promotion Capital Goods Scheme.]

[Explanation. - For the purpose of this sub-rule, the benefit of the notifications mentioned therein shall not be considered to have been availed only where the registered person has paid Integrated Goods and Services Tax and Compensation Cess on inputs and has availed exemption of only Basic Customs Duty (BCD) under the said notifications.]

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

96A.

[[Export]

[Inserted by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

of goods or services under bond or Letter of Undertaking.

(1)

Any registered person availing the option to supply goods or services for export without payment of integrated tax shall furnish, prior to export, a bond or a Letter of Undertaking in FORM GST RFD-11 to the jurisdictional Commissioner, binding himself to pay the tax due along with the interest specified under sub-section (1) of section 50 within a period of -

(a)

fifteen days after the expiry of three months or [such further period as may be allowed by the Commissioner,]

[Inserted by Notification No. G.S.R. 1304(E), dated 18.10.2017 (w.e.f. 19.6.2017).]

from the date of issue of the invoice for export, if the goods are not exported out of India; or

(b)

fifteen days after the expiry of one year, or such further period as may be allowed by the Commissioner, from the date of issue of the invoice for export, if the payment of such services is not received by the exporter in convertible foreign exchange [or in Indian rupees, wherever permitted by the Reserve Bank of India]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

(2)

The details of the export invoices contained in FORM GSTR-1 furnished on the common portal shall be electronically transmitted to the system designated by Customs and a confirmation that the goods covered by the said invoices have

been exported out of India shall be electronically transmitted to the common portal from the said system.

[Provided that where the date for furnishing the details of outward supplies in FORM GSTR-1 for a tax period has been extended in exercise of the powers conferred under section 37 of the Act, the supplier shall furnish the information relating to exports as specified in Table 6A of FORM GSTR-1 after the return in FORM GSTR- 3B has been furnished and the same shall be transmitted electronically by the common portal to the system designated by the Customs:

Provided further that the information in Table 6A furnished under the first proviso shall be auto-drafted in FORM GSTR-1 for the said tax period.]

[Inserted by Notification No. G.S.R. 1344(E), dated 28.10.2017 (w.e.f. 19.6.2017).]

(3)

Where the goods are not exported within the time specified in sub-rule (1) and the registered person fails to pay the amount mentioned in the said sub-rule, the export as allowed under bond or Letter of Undertaking shall be withdrawn forthwith and the said amount shall be recovered from the registered person in accordance with the provisions of section 79.

(4)

The export as allowed under bond or Letter of Undertaking withdrawn in terms of sub-rule (3) shall be restored immediately when the registered person pays the amount due.

(5)

The Board, by way of notification, may specify the conditions and safeguards under which a Letter of Undertaking may be furnished in place of a bond.

(6)

The provisions of sub rule (1) shall apply, mutatis mutandis, in respect of zero-rated supply of goods or services or both to a Special Economic Zone developer or a Special Economic Zone unit without payment of integrated tax.]

[Substituted by Notification No. G.S.R. 1011(E), dated 9.10.2018 (w.e.f. 19.6.2017).]

96B.

[Recovery of refund of unutilised input tax credit or integrated tax paid on export of goods where export proceeds not realised.

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

– (1) Where any refund of unutilised input tax credit on account of export of goods or of integrated tax paid on export of goods has been paid to an applicant but the sale proceeds in respect of such export goods have not been realised, in full or in part, in India within the period allowed under the Foreign Exchange Management Act, 1999 (42 of 1999

), including any extension of such period, the person to whom the refund has been made shall deposit the amount so refunded, to the extent of non-realisation of sale proceeds, along with applicable interest within thirty days of the expiry of the said period or, as the case may be, the extended period, failing which the amount refunded shall be recovered in accordance with the provisions of section 73 or 74 of the Act, as the case may be, as is applicable for recovery of erroneous refund, along with interest under section 50:

Provided that where sale proceeds, or any part thereof, in respect of such export goods are not realised by the applicant within the period allowed under the Foreign Exchange Management Act, 1999 (42 of 1999

), but the Reserve Bank of India writes off the requirement of realisation of sale proceeds on merits, the refund paid to the applicant shall not be recovered.

(2)

Where the sale proceeds are realised by the applicant, in full or part, after the amount of refund has been recovered from him under sub-rule (1) and the applicant produces evidence about such realisation within a period of three months from the date of realisation of sale proceeds, the amount so recovered shall be refunded by the proper officer, to the applicant to the extent of realisation of sale proceeds, provided the sale proceeds have been realised within such extended period as permitted by the Reserve Bank of India.]

96C.

[Bank Account for credit of refund.

[Inserted by Notification No. G.S.R. 659(E), dated 24.9.2021 (w.e.f. 19.6.2017).]

- For the purposes of sub-rule (3) of rule 91, sub-rule (4) of rule 92 and rule 94, "bank account" shall mean such bank

account of the applicant which is in the name of applicant and obtained on his Permanent Account Number:

Provided that in case of a proprietorship concern, the Permanent Account Number of the proprietor shall also be linked with the Aadhaar number of the proprietor.]

97.

[Consumer Welfare Fund.

[Substituted by Notification No. G.S.R. 378(E), dated 18.4.2018 (w.e.f. 19.6.2017).]

(1)

All amounts of duty/central tax/ integrated tax /Union territory tax/cess and income from investment along with other monies specified in sub-section (2) of section 12C of the Central Excise Act, 1944 (

1 of 1944

), section 57 of the Central Goods and Services Tax Act, 2017 (

12 of 2017

) read with section 20 of the Integrated Goods and Services Tax Act, 2017 (

13 of 2017

), section 21 of the Union Territory Goods and Services Tax Act, 2017 (

14 of 2017

) and section 12 of the Goods and Services Tax (Compensation to States) Act, 2017 (

15 of 2017

) shall be credited to the Fund:

Provided that an amount equivalent to fifty per cent. of the amount of integrated tax determined under sub-section (5) of section 54 of the Central Goods and Services Tax Act, 2017, read with section 20 of the Integrated Goods and Services Tax Act, 2017, shall be deposited in the Fund.

[Provided further that an amount equivalent to fifty per cent. of the amount of cess determined under subsection (5) of section 54 read with section 11 of the Goods and Services Tax (Compensation to States) Act, 2017 (

15 of 2017

), shall be deposited in the Fund.]

(2)

Where any amount, having been credited to the Fund, is ordered or directed to be paid to any claimant by the proper officer, appellate authority or court, the same shall be paid from the Fund.

(3)

Accounts of the Fund maintained by the Central Government shall be subject to audit by the Comptroller and Auditor General of India.

(4)

The Government shall, by an order, constitute a Standing Committee (hereinafter referred to as the 'Committee') with a Chairman, a Vice-Chairman, a Member Secretary and such other members as it may deem fit and the Committee shall make recommendations for proper utilisation of the money credited to the Fund for welfare of the consumers.

(5)

(a)

The Committee shall meet as and when necessary, generally four times in a year;

(b)

the Committee shall meet at such time and place as the Chairman, or in his absence, the Vice-Chairman of the Committee may deem fit;

(c)

the meeting of the Committee shall be presided over by the Chairman, or in his absence, by the Vice-Chairman;

(d)

the meeting of the Committee shall be called, after giving at least ten days' notice in writing to every member;

(e)

the notice of the meeting of the Committee shall specify the place, date and hour of the meeting and shall contain statement of business to be transacted thereat;

(f)

no proceeding of the Committee shall be valid, unless it is presided over by the Chairman or Vice-Chairman and

attended by a minimum of three other members.

(6)

The Committee shall have powers -

(a)

to require any applicant to get registered with any authority as the Central Government may specify;

(b)

to require any applicant to produce before it, or before a duly authorised officer of the Central Government or the State Government, as the case may be, such books, accounts, documents, instruments, or commodities in custody and control of the applicant, as may be necessary for proper evaluation of the application;

(c)

to require any applicant to allow entry and inspection of any premises, from which activities claimed to be for the welfare of consumers are stated to be carried on, to a duly authorised officer of the Central Government or the State Government, as the case may be;

(d)

to get the accounts of the applicants audited, for ensuring proper utilisation of the grant;

(e)

to require any applicant, in case of any default, or suppression of material information on his part, to refund in lump-sum along with accrued interest, the sanctioned grant to the Committee, and to be subject to prosecution under the Act;

(f)

to recover any sum due from any applicant in accordance with the provisions of the Act;

(g)

to require any applicant, or class of applicants to submit a periodical report, indicating proper utilisation of the grant;

(h)

to reject an application placed before it on account of factual inconsistency, or inaccuracy in material particulars;

(i)

to recommend minimum financial assistance, by way of grant to an applicant, having regard to his financial status, and importance and utility of the nature of activity under pursuit, after ensuring that the financial assistance provided shall not be mis-utilised;

(j)

to identify beneficial and safe sectors, where investments out of Fund may be made, and make recommendations, accordingly;

(k)

to relax the conditions required for the period of engagement in consumer welfare activities of an applicant;

(l)

to make guidelines for the management, and administration of the Fund.

(7)

The Committee shall not consider an application, unless it has been inquired into, in material details and recommended for consideration accordingly, by the Member Secretary.

(7A)

[The Committee shall make available to the Board 50 per cent. of the amount credited to the Fund each year, for publicity or consumer awareness on Goods and Services Tax, provided the availability of funds for consumer welfare activities of the Department of Consumer Affairs is not less than twenty-five crore rupees per annum.]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

(8)

The Committee shall make recommendations:-

(a)

for making available grants to any applicant;

(b)

for investment of the money available in the Fund;

(c)

for making available grants (on selective basis) for reimbursing legal expenses incurred by a complainant, or class of

complainants in a consumer dispute, after its final adjudication;

(d)

for making available grants for any other purpose recommended by the Central Consumer Protection Council (as may be considered appropriate by the Committee);

[***]

[Omitted '(e)' by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

Explanation. - For the purposes of this rule,

(a)

'Act' means the Central Goods and Services Tax Act, 2017 (

12 of 2017

), or the Central Excise Act, 1944 (

1 of 1944

) as the case may be;

(b)

'applicant' means,

(i)

the Central Government or State Government;

(ii)

regulatory authorities or autonomous bodies constituted under an Act of Parliament or the Legislature of a State or Union Territory;

(iii)

any agency or organization engaged in consumer welfare activities for a minimum period of three years, registered under the Companies Act, 2013 (

18 of 2013

) or under any other law for the time being in force;

(iv)

village or mandal or samiti or samiti level co-operatives of consumers especially Women, Scheduled Castes and Scheduled Tribes;

(v)

an educational or research institution incorporated by an Act of Parliament or the Legislature of a State or Union Territory in India or other educational institutions established by an Act of Parliament or declared to be deemed as a University under section 3 of the University Grants Commission Act, 1956 (

3 of 1956

) and which has consumers studies as part of its curriculum for a minimum period of three years; and

(vi)

a complainant as defined under clause (b) of sub-section (1) of section 2 of the Consumer Protection Act, 1986 (

68 of 1986

), who applies for reimbursement of legal expenses incurred by him in a case instituted by him in a consumer dispute redressal agency.

(c)

'application' means an application in the form as specified by the Standing Committee from time to time;

(d)

'Central Consumer Protection Council' means the Central Consumer Protection Council, established under subsection (1) of section 4 of the Consumer Protection Act, 1986 (

68 of 1986

), for promotion and protection of rights of consumers;

(e)

'Committee' means the Committee constituted under sub-rule (4);

(f)

'consumer' has the same meaning as assigned to it in clause (d) of sub-section (1) of section 2 of the Consumer Protection Act, 1986 (

68 of 1986

), and includes consumer of goods on which central tax has been paid;

(g)

'duty' means the duty paid under the Central Excise Act, 1944 (

1 of 1944

) or the Customs Act, 1962 (

52 of 1962

);

(h)

'Fund' means the Consumer Welfare Fund established by the Central Government under sub-section (1) of section 12C of the Central Excise Act, 1944 (

1 of 1944

) and section 57 of the Central Goods and Services Tax Act, 2017 (

12 of 2017

);

(i)

'proper officer' means the officer having the power under the Act to make an order that the whole or any part of the central tax is refundable;]

97A.

[Manual filing and processing.

[Inserted by Notification No. G.S.R. 1411(E), dated 15.11.2017 (w.e.f. 19.6.2017).]

- Notwithstanding anything contained in this Chapter, in respect of any process or procedure prescribed herein, any reference to electronic filing of an application, intimation, reply, declaration, statement or electronic issuance of a notice, order or certificate on the common portal shall, in respect of that process or procedure, include manual filing of the said application, intimation, reply, declaration, statement or issuance of the said notice, order or certificate in such Forms as appended to these rules.;

[Chapter XI]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Assessment and Audit

98.

Provisional Assessment.

(1)

Every registered person requesting for payment of tax on a provisional basis in accordance with the provisions of sub-section (1) of section 60 shall furnish an application along with the documents in support of his request, electronically in FORM GST ASMT-01 on the common portal, either directly or through a Facilitation Centre notified by the Commissioner.

(2)

The proper officer may, on receipt of the application under sub-rule (1), issue a notice in FORM GST ASMT-02 requiring the registered person to furnish additional information or documents in support of his request and the applicant shall file a reply to the notice in FORM GST ASMT - 03, and may appear in person before the said officer if he so desires.

(3)

The proper officer shall issue an order in FORM GST ASMT-04 allowing the payment of tax on a provisional basis indicating the value or the rate or both on the basis of which the assessment is to be allowed on a provisional basis and the amount for which the bond is to be executed and security to be furnished not exceeding twenty five percent of the amount covered under the bond.

(4)

The registered person shall execute a bond in accordance with the provisions of sub-section (2) of section 60 in FORM GST ASMT-05 along with a security in the form of a bank guarantee for an amount as determined under sub-rule (3):

Provided that a bond furnished to the proper officer under the State Goods and Services Tax Act or Integrated Goods

and Services Tax Act shall be deemed to be a bond furnished under the provisions of the Act and the rules made thereunder.

Explanation. - For the purposes of this rule, the expression "amount" shall include the amount of integrated tax, central tax, State tax or Union territory tax and cess payable in respect of the transaction.

(5)

The proper officer shall issue a notice in FORM GST ASMT-06, calling for information and records required for finalization of assessment under sub-section (3) of section 60 and shall issue a final assessment order, specifying the amount payable by the registered person or the amount refundable, if any, in FORM GST ASMT-07.

(6)

The applicant may file an application in FORM GST ASMT- 08 for the release of the security furnished under sub-rule (4) after issue of the order under sub-rule (5).

(7)

The proper officer shall release the security furnished under sub-rule (4), after ensuring that the applicant has paid the amount specified in sub-rule (5) and issue an order in FORM GST ASMT-09 within a period of seven working days from the date of the receipt of the application under sub-rule (6).

99.

Scrutiny of returns.

(1)

Where any return furnished by a registered person is selected for scrutiny, the proper officer shall scrutinize the same in accordance with the provisions of section 61 with reference to the information available with him, and in case of any discrepancy, he shall issue a notice to the said person in FORM GST ASMT-10, informing him of such discrepancy and seeking his explanation thereto within such time, not exceeding thirty days from the date of service of the notice or such further period as may be permitted by him and also, where possible, quantifying the amount of tax, interest and any other amount payable in relation to such discrepancy.

(2)

The registered person may accept the discrepancy mentioned in the notice issued under sub-rule (1), and pay the tax, interest and any other amount arising from such discrepancy and inform the same or furnish an explanation for the discrepancy in FORM GST ASMT-11 to the proper officer.

(3)

Where the explanation furnished by the registered person or the information submitted under sub-rule (2) is found to be acceptable, the proper officer shall inform him accordingly in FORM GST ASMT-12.

100.

[Assessment in certain cases.

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(1)

The order of assessment made under sub-section (1) of section 62 shall be issued in FORM GST ASMT-13 and a summary thereof shall be uploaded electronically in FORM GST DRC-07.

(2)

The proper officer shall issue a notice to a taxable person in accordance with the provisions of section 63 in FORM GST ASMT-14 containing the grounds on which the assessment is proposed to be made on best judgment basis and shall also serve a summary thereof electronically in FORM GST DRC-01, and after allowing a time of fifteen days to such person to furnish his reply, if any, pass an order in FORM GST ASMT-15 and summary thereof shall be uploaded electronically in FORM GST DRC-07.

(3)

The order of assessment under sub-section (1) of section 64 shall be issued in FORM GST ASMT-16 and a summary of the order shall be uploaded electronically in FORM GST DRC-07.

(4)

The person referred to in sub-section (2) of section 64 may file an application for withdrawal of the assessment order in FORM GST ASMT-17.

(5)

The order of withdrawal or, as the case may be, rejection of the application under sub-section (2) of section 64 shall be

issued in FORM GST ASMT-18.]

101.

Audit.

(1)

The period of audit to be conducted under sub-section (1) of section 65 shall be a financial year [or part thereof]

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

or multiples thereof.

(2)

Where it is decided to undertake the audit of a registered person in accordance with the provisions of section 65, the proper officer shall issue a notice in FORM GST ADT-01 in accordance with the provisions of sub-section (3) of the said section.

(3)

The proper officer authorised to conduct audit of the records and the books of account of the registered person shall, with the assistance of the team of officers and officials accompanying him, verify the documents on the basis of which the books of account are maintained and the returns and statements furnished under the provisions of the Act and the rules made thereunder, the correctness of the turnover, exemptions and deductions claimed, the rate of tax applied in respect of the supply of goods or services or both, the input tax credit availed and utilised, refund claimed, and other relevant issues and record the observations in his audit notes.

(4)

The proper officer may inform the registered person of the discrepancies noticed, if any, as observed in the audit and the said person may file his reply and the proper officer shall finalise the findings of the audit after due consideration of the reply furnished.

(5)

On conclusion of the audit, the proper officer shall inform the findings of audit to the registered person in accordance with the provisions of sub-section (6) of section 65 in FORM GST ADT-02.

102.

Special Audit.

(1)

Where special audit is required to be conducted in accordance with the provisions of section 66, the officer referred to in the said section shall issue a direction in FORM GST ADT-03 to the registered person to get his records audited by a chartered accountant or a cost accountant specified in the said direction.

(2)

On conclusion of the special audit, the registered person shall be informed of the findings of the special audit in FORM GST ADT-04.

[Chapter XII]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Advance Ruling

103.

[

[Substituted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 1.7.2017).]

The Government shall appoint officers not below the rank of Joint Commissioner as member of the Authority for Advance Ruling.]

103. Qualification and appointment of members of the Authority for Advance Ruling.- The Central Government and the State Government shall appoint officer of the rank of Joint Commissioner as member of the Authority for Advance Ruling.

104.

Form and manner of application to the Authority for Advance Ruling.

(1)

An application for obtaining an advance ruling under sub-section (1) of section 97 shall be made on the common portal

in FORM GST ARA-01 and shall be accompanied by a fee of five thousand rupees, to be deposited in the manner specified in section 49.

(2)

The application referred to in sub-rule (1), the verification contained therein and all the relevant documents accompanying such application shall be signed in the manner specified in rule 26.

105.

Certification of copies of advance rulings pronounced by the Authority.

- A copy of the advance ruling shall be certified to be a true copy of its original by any member of the Authority for Advance Ruling.

106.

Form and manner of appeal to the Appellate Authority for Advance Ruling.

(1)

An appeal against the advance ruling issued under sub-section (6) of section 98 shall be made by an applicant on the common portal in FORM GST ARA-02 and shall be accompanied by a fee of ten thousand rupees to be deposited in the manner specified in section 49.

(2)

An appeal against the advance ruling issued under sub-section (6) of section 98 shall be made by the concerned officer or the jurisdictional officer referred to in section 100 on the common portal in FORM GST ARA-03 and no fee shall be payable by the said officer for filing the appeal.

(3)

The appeal referred to in sub-rule (1) or sub-rule (2), the verification contained therein and all the relevant documents accompanying such appeal shall be signed,-

(a)

in the case of the concerned officer or jurisdictional officer, by an officer authorised in writing by such officer; and

(b)

in the case of an applicant, in the manner specified in rule 26.

107.

Certification of copies of the advance rulings pronounced by the Appellate Authority.

- A copy of the advance ruling pronounced by the Appellate Authority for Advance Ruling and duly signed by the Members shall be sent to-

(a)

the applicant and the appellant;

(b)

the concerned officer of central tax and State or Union territory tax;

(c)

the jurisdictional officer of central tax and State or Union territory tax; and

(d)

the Authority,

in accordance with the provisions of sub-section (4) of section 101 of the Act.

107A.

[Manual filing and processing.

[Inserted by Notification No. G.S.R. 1411(E), dated 15.11.2017 (w.e.f. 19.6.2017).]

- Notwithstanding anything contained in this Chapter, in respect of any process or procedure prescribed herein, any reference to electronic filing of an application, intimation, reply, declaration, statement or electronic issuance of a notice, order or certificate on the common portal shall, in respect of that process or procedure, include manual filing of the said application, intimation, reply, declaration, statement or issuance of the said notice, order or certificate in such Forms as appended to these rules.;

[Chapter XIII]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Appeals and Revision

108.

Appeal to the Appellate Authority.

(1)

An appeal to the Appellate Authority under sub-section (1) of section 107 shall be filed in FORM GST APL-01, along with the relevant documents, either electronically or otherwise as may be notified by the Commissioner, and a provisional acknowledgment shall be issued to the appellant immediately.

(2)

The grounds of appeal and the form of verification as contained in FORM GST APL-01 shall be signed in the manner specified in rule 26.

(3)

A certified copy of the decision or order appealed against shall be submitted within seven days of filing the appeal under sub-rule (1) and a final acknowledgment, indicating appeal number shall be issued thereafter in FORM GST APL-02 by the Appellate Authority or an officer authorised by him in this behalf:

Provided that where the certified copy of the decision or order is submitted within seven days from the date of filing the FORM GST APL-01, the date of filing of the appeal shall be the date of the issue of the provisional acknowledgment and where the said copy is submitted after seven days, the date of filing of the appeal shall be the date of the submission of such copy.

Explanation. - For the provisions of this rule, the appeal shall be treated as filed only when the final acknowledgment, indicating the appeal number, is issued.

109.

Application to the Appellate Authority.

(1)

An application to the Appellate Authority under sub-section (2) of section 107 shall be made in FORM GST APL-03, along with the relevant documents, either electronically or otherwise as may be notified by the Commissioner.

(2)

A certified copy of the decision or order appealed against shall be submitted within seven days of the filing the application under sub-rule (1) and an appeal number shall be generated by the Appellate Authority or an officer authorised by him in this behalf.

109A.

[Appointment of Appellate Authority.

[Inserted by Notification No. G.S.R. 1411(E), dated 15.11.2017 (w.e.f. 19.6.2017).]

(1)

Any person aggrieved by any decision or order passed under this Act or the State Goods and Services Tax Act or the Union Territory Goods and Services Tax Act may appeal to -

(a)

the Commissioner (Appeals) where such decision or order is passed by the Additional or Joint Commissioner;

(b)

[any officer not below the rank of Joint Commissioner (Appeals)] where such decision or order is passed by the Deputy or Assistant Commissioner or Superintendent, within three months from the date on which the said decision or order is communicated to such person.

(2)

An officer directed under sub-section (2) of Section 107 to appeal against any decision or order passed under this Act or the State Goods and Services Tax Act or the Union Territory Goods and Services Tax Act may appeal to -

(a)

the Commissioner (Appeals) where such decision or order is passed by the Additional or Joint Commissioner;

(b)

[any officer not below the rank of Joint Commissioner (Appeals)]

[Substituted 'the Additional Commissioner (Appeals)' by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]

where such decision or order is passed by the Deputy or Assistant Commissioner or the Superintendent,

within six months from the date of communication of the said decision or order.;

109B.

[Notice to person and order of revisional authority in case of revision.

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

(1)

Where the Revisional Authority decides to pass an order in revision under section 108 which is likely to affect the person adversely, the Revisional Authority shall serve on him a notice in Form Gst Rvn-01 and shall give him a reasonable opportunity of being heard.

(2)

The Revisional Authority shall, along with its order under sub-section (1) of section 108, issue a summary of the order in FORM GST APL-04 clearly indicating the final amount of demand confirmed.]

110.

Appeal to the Appellate Tribunal.

(1)

An appeal to the Appellate Tribunal under sub-section (1) of section 112 shall be filed along with the relevant documents either electronically or otherwise as may be notified by the Registrar, in FORM GST APL-05, on the common portal and a provisional acknowledgment shall be issued to the appellant immediately.

(2)

A memorandum of cross-objections to the Appellate Tribunal under sub-section (5) of section 112 shall be filed either electronically or otherwise as may be notified by the Registrar, in FORM GST APL-06.

(3)

The appeal and the memorandum of cross objections shall be signed in the manner specified in rule 26.

(4)

A certified copy of the decision or order appealed against along with fees as specified in sub-rule (5) shall be submitted to the Registrar within seven days of the filing of the appeal under sub-rule (1) and a final acknowledgment, indicating the appeal number shall be issued thereafter in FORM GST APL-02 by the Registrar:

Provided that where the certified copy of the decision or order is submitted within seven days from the date of filing the FORM GST APL-05, the date of filing of the appeal shall be the date of the issue of the provisional acknowledgment and where the said copy is submitted after seven days, the date of filing of the appeal shall be the date of the submission of such copy.

Explanation. - For the purposes of this rule, the appeal shall be treated as filed only when the final acknowledgment indicating the appeal number is issued.

(5)

The fees for filing of appeal or restoration of appeal shall be one thousand rupees for every one lakh rupees of tax or input tax credit involved or the difference in tax or input tax credit involved or the amount of fine, fee or penalty determined in the order appealed against, subject to a maximum of twenty five thousand rupees.

(6)

There shall be no fee for application made before the Appellate Tribunal for rectification of errors referred to in sub-section (10) of section 112.

111.

Application to the Appellate Tribunal.

(1)

An application to the Appellate Tribunal under sub-section (3) of section 112 shall be made electronically or otherwise, in FORM GST APL-07, along with the relevant documents on the common portal.

(2)

A certified copy of the decision or order appealed against shall be submitted within seven days of filing the application under sub-rule (1) and an appeal number shall be generated by the Registrar.

112.

Production of additional evidence before the Appellate Authority or the Appellate Tribunal.

(1)

The appellant shall not be allowed to produce before the Appellate Authority or the Appellate Tribunal any evidence,

whether oral or documentary, other than the evidence produced by him during the course of the proceedings before the adjudicating authority or, as the case may be, the Appellate Authority except in the following circumstances, namely:-

(a)

where the adjudicating authority or, as the case may be, the Appellate Authority has refused to admit evidence which ought to have been admitted; or

(b)

where the appellant was prevented by sufficient cause from producing the evidence which he was called upon to produce by the adjudicating authority or, as the case may be, the Appellate Authority; or

(c)

where the appellant was prevented by sufficient cause from producing before the adjudicating authority or, as the case may be, the Appellate Authority any evidence which is relevant to any ground of appeal; or

(d)

where the adjudicating authority or, as the case may be, the Appellate Authority has made the order appealed against without giving sufficient opportunity to the appellant to adduce evidence relevant to any ground of appeal.

(2)

No evidence shall be admitted under sub-rule (1) unless the Appellate Authority or the Appellate Tribunal records in writing the reasons for its admission.

(3)

The Appellate Authority or the Appellate Tribunal shall not take any evidence produced under sub-rule (1) unless the adjudicating authority or an officer authorised in this behalf by the said authority has been allowed a reasonable opportunity -

(a)

to examine the evidence or document or to cross-examine any witness produced by the appellant; or

(b)

to produce any evidence or any witness in rebuttal of the evidence produced by the appellant under sub-rule (1).

(4)

Nothing contained in this rule shall affect the power of the Appellate Authority or the Appellate Tribunal to direct the production of any document, or the examination of any witness, to enable it to dispose of the appeal.

113.

Order of Appellate Authority or Appellate Tribunal.

(1)

The Appellate Authority shall, along with its order under sub-section (11) of section 107, issue a summary of the order in FORM GST APL-04 clearly indicating the final amount of demand confirmed.

(2)

The jurisdictional officer shall issue a statement in FORM GST APL-04 clearly indicating the final amount of demand confirmed by the Appellate Tribunal.

114.

Appeal to the High Court.

(1)

An appeal to the High Court under sub-section (1) of section 117 shall be filed in FORM GST APL-08.

(2)

The grounds of appeal and the form of verification as contained in FORM GST APL-08 shall be signed in the manner specified in rule 26.

115.

Demand confirmed by the Court.

- The jurisdictional officer shall issue a statement in FORM GST APL-04 clearly indicating the final amount of demand confirmed by the High Court or, as the case may be, the Supreme Court.

116.

Disqualification for misconduct of an authorised representative.

- Where an authorised representative, other than those referred to in clause (b) or clause (c) of sub-section (2) of section 116 is found, upon an enquiry into the matter, guilty of misconduct in connection with any proceedings under the Act, the

Commissioner may, after providing him an opportunity of being heard, disqualify him from appearing as an authorised representative.

[Chapter XIV]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Transitional Provisions

117.

Tax or duty credit carried forward under any existing law or on goods held in stock on the appointed day.

(1)

Every registered person entitled to take credit of input tax under section 140 shall, within ninety days of the appointed day, submit a declaration electronically in FORM GST TRAN-1, duly signed, on the common portal specifying therein, separately, the amount of input tax credit [of eligible duties and taxes, as defined in Explanation 2 to section 140,]

[Inserted by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

to which he is entitled under the provisions of the said section:

Provided that the Commissioner may, on the recommendations of the Council, extend the period of ninety days by a further period not exceeding ninety days.

Provided further that where the inputs have been received from an Export Oriented Unit or a unit located in Electronic Hardware Technology Park, the credit shall be allowed to the extent as provided in sub-rule (7) of rule 3 of the CENVAT Credit Rules, 2004.

(1A)

[Notwithstanding anything contained in sub-rule (1), the Commissioner may, on the recommendations of the Council, extend the date for submitting the declaration electronically in FORM GST TRAN-1 by a further period not beyond [31st March, 2020]

[Inserted by Notification No. G.S.R. 859(E), dated 10.9.2018 (w.e.f. 19.6.2017).]

, in respect of registered persons who could not submit the said declaration by the due date on account of technical difficulties on the common portal and in respect of whom the Council has made a recommendation for such extension.]

(2)

Every declaration under sub-rule (1) shall-

(a)

in the case of a claim under sub-section (2) of section 140, specify separately the following particulars in respect of every item of capital goods as on the appointed day-

(i)

the amount of tax or duty availed or utilized by way of input tax credit under each of the existing laws till the appointed day; and

(ii)

the amount of tax or duty yet to be availed or utilized by way of input tax credit under each of the existing laws till the appointed day;

(b)

in the case of a claim under sub-section (3) or clause (b) of sub-section (4) or sub-section (6) or sub-section (8) of section 140, specify separately the details of stock held on the appointed day;

(c)

in the case of a claim under sub-section (5) of section 140, furnish the following details, namely:-

(i)

the name of the supplier, serial number and date of issue of the invoice by the supplier or any document on the basis of which credit of input tax was admissible under the existing law;

(ii)

the description and value of the goods or services;

(iii)

the quantity in case of goods and the unit or unit quantity code thereof;

(iv)

the amount of eligible taxes and duties or, as the case may be, the value added tax [or entry tax] charged by the supplier in respect of the goods or services; and

(v)

the date on which the receipt of goods or services is entered in the books of account of the recipient.

(3)

The amount of credit specified in the application in FORM GST TRAN-1 shall be credited to the electronic credit ledger of the applicant maintained in FORM GST PMT-2 on the common portal.

(4)

(a)

(i)

A registered person who was not registered under the existing law shall, in accordance with the proviso to sub-section (3) of section 140, be allowed to avail of input tax credit on goods (on which the duty of central excise or, as the case may be, additional duties of customs under sub-section (1) of section 3 of the Customs Tariff Act, 1975, is leviable) held in stock on the appointed day in respect of which he is not in possession of any document evidencing payment of central excise duty.

(ii)

The input tax credit referred to in sub-clause (i) shall be allowed at the rate of sixty percent on such goods which attract central tax at the rate of nine percent or more and forty percent for other goods of the central tax applicable on supply of such goods after the appointed date and shall be credited after the central tax payable on such supply has been paid:

Provided that where integrated tax is paid on such goods, the amount of credit shall be allowed at the rate of thirty percent and twenty percent respectively of the said tax;

(iii)

The scheme shall be available for six tax periods from the appointed date.

(b)

The credit of central tax shall be availed subject to satisfying the following conditions, namely:-

(i)

such goods were not unconditionally exempt from the whole of the duty of excise specified in the First Schedule to the Central Excise Tariff Act, 1985 or were not nil rated in the said Schedule;

(ii)

the document for procurement of such goods is available with the registered person;

(iii)

[The registered person availing of this scheme and having furnished the details of stock held by him in accordance with the provisions of clause (b) of sub-rule (2), submits a statement in FORM GST TRAN 2 by 31st March 2018, or within such period as extended by the Commissioner, on the recommendations of the Council, for each of the six tax periods during which the scheme is in operation indicating therein, the details of supplies of such goods effected during the tax period;]

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

[Provided that the registered persons filing the declaration in FORM GST TRAN-1 in accordance with subrule (1A), may submit the statement in FORM GST TRAN-2 by [30th April, 2020]

[Inserted by Notification No. G.S.R. 859(E), dated 10.9.2018 (w.e.f. 19.6.2017).]

.]

(iv)

the amount of credit allowed shall be credited to the electronic credit ledger of the applicant maintained in FORM GST PMT-2 on the common portal; and

(v)

the stock of goods on which the credit is availed is so stored that it can be easily identified by the registered person.

118.

Declaration to be made under clause (c) of sub-section (11) of section 142.

- Every person to whom the provision of clause (c) of sub-section (11) of section 142 applies, shall within [the period specified in Rule 117 or such further period as extended by the Commissioner]

[Substituted 'a period of ninety days of the appointed day' by Notification No. G.S.R. 1214(E), dated 29.9.2017 (w.e.f.

19.6.2017).]

, submit a declaration electronically in FORM GST TRAN-1 furnishing the proportion of supply on which Value Added Tax or service tax has been paid before the appointed day but the supply is made after the appointed day, and the Input Tax Credit admissible thereon.

119.

Declaration of stock held by a principal and [Job-worker]

[Substituted 'agent' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

- Every person to whom the provisions of section 141 apply shall, within [the period specified in Rule 117 or such further period as extended by the Commissioner]

[Substituted 'ninety days of the appointed day' by Notification No. G.S.R. 1214(E), dated 29.9.2017 (w.e.f. 19.6.2017).]

, submit a declaration electronically in FORM GST TRAN-1, specifying therein, the stock of the inputs, semi-finished goods or finished goods, as applicable, held by him on the appointed day.

120.

Details of goods sent on approval basis.

- Every person having sent goods on approval under the existing law and to whom sub-section (12) of section 142 applies shall, within [the period specified in Rule 117 or such further period as extended by the Commissioner]

[Substituted 'ninety days of the appointed day' by Notification No. G.S.R. 1214(E), dated 29.9.2017 (w.e.f. 19.6.2017).]

, submit details of such goods sent on approval in FORM GST TRAN-1.

120A.

[[Revision of declaration in From GST TRAN-1.]

[Inserted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

- Every registered person who has submitted a declaration electronically in FORM GST TRAN-1 within the time period specified in rule 117, rule 118, rule 119 and rule 120 may revise such declaration once and submit the revised declaration in FORM GST TRAN-1 electronically on the common portal within the time period specified in the said rules or such further period as may be extended by the Commissioner in this behalf.]

121.

Recovery of credit wrongly availed.

- The amount credited under sub-rule (3) of rule 117 may be verified and proceedings under section 73 or, as the case may be, section 74 shall be initiated in respect of any credit wrongly availed, whether wholly or partly.

[Chapter XV]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

Anti-Profitteering

122.

Constitution of the Authority.

- The Authority shall consist of,-

(a)

a Chairman who holds or has held a post equivalent in rank to a Secretary to the Government of India; and

(b)

four Technical Members who are or have been Commissioners of State tax or central tax [for at least one year]

[Inserted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

or have held an equivalent post under the existing law, to be nominated by the Council.

123.

Constitution of the Standing Committee and Screening Committees.

(1)

The Council may constitute a Standing Committee on Anti-profitteering which shall consist of such officers of the State Government and Central Government as may be nominated by it.

(2)

A State level Screening Committee shall be constituted in each State by the State Governments which shall consist of-

(a)

one officer of the State Government, to be nominated by the Commissioner, and

(b)

one officer of the Central Government, to be nominated by the Chief Commissioner.

124.

Appointment, salary, allowances and other terms and conditions of service of the Chairman and Members of the Authority.

(1)

The Chairman and Members of the Authority shall be appointed by the Central Government on the recommendations of a Selection Committee to be constituted for the purpose by the Council.

(2)

The Chairman shall be paid a monthly salary of Rs. 2,25,000 (fixed) and other allowances and benefits as are admissible to a Central Government officer holding posts carrying the same pay:

Provided that where a retired officer is selected as a Chairman, he shall be paid a monthly salary of Rs. 2,25,000 reduced by the amount of pension.

(3)

[The Technical Member shall be paid a monthly salary and other allowances and benefits as are admissible to him when holding an equivalent Group 'A' post in the Government of India:

Provided that where a retired officer is selected as a Technical Member, he shall be paid a monthly salary equal to his last drawn salary reduced by the amount of pension in accordance with the recommendations of the Seventh Pay Commission, as accepted by the Central Government.]

[Substituted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

(4)

The Chairman shall hold office for a term of two years from the date on which he enters upon his office, or until he attains the age of sixty- five years, whichever is earlier and shall be eligible for reappointment:

Provided that [a]

[Inserted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f.19.6.2017).]

person shall not be selected as the Chairman, if he has attained the age of sixty-two years.

[Provided further that the Central Government with the approval of the Chairperson of the Council may terminate the appointment of the Chairman at any time.]

[Substituted by Notification No. G.S.R. 1411(E), dated 15.11.2017 (w.e.f. 19.6.2017).]

(5)

The Technical Member of the Authority shall hold office for a term of two years from the date on which he enters upon his office, or until he attains the age of sixty-five years, whichever is earlier and shall be eligible for reappointment:

Provided that [a]

[Inserted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f. 19.6.2017).]

person shall not be selected as a Technical Member if he has attained the age of sixty-two years.

[Provided further that the Central Government with the approval of the Chairperson of the Council may terminate the appointment of the Technical Member at any time.]

[Substituted by Notification No. G.S.R. 1411(E), dated 15.11.2017 (w.e.f. 19.6.2017).]

125.

[Secretary to the Authority.

[Substituted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f. 19.6.2017).]

- An officer not below the rank of Additional Commissioner (working in the [Directorate General of Anti-profiteering]) shall be the Secretary to the Authority.]

126.

Power to determine the methodology and procedure.

- The Authority may determine the methodology and procedure for determination as to whether the reduction in the rate of tax on the supply of goods or services or the benefit of input tax credit has been passed on by the registered person to the recipient by way of commensurate reduction in prices.

127.

Duties of the Authority.

- It shall be the duty of the Authority,-

(i)

to determine whether any reduction in the rate of tax on any supply of goods or services or the benefit of input tax credit has been passed on to the recipient by way of commensurate reduction in prices;

(ii)

to identify the registered person who has not passed on the benefit of reduction in the rate of tax on supply of goods or services or the benefit of input tax credit to the recipient by way of commensurate reduction in prices;

(iii)

to order,

(a)

reduction in prices;

(b)

return to the recipient, an amount equivalent to the amount not passed on by way of commensurate reduction in prices along with interest at the rate of eighteen percent from the date of collection of the higher amount till the date of the return of such amount or recovery of the amount not returned, as the case may be, in case the eligible person does not claim return of the amount or is not identifiable, and depositing the same in the Fund referred to in section 57;

(c)

imposition of penalty as specified in the Act; and

(d)

cancellation of registration under the Act.

(iv)

[to furnish a performance report to the Council by the tenth [day]

[Inserted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

of the close of each quarter.]

128.

Examination of application by the Standing Committee and Screening Committee.

(1)

The Standing Committee shall, within a period of two months from the date of the receipt of a written application, [or within such extended period not exceeding a further period of one month for reasons to be recorded in writing as may be allowed by the Authority,]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

in such form and manner as may be specified by it, from an interested party or from a Commissioner or any other person, examine the accuracy and adequacy of the evidence provided in the application to determine whether there is prima-facie evidence to support the claim of the applicant that the benefit of reduction in the rate of tax on any supply of goods or services or the benefit of input tax credit has not been passed on to the recipient by way of commensurate reduction in prices.

(2)

All applications from interested parties on issues of local nature [or those forwarded by the Standing Committee]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

shall first be examined by the State level Screening Committee and the Screening Committee shall, [within two months from the date of receipt of a written application, or within such extended period not exceeding a further period of one month for reasons to be recorded in writing as may be allowed by the Authority,]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

upon being satisfied that the supplier has contravened the provisions of section 171, forward the application with its recommendations to the Standing Committee for further action.

129.

Initiation and conduct of proceedings.

(1)

Where the Standing Committee is satisfied that there is a prima facie evidence to show that the supplier has not passed on the benefit of reduction in the rate of tax on the supply of goods or services or the benefit of input tax credit to the

recipient by way of commensurate reduction in prices, it shall refer the matter to the [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
for a detailed investigation.

(2)

The [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
shall conduct investigation and collect evidence necessary to determine whether the benefit of reduction in the rate of tax on any supply of goods or services or the benefit of input tax credit has been passed on to the recipient by way of commensurate reduction in prices.

(3)

The [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
shall, before initiation of the investigation, issue a notice to the interested parties containing, inter alia, information on the following, namely:-

(a)

the description of the goods or services in respect of which the proceedings have been initiated;

(b)

summary of the statement of facts on which the allegations are based; and

(c)

the time limit allowed to the interested parties and other persons who may have information related to the proceedings for furnishing their reply.

(4)

The [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
may also issue notices to such other persons as deemed fit for a fair enquiry into the matter.

(5)

The [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
shall make available the evidence presented to it by one interested party to the other interested parties, participating in the proceedings.

(6)

The [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
shall complete the investigation within a period of [six]

[Substituted 'three' by Notification No. G.S.R. 457(E), dated 28.6.2019.]
months of the receipt of the reference from the Standing Committee or within such extended period not exceeding a further period of three months for reasons to be recorded in writing [as may be allowed by the Authority]

[Substituted 'as allowed by the Standing Committee' by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f.19.6.2017).]
and, upon completion of the investigation, furnish to the Authority, a report of its findings along with the relevant records.

130.

Confidentiality of information.

(1)

Notwithstanding anything contained in sub-rules (3) and (5) of rule 129 and sub-rule (2) of rule 133, the provisions of section 11 of the Right to Information Act, 2005 (

22 of 2005

), shall apply mutatis mutandis to the disclosure of any information which is provided on a confidential basis.

(2)

The [Directorate General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]

may require the parties providing information on confidential basis to furnish non-confidential summary thereof and if, in the opinion of the party providing such information, the said information cannot be summarised, such party may submit to the [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
a statement of reasons as to why summarisation is not possible.

131.

Cooperation with other agencies or statutory authorities.

- Where the [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]
deems fit, he may seek opinion of any other agency or statutory authorities in the discharge of his duties.

132.

Power to summon persons to give evidence and produce documents.

(1)

The [Authority,]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]

, or an officer authorised by him in this behalf, shall be deemed to be the proper officer to exercise the power to summon any person whose attendance he considers necessary either to give evidence or to produce a document or any other thing under section 70 and shall have power in any inquiry in the same manner, as provided in the case of a civil court under the provisions of the Code of Civil Procedure, 1908 (5 of 1908).

(2)

Every such inquiry referred to in sub-rule (1) shall be deemed to be a judicial proceedings within the meaning of sections 193 and 228 of the Indian Penal Code (45 of 1860).

133.

Order of the Authority.

(1)

The Authority shall, within a period of [six]

[Substituted 'three' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

months from the date of the receipt of the report from the [Director General of Anti-profiteering]

[Substituted 'Director General of Safeguards' by Notification No. G.S.R. 611(E), dated 6.7.2018 (w.e.f. 19.6.2017).]

determine whether a registered person has passed on the benefit of the reduction in the rate of tax on the supply of goods or services or the benefit of input tax credit to the recipient by way of commensurate reduction in prices.

(2)

An opportunity of hearing shall be granted to the interested parties by the Authority where any request is received in writing from such interested parties.

(2A)

[The Authority may seek the clarification, if any, from the Director General of Anti Profiteering on the report submitted under sub-rule (6) of rule 129 during the process of determination under sub-rule (1).]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

(3)

[Where the Authority determines that a registered person has not passed on the benefit of the reduction in the rate of tax on the supply of goods or services or the benefit of input tax credit to the recipient by way of commensurate reduction in prices, the Authority may order-

(a)

reduction in prices;

(b)

return to the recipient, an amount equivalent to the amount not passed on by way of commensurate reduction in prices along with interest at the rate of eighteen per cent. from the date of collection of the higher amount till the date of the return of such amount or recovery of the amount including interest not returned, as the case may be;

(c)

the deposit of an amount equivalent to fifty per cent. of the amount determined under the above clause [along with interest at the rate of eighteen per cent. from the date of collection of the higher amount till the date of deposit of such amount] in the Fund constituted under section 57 and the remaining fifty per cent. of the amount in the Fund constituted under section 57 of the Goods and Services Tax Act, 2017 of the concerned State, where the eligible person does not claim return of the amount or is not identifiable;

(d)

imposition of penalty as specified under the Act; and

(e)

cancellation of registration under the Act.

Explanation. - For the purpose of this sub-rule, the expression, "concerned State" means the State [or Union Territory] [Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

in respect of which the Authority passes an order.]

[Substituted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

(4)

[If the report of the [Directorate General of Anti-profiteering]

[Inserted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f. 19.6.2017).]

referred to in sub-rule (6) of rule 129 recommends that there is contravention or even non-contravention of the provisions of section 171 or these rules, but the Authority is of the opinion that further investigation or inquiry is called for in the matter, it may, for reasons to be recorded in writing, refer the matter to the Director General of Safeguards to cause further investigation or inquiry in accordance with the provisions of the Act and these rules.]

(5)

[(a) Notwithstanding anything contained in sub-rule (4), where upon receipt of the report of the Director General of Anti-profiteering referred to in sub-rule (6) of rule 129, the Authority has reasons to believe that there has been contravention of the provisions of section 171 in respect of goods or services or both other than those covered in the said report, it may, for reasons to be recorded in writing, within the time limit specified in sub-rule (1), direct the Director General of Anti-profiteering to cause investigation or inquiry with regard to such other goods or services or both, in accordance with the provisions of the Act and these rules.

(b)

The investigation or enquiry under clause (a) shall be deemed to be a new investigation or enquiry and all the provisions of rule 129 shall mutatis mutandis apply to such investigation or enquiry.]

134.

[Decision to be taken by the majority.

[Substituted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f. 19.6.2017).]

(1)

A minimum of three members of the Authority shall constitute quorum at its meetings.

(2)

If the Members of the Authority differ in their opinion on any point, the point shall be decided according to the opinion of the majority of the members present and voting, and in the event of equality of votes, the Chairman shall have the second or casting vote.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

135.

Compliance by the registered person.

- Any order passed by the Authority under these rules shall be immediately complied with by the registered person failing which action shall be initiated to recover the amount in accordance with the provisions of the Integrated Goods and Services Tax Act or the Central Goods and Services Tax Act or the Union territory Goods and Services Tax Act or the State Goods and Services Tax Act of the respective States, as the case may be.

136.

Monitoring of the order.

- The Authority may require any authority of central tax, State tax or Union territory tax to monitor the implementation of the order passed by it.

137.

Tenure of Authority.

- The Authority shall cease to exist after the expiry of [five years]

[Substituted 'four years' by Notification No. G.S.R. 842(E), dated 01.12.2021 (with effect from the 30th day of November 2021).]

from the date on which the Chairman enters upon his office unless the Council recommends otherwise.

Explanation. - For the purposes of this Chapter,

(a)

"Authority" means the National Anti-profiteering Authority constituted under rule 122;

(b)

"Committee" means the Standing Committee on Anti-profiteering constituted by the Council in terms of sub-rule (1) of rule 123 of these rules;

(c)

"interested party" includes

a. suppliers of goods or services under the proceedings; and

b. recipients of goods or services under the proceedings;

[c. any other person alleging, under sub-rule (1) of rule 128, that a registered person has not passed on the benefit of reduction in the rate of tax on any supply of goods or services or the benefit of input tax credit to the recipient by way of commensurate reduction in prices.]

[Inserted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f. 19.6.2017).]

(d)

"Screening Committee" means the State level Screening Committee constituted in terms of sub-rule (2) of rule 123 of these rules.

[Chapter XVI]

[Inserted 'Chapter IV, Chapter V, Chapter VI, Chapter VII, Chapter VIII, Chapter IX, Chapter X, Chapter XI, Chapter XII, Chapter XIII, Chapter XIV, Chapter XV, Chapter XVI' by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

E-way Rules

138.

[Information to be furnished prior to commencement of movement of goods and generation of e-way bill.

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

(1)

Every registered person who causes movement of goods of consignment value exceeding fifty thousand rupees-

(i)

in relation to a supply; or

(ii)

for reasons other than supply; or

(iii)

due to inward supply from an unregistered person,

shall, before commencement of such movement, furnish information relating to the said goods as specified in Part A of FORM GST EWB-01, electronically, on the common portal along with such other information as may be required on the common portal and a unique number will be generated on the said portal:

Provided that the transporter, on an authorization received from the registered person, may furnish information in Part A of FORM GST EWB-01, electronically, on the common portal along with such other information as may be required on the common portal and a unique number will be generated on the said portal:

Provided further that where the goods to be transported are supplied through an e-commerce operator or a courier agency, on an authorization received from the consignor, the information in Part A of FORM GST EWB-01 may be furnished by such e-commerce operator or courier agency and a unique number will be generated on the said portal:

Provided also that where goods are sent by a principal located in one State or Union Territory to a job worker located in any other State or Union Territory, the e-way bill shall be generated either by the principal or the job worker, if registered, irrespective of the value of the consignment:

Provided also that where handicraft goods are transported from one State or Union Territory to another State or Union

Territory by a person who has been exempted from the requirement of obtaining registration under clauses (i) and (ii) of section 24, the e-way bill shall be generated by the said person irrespective of the value of the consignment.

[Explanation 1. - For the purposes of this rule, the expression "handicraft goods" has the meaning as assigned to it in the Government of India, Ministry of Finance, notification No. 56/2018-Central Tax, dated the 23rd October, 2018, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1056 (E), dated the 23rd October, 2018 as amended from time to time.]

Explanation 2. - For the purposes of this rule, the consignment value of goods shall be the value, determined in accordance with the provisions of section 15, declared in an invoice, a bill of supply or a delivery challan, as the case may be, issued in respect of the said consignment and also includes the central tax, State or Union Territory tax, integrated tax and cess charged, if any, in the document and shall exclude the value of exempt supply of goods where the invoice is issued in respect of both exempt and taxable supply of goods.

(2)

Where the goods are transported by the registered person as a consignor or the recipient of supply as the consignee, whether in his own conveyance or a hired one or a public conveyance, by road, the said person shall generate the e-way bill in FORM GST EWB-01 electronically on the common portal after furnishing information in Part B of FORM GST EWB-01.

(2A)

Where the goods are transported by railways or by air or vessel, the e-way bill shall be generated by the registered person, being the supplier or the recipient, who shall, either before or after the commencement of movement, furnish, on the common portal, the information in Part B of FORM GST EWB-01:

Provided that where the goods are transported by railways, the railways shall not deliver the goods unless the e-way bill required under these rules is produced at the time of delivery.

(3)

Where the e-way bill is not generated under sub-rule (2) and the goods are handed over to a transporter for transportation by road, the registered person shall furnish the information relating to the transporter on the common portal and the e-way bill shall be generated by the transporter on the said portal on the basis of the information furnished by the registered person in Part A of FORM GST EWB-01:

Provided that the registered person or, the transporter may, at his option, generate and carry the e-way bill even if the value of the consignment is less than fifty thousand rupees:

Provided further that where the movement is caused by an unregistered person either in his own conveyance or a hired one or through a transporter, he or the transporter may, at their option, generate the e-way bill in FORM GST EWB-01 on the common portal in the manner specified in this rule:

Provided also that where the goods are transported for a distance of upto fifty kilometers within the State or Union Territory from the place of business of the consignor to the place of business of the transporter for further transportation, the supplier or the recipient, or as the case may be, the transporter may not furnish the details of conveyance in Part B of FORM GST EWB-01.

Explanation 1. - For the purposes of this sub-rule, where the goods are supplied by an unregistered supplier to a recipient who is registered, the movement shall be said to be caused by such recipient if the recipient is known at the time of commencement of the movement of goods.

Explanation 2. - The e-way bill shall not be valid for movement of goods by road unless the information in Part-B of FORM GST EWB-01 has been furnished except in the case of movements covered under the third proviso to sub-rule (3) and the proviso to sub-rule (5).

(4)

Upon generation of the e-way bill on the common portal, a unique e-way bill number (EBN) shall be made available to the supplier, the recipient and the transporter on the common portal.

(5)

Where the goods are transferred from one conveyance to another, the consignor or the recipient, who has provided information in Part A of the FORM GST EWB-01, or the transporter shall, before such transfer and further movement of goods, update the details of conveyance in the e-way bill on the common portal in Part B of FORM GST EWB-01:

Provided that where the goods are transported for a distance of upto fifty kilometers within the State or Union Territory from the place of business of the transporter finally to the place of business of the consignee, the details of the

conveyance may not be updated in the e-way bill.

(5A)

The consignor or the recipient, who has furnished the information in Part A of FORM GST EWB-01, or the transporter, may assign the e-way bill number to another registered or enrolled transporter for updating the information in Part B of FORM GST EWB-01 for further movement of the consignment:

Provided that after the details of the conveyance have been updated by the transporter in Part B of FORM GST EWB-01, the consignor or recipient, as the case may be, who has furnished the information in Part A of FORM GST EWB-01 shall not be allowed to assign the e-way bill number to another transporter.

(6)

After e-way bill has been generated in accordance with the provisions of sub-rule (1), where multiple consignments are intended to be transported in one conveyance, the transporter may indicate the serial number of e-way bills generated in respect of each such consignment electronically on the common portal and a consolidated e-way bill in FORM GST EWB-02 may be generated by him on the said common portal prior to the movement of goods.

(7)

Where the consignor or the consignee has not generated the e-way bill in FORM GST EWB-01 and the aggregate of the consignment value of goods carried in the conveyance is more than fifty thousand rupees, the transporter, except in case of transportation of goods by railways, air and vessel, shall, in respect of inter-State supply, generate the e-way bill in FORM GST EWB-01 on the basis of invoice or bill of supply or delivery challan, as the case may be, and may also generate a consolidated e-way bill in FORM GST EWB-02 on the common portal prior to the movement of goods:

Provided that where the goods to be transported are supplied through an e-commerce operator or a courier agency, the information in Part A of FORM GST EWB-01 may be furnished by such e-commerce operator or courier agency.

(8)

The information furnished in Part A of FORM GST EWB-01 shall be made available to the registered supplier on the common portal who may utilize the same for furnishing the details in FORM GSTR-1:

Provided that when the information has been furnished by an unregistered supplier or an unregistered recipient in FORM GST EWB-01, he shall be informed electronically, if the mobile number or the e-mail is available.

(9)

Where an e-way bill has been generated under this rule, but goods are either not transported or are not transported as per the details furnished in the e-way bill, the e-way bill may be cancelled electronically on the common portal within twenty four hours of generation of the e-way bill:

Provided that an e-way bill cannot be cancelled if it has been verified in transit in accordance with the provisions of rule 138B:

Provided further that the unique number generated under sub-rule (1) shall be valid for a period of fifteen days for updation of Part B of FORM GST EWB-01.

(10)

An e-way bill or a consolidated e-way bill generated under this rule shall be valid for the period as mentioned in column (3) of the Table below from the relevant date, for the distance, within the country, the goods have to be transported, as mentioned in column (2) of the said Table:-

Sl. No.

Distance

Validity period

(1)

(2)

(3)

1.

Upto[200km.]

[Substituted '100km.' by Notification No. G.S.R. 786(E), dated 22.12.2020 (with effect from the 1st day of January, 2021).]

One day in case other than Over Dimensional Cargo

2.

For every[200km.]

[Substituted '100km.' by Notification No. G.S.R. 786(E), dated 22.12.2020 (with effect from the 1st day of January, 2021).]

or part thereof thereafter

One additional day in case other than Over Dimensional Cargo

3.

Upto 20 km

One day in case other than Over Dimensional Cargo

4.

For every 20 km or part thereof thereafter

One additional day in case other than Over Dimensional Cargo[or multimodal shipment in which at least one leg involves transport by ship]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

Provided that the Commissioner may, on the recommendations of the Council, by notification, extend the validity period of an e-way bill for certain categories of goods as may be specified therein:

Provided further that where, under circumstances of an exceptional nature, including trans-shipment, the goods cannot be transported within the validity period of the e-way bill, the transporter may extend the validity period after updating the details in Part B of FORM GST EWB-01, if required.

[Provided also that the validity of the e-way bill may be extended within eight hours from the time of its expiry.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

Explanation 1. - For the purposes of this rule, the "relevant date" shall mean the date on which the e-way bill has been generated and the period of validity shall be counted from the time at which the e-way bill has been generated and each day shall be counted as the period expiring at midnight of the day immediately following the date of generation of e-way bill.

Explanation 2. - For the purposes of this rule, the expression "Over Dimensional Cargo" shall mean a cargo carried as a single indivisible unit and which exceeds the dimensional limits prescribed in rule 93 of the Central Motor Vehicle Rules, 1989, made under the Motor Vehicles Act, 1988 (59 of 1988

).

(11)

The details of the e-way bill generated under this rule shall be made available to the-

(a)

supplier, if registered, where the information in Part A of FORM GST EWB-01 has been furnished by the recipient or the transporter; or

(b)

recipient, if registered, where the information in Part A of FORM GST EWB-01 has been furnished by the supplier or the transporter, on the common portal, and the supplier or the recipient, as the case may be, shall communicate his acceptance or rejection of the consignment covered by the e-way bill.

(12)

Where the person to whom the information specified in sub-rule (11) has been made available does not communicate his acceptance or rejection within seventy two hours of the details being made available to him on the common portal, or the time of delivery of goods whichever is earlier, it shall be deemed that he has accepted the said details.

(13)

The e-way bill generated under this rule or under rule 138 of the Goods and Services Tax Rules of any State or Union Territory shall be valid in every State and Union Territory.

(14)

Notwithstanding anything contained in this rule, no e-way bill is required to be generated-

(a)

where the goods being transported are specified in Annexure;

(b)

where the goods are being transported by a non-motorised conveyance;

(c)

where the goods are being transported from the customs port, airport, air cargo complex and land customs station to an inland container depot or a container freight station for clearance by Customs;

(d)

in respect of movement of goods within such areas as are notified under clause (d) of sub-rule (14) of rule 138 of the State or Union Territory Goods and Services Tax Rules in that particular State or Union Territory;

(e)

where the goods, other than de-oiled cake, being transported, are specified in the Schedule appended to notification No. 2/2017- Central tax (Rate) dated the 28th June, 2017 published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 674 (E) dated the 28th June, 2017 as amended from time to time;

(f)

where the goods being transported are alcoholic liquor for human consumption, petroleum crude, high speed diesel, motor spirit (commonly known as petrol), natural gas or aviation turbine fuel;

(g)

where the supply of goods being transported is treated as no supply under Schedule III of the Act;

(h)

where the goods are being transported-

(i)

under customs bond from an inland container depot or a container freight station to a customs port, airport, air cargo complex and land customs station, or from one customs station or customs port to another customs station or customs port, or

(ii)

under customs supervision or under customs seal;

(i)

where the goods being transported are transit cargo from or to Nepal or Bhutan;

(j)

where the goods being transported are exempt from tax under notification No. 7/2017-Central Tax (Rate), dated 28th June 2017 published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 679(E) dated the 28th June, 2017 as amended from time to time and notification No. 26/2017- Central Tax (Rate), dated the 21st September, 2017 published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i), vide number G.S.R 1181(E) dated the 21st September, 2017 as amended from time to time;

(k)

any movement of goods caused by defence formation under Ministry of defence as a consignor or consignee;

(l)

where the consignor of goods is the Central Government, Government of any State or a local authority for transport of goods by rail;

(m)

where empty cargo containers are being transported; and

(n)

where the goods are being transported upto a distance of twenty kilometers from the place of the business of the consignor to a weighbridge for weighment or from the weighbridge back to the place of the business of the said consignor subject to the condition that the movement of goods is accompanied by a delivery challan issued in accordance with rule 55.

(o)

[where empty cylinders for packing of liquefied petroleum gas are being moved for reasons other than supply.]

[Inserted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

Explanation. - The facility of generation, cancellation, updation and assignment of e-way bill shall be made available through SMS to the supplier, recipient and the transporter, as the case may be.

Annexure

[(See rule 138 (14)]

S. No.

Description of Goods

(1)

(2)

1.

Liquefied petroleum gas for supply to household and non domestic exempted category (NDEC) customers

2.

Kerosene oil sold under PDS

3.

Postal baggage transported by Department of Posts

4.

Natural or cultured pearls and precious or semi-precious stones; precious metals and metals clad with precious metal (Chapter 71)

5.

Jewellery, goldsmiths and silversmiths wares and other articles (Chapter 71)

6.

Currency

7.

Used personal and household effects

8.

Coral, unworked (0508) and worked coral (9601)]

138A.

[Documents and devices to be carried by a person-in-charge of a conveyance.

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

(1)

The person in charge of a conveyance shall carry-

(a)

the invoice or bill of supply or delivery challan, as the case may be; and

(b)

a copy of the e-way bill in physical form or the e-way bill number in electronic form or mapped to a Radio Frequency Identification Device embedded on to the conveyance in such manner as may be notified by the Commissioner:

Provided that nothing contained in clause (b) of this sub-rule shall apply in case of movement of goods by rail or by air or vessel.

[Provided further that in case of imported goods, the person in charge of a conveyance shall also carry a copy of the bill of entry filed by the importer of such goods and shall indicate the number and date of the bill of entry in Part A of FORM GST EWB-01.]

(2)

[In case, invoice is issued in the manner prescribed under sub-rule (4) of rule 48, the Quick Reference (QR) code having an embedded Invoice Reference Number (IRN) in it, may be produced electronically, for verification by the proper officer in lieu of the physical copy of such tax invoice.]

[Substituted by Notification No. G.S.R. 603(E), dated 30.9.2020 (w.e.f. 19.6.2017).]

(3)

Where the registered person uploads the invoice under sub-rule (2), the information in Part A of FORM GST EWB-01 shall be auto-populated by the common portal on the basis of the information furnished in FORM GST INV-1.

(4)

The Commissioner may, by notification, require a class of transporters to obtain a unique Radio Frequency Identification Device and get the said device embedded on to the conveyance and map the e-way bill to the Radio Frequency Identification Device prior to the movement of goods.

(5)

Notwithstanding anything contained in clause (b) of sub-rule (1), where circumstances so warrant, the Commissioner may, by notification, require the person-in-charge of the conveyance to carry the following documents instead of the e-way bill

- (a)
tax invoice or bill of supply or bill of entry; or
- (b)
a delivery challan, where the goods are transported for reasons other than by way of supply.]

138B.

[Verification of documents and conveyances.

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

- (1)
The Commissioner or an officer empowered by him in this behalf may authorize the proper officer to intercept any conveyance to verify the e-way bill in physical or electronic form for all inter-State and intra-State movement of goods.

- (2)
The Commissioner shall get Radio Frequency Identification Device readers installed at places where the verification of movement of goods is required to be carried out and verification of movement of vehicles shall be done through such device readers where the e-way bill has been mapped with the said device.

- (3)
The physical verification of conveyances shall be carried out by the proper officer as authorised by the Commissioner or an officer empowered by him in this behalf:

Provided that on receipt of specific information on evasion of tax, physical verification of a specific conveyance can also be carried out by any other officer after obtaining necessary approval of the Commissioner or an officer authorised by him in this behalf.]

138C.

[Inspection and verification of goods.

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

- (1)
A summary report of every inspection of goods in transit shall be recorded online by the proper officer in Part A of FORM GST EWB-03 within twenty four hours of inspection and the final report in Part B of FORM GST EWB-03 shall be recorded within three days of such inspection.

[Provided that where the circumstances so warrant, the Commissioner, or any other officer authorised by him, may, on sufficient cause being shown, extend the time for recording of the final report in Part B of FORM EWB-03, for a further period not exceeding three days.

Explanation. - The period of twenty four hours or, as the case may be, three days shall be counted from the midnight of the date on which the vehicle was intercepted.]

- (2)
Where the physical verification of goods being transported on any conveyance has been done during transit at one place within the State or Union Territory or in any other State or Union Territory, no further physical verification of the said conveyance shall be carried out again in the State or Union Territory, unless a specific information relating to evasion of tax is made available subsequently.]

138D.

[Facility for uploading information regarding detention of vehicle.

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

- Where a vehicle has been intercepted and detained for a period exceeding thirty minutes, the transporter may upload the said information in FORM GST EWB-04 on the common portal.]

[Explanation. - For the purposes of this Chapter, the expressions 'transported by railways', 'transportation of goods by railways', 'transport of goods by rail' and 'movement of goods by rail' does not include cases where leasing of parcel space by Railways takes place.]

[Inserted by Notification No. G.S.R. 266(E), dated 23.3.2018 (w.e.f. 1.4. 2018).]

138E.

[Restriction on furnishing of information in PART A of FORM GST EWB-01.

[Inserted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

- Notwithstanding anything contained in sub-rule (1) of rule 138, no person (including a consignor, consignee, transporter, an e-commerce operator or a courier agency) shall be allowed to furnish the information in Part A of Form GST EWB-01 [in respect of any outward movement of goods of a registered person, who, -]

(a)

being a person paying tax under section 10, [or availing the benefit of notification of the Government of India, Ministry of Finance, Department of Revenue No. 02/2019- Central Tax (Rate), dated the 7th March, 2019, published in the Gazette of India, Extraordinary, Part II, Section 3, Sub-section (i) vide number G.S.R. 189, dated the 7th March, 2019.]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

has not furnished the [statement in FORM GST CMP-08]

[Substituted 'returns' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

for two consecutive [quarters]

[Substituted 'tax periods' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

; or

(b)

being a person other than a person specified in clause (a), has not furnished the returns for a consecutive period of [two tax periods]

[Substituted 'two months' by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

:

(c)

[being a person other than a person specified in clause (a), has not furnished the statement of outward supplies for any two months or quarters, as the case may be.]

[Inserted by Notification No. G.S.R. 954(E), dated 26.12.2019 (w.e.f. 19.6.2017).]

(d)

[being a person, whose registration has been suspended under the provisions of sub-rule (1) or sub-rule (2) or sub-rule (2A) of rule 21A.]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

Provided that the Commissioner may, [on receipt of an application from a registered person in FORM GST EWB-05.]

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

on sufficient cause being shown and for reasons to be recorded in writing, by order, [in FORM GST EWB-06]

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

allow furnishing of the said information in Part A of Form GST EWB 01, subject to such conditions and restrictions as may be specified by him:

Provided further that no order rejecting the request of such person to furnish the information in Part A of Form GST EWB 01 under the first proviso shall be passed without affording the said person a reasonable opportunity of being heard:

Provided also that the permission granted or rejected by the Commissioner of State tax or Commissioner of Union territory tax shall be deemed to be granted or, as the case may be, rejected by the Commissioner.

[Provided also that the said restriction shall not apply during the period from the 20th day of March, 2020 till the 15th day of October, 2020 in case where the return in Form GSTR-3B or the statement of outward supplies in Form GSTR-1 or the statement in Form GST CMP-08, as the case may be, has not been furnished for the period February, 2020 to August, 2020.]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Explanation. - For the purposes of this rule, the expression "Commissioner" shall mean the jurisdictional Commissioner in respect of the persons specified in clauses (a) and (b).]

[Form GST EWB-01]

[Substituted by Notification No. G.S.R. 204(E), dated 7.3.2018 (w.e.f. 19.6.2017).]

(See rule 138)

E-Way Bill

E-Way Bill No.

:

E-Way Bill date

:

Generator

:

Valid from

:

Valid until

:

Part-A

A.1

GSTIN of Supplier

A.2

Place of Dispatch

A.3

GSTIN of Recipient

A.4

Place of Delivery

A.5

Document Number

A.6

Document Date

A.7

Value of Goods

A.8

HSN Code

A.9

Reason for Transportation

Part-B

B.1

Vehicle Number for Road

B.2

Transport Document Number/Defence Vehicle No./Temporary Vehicle Registration No. Nepal or Bhutan Vehicle Registration No.

Notes. - 1. HSN Code in column A.8 shall be indicated at minimum two digit level for taxpayers having annual turnover upto five crore rupees in the preceding financial year and at four digit level for taxpayers having annual turnover above five crore rupees in the preceding financial year.

2. Document Number may be of Tax Invoice, Bill of Supply, Delivery Challan or Bill of Entry.

3. Transport Document number indicates Goods Receipt Number or Railway Receipt Number or Forwarding Note number or Parcel way bill number issued by railways or Airway Bill Number or Bill of Lading Number.

4. Place of Delivery shall indicate the PIN Code of place of delivery.

5. Place of dispatch shall indicate the PIN Code of place of dispatch.

6. Where the supplier or the recipient is not registered, then the letters "URP" are to be filled-in in column A.1 or, as the case may be, A.3.

7. Reason for Transportation shall be chosen from one of the following:-

Code

Description

1

Supply

2

Export or Import

3

Job Work

4

[SKD or CKD or supply in batches or lots"]

[Substituted 'SKD or CKD' by Notification No. G.S.R. 831(E), dated 4.9.2018 (19.6.2017).]

5

Recipient not known

6

Line Sales

7

Sales Return

8

Exhibition or fairs

9

For own use

10

Others

Form GST EWB-02

(See rule 138)

Consolidated E-Way Bill

Consolidated E-Way Bill No.

:

Consolidated E-Way Bill date

:

Generator

:

Vehicle Number

:

Number of E-Way Bills

E-Way Bill Number

FORM GST EWB-03

(See rule 138C)

Verification Report

Part A

Name of the Officer

Place of inspection

Time of inspection

Vehicle Number

E-Way Bill Number

Tax Invoice or Bill of Supply or Delivery Challan or Bill of Entry Date

Tax Invoice or Bill of Supply or Delivery Challan or Bill of Entry Number

Name of person in-charge of vehicle

Description of goods

Declared quantity of goods

Declared value of goods

Brief description of the discrepancy

Whether goods were detained?

If not, date and time of release of vehicle

Part B

Actual quantity of goods

Actual value of the Goods

Tax payable

Integrated

tax

Central tax

State or Union territory tax

Cess

Penalty payable

Integrated

tax

Central tax

State or Union territory tax

Cess

Details of Notice

Date

Number

Summary of

findings

FORM GST EWB-04

(See rule 138D)

Report of detention

E-Way Bill Number

Approximate Location of detention

Period of detention

Name of Officer in-charge

(if known)

Date

Time

[FORM GST EWB-05

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

]

[See rule 138 E]

Application for unblocking of the facility for
generation of E-Way Bill

{|

1

GSTIN

<Auto>

2

Legal Name

<Auto>

3

Trade Name

<Auto>

4

Address

<Auto>

|-

| {|

|-

| 5

| Facility of furnishing of information in

Part A ? of FORM GST EWB 01 (i.e. facility for generation of
E-Way Bill) blocked w.e.f.

| <Auto>

| -

| 6

| Reasons of unblocking of facility for
generation of E- Way Bill

| <User input>

| -

| (i)

|

|

| -

| (ii)

|

|

| -

| (iii)

|

|

| -

| 7

| Expected date for filing of returns for the
period under default

| <User input>

| -

|

|

|

| }

| -

| 8. Verification

| -

| I hereby solemnly affirm and declare that the information given
hereinabove is true and correct to the best of my knowledge and
belief and nothing has been concealed therefrom.

| -

| Signature of Authorised
Signatory

| -

| Name

| -

| Designation /Status

| -

| Date:

| -

| Place:

| }

[FORM GST EWB ? 06

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

]

[See rule 138 E]

Reference No.:

Date:

To

_____ GSTIN

_____ Name

_____ Address

Order for permitting / rejecting application

for unblocking of the facility for generation of E-Way Bill

Application ARN:

Date:

The facility for generation of E- Way Bill was

blocked in respect of the aforementioned registered person w.e.f.

----- in terms of rule 138E of the Central Goods and Services

Tax Rules, 2017.

I have carefully considered the facts of the

case and the application / submissions made by the aforementioned
registered person.

I hereby accept the application and order for

unblocking of the facility for generation of E-Way Bill on the
following grounds:

1.

2.

Please note that the system will block the

facility for generation of E-Way Bill after _____(date) if the

registered person continues to be defaulter in terms of rule 138E
of the Central Goods and Services Tax Rules, 2017.

OR

I have carefully considered the facts of the

case and the application / submissions made by the aforementioned
registered person.

I hereby reject the application for unblocking

the facility for generation of E-Way Bill on following grounds:

1.

2.

Signature:

Name:

Designation:

Jurisdiction:

Address:

Note: Separate document may be attached
for detailed order / reason(s).?.

FORM GST INV - 1

(See rule 138A)

Generation of Invoice Reference Number

IRN :

Date :

Details of Supplier

GSTIN

Legal Name

Trade name, if any

Address

Serial No. of Invoice

Date of Invoice
Details of Recipient (Billed to)
Details of Consignee (Shipped to)
GSTIN or UIN, if available
Name
Address
State (name and code)
Type of supply -
B to B supply
B to C supply
Attracts Reverse Charge
Attracts TCS
GSTIN of operator
Attracts TDS
GSTIN of TDS Authority
Export
Supplies made to SEZ
Deemed export
Sr. No.
Description of Goods
HSN
Qty.
Unit
Price (per unit)
Total value
Discount, if any
Taxable value
Central tax
State or Union territory tax
Integrated tax
Cess
Rate
Amt.
Rate
Amt.
Rate
Amt.
Rate
Amt.
Freight
Insurance
Packing and Forwarding Charges etc.
Total
Total Invoice Value (In figure)
Total Invoice Value (In Words)
Signature
Name of the Signatory
Designation or Status]
[Chapter - XVII]
[Inserted 'Chapter XVII, Chapter XVIII and Chapter XIX' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Inspection, Search and Seizure

139.

Inspection, search and seizure.

(1)

Where the proper officer not below the rank of a Joint Commissioner has reasons to believe that a place of business or any other place is to be visited for the purposes of inspection or search or, as the case may be, seizure in accordance with the provisions of section 67, he shall issue an authorisation in FORM GST INS-01 authorising any other officer subordinate to him to conduct the inspection or search or, as the case may be, seizure of goods, documents, books or things liable to confiscation.

(2)

Where any goods, documents, books or things are liable for seizure under sub-section (2) of section 67, the proper officer or an authorised officer shall make an order of seizure in FORM GST INS-02.

(3)

The proper officer or an authorised officer may entrust upon the owner or the custodian of goods, from whose custody such goods or things are seized, the custody of such goods or things for safe upkeep and the said person shall not remove, part with, or otherwise deal with the goods or things except with the previous permission of such officer.

(4)

Where it is not practicable to seize any such goods, the proper officer or the authorised officer may serve on the owner or the custodian of the goods, an order of prohibition in FORM GST INS-03 that he shall not remove, part with, or otherwise deal with the goods except with the previous permission of such officer.

(5)

The officer seizing the goods, documents, books or things shall prepare an inventory of such goods or documents or books or things containing, inter alia, description, quantity or unit, make, mark or model, where applicable, and get it signed by the person from whom such goods or documents or books or things are seized.

140.

Bond and security for release of seized goods.

(1)

The seized goods may be released on a provisional basis upon execution of a bond for the value of the goods in FORM GST INS-04 and furnishing of a security in the form of a bank guarantee equivalent to the amount of applicable tax, interest and penalty payable.

Explanation. - For the purposes of the rules under the provisions of this Chapter, the "applicable tax" shall include central tax and State tax or central tax and the Union territory tax, as the case may be and the cess, if any, payable under the Goods and Services Tax (Compensation to States) Act, 2017 (

15 of 2017

).

(2)

In case the person to whom the goods were released provisionally fails to produce the goods at the appointed date and place indicated by the proper officer, the security shall be encashed and adjusted against the tax, interest and penalty and fine, if any, payable in respect of such goods.

141.

Procedure in respect of seized goods.

(1)

Where the goods or things seized are of perishable or hazardous nature, and if the taxable person pays an amount equivalent to the market price of such goods or things or the amount of tax, interest and penalty that is or may become payable by the taxable person, whichever is lower, such goods or, as the case may be, things shall be released forthwith, by an order in FORM GST INS-05, on proof of payment.

(2)

Where the taxable person fails to pay the amount referred to in sub-rule (1) in respect of the said goods or things, the [proper officer]

[Substituted 'Commissioner' by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

may dispose of such goods or things and the amount realized thereby shall be adjusted against the tax, interest,

penalty, or any other amount payable in respect of such goods or things.

[Chapter - XVIII]

[Inserted 'Chapter XVII, Chapter XVIII and Chapter XIX' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Demands and Recovery

142.

[Notice and order for demand of amounts payable under the Act.

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

(1)

The proper officer shall serve, along with the -

(a)

notice issued under section 52 or section 73 or section 74 or section 76 or section 122 or section 123 or section 124 or section 125 or section 127 or section 129 or section 130, a summary thereof electronically in FORM GST DRC-01,

(b)

statement under sub-section (3) of section 73 or sub-section (3) of section 74, a summary thereof electronically in FORM GST DRC-02, specifying therein the details of the amount payable.

(1A)

[The [proper officer may], before service of notice to the person chargeable with tax, interest and penalty, under sub-section (1) of Section 73 or sub-section (1) of Section 74, as the case may be, [communicate]

[Substituted 'shall communicate' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

the details of any tax, interest and penalty as ascertained by the said officer, in Part A of FORM GST DRC-01A.]

(2)

Where, before the service of notice or statement, the person chargeable with tax makes payment of the tax and interest in accordance with the provisions of sub-section (5) of section 73 or, as the case may be, tax, interest and penalty in accordance with the provisions of sub-section (5) of section 74, or where any person makes payment of tax, interest, penalty or any other amount due in accordance with the provisions of the Act [whether on his own ascertainment or, as communicated by the proper officer under sub-rule (1A),]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

he shall inform the proper officer of such payment in FORM GST DRC-03 and the proper officer shall issue an acknowledgement, accepting the payment made by the said person in FORM GST DRC-04.

(2A)

[Where the person referred to in sub-rule (1A) has made partial payment of the amount communicated to him or desires to file any submissions against the proposed liability, he may make such submission in Part B of FORM GST DRC-01A.]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

(3)

Where the person chargeable with tax makes payment of tax and interest under sub-section (8) of section 73 or, as the case may be, tax, interest and penalty under sub-section (8) of section 74 within thirty days of the service of a notice under sub-rule (1), or where the person concerned makes payment of the amount referred to in sub-section (1) of section 129 within [seven days of the notice issued under sub-section (3) of Section 129 but before the issuance of order under the said subsection (3)]

[Substituted for 'fourteen days of detention or seizure of the goods and conveyance' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

, he shall intimate the proper officer of such payment in FORM GST DRC-03 and the proper officer shall issue an order in FORM GST DRC-05 concluding the proceedings in respect of the said notice.

(4)

The representation referred to in sub-section (9) of section 73 or sub-section (9) of section 74 or sub-section (3) of section 76 or the reply to any notice issued under any section whose summary has been uploaded electronically in FORM GST DRC-01 under sub-rule (1) shall be furnished in FORM GST DRC-06.

(5)

A summary of the order issued under section 52 or section 62 or section 63 or section 64 or section 73 or section 74 or section 75 or section 76 or section 122 or section 123 or section 124 or section 125 or section 127 or section 129 or

section 130 shall be uploaded electronically in FORM GST DRC-07, specifying therein the amount of [tax, interest and penalty, as the case may be, payable by the person concerned]

[Substituted 'tax, interest and penalty payable by the person chargeable with tax' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

(6)

The order referred to in sub-rule (5) shall be treated as the notice for recovery.

(7)

Where a rectification of the order has been passed in accordance with the provisions of section 161 or where an order uploaded on the system has been withdrawn, a summary of the rectification order or of the withdrawal order shall be uploaded electronically by the proper officer in FORM GST DRC-08.]

142A.

[Procedure for recovery of dues under existing laws.

[Inserted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]

(1)

A summary of order issued under any of the existing laws creating demand of tax, interest, penalty, fee or any other dues which becomes recoverable consequent to proceedings launched under the existing law before, on or after the appointed day shall, unless recovered under that law, be recovered under the Act and may be uploaded in Form GST DRC-07A electronically on the common portal for recovery under the Act and the demand of the order shall be posted in Part II of Electronic Liability Register in Form GST PMT-01.

(2)

Where the demand of an order uploaded under sub-rule (1) is rectified or modified or quashed in any proceedings, including in appeal, review or revision, or the recovery is made under the existing laws, a summary thereof shall be uploaded on the common portal in Form GST DRC-08A and Part II of Electronic Liability Register in Form GST PMT-01 shall be updated accordingly.]

143.

Recovery by deduction from any money owed.

- Where any amount payable by a person (hereafter referred to in this rule as "the defaulter") to the Government under any of the provisions of the Act or the rules made thereunder is not paid, the proper officer may require, in FORM GST DRC-09, a specified officer to deduct the amount from any money owing to such defaulter in accordance with the provisions of clause (a) of sub-section (1) of section 79.

Explanation. - For the purposes of this rule, "specified officer" shall mean any officer of the Central Government or a State Government or the Government of a Union territory or a local authority, or of a Board or Corporation or a company owned or controlled, wholly or partly, by the Central Government or a State Government or the Government of a Union territory or a local authority.

144.

Recovery by sale of goods under the control of proper officer.

(1)

Where any amount due from a defaulter is to be recovered by selling goods belonging to such person in accordance with the provisions of clause (b) of sub-section (1) of section 79, the proper officer shall prepare an inventory and estimate the market value of such goods and proceed to sell only so much of the goods as may be required for recovering the amount payable along with the administrative expenditure incurred on the recovery process.

(2)

The said goods shall be sold through a process of auction, including e-auction, for which a notice shall be issued in FORM GST DRC-10 clearly indicating the goods to be sold and the purpose of sale.

(3)

The last day for submission of bid or the date of auction shall not be earlier than fifteen days from the date of issue of the notice referred to in sub-rule (2):

Provided that where the goods are of perishable or hazardous nature or where the expenses of keeping them in custody are likely to exceed their value, the proper officer may sell them forthwith.

(4)

The proper officer may specify the amount of pre-bid deposit to be furnished in the manner specified by such officer, to make the bidders eligible to participate in the auction, which may be returned to the unsuccessful bidders, forfeited in case the successful bidder fails to make the payment of the full amount, as the case may be.

(5)

The proper officer shall issue a notice to the successful bidder in FORM GST DRC-11 requiring him to make the payment within a period of fifteen days from the date of auction. On payment of the full bid amount, the proper officer shall transfer the possession of the said goods to the successful bidder and issue a certificate in FORM GST DRC-12.

(6)

Where the defaulter pays the amount under recovery, including any expenses incurred on the process of recovery, before the issue of the notice under sub-rule (2), the proper officer shall cancel the process of auction and release the goods.

(7)

The proper officer shall cancel the process and proceed for re-auction where no bid is received or the auction is considered to be non-competitive due to lack of adequate participation or due to low bids.

144A.

[Recovery of penalty by sale of goods or conveyance detained or seized in transit.

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

(1)

Where the person transporting any goods or the owner of such goods fails to pay the amount of penalty under sub section (1) of section 129 within fifteen days from the date of receipt of the copy of the order passed under sub-section (3) of the said section 129, the proper officer shall proceed for sale or disposal of the goods or conveyance so detained or seized by preparing an inventory and estimating the market value of such goods or conveyance:

Provided that where the detained or seized goods are perishable or hazardous in nature or are likely to depreciate in value with passage of time, the said period of fifteen days may be reduced by the proper officer.

(2)

The said goods or conveyance shall be sold through a process of auction, including e-auction, for which a notice shall be issued in FORM GST DRC-10 clearly indicating the goods or conveyance to be sold and the purpose of sale:

Provided that where the person transporting said goods or the owner of such goods pays the amount of penalty under sub-section (1) of section 129, including any expenses incurred in safe custody and handling of such goods or conveyance, after the time period mentioned in sub-rule (1) but before the issuance of notice under this sub-rule, the proper officer shall cancel the process of auction and release such goods or conveyance.

(3)

The last day for submission of bid or the date of auction shall not be earlier than fifteen days from the date of issue of the notice referred to in sub-rule (2) :

Provided that where the detained or seized goods are perishable or hazardous in nature or are likely to depreciate in value with passage of time, the said period of fifteen days may be reduced by the proper officer.

(4)

The proper officer may specify the amount of pre-bid deposit to be furnished in the manner specified by such officer, to make the bidders eligible to participate in the auction, which may be returned to the unsuccessful bidders, forfeited in case the successful bidder fails to make the payment of the full amount, as the case may be.

(5)

The proper officer shall issue a notice to the successful bidder in FORM GST DRC-11 requiring him to make the payment within a period of fifteen days from the date of auction :

Provided that where the detained or seized goods are perishable or hazardous in nature or are likely to depreciate in value with passage of time, the said period of fifteen days may be reduced by the proper officer.

(6)

On payment of the full bid amount, the proper officer shall transfer the possession and ownership of the said goods or conveyance to the successful bidder and issue a certificate in FORM GST DRC-12.

(7)

The proper officer shall cancel the process and proceed for re-auction where no bid is received or the auction is considered to be non-competitive due to lack of adequate participation or due to low bids.

(8)

Where an appeal has been filed by the person under the provisions of sub-section (1) read with subsection (6) of section 107, the proceedings for recovery of penalty by sale of goods or conveyance detained or seized in transit under this rule shall be deemed to be stayed:

Provided that this sub-rule shall not be applicable in respect of goods of perishable or hazardous nature.]

145.

Recovery from a third person.

(1)

The proper officer may serve upon a person referred to in clause (c) of sub-section (1) of section 79 (hereafter referred to in this rule as "the third person"), a notice in FORM GST DRC-13 directing him to deposit the amount specified in the notice.

(2)

Where the third person makes the payment of the amount specified in the notice issued under sub-rule (1), the proper officer shall issue a certificate in FORM GST DRC-14 to the third person clearly indicating the details of the liability so discharged.

146.

Recovery through execution of a decree, etc.

- Where any amount is payable to the defaulter in the execution of a decree of a civil court for the payment of money or for sale in the enforcement of a mortgage or charge, the proper officer shall send a request in FORM GST DRC-15 to the said court and the court shall, subject to the provisions of the Code of Civil Procedure, 1908 (5 of 1908), execute the attached decree, and credit the net proceeds for settlement of the amount recoverable.

147.

Recovery by sale of movable or immovable property.

(1)

The proper officer shall prepare a list of movable and immovable property belonging to the defaulter, estimate their value as per the prevalent market price and issue an order of attachment or distraint and a notice for sale in FORM GST DRC-16 prohibiting any transaction with regard to such movable and immovable property as may be required for the recovery of the amount due:

Provided that the attachment of any property in a debt not secured by a negotiable instrument, a share in a corporation, or other movable property not in the possession of the defaulter except for property deposited in, or in the custody of any Court, shall be attached in the manner provided in rule 151.

(2)

The proper officer shall send a copy of the order of attachment or distraint to the concerned Revenue Authority or Transport Authority or any such Authority to place encumbrance on the said movable or immovable property, which shall be removed only on the written instructions from the proper officer to that effect.

(3)

Where the property subject to the attachment or distraint under sub-rule (1) is-

(a)

an immovable property, the order of attachment or distraint shall be affixed on the said property and shall remain affixed till the confirmation of sale;

(b)

a movable property, the proper officer shall seize the said property in accordance with the provisions of chapter XIV of the Act and the custody of the said property shall either be taken by the proper officer himself or an officer authorised by him.

(4)

The property attached or distrained shall be sold through auction, including e-auction, for which a notice shall be issued in FORM GST DRC- 17 clearly indicating the property to be sold and the purpose of sale.

(5)

Notwithstanding anything contained in the provision of this Chapter, where the property to be sold is a negotiable instrument or a share in a corporation, the proper officer may, instead of selling it by public auction, sell such instrument or a share through a broker and the said broker shall deposit to the Government so much of the proceeds of such sale,

reduced by his commission, as may be required for the discharge of the amount under recovery and pay the amount remaining, if any, to the owner of such instrument or a share.

(6)

The proper officer may specify the amount of pre-bid deposit to be furnished in the manner specified by such officer, to make the bidders eligible to participate in the auction, which may be returned to the unsuccessful bidders or, forfeited in case the successful bidder fails to make the payment of the full amount, as the case may be.

(7)

The last day for the submission of the bid or the date of the auction shall not be earlier than fifteen days from the date of issue of the notice referred to in sub-rule (4):

Provided that where the goods are of perishable or hazardous nature or where the expenses of keeping them in custody are likely to exceed their value, the proper officer may sell them forthwith.

(8)

Where any claim is preferred or any objection is raised with regard to the attachment or distraint of any property on the ground that such property is not liable to such attachment or distraint, the proper officer shall investigate the claim or objection and may postpone the sale for such time as he may deem fit.

(9)

The person making the claim or objection must adduce evidence to show that on the date of the order issued under sub-rule (1) he had some interest in, or was in possession of, the property in question under attachment or distraint.

(10)

Where, upon investigation, the proper officer is satisfied that, for the reason stated in the claim or objection, such property was not, on the said date, in the possession of the defaulter or of any other person on his behalf or that, being in the possession of the defaulter on the said date, it was in his possession, not on his own account or as his own property, but on account of or in trust for any other person, or partly on his own account and partly on account of some other person, the proper officer shall make an order releasing the property, wholly or to such extent as he thinks fit, from attachment or distraint.

(11)

Where the proper officer is satisfied that the property was, on the said date, in the possession of the defaulter as his own property and not on account of any other person, or was in the possession of some other person in trust for him, or in the occupancy of a tenant or other person paying rent to him, the proper officer shall reject the claim and proceed with the process of sale through auction.

(12)

The proper officer shall issue a notice to the successful bidder in FORM GST DRC-11 requiring him to make the payment within a period of fifteen days from the date of such notice and after the said payment is made, he shall issue a certificate in FORM GST DRC-12 specifying the details of the property, date of transfer, the details of the bidder and the amount paid and upon issuance of such certificate, the rights, title and interest in the property shall be deemed to be transferred to such bidder:

Provided that where the highest bid is made by more than one person and one of them is a co-owner of the property, he shall be deemed to be the successful bidder.

(13)

Any amount, including stamp duty, tax or fee payable in respect of the transfer of the property specified in sub-rule (12), shall be paid to the Government by the person to whom the title in such property is transferred.

(14)

Where the defaulter pays the amount under recovery, including any expenses incurred on the process of recovery, before the issue of the notice under sub-rule (4), the proper officer shall cancel the process of auction and release the goods.

(15)

The proper officer shall cancel the process and proceed for re-auction where no bid is received or the auction is considered to be non-competitive due to lack of adequate participation or due to low bids.

148.

Prohibition against bidding or purchase by officer.

- No officer or other person having any duty to perform in connection with any sale under the provisions of this Chapter

shall, either directly or indirectly, bid for, acquire or attempt to acquire any interest in the property sold.

149.

Prohibition against sale on holidays.

- No sale under the rules under the provision of this chapter shall take place on a Sunday or other general holidays recognized by the Government or on any day which has been notified by the Government to be a holiday for the area in which the sale is to take place.

150.

Assistance by police.

- The proper officer may seek such assistance from the officer-in-charge of the jurisdictional police station as may be necessary in the discharge of his duties and the said officer-in-charge shall depute sufficient number of police officers for providing such assistance.

151.

Attachment of debts and shares, etc.

(1)

A debt not secured by a negotiable instrument, a share in a corporation, or other movable property not in the possession of the defaulter except for property deposited in, or in the custody of any court shall be attached by a written order in FORM GST DRC-16 prohibiting. -

(a)

in the case of a debt, the creditor from recovering the debt and the debtor from making payment thereof until the receipt of a further order from the proper officer;

(b)

in the case of a share, the person in whose name the share may be standing from transferring the same or receiving any dividend thereon;

(c)

in the case of any other movable property, the person in possession of the same from giving it to the defaulter.

(2)

A copy of such order shall be affixed on some conspicuous part of the office of the proper officer, and another copy shall be sent, in the case of debt, to the debtor, and in the case of shares, to the registered address of the corporation and in the case of other movable property, to the person in possession of the same.

(3)

A debtor, prohibited under clause (a) of sub-rule (1), may pay the amount of his debt to the proper officer, and such payment shall be deemed as paid to the defaulter.

152.

Attachment of property in custody of courts or Public Officer.

- Where the property to be attached is in the custody of any court or Public Officer, the proper officer shall send the order of attachment to such court or officer, requesting that such property, and any interest or dividend becoming payable thereon, may be held till the recovery of the amount payable.

153.

Attachment of interest in partnership.

(1)

Where the property to be attached consists of an interest of the defaulter, being a partner, in the partnership property, the proper officer may make an order charging the share of such partner in the partnership property and profits with payment of the amount due under the certificate, and may, by the same or subsequent order, appoint a receiver of the share of such partner in the profits, whether already declared or accruing, and of any other money which may become due to him in respect of the partnership, and direct accounts and enquiries and make an order for the sale of such interest or such other order as the circumstances of the case may require.

(2)

The other partners shall be at liberty at any time to redeem the interest charged or, in the case of a sale being directed, to purchase the same.

154.

[Disposal of proceeds of sale of goods or conveyance and movable or immovable property.

[Substituted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

(1)

The amounts so realised from the sale of goods or conveyance, movable or immovable property, for the recovery of dues from a defaulter or for recovery of penalty payable under subsection (3) of section 129 shall, -

(a)

first, be appropriated against the administrative cost of the recovery process;

(b)

next, be appropriated against the amount to be recovered or to the payment of the penalty payable under sub-section (3) of section 129, as the case may be;

(c)

next, be appropriated against any other amount due from the defaulter under the Act or the Integrated Goods and Services Tax Act, 2017 or the Union Territory Goods and Services Tax Act, 2017 or any of the State Goods and Services Tax Act, 2017 and the rules made thereunder; and

(d)

the balance, if any, shall be credited to the electronic cash ledger of the owner of the goods or conveyance as the case may be, in case the person is registered under the Act, and where the said person is not required to be registered under the Act, the said amount shall be credited to the bank account of the person concerned;

(2)

where it is not possible to pay the balance of sale proceeds, as per clause (d) of sub-rule (1), to the person concerned within a period of six months from the date of sale of such goods or conveyance or such further period as the proper officer may allow, such balance of sale proceeds shall be deposited with the Fund;]

155.

Recovery through land revenue authority.

- Where an amount is to be recovered in accordance with the provisions of clause (e) of sub-section (1) of section 79, the proper officer shall send a certificate to the Collector or Deputy Commissioner of the district or any other officer authorised in this behalf in FORM GST DRC-18 to recover from the person concerned, the amount specified in the certificate as if it were an arrear of land revenue.

156.

Recovery through court.

- Where an amount is to be recovered as if it were a fine imposed under the Code of Criminal Procedure, 1973, the proper officer shall make an application before the appropriate Magistrate in accordance with the provisions of clause (f) of sub-section (1) of section 79 in FORM GST DRC-19 to recover from the person concerned, the amount specified thereunder as if it were a fine imposed by him.

157.

Recovery from surety.

- Where any person has become surety for the amount due by the defaulter, he may be proceeded against under this Chapter as if he were the defaulter.

158.

Payment of tax and other amounts in installments.

(1)

On an application filed electronically by a taxable person, in FORM GST DRC- 20, seeking extension of time for the payment of taxes or any amount due under the Act or for allowing payment of such taxes or amount in installments in accordance with the provisions of section 80, the Commissioner shall call for a report from the jurisdictional officer about the financial ability of the taxable person to pay the said amount.

(2)

Upon consideration of the request of the taxable person and the report of the jurisdictional officer, the Commissioner may issue an order in FORM GST DRC-21 allowing the taxable person further time to make payment and/ or to pay the amount in such monthly installments, not exceeding twenty-four, as he may deem fit.

(3)

The facility referred to in sub-rule (2) shall not be allowed where-

(a)

the taxable person has already defaulted on the payment of any amount under the Act or the Integrated Goods and Services Tax Act, 2017 or the Union Territory Goods and Services Tax Act, 2017 or any of the State Goods and Services Tax Act, 2017, for which the recovery process is on;

(b)

the taxable person has not been allowed to make payment in installments in the preceding financial year under the Act or the Integrated Goods and Services Tax Act, 2017 or the Union Territory Goods and Services Tax Act, 2017 or any of the State Goods and Services Tax Act, 2017;

(c)

the amount for which installment facility is sought is less than twenty-five thousand rupees.

159.

Provisional attachment of property.

(1)

Where the Commissioner decides to attach any property, including bank account in accordance with the provisions of section 83, he shall pass an order in FORM GST DRC - 22 to that effect mentioning therein, the details of property which is attached.

(2)

The Commissioner shall send a copy of the order of attachment [FORM GST DRC-22]

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

to the concerned Revenue Authority or Transport Authority or any such Authority to place encumbrance on the said movable or immovable property, which shall be removed only on the written instructions from the Commissioner to that effect. [and a copy of such order shall also be sent to the person whose property is being attached under section 83].

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

(3)

Where the property attached is of perishable or hazardous nature, [and if the person, whose property has been attached,]

[Substituted for 'and if the taxable person' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

pays an amount equivalent to the market price of such property or the amount that is or may become payable [by such person]

[Substituted for 'by the taxable person' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

, whichever is lower, then such property shall be released forthwith, by an order in FORM GST DRC-23, on proof of payment.

(4)

Where [such person]

[Substituted 'the taxable person' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

fails to pay the amount referred to in sub-rule (3) in respect of the said property of perishable or hazardous nature, the Commissioner may dispose of such property and the amount realized thereby shall be adjusted against the tax, interest, penalty, fee or any other amount payable by the taxable person.

(5)

Any person whose property is attached may, [file an objection in FORM GST DRC-22A]

[Substituted 'within seven days of the attachment under sub-rule (1), file an objection' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

to the effect that the property attached was or is not liable to attachment, and the Commissioner may, after affording an opportunity of being heard to the person filing the objection, release the said property by an order in FORM GST DRC - 23.

(6)

The Commissioner may, upon being satisfied that the property was, or is no longer liable for attachment, release such property by issuing an order in FORM GST DRC-23.

160.

Recovery from company in liquidation.

- Where the company is under liquidation as specified in section 88, the Commissioner shall notify the liquidator for the recovery of any amount representing tax, interest, penalty or any other amount due under the Act in FORM GST DRC-24.

161.

Continuation of certain recovery proceedings.

- The order for the reduction or enhancement of any demand under section 84 shall be issued in FORM GST DRC-25.

[Chapter - XIX]

[Inserted 'Chapter XVII, Chapter XVIII and Chapter XIX' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Offences and Penalties

162.

Procedure for compounding of offences.

(1)

An applicant may, either before or after the institution of prosecution, make an application under sub-section (1) of section 138 in FORM GST CPD-01 to the Commissioner for compounding of an offence.

(2)

On receipt of the application, the Commissioner shall call for a report from the concerned officer with reference to the particulars furnished in the application, or any other information, which may be considered relevant for the examination of such application.

(3)

The Commissioner, after taking into account the contents of the said application, may, by order in FORM GST CPD-02, on being satisfied that the applicant has co-operated in the proceedings before him and has made full and true disclosure of facts relating to the case, allow the application indicating the compounding amount and grant him immunity from prosecution or reject such application within ninety days of the receipt of the application.

(4)

The application shall not be decided under sub-rule (3) without affording an opportunity of being heard to the applicant and recording the grounds of such rejection.

(5)

The application shall not be allowed unless the tax, interest and penalty liable to be paid have been paid in the case for which the application has been made.

(6)

The applicant shall, within a period of thirty days from the date of the receipt of the order under sub-rule (3), pay the compounding amount as ordered by the Commissioner and shall furnish the proof of such payment to him.

(7)

In case the applicant fails to pay the compounding amount within the time specified in sub-rule (6), the order made under sub-rule (3) shall be vitiated and be void.

(8)

Immunity granted to a person under sub-rule (3) may, at any time, be withdrawn by the Commissioner, if he is satisfied that such person had, in the course of the compounding proceedings, concealed any material particulars or had given false evidence. Thereupon such person may be tried for the offence with respect to which immunity was granted or for any other offence that appears to have been committed by him in connection with the compounding proceedings and the provisions the Act shall apply as if no such immunity had been granted.

[Form GST ITC - 01]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 40(1)]

Declaration for claim of input tax credit under sub-section (1) of section 18

Claim made under

Section 18 (1) (a)

Section 18 (1) (b)

Section 18 (1) (c)

Section 18 (1) (d)

1.

GSTIN

2.

Legal name

3.

Trade name, if any

4.

Date from which

liability to pay tax arises under section 9, except section 9 (3)
and section 9 (4)

[For claim under section 18 (1)(a) and section 18 (1)(c)]

5.

Date of grant of voluntary
registration

[For claim made under section 18 (1)(b)]

6.

Date on which goods or services
becomes taxable

[For claim made under section 18 (1)(d)]

7. Claim under section 18 (1) (a) or section 18 (1) (b)

Details of stock of inputs and inputs contained in semi-finished goods or finished goods on which ITC is claimed

Sr. No.

GSTIN/ Registration under CX/ VAT of supplier

Invoice *

Description of inputs held in stock, inputs
contained in semi-finished or finished goods held in stock

Unit Quantity Code (UQC)

Quantity

Value (As adjusted by debit note/credit note)

Amount of ITC claimed (Rs.)

No.

Date

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

7 (a) Inputs held in stock

7 (b) Inputs contained in semi-finished or finished goods held in stock

*In case it is not feasible to identify invoice, the principle of first-in-first out may be followed.

8. Claim under section 18 (1) (c) or section 18 (1)(d)

Details of stock of inputs, inputs contained in semi-finished goods or finished goods and capital goods on which ITC is claimed

Sr. No.

GSTIN/ Registration under CX/ VAT of supplier

Invoice */ Bill of entry

Description of inputs held in stock, inputs

contained in semi-finished or finished goods held in stock, capital goods

Unit Quantity Code (UQC)

Quantity

Value ** (As adjusted by debit note/credit note)

Amount of ITC claimed (Rs.)

No.

Date

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

8 (a) Inputs held in stock

8 (b) Inputs contained in semi-finished or finished goods held in stock

8 (c) Capital goods

in stock

* In case it is not feasible to identify invoice, principle of first in and first out may be followed.

** The value of capital goods shall be the invoice value reduced by five percentage points per quarter of a year or part thereof from the date of invoice

9. Particulars of certifying Chartered Accountant or Cost Accountant [where applicable]

a) Name of the Firm issuing certificate

b) Name of the certifying Chartered Accountant/Cost Accountant

c) Membership number

d) Date of issuance of certificate

e) Attachment (option for uploading certificate)

10. Verification

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed there from.

Signature of authorised signatory _____

Name _____

Designation/Status _____

Date --- dd/mm/yyyy

[Form GST ITC - 02]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule - 41(1)]

Declaration for transfer of ITC in case of sale, merger, demerger, amalgamation, lease or transfer of a business under sub-section (3) of section 18

1.

GSTIN of transferor

2.

Legal name of transferor

3.

Trade name, if any

4.

GSTIN of transferee

5.

Legal name of transferee

6.

Trade name, if any

7. Details of ITC to be transferred

Tax

Amount of matched ITC available

Amount of matched ITC to be transferred

1

2

3

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

8. Particulars of certifying Chartered Accountant or Cost Accountant

a) Name of the Firm issuing certificate

b) Name of the certifying Chartered Accountant/ Cost Accountant

c) Membership number

d) Date of issuance of certificate to the transferor

e) Attachment (option for uploading certificate)

9. Verification

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed there from.

Signature of authorised signatory _____

Name _____

Designation/ Status _____

Date --- dd/mm/yyyy

[Form GST ITC-02A]

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

[See rule 41A]

Declaration for transfer of ITC pursuant to registration under sub-section (2) of section 25

1.

GSTIN of transferor

2.

Legal name of transferor

3.

Trade name of transferor, if any

4.

GSTIN of transferee

5.

Legal name of transferee

6.

Trade name of transferee, if any

7. Details of ITC to be transferred

Tax

Amount of matched ITC available

Amount of matched ITC to be transferred

1

2

3

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

8. Verification

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed there from.

Signature of authorised signatory _____

Name _____

Designation/Status _____

Date---dd/mm/yyyy

Instructions:

1. Transferor refers to the registered person who has an existing registration in a State or Union Territory.

2. Transferee refers to the place of business for which a separate registration has been obtained under rule 11.

[Form GST ITC - 03]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 44(4)]

Declaration for intimation of ITC reversal/ payment of tax on inputs held in stock, inputs contained in semi-finished and finished goods held in stock and capital goods under sub-section (4) of section 18

1. GSTIN

2. Legal name

3. Trade name, if any

4(a). Details of application filed

to opt for composition scheme

[applicable only for section 18 (4)]

(i) Application reference no. (ARN)

(ii) Date of filing

4(b). Date from which exemption is

effective

[applicable only for section 18 (4)]

5. Details of stock of inputs held in stock, inputs contained in semi-finished or finished goods held in stock, and capital goods on which input tax credit is required to be paid under section 18(4).

Sr. No.

GSTIN/ Registration under CX/ VAT of supplier

Invoice */ Bill of entry

Description of inputs held in stock, inputs

contained in semi-finished or finished goods held in stock and capital goods

Unit Quantity Code (UQC)

Quantity

Value ** (As adjusted by debit note/credit note)

Amount of ITC claimed (Rs.)

No.

Date

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

5 (a) Inputs held in stock (where invoice is available)

5 (b) Inputs contained in semi-finished and finished goods held in stock (where invoice is available)

5 (c) Capital goods held in stock (where invoice is available)

5 (d) Inputs held in stock and as contained in semi-finished/ finished goods held in stock (where invoice not available)

5 (e) Capital goods held in stock (where invoice is available)

*(1) In case, it is not feasible to identify invoice, the principle of first in first out may be followed.

(2)

If Invoice is not available for certain inputs or capital goods, the value shall be estimated based on prevailing market price.

[** The value of capital goods shall be the invoice value reduced by 1/60th per month or part thereof from the date of invoice.]

[Substituted by Notification No. G.S.R. 378(E), dated 18.4.2018 (w.e.f. 19.6.2017).]

6. Amount of ITC payable and paid (based on table 5)

Sr. No.

Description

Tax payable

Paid through Cash/ Credit Ledger

Debit entry No.

Amount of ITC paid standard

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

10

1.

Central Tax

Cash Ledger

Credit Ledger

2.

State Tax

Cash Ledger

Credit Ledger

3.

UT Tax

Cash Ledger

Credit Ledger

4.

Integrated Tax

Cash Ledger

Credit Ledger

5.

CESS

Cash Ledger

Credit Ledger

7. Verification

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed there from.

Signature of authorised signatory _____

Name

Designation/ Status _____

Date - dd/mm/yyyy

[Form GST ITC - 04]

[Substituted by Notification No. G.S.R. 831(E), dated 4.9.2018 (w.e.f. 19.6.2017).]

[See rule - 45(3)]

Details of goods/ capital goods sent to job worker and received back

1. GSTIN -

2. (a) Legal name -

(b)

Trade name, if any -

3. Period :

Quarter -

Year -

4. Details of inputs/ capital goods sent for job-work (includes inputs/capital goods directly sent to place of business / premises of job worker)

GSTIN/ State in case of unregistered job-worker

Challan No.

Challan date

Description of goods

UQC

Quantity

Taxable value

Type of goods (Inputs/ capital goods)

Rate of tax (%)

Central tax

State/ UT tax

Integrated tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

5. Details of inputs/ capital goods received back from job worker or sent out from business place of job-work

(A)

Details of inputs/ capital goods received back from job worker to whom such goods were sent for job work; and losses and wastes:

GSTIN / State of job worker if unregistered

Challan No. issued by job worker under which

goods have been received back

Invoice date in case supplied from premises of

job worker issued by the PrincipalDate of challan issued by job

worker under which goods have been received back

Description of goods

UQC

Quantity

Original challan no. under which goods have

been sent for job work

Original challan date under which goods have

been sent for job work

Nature of job work done by job worker

Losses & wastes

UQC

Quantity

1

2

3

4

5

6

7*

8*

9

10

11

(B)

Details of inputs / capital goods received back from job worker other than the job worker to whom such goods were originally sent for job work; and losses and wastes:

GSTIN / State of job worker if unregistered

Challan No. issued by job worker under which goods have been received back

Invoice date in case supplied from premises of job worker issued by the Principal
Date of challan issued by job worker under which goods have been received back

Description of goods

UQC

Quantity

Original challan no. under which goods have been sent for job work

Original challan date under which goods have been sent for job work

Nature of job work done by job worker

Losses & wastes

UQC

Quantity

1

2

3

4

5

6

7*

8*

9

10

11

(C)

Details of inputs/ Capital goods sent to job worker and subsequently supplied from premises of job worker; and losses and wastes:

GSTIN / State of job worker if unregistered

Invoice No. in case supplied from premises of job worker issued by the Principal

Invoice date in case supplied from premises of
job worker issued by the Principal

Description of goods

UQC

Quantity

Original challan no. under which goods have
been sent for job work

Original challan date under which goods have
been sent for job work

Nature of job work done by job worker

Losses & wastes

UQC

Quantity

1

2

3

4

5

6

7*

8*

9

10

11

Instructions:

1. Multiple entry of items for single challan may be filled.

2. Columns (2) & (3) in Table (A) and Table (B) are mandatory in cases where fresh challan are required to be issued by the job worker. Otherwise, columns (2) & (3) in Table (A) and Table (B) are optional.

3. Columns (7) & (8) in Table (A), Table (B) and Table (C) may not be filled where one-to-one correspondence between goods sent for job work and goods received back after job work is not possible.

6. Verification

I hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

[Form GST ENR - 01]

[Substituted by Notification No. G.S.R. 1121(E), dated 30.8.2017 (w.e.f. 19.6.2017).]

[See rule 58(1)]

Application for Enrolment u/s 35 (2)

[only for un-registered persons]

1.

Name of the State

2.

(a) Legal name

(b) Trade Name, if any

(c) PAN

(d) Aadhaar (applicable in case of proprietorship concerns only)

3.

Type of enrolment

Warehouse or Depot Godown Transport services Cold Storage

4.

Constitution of Business (Please Select the Appropriate)

(i) Proprietorship or HUF

(ii) Partnership

(iii) Company

(iv) Others

5.

Particulars of Principal Place of Business

(a)

Address

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

City/ Town/ Locality/ Village

Taluka/ Block

District

State

PIN Code

Latitude

Longitude

(b)

Contact Information (the email address and mobile number will be used for authentication)

E-mail Address

Telephone

STD

Mobile Number

Fax

STD

(c)

Nature of premises

Own

Leased

Rented

Consent

Shared

Others (specify)

6.

Details of additional place of business Add for additional place(s) of business, if any (Fill up the same information as in item 7 [(a), (b), (c) & (d)])

7.

Consent

I on behalf of the holder of Aadhaar number < pre-filled based on Aadhaar number provided in the form > give consent to "Goods and Services Tax Network" to obtain my details from UIDAI for the purpose of authentication. "Goods and Services Tax Network" has informed me that identity information would only be used for validating identity of the

Aadhaar holder and will be shared with Central Identities Data Repository only for the purpose of authentication.

8.

List of documents uploaded

(Identity and address proof)

9.

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

For office use :

Enrolment No.

Date -

[FORM GST ENR-02]

[Inserted by Notification No. G.S.R. 574(E), dated 19.6.2018 (w.e.f. 19.6.2017).]

[See Rule 58(1A)]

Application for obtaining unique common enrolment number

[Only for transporters registered in more than one State or Union Territory having the same PAN]

1.

(a) Legal name

(b) PAN

2. Details of registrations having the same PAN

Sl. No

GSTIN

Trade Name

State/UT

3. Verification

I hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature

Place :

.....

Name of Authorised Signatory

Date :

Designation/Status.....

For office use -

Enrolment no. -

Date - .

[Form GSTR-1]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule (59(1))]

Details of outward supplies of goods or services

{

Year

Month

|

l}

1.

GSTIN

2.

(a)

Legal name of the registered person

(b)

Trade name, if any

3.

(a)

Aggregate Turnover in the preceding Financial Year

(b)

Aggregate Turnover - April to June, 2017

4. Taxable outward supplies made to registered persons (including UIN-holders) other than supplies covered by Table 6

(Amount in Rs. for all Tables)

GSTIN/ UIN

Invoice details

Rate

Taxable value

Amount

Place of Supply (Name of State/ UT)

No.

Date

Value

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

4A. Supplies other than those (i) attracting reverse charge

and (ii) supplies made through e-commerce operator

4B. Supplies attracting tax on reverse charge basis

4C. Supplies made through e-commerce operator attracting TCS

(operator wise, rate wise)

GSTIN of e-commerce operator

5. Taxable outward inter-State supplies to un-registered persons where the invoice value is more than Rs 2.5 lakh

Place of Supply (State/ UT)

Invoice details

Rate

Taxable Value

Amount

No.
Date
Value
Integrated Tax
Cess

1
2
3
4
5
6
7
8

5A. Outward supplies (other than supplies made through
e-commerce operator, rate wise)
5B. Supplies made through e-commerce operator attracting TCS
(operator wise, rate wise)

GSTIN of e-commerce operator

6. [Zero rated supplies and Deemed Exports

[Substituted by Notification No. G.S.R. 1531(E), dated 21.12.2017 (w.e.f. 19.6.2017).]

GSTIN of recipient

Invoice details

Shipping bill/Bill of export

Integrated Tax

Central Tax

State/UT Tax

Cess

No.
Date
Value

No.
Date
Rate
Taxable value

Amt.
Rate
Taxable value
Amt.

Rate
Taxable value
Amt.

1
2
3
4
5
6
7
8
9
10

11
12
13
14
15
16

6A. Exports

6B. Supplies made to SEZ unit or SEZ Developer

6C. Deemed exports

]

7. Taxable supplies (Net of debit notes and credit notes) to unregistered persons other than the supplies covered in Table 5

Rate of tax

Total Taxable value

Amount

Integrated Tax

Central Tax

State Tax/ UT Tax

Cess

1
2
3
4
5
6

7A. Intra-State supplies

7A (1). Consolidated rate wise outward supplies [including supplies made through e-commerce operator attracting TCS]

7A (2). Out of supplies mentioned at 7A(1), value of supplies made through e-Commerce Operators attracting TCS (operator wise, rate wise)

GSTIN of e-commerce operator

7B. Inter-State Supplies where invoice value is upto Rs 2.5 Lakh[Rate wise]

7B (1). Place of Supply (Name of State)

7B (2). Out of the supplies mentioned in 7B (1), the supplies made through e-Commerce Operators (operator wise, rate wise)

GSTIN of e-commerce operator

8. Nil rated, exempted and non-GST outward supplies

Description

Nil Rated Supplies

Exempted (Other than Nil rated/ non- GST supply)

Non-GST supplies

1
2
3
4

8A. Inter-State supplies to registered persons

8B. Intra- State supplies to registered persons

8C. Inter-State supplies to unregistered persons

8D. Intra-State supplies to unregistered persons

9. Amendments to taxable outward supply details furnished in returns for earlier tax periods in Table 4, 5 and 6 [including debit notes, credit notes, refund vouchers issued during current period and amendments thereof]

Details of original

document

Revised details of

document or details of original Debit/ Credit Notes or refund

vouchers

Rate

Taxable Value

Amount

Place of supply

GSTIN

Inv. No.

Inv. Date

GSTIN

Invoice

Shipping bill

Value

Integrated Tax

Central Tax

State/ UT Tax

Cess

No.

Date

No.

Date

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

16

9A. If the invoice/ Shipping bill details furnished earlier were incorrect

9B. Debit Notes/ Credit Notes/Refund voucher [original]

9C. Debit Notes/ Credit Notes/Refund voucher [amendments thereof]

10. Amendments to taxable outward supplies to unregistered persons furnished in returns for earlier tax periods in Table 7

Rate of tax

Total Taxable value

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

Tax period for which the details are being revised

< Month >

10A. Intra-State Supplies [including supplies made through e-commerce operator attracting TCS] [Rate wise]

10A (1). Out of supplies mentioned at 10A, value of supplies made through e-Commerce Operators attracting TCS (operator wise, Rate Wise)

GSTIN of e-commerce operator

10B. Inter-State Supplies [including supplies made through e-commerce operator attracting TCS] [Rate wise]

Place of Supply (Name of State)

10B (1). Out of supplies mentioned at 10B, value of supplies made through e-Commerce Operators attracting TCS (operator wise, rate wise)

GSTIN of e-commerce operator

11. Consolidated Statement of Advances Received/Advance adjusted in the current tax period/ Amendments of information furnished in earlier tax period

Rate

Gross Advance Received/ adjusted

Place of supply (Name of State/ UT)

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

I Information for the current tax period

11A. Advance amount received in the tax period for which invoice has not been issued (tax amount to be added to output tax liability)

11A (1). Intra-State supplies (Rate Wise)

11A (2). Inter-State Supplies (Rate Wise)

11B. Advance amount received in earlier tax period and adjusted against the supplies being shown in this tax period in

Table Nos. 4, 5, 6 and 7

11B (1). Intra-State Supplies (Rate Wise)

11B (2). Inter-State Supplies (Rate Wise)

II Amendment of information

furnished in Table No. 11[1] in GSTR-1 statement for earlier tax periods

[Furnish revised information]

Month

Amendment relating to information furnished in S.

No.(select)

11A(1)

11A(2)

11B(1)

11B(2)

12. HSN-wise summary of outward supplies

Sr. No.

HSN

Description (Optional if HSN is provided)

UQC

Total Quantity

[Rate of Tax]

[Substituted 'Total value' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Total Taxable Value

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

13. Documents issued during the tax period

Sr. No.

Nature of document

Sr. No.

Total number

Cancelled

Net issued

From

To

1

2

3

4

5

6

7

1

Invoices for outward supply

2

Invoices for inward supply from unregistered person

3

Revised Invoice

4

Debit Note

5

Credit Note

6

Receipt voucher

7

Payment Voucher

8

Refund voucher

9

Delivery Challan for job work

10

Delivery Challan for supply on approval

11

Delivery Challan in case of liquid gas

12

Delivery Challan in cases other than by way of supply (excluding at S. No. 9 to 11)

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed there from and in case of any reduction in output tax liability the benefit thereof has been/ will be passed on to the recipient of supply.

Signature

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

Instructions -

1. Terms used:

a. GSTIN: Goods and Services Tax Identification Number

b. UIN: Unique Identity Number

c. UQC: Unit Quantity Code

d. HSN: Harmonized System of Nomenclature

e. POS: Place of Supply (Respective State)

f. B to B: From one registered person to another registered person

g. B to C: From registered person to unregistered person

2. The details in GSTR-1 should be furnished by 10th of the month succeeding the relevant tax period.

3. Aggregate turnover of the taxpayer for the immediate preceding financial year and first quarter of the current financial year shall be reported in the preliminary information in Table 3. This information would be required to be submitted by the taxpayers only in the first year. Quarterly turnover information shall not be captured in subsequent returns. Aggregate turnover shall be auto-populated in subsequent years.

4. Invoice-level information pertaining to the tax period should be reported for all supplies as under:

(i)

For all B to B supplies (whether inter-State or intra-State), invoice level details, rate-wise, should be uploaded in Table 4, including supplies attracting reverse charge and those effected through e-commerce operator. Outwards supply information in these categories are to be furnished separately in the Table.

(ii)

For all inter-State B to C supplies, where invoice value is more than Rs. 2,50,000/- (B to C Large) invoice level details, rate-wise, should be uploaded in Table 5; and

(iii)

For all B to C supplies (whether inter-State or intra-State) where invoice value is up to Rs. 2,50,000/- Statewise summary of supplies, rate-wise, should be uploaded in Table 7.

5. Table 4 capturing information relating to B to B supplies should:

(i)

be captured in:

a. Table 4A for supplies relating to other than reverse charge/ made through e-commerce operator, rate-wise;

b. Table 4B for supplies attracting reverse charge, rate-wise; and

c. Table 4C relating to supplies effected through e-commerce operator attracting collection of tax at source under section 52 of the Act, operator wise and rate-wise.

(ii)

Capture Place of Supply (PoS) only if the same is different from the location of the recipient.

6. Table 5 to capture information of B to C Large invoices and other information shall be similar to Table 4. The Place of Supply (PoS) column is mandatory in this table.

7. Table 6 to capture information related to:

(i)

Exports out of India

(ii)

Supplies to SEZ unit/ and SEZ developer

(iii)

Deemed Exports

8. Table 6 needs to capture information about shipping bill and its date. However, if the shipping bill details are not available, Table 6 will still accept the information. The same can be updated through submission of information in relation to amendment Table 9 in the tax period in which the details are available but before claiming any refund/ rebate related to the said invoice. The detail of Shipping Bill shall be furnished in 13 digits capturing port code (six digits) followed by number of shipping bill.

9. Any supply made by SEZ to DTA, without the cover of a bill of entry is required to be reported by SEZ unit in GSTR-1. The supplies made by SEZ on cover of a bill of entry shall be reported by DTA unit in its GSTR-2 as imports in GSTR-2. The liability for payment of IGST in respect of supply of services would, be created from this Table.

10. In case of export transactions, GSTIN of recipient will not be there. Hence it will remain blank.

11. Export transactions effected without payment of IGST (under Bond/ Letter of Undertaking (LUT)) needs to be reported under "0" tax amount heading in Table 6A and 6B.

12. Table 7 to capture information in respect of taxable supply of:

(i)

B to C supplies (whether inter-State or intra-State) with invoice value upto Rs 2,50,000;

(ii)

Taxable value net of debit/ credit note raised in a particular tax period and information pertaining to previous tax periods which was not reported earlier, shall be reported in Table 10. Negative value can be mentioned in this table, if required;

(iii)

Transactions effected through e-commerce operator attracting collection of tax at source under section 52 of the Act to be provided operator wise and rate wise;

(iv)

Table 7A (1) to capture gross intra-State supplies, rate-wise, including supplies made through e-commerce operator attracting collection of tax at source and Table 7A (2) to capture supplies made through e-commerce operator attracting collection of tax at source out of gross supplies reported in Table 7A (1);

(v)

Table 7B (1) to capture gross inter-State supplies including supplies made through e-commerce operator attracting collection of tax at source and Table 7B (2) to capture supplies made through e-commerce operator attracting collection of tax at source out of gross supplies reported in Table 7B (1); and

(vi)

Table 7B to capture information State wise and rate wise.

13. Table 9 to capture information of:

(i)

Amendments of B to B supplies reported in Table 4, B to C Large supplies reported in Table 5 and Supplies involving exports/ SEZ unit or SEZ developer/ deemed exports reported in Table 6;

(ii)

Information to be captured rate-wise;

(iii)

It also captures original information of debit/ credit note issued and amendment to it reported in earlier tax periods; While furnishing information the original debit note/credit note, the details of invoice shall be mentioned in the first three columns, While furnishing revision of a debit note/credit note, the details of original debit note/credit note shall be mentioned in the first three columns of this Table,

(iv)

Place of Supply (PoS) only if the same is different from the location of the recipient;

(v)

Any debit/ credit note pertaining to invoices issued before the appointed day under the existing law also to be reported in this table; and

(vi)

Shipping bill to be provided only in case of exports transactions amendment.

14. Table 10 is similar to Table 9 but captures amendment information related to B to C supplies and reported in Table 7.

15. Table 11A captures information related to advances received, rate-wise, in the tax period and tax to be paid thereon along with the respective PoS. It also includes information in Table 11B for adjustment of tax paid on advance received and reported in earlier tax periods against invoices issued in the current tax period. The details of information relating to advances would be submitted only if the invoice has not been issued in the same tax period in which the advance was received.

16. Summary of supplies effected against a particular HSN code to be reported only in summary table. It will be optional for taxpayers having annual turnover upto Rs. 1.50 Cr but they need to provide information about description of goods.

17. It will be mandatory to report HSN code at two digits level for taxpayers having annual turnover in the preceding year above Rs. 1.50 Cr but upto Rs. 5.00 Cr and at four digits level for taxpayers having annual turnover above Rs. 5.00 Cr.

18. [It will be mandatory to specify the number of digits of HSN code for goods or services that a class of registered persons shall be required to mention as may be specified in the notification issued from time to time under proviso to rule 46 of the said rules.]

[Inserted by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

[Form GSTR-1A]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 59(4)]

Details of auto drafted supplies

(From GSTR 2, GSTR 4 or GSTR 6)

{|

Year
Month
|
|}
1
GSTIN
2
(a)
Legal name of the registered person
(b)
Trade name, if any
3. Taxable outward supplies made to registered persons including supplies attracting reverse charge other than the supplies covered in Table No. 4
GSTIN/ UIN
Invoice details
Rate
Taxable value
Amount
Place of Supply (Name of State/ UT)
No.
Date
Value
Integrated Tax
Central Tax
State/ UT Tax
Cess
1
2
3
4
5
6
7
8
9
10
11
3A. Supplies other than those attracting reverse charge (From table 3 of GSTR-2)
3B. Supplies attracting reverse charge (From table 4A of GSTR-2)
4. [Zero rated supplies made to SEZ and deemed exports
[Substituted by Notification No. 1251(E), dated 13.10.2017 (w.e.f. 19.6.2017).]
GSTIN of recipient
Invoice details
Integrated Tax
Cess
No.
Date
Value
Rate

Taxable value

Tax amount

1

2

3

4

5

6

7

8

4A. Supplies made to SEZ unit or SEZ Developer

4B. Deemed exports

]

5. Debit notes, credit notes (including amendments thereof) issued during current period

Details of original document

Revised details of document or details of
original Debit/ Credit Note

Rate

Taxable value

Place of supply (Name of State/ UT)

Amount of tax

GSTIN

No.

Date

GSTIN

No.

Date

Value

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

14

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom and in case of any reduction in output tax liability the benefit thereof has been/will be passed on to the recipient of supply.

Signature

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

[Form GSTR-2]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 60(1)]

{|

Year

Month

|

|}

Details of inward supplies of goods or services

1

GSTIN

2

(a)

Legal name of the registered person

(b)

Trade name, if any

3. Inward supplies received from a registered person other than the supplies attracting reverse charge

(Amount in Rs. for all Tables)

GSTIN of supplier

Invoice details

Rate

Taxable value

Amount of Tax

Place of supply (Name of State/ UT)

Whether input or input service/ Capital goods

(incl plant and machinery)/ Ineligible for ITC

Amount of ITC available

No

Date

Value

Integrated tax

Central Tax

State/ UT Tax

CESS

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

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16
4. Inward supplies on which tax is to be paid on reverse charge
GSTIN of supplier
Invoice details
Rate
Taxable value
Amount of Tax
Place of supply (Name of State/ UT)
Whether input or input service/ Capital goods
(incl. plant and machinery)/ Ineligible for ITC
Amount of ITC available
No
Date
Value
Integrated tax
Central Tax
State/ UT Tax
CESS
Integrated Tax
Central Tax
State/ UT Tax
Cess
1
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16
4A. Inward supplies received from a registered supplier
(attracting reverse charge)
4B. Inward supplies received from an unregistered supplier
4C. Import of service
5. Inputs/ Capital goods received from Overseas or from SEZ units on a Bill of Entry

GSTIN of supplier
Details of bill of entry
Rate
Taxable value
Amount
Whether input/ Capital goods (incl. plant and machinery)/ Ineligible for ITC
Amount of ITC available
No.
Date
Value
Integrated Tax
Cess
Integrated Tax
Cess
1
2
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4
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6
7
8
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10
11
5A. Imports
5B. Received from SEZ
Port code + No of BE = 13 digits
Assessable Value
6. Amendments to details of inward supplies furnished in returns for earlier tax periods in Tables 3, 4 and 5 [including debit notes/ credit notes issued and their subsequent amendments]
Details of original invoice/ Bill of entry No
Revised details of invoice
Rate
Taxable value
Amount
Place of supply
Whether input or input service/ Capital goods/ Ineligible for ITC)
Amount of ITC available
GSTIN
No.
Date
GSTIN
No.
Date
Value
Integrated Tax
Central Tax
State/ UT Tax

Cess

Integrated Tax

Central Tax

State/ UT Tax

Cess

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6A. Supplies other than import of goods or goods received from
SEZ [Information furnished in Table 3 and 4 of earlier returns] -

If details furnished earlier were incorrect

6B. Supplies by way of import of goods or goods received from
SEZ [Information furnished in Table 5 of earlier returns] - If
details furnished earlier were incorrect

6C. Debit Notes/ Credit Notes [original]

6D. Debit Notes/ Credit Notes [amendment of debit notes/
credit notes furnished in earlier tax periods]

7. Supplies received from composition taxable person and other exempt/Nil rated/ Non GST supplies received

Description

Value of supplies received from

Composition taxable person

Exempt supply

Nil Rated supply

Non GST supply

1

2

3

4

5

7A. Inter-State supplies

7B. Intra-state supplies

8. ISD credit received

GSTIN of ISD

ISD Document Details

ISD Credit received

Amount of eligible ITC

No.

Date

Integrated Tax

Central Tax

State/ UT Tax

Cess

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

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11

8A. ISD Invoice

8B. ISD Credit Note

9. TDS and TCS Credit received

GSTIN of Deductor/ GSTIN of e-Commerce Operator

Gross Value

Sales Return

Net Value

Amount

Integrated Tax

Central Tax

State Tax/ UT Tax

1

2

3

4

5

6

7

9A. TDS

9B. TCS

10. Consolidated Statement of Advances paid/ Advance adjusted on account of receipt of supply

Rate

Gross Advance Paid

Place of supply (Name of State/ UT)

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1
2
3
4
5
6
7

(I) Information for the current month

10A. Advance amount paid for reverse charge supplies in the tax period (tax amount to be added to output tax liability)

10A (1). Intra-State supplies (Rate Wise)

10A (2). Inter -State Supplies (Rate Wise)

10B. Advance amount on which tax was paid in earlier period but invoice has been received in the current period [reflected in Table 4 above]

10B (1). Intra-State Supplies (Rate Wise)

10B (2). Intra-State Supplies (Rate Wise)

II Amendments of information furnished in Table No. 10 (I) in an earlier month [Furnish revised information]

Month

Amendment relating to information furnished in

S.No.(select)

10A (1)

10A (2)

10B (1)

10B (2)

11. Input Tax Credit Reversal/ Reclaim

Description for reversal of ITC

To be added to or reduced from output liability

Amount of ITC

Integrated Tax

Central Tax

State/ UT Tax

CESS

1
2
3
4
5
6

A. Information for the current tax period

(i) Amount in terms of rule 37(2)

To be added

(ii) Amount in terms of rule 39(1)(j)(ii)

To be added

(iii) Amount in terms of rule 42 (1) (m)

To be added

(iv) Amount in terms of rule 43(1) (h)

To be added

(v) Amount in terms of rule 42 (2)(a)

To be added

(vi) Amount in terms of rule 42(2)(b)

To be reduced

(vii) On account of amount paid subsequent to reversal of ITC

To be reduced

(viii) Any other liability (Specify)

??

B. Amendment of information furnished in Table No 11 at S.

No A in an earlier return

Amendment is in respect of information furnished in the Month

Specify the information you wish to amend (Drop down)

12. Addition and reduction of amount in output tax for mismatch and other reasons

Description

Add to or reduce from output liability

Amount

Integrated Tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

6

(a)

ITC claimed on mismatched/ duplication of invoices/ debit notes

Add

(b)

Tax liability on mismatched credit notes

Add

(c)

Reclaim on account of rectification of mismatched invoices/ debit notes

Reduce

(d)

Reclaim on account of rectification of mismatched credit note

Reduce

(e)

Negative tax liability from previous tax periods

Reduce

(f)

Tax paid on advance in earlier tax periods and adjusted with tax on supplies made in current tax period

Reduce

13. HSN summary of inward supplies

Sr. No.

HSN

Description (Optional if HSN is furnished)

UQC

Total Quantity

Total value

Total Taxable Value

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

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11

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom

Signature

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

Instructions -

1. Terms used:

- a. GSTIN: Goods and Services Tax Identification Number
- b. UIN: Unique Identity Number
- c. UQC: Unit Quantity Code
- d. HSN: Harmonized System of Nomenclature
- e. POS: Place of Supply (Respective State)
- f. B to B: From one registered person to another registered person
- g. B to C: From registered person to unregistered person

2. Table 3 & 4 to capture information of:

(i)

Invoice-level inward supply information, rate-wise, pertaining to the tax period reported by supplier in GSTR-1 to be made available in GSTR-2 based on auto-populated details received in GSTR-2A;

(ii)

Table 3 to capture inward supplies other than those attracting reverse charge and Table 4 to capture inward supplies attracting reverse charge;

(iii)

The recipient taxpayer has the following option to act on the auto populated information:

- a. Accept,

- b. Reject,
- c. Modify (if information provided by supplier is incorrect), or
- d. Keep the transaction pending for action (if goods or services have not been received)

(iv)

After taking the action, recipient taxpayer will have to mention whether he is eligible to avail credit or not and if he is eligible to avail credit, then the amount of eligible credit against the tax mentioned in the invoice needs to be filed;

(v)

The recipient taxpayer can also add invoices (not uploaded by the counterparty supplier) if he is in possession of invoices and have received the goods or services;

(vi)

Table 4A to be auto populated;

(vii)

In case of invoices added by recipient tax payer, Place of Supply (PoS) to be captured always except in case of supplies received from registered person, where it is required only if the same is different from the location of the recipient;

(viii)

Recipient will have the option to accept invoices auto populated as well as add invoices, pertaining to reverse charge only when the time of supply arises in terms of section 12 or 13 of the Act; and

(ix)

Recipient tax payer is required to declare in Column No. 12 whether the inward supplies are inputs or input services or capital goods (including plant and machinery).

3. Details relating to import of Goods/ Capital Goods from outside India as well as supplied by an SEZ Unit to be reported rate-wise by recipient tax payer in Table 5.

4. Recipient to provide for Bill of Entry information including six digits port code and seven digits bill of entry number.

5. Taxable Value in Table 5 means assessable value for customs purposes on which IGST is computed (IGST is levied on value plus specified customs duties). In case of imports, the GSTIN would be of recipient tax payer.

6. Table 6 to capture amendment of information, rate-wise, provided in earlier tax periods in Table 3, 4 and 5 as well as original/ amended information of debit or credit note. GSTIN not to be provided in case of export transactions.

7. Table 7 captures information on a gross value level.

8. An option similar to Table 3 is not available in case of Table 8 and the credit as distributed by ISD (whether eligible or ineligible) will be made available to the recipient unit and it will be required to re-determine the eligibility as well as the amount eligible as ITC.

9. TDS and TCS credit would be auto-populated in Table 9. Sales return and Net value columns are not applicable in case of tax deducted at source in Table 9.

10. The eligible credit from Table 3, Table 4 & Table 8 relating to inward supplies to be populated in the Electronic Credit Ledger on submission of its return in Form GSTR-3.

11. Recipient can claim less ITC on an invoice depending on its use i.e. whether for business purpose or non-business purpose.

12. Information of advance paid pertaining to reverse charge supplies and the tax paid on it including adjustments against invoices issued should be reported in Table 10.

13. Table 12 to capture additional liability due to mismatch as well as reduction in output liability due to rectification of mismatch on account of filing of GSTR-3 of the immediately preceding tax period.

14. Reporting criteria of HSN will be same as reported in GSTR-1.

[Form GSTR-2A]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[See rule 60(1)]

Details of auto drafted supplies

(From GSTR 1, GSTR 5, GSTR-6, GSTR-7, GSTR-8, import of goods and inward supplies of goods received from SEZ units / developers)

{|

Year

Month

|
|}
1
GSTIN
2
(a)
Legal name of the registered person
(b)
Trade name, if any
Part A ? 3. Inward supplies received from a registered person including supplies attracting reverse charge
(Amount in Rs. for all Tables)
GSTIN of supplier
Trade/ Legal name
Invoice details
Rate (%)
Taxable value
Amount of tax
Place of supply (Name of State/ UT)
Supply attracting reverse charge (Y/N)
GSTR- 1/5 period
GSTR- 1/5 filing date
GSTR-3B filing status (Yes/ No)
Amendment made, if any (GSTIN, Others)
Tax period in which amended
Effective date of cancellation, if any
No.
Type
Date
Value
Integrated tax
Central tax
State/ UT tax
Cess
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4. Amendment to Inward supplies received from a registered person including supplies attracting reverse charge
(Amendment to 3)

Details of original Document

Revised details

Rate (%)

Taxable value

Amount of tax

Place of supply (Name of State/ UT)

Supply attracting reverse charge (Y/N)

GSTR- 1/5 period

GSTR- 1/5 filing date

GSTR- 3B filing status (Yes / No)

Amendment made (GSTIN, Others)

Tax period of original record

Effective date of cancellation if any,

No.

Date

GSTIN

Trade / Legal name

No.

Type

Date

Value

Integrated tax

Central tax

State/ UT tax

Cess

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5. Debit / Credit notes received during current tax period

GSTIN of supplier

Trade/ Legal name

Credit / Debit Note Details

Rate (%)

Taxable value

Amount of tax

Place of supply (Name of State/UT)

Supply attracting reverse charge (Y/N)

GSTR- 1/5 period

GSTR-1 /5 filing date

GSTR- 3B filing status (Yes/ No)

Amendment made, if any (GSTIN, Others)

Tax period in which amended

Effective date of cancellation, if any

No.

Note type

Note supply type

Date

Value

Integrated tax

Central tax

State/ UT tax

Cess

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6. Amendment to Debit / Credit notes (Amendment to 5)

Details of original document

Revised details

Rate (%)

Taxable value

Amount of tax

Place of supply (Name of State/ UT)
Supply attracting reverse charge (Y/N)
GSTR- 1/5 period
GSTR- 1/5 filing date
GSTR- 3B filing status (Yes / No)
Amendment made (GSTIN, Others)
Tax period of original record
Effective date of cancellation if any
Type
No.
Date
GSTIN of Supplier
Trade / Legal name
No.
Note type
Note supply type
Date
Value
Integrated tax
Central tax
State/ UT tax
Cess
1
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24
Part B ? 7. ISD credit received
GSTIN of ISD
Trade/ Legal name
ISD document details
ISD invoice details (for ISD credit note only)

ITC amount involved
GSTR-6 Period
GSTR-6 filing date
Amendment made, if any
Tax Period in which amended
ITC Eligibility

Type

No.

Date

No.

Date

Integrated tax

Central tax

State/ UT tax

Cess

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16

8. Amendments to ISD credit details

Original ISD Document Details

Revised details

Original ISD invoice details (for ISD credit note only)

ITC amount involved

ISD GSTR-6 Period

ISD GSTR-6 filing date

Amendment made

Tax period of original record

ITC Eligibility

Type

No.

Date

GSTIN of ISD

Trade/ Legal name

Type

No.

Date

No.

Date
Integrated Tax
Central Tax
State/ UT Tax
Cess

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Part C ? 9. TDS and TCS Credit (including amendments thereof) received

GSTIN of Deductor / GSTIN of ECommerce Operator

Deductor Name / ECommerce Operator Name

Tax period of GSTR-7 / GSTR-8 (Original /
Amended)

Amount received / Gross value (Original /
Revised)

Value of supplies returned

Net amount liable for TCS

Amount (Original / Revised)

Integrated tax

Central tax

State /UT tax

1
2
3
4
5
6
7
8
9

9A. TDS

9B. TCS

Part - D 10. Import of goods from overseas on bill of entry (including amendments thereof)

ICEGATE Reference date

Bill of entry details

Amount of tax

Amended (Yes/ No)

Port code

No.

Date

Value

Integrated tax

Cess

1

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3

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11. Inward supplies of goods received from SEZ units / developers on bill of entry (including amendments thereof)

GSTIN of the Supplier (SEZ)

Trade / Legal name

ICEGATE Reference date

Bill of Entry details

Amount of tax

Amended (Yes/ No)

Port code

No.

Date

Value

Integrated tax

Cess

1

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Instructions. - 1. Terms Used :-

a. ITC – Input tax credit

b. ISD – Input Service Distributor

2. Important Advisory: FORM GSTR-2A is statement which has been generated on the basis of the information furnished by your suppliers in their respective FORMS GSTR-1,5,6,7 and 8. It is a dynamic statement and is updated on new addition/amendment made by your supplier in near real time. The details added by supplier would reflect in corresponding FORM GSTR-2A of the recipient irrespective of supplier's date of filing.

3. There may be scenarios where a percentage of the applicable rate of tax rate may be notified by the Government. A separate column will be provided for invoices / documents where such rate is applicable.

4. Table wise instructions:

Table No. and Heading

Instructions

3

Inward supplies received from a registered person including supplies attracting reverse charge

i. The table consists

of all the invoices (including invoices on which reverse charge is applicable) which have been saved / filed by your suppliers in their FORM GSTR-1 and 5.

ii. Invoice type :

a. R- Regular (Other than SEZ supplies and Deemed exports)

b. SEZWP- SEZ supplies with payment of tax

c. SEZWOP- SEZ supplies without payment of tax

d. DE- Deemed exports

e. CBW - Intra-State supplies attracting IGST

iii. For every

invoice, the period and date of FORM GSTR-1/5 in which such invoice has been declared and filed is being provided. It may be noted that the details added by supplier would reflect in corresponding FORM GSTR-2A of the recipient irrespective of supplier's date of filing. For example, if a supplier files his invoice INV-1 dated 10th November 2019 in his FORM GSTR-1 of March 2020, the invoice will be reflected in FORM GSTR-2A of March, 2020 only. Similarly, if the supplier files his FORM GSTR-1 for the month of November on 5th March 2020, the invoice will be reflected in FORM GSTR-2A of November 2019 for the recipient.

iv. The status of

filing of corresponding FORM GSTR-3B for FORM GSTR-1 will also be provided.

v. The table also

shows if the invoice or debit note was amended by the supplier and if yes, then the tax period in which such invoice was amended, declared and filed. For example, if a supplier has filed his invoice INV-1 dated 10th November 2019 in his FORM GSTR-1 of November 2019, the invoice will be reflected in FORM GSTR-2A of November, 2019. If the supplier amends this invoice in FORM GSTR-1 of December 2019, the amended invoice will be made available in Table 4 of FORM GSTR-2A of December 2019. The original record present in Table 3 of FORM GSTR-2A of November 2019 for the recipient will now have updated columns of amendment made (GSTIN, others) and tax period of amendment as December 2019.

vi. In case, the supplier has cancelled his registration, the effective date of cancellation will be provided.

4

Amendment to Inward supplies received from a registered person including supplies attracting reverse charge

(Amendment to table 3)

i. The table consists

of amendment to invoices (including invoice on which reverse charge is applicable) which have been saved/filed by your suppliers in their FORM GSTR-1 and 5.

ii. Tax period in which the invoice was reported

originally and type of amendment will also be provided. For example, if a supplier has filed his invoice INV-1 dated 10th November 2019 in his FORM GSTR-1 of November 2019, the invoice will be reflected in FORM GSTR-2A of November, 2019. If the supplier amends this invoice in FORM GSTR-1 of December 2019, the amended invoice will be made available in Table 4 of FORM GSTR-2A of December 2019. The original record present in Table 3 of FORM GSTR-2A of November 2019 for the recipient will now have updated columns of amendment made (GSTIN, others) and tax period of amendment as December 2019.

5

Debit / Credit notes received during current tax period

i. The table consists

of the credit and debit notes (including credit/debit notes relating to transactions on which reverse charge is applicable) which have been saved/filed by your suppliers in their FORM GSTR-1 and 5.

ii. If the

credit/debit note has been amended subsequently, tax period in which the note has been amended will also be provided.

iii. Note Type:

Credit Note

Debit Note

iv. Note supply type:

R- Regular (Other

than SEZ supplies and Deemed exports)

SEZWP- SEZ supplies

with payment of tax

SEZWOP- SEZ

supplies without payment of tax

DE- Deemed exports

CBW - Intra-State

supplies attracting IGST

v. For every credit

or debit note, the period and date of FORM GSTR-1/5 in which such credit or debit note has been declared and filed is being provided. It may be noted that the details added by supplier would reflect in corresponding FORM GSTR-2A of the recipient irrespective of supplier's filing of FORM GSTR-1. For example, if a supplier files his credit note CN-1 dated 10th November 2019 in his FORM GSTR-1 of March 2020, the credit note will be reflected in FORM GSTR-2A of March, 2020 only. Similarly, if the supplier files his FORM GSTR-1 for the month of November on 5th March 2020, the credit note will be reflected in FORM

GSTR-2A of November 2019 for the recipient.

vi. The status of filing of corresponding FORM GSTR-3B of suppliers will also be provided.

vii. The table also shows if the credit note or debit note has been amended subsequently and if yes, then the tax period in which such credit note or debit note was amended, declared and filed.

viii. In case, the supplier has cancelled his registration, the effective date of cancellation will be displayed.

6

Amendment to Debit/Credit notes(Amendment to 5)

i. The table consists of the amendments to credit and debit notes (including credit/debit notes on which reverse charge is applicable) which have been saved/filed by your suppliers in their FORM GSTR-1 and 5.

ii. Tax period in which the note was reported originally will also be provided.

7

ISD credit received

i. The table consists of the details of the ISD invoices and ISD credit notes which have been saved/filed by an input service distributor in their FORM GSTR-6.

ii. Document Type :

ISD Invoice

ISD Credit Note

iii. If ISD credit note is issued subsequent to issue of ISD invoice, original invoice number and date will also be shown against such credit note. In case document type is ISD Invoice these columns would be blank

iv. For every ISD invoice or ISD credit note, the period and date of FORM GSTR-6 in which such respective invoice or credit note has been declared and filed is being provided.

v. The status of eligibility of ITC on ISD invoices as declared in FORM GSTR-6 will be provided.

vi. The status of eligibility of ITC on ISD credit notes will be provided.

8

Amendment to ISD credit received

i. The table consists of the details of the amendments to details of the ISD invoices and ISD credit notes which have been saved/filed by an input service distributor in their FORM GSTR-6.

9

TDS / TCS credit received

i. The table consists of the details of TDS and TCS credit from FORM GSTR-7 and FORM GSTR-8 and its amendments in a tax period.

ii. A separate facility will be provided on the common portal to accept/ reject TDS and TCS credit.

10 & 11

Details of Import of goods from overseas on bill of entry and from SEZ units and developers and their respective amendments

i. The table consists of details of IGST paid on imports of goods from overseas and SEZ units / developers on bill of entry and amendment thereof.

ii. The ICEGATE reference date is the date from which the recipient is eligible to take input tax credit.

iii. The table also provides if the Bill of entry was amended.

iv. Information is provided in the tables based on data received from ICEGATE. Information on certain imports such as courier imports may not be available.

[Form-2B]

[Inserted by Notification No. G.S.R. 698(E), dated 10.11.2020 (w.e.f. 19.6.2017).]

[See rule 60(7)]

Auto-drafted ITC Statement

(From FORM GSTR-1, GSTR-5, GSTR-6 and Import data received from ICEGATE)

{

Year

Month

|

}

1. GSTIN

2(a). Legal name of the registered person

2(b). Trade name, if any

2(c). Date of generation

DD/MM/YYYY HH:MM

3. ITC Available Summary

(Amount in L in all sections)

S.no.

Heading

GSTR- 3B table

Integrated Tax (L)

Central Tax (L)

State/UT tax (L)

Cess (L)

Advisory

Credit which may be availed under FORM GSTR-3B

Part A

ITC Available - Credit may be claimed in relevant headings in GSTR-3B

|

All other ITC - Supplies from registered

persons other than reverse charge

4(A)(5)

If this is positive, credit may be availed under Table 4(A)(5) of FORM GSTR-3B. If this is negative, credit shall be reversed under Table 4(B)(2) of FORM GSTR-3B.

Details

B2B - Invoices

B2B - Debit notes

B2B - Invoices (Amendment)

B2B - Debit notes (Amendment)

II

Inward Supplies from ISD

4(A)(4)

If this is positive, credit may be availed under Table 4(A)(4) of FORM GSTR-3B. If this is negative, credit shall be reversed under Table 4(B)(2) of FORM GSTR-3B.

Details

ISD - Invoices

ISD - Invoices (Amendment)

III

Inward Supplies liable for reverse charge

3.1(d) 4(A)(3)

These supplies shall be declared in Table 3.1(d) of FORM GSTR- 3B for payment of tax. Credit may be availed under Table 4(A)(3) of FORM GSTR- 3B on payment of tax.

Details

B2B - Invoices

B2B - Debit notes

B2B - Invoices (Amendment)

B2B - Debit notes (Amendment)

IV

Import of Goods

4(A)(1)

If this is positive, credit may be availed under Table 4(A)(1) of FORM GSTR-3B. If this is negative, credit shall be reversed under Table 4(B)(2) of FORM GSTR-3B.

Details

IMPG - Import of goods from overseas

IMPG (Amendment)

IMGSEZ - Import of goods from SEZ

IMGSEZ (Amendment)

Part B

ITC Reversal - Credit shall be reversed in relevant headings in GSTR-3B

I

Others

4(B)(2)

If this is positive, Credit shall be reversed under Table 4(B)(2) of FORM GSTR-3B. If this is negative, then credit may be reclaimed subject to reversal of the same on an earlier instance.

Details

B2B - Credit notes

B2B - Credit notes (Amendment)

B2B - Credit notes (Reverse charge)

B2B - Credit notes (Reverse charge) (Amendment)

ISD - Credit notes

ISD - Credit notes (Amendment)

4. ITC Not Available Summary

(Amount in L in all sections)

S.no.

Heading

GSTR- 3B table

Integrated Tax (?)

Central Tax (?)

State/UT tax (?)

Cess (?)

Advisory

Credit which may not be availed under FORM

GSTR-3B

Part A ITC Not Available

I

All other ITC - Supplies from registered

persons other than reverse charge

NA

Such credit shall not be taken in FORM GSTR-3B

Details

B2B - Invoices

B2B - Debit notes

B2B - Invoices (Amendment)

B2B - Debit notes (Amendment)

II

Inward Supplies from ISD

NA

Such credit shall not be taken in FORM GSTR-3B

Details

ISD - Invoices

ISD - Invoices (Amendment)

III

Inward Supplies liable for reverse charge

3.1(d)

These supplies shall be declared in Table 3.1(d)

of FORM GSTR- 3B for payment of tax. However, credit will not be available on the same.

Details

B2B - Invoices

B2B - Debit notes

B2B - Invoices (Amendment)

B2B - Debit notes (Amendment)

Part B

ITC Reversal

I

Others

4(B)(2)

Credit shall be reversed under Table 4(B)(2) of FORM GSTR ? 3B.

Details

B2B - Credit notes

B2B - Credit notes (Amendment)

B2B - Credit notes (Reverse charge)

B2B - Credit notes (Reverse charge) (Amendment)

ISD - Credit notes

ISD - Credit notes (Amendment)

Instructions:

1. Terms Used : -

a. ITC – Input tax credit

b. B2B – Business to Business

c. ISD – Input service distributor

d. IMPG – Import of goods

e. IMPGSEZ – Import of goods from SEZ

2. Important Advisory:

a) FORM GSTR-2B is a statement which has been generated on the basis of the information furnished by your suppliers in their respective FORMS GSTR-1, 5 and 6. It is a static statement and will be made available once a month. The documents filed by the supplier in any FORMS GSTR-1, 5 and 6 would reflect in the next open FORM GSTR-2B of the recipient irrespective of supplier's date of filing.

Taxpayers are advised to refer FORM GSTR-2B for availing credit in FORM GSTR-3B. However, in case for additional details, they may refer to their respective FORM GSTR-2A (which is updated on near real time basis) for more details.

b) Input tax credit shall be indicated to be non-available in the following scenarios: -

i. Invoice or debit note for supply of goods or services or both where the recipient is not entitled to input tax credit as per the provisions of sub-section (4) of Section 16 of CGST Act, 2017.

ii. Invoice or debit note where the Supplier (GSTIN) and place of supply are in the same State while recipient is in another State.

However, there may be other scenarios for which input tax credit may not be available to the taxpayers and the same has not been generated by the system. Taxpayers, should self-assess and reverse such credit in their FORM GSTR-3B.

3. It may be noted that FORM GSTR-2B will consist of all the FORM GSTR-1s, 5s and 6s being filed by your suppliers, generally between the due dates of filing of two consequent GSTR-1 or furnishing of IFFs, based on the filing option (monthly or quarterly) as chosen by the corresponding supplier. The dates for which the relevant data has been extracted is specified in the CGST Rules and is also available under the "View Advisory" tab on the online portal. For example, FORM GSTR-2B for the month of February will consist of all the documents filed by suppliers who choose to file their FORM GSTR-1 monthly from 00:00 hours on 12th February to 23:59 hours on 11th March.

4. It also contains information on imports of goods from the ICEGATE system including data on imports from Special Economic Zones Units / Developers.

5. It may be noted that reverse charge credit on import of services is not part of this statement and will be continued to

be entered by taxpayers in Table 4(A)(2) of FORM GSTR-3B.

6. Table 3 captures the summary of ITC available as on the date of generation of FORM GSTR-2B. It is divided into following two parts:

A. Part A captures the summary of credit that may be availed in relevant tables of FORM GSTR-3B.

B. Part B captures the summary of credit that shall be reversed in relevant table of FORM GSTR-3B.

7. Table 4 captures the summary of ITC not available as on the date of generation of FORM GSTR-2B. Credit available in this table shall not be availed as credit in FORM GSTR-3B. However, the liability to pay tax on reverse charge basis and the liability to reverse credit on receipt of credit notes continues for such supplies.

8. Taxpayers are advised to ensure that the data generated in FORM GSTR-2B is reconciled with their own records and books of accounts. Tax payers shall ensure that

a. No credit shall be taken twice for any document under any circumstances.

b. Credit shall be reversed wherever necessary.

c. Tax on reverse charge basis shall be paid.

9. Details of invoices, credit notes, debit notes, ISD invoices, ISD credit and debit notes, bill of entries etc. will also be made available online and through download facility.

10. There may be scenarios where a percentage of the applicable rate of tax rate may be notified by the Government. A separate column will be provided for invoices / documents where such rate is applicable.

11. Table wise instructions:

Table No. and Heading

Instructions

Table 3 Part A Section I All other ITC - Supplies

from registered persons other than reverse charge

i.

This section consists of the details of supplies (other than those on which tax is to be paid on reverse charge basis), which have been declared and filed by your suppliers in their FORM GSTR-1 and 5.

ii.

This table displays only the supplies on which input tax credit is available.

iii. Negative

credit, if any may arise due to amendment in B2B? Invoices and B2B ? Debit notes. Such credit shall be reversed in Table 4(B)(2) of FORM GSTR-3B.

Table 3 Part A Section II Inward Supplies from

ISD

i.

This section consists of the details of supplies, which have been declared and filed by an input service distributor in their FORM GSTR-6.

ii.

This table displays only the supplies on which ITC is available.

iii. Negative

credit, if any, may arise due to amendment in ISD Amendments ? Invoices. Such credit shall be reversed in table 4(B)(2) of FORM GSTR-3B.

Table 3 Part A Section III Inward Supplies liable

for reverse charge

i.

This section consists of the details of supplies on which tax is to be paid on reverse charge basis, which have been declared and

filed by your suppliers in their FORM GSTR-1.

ii.

This table provides only the supplies on which ITC is available.

iii. These supplies

shall be declared in Table 3.1(d) of FORM GSTR-3B for payment of tax. Credit may be availed under Table 4(A)(3) of FORM GSTR-3B on payment of tax.

Table 3 Part A Section IV Import of Goods

i.

This section provides the details of IGST paid by you on import of goods from overseas and SEZ units / developers on bill of entry and amendment thereof. These details are updated on near real time basis from the ICEGATE system.

ii.

This table shall consist of data on the imports made by you (GSTIN) in the month for which FORM GSTR-2B is being generated for.

iii.

The ICEGATE reference date is the date from which the recipient is eligible to take input tax credit.

iv.

The table also provides if the Bill of entry was amended.

v. Information is

provided in the tables based on data received from ICEGATE.

Information on certain imports such as courier imports may not be available.

Table 3 Part B Section I Others

i.

This section consists of the details of credit notes received and amendment thereof which have been declared and filed by your suppliers in their FORM GSTR-1 and 5

ii. Such credit

shall be reversed under Table 4(B)(2) of FORM GSTR-3B. If this value is negative, then credit may be reclaimed subject to reversal of the same on an earlier instance.

Table 4 Part A Section I All other ITC - Supplies from registered persons other than reverse charge

i.

This section consists of the details of supplies (other than those on which tax is to be paid on reverse charge basis), which have been declared and filed by your suppliers in their FORM GSTR-1 and 5.

ii.

This table provides only the supplies on which ITC is not available.

iii. This is for

information only and such credit shall not be taken in FORM GSTR-3B.

Table 4 Part A Section II Inward Supplies from ISD

i.

This section consists of the details supplies, which have been declared and filed by an input service distributor in their FORM GSTR-6.

ii.

This table provides only the supplies on which ITC is not available.

iii. This is for

information only and such credit shall not be taken in FORM GSTR-3B.

Table 4 Part A Section III Inward Supplies liable for reverse charge

i.

This section consists of the details of supplies liable for reverse charge, which have been declared and filed by your suppliers in their FORM GSTR-1.

ii.

This table provides only the supplies on which ITC is not available.

iii. These supplies

shall be declared in Table 3.1(d) of FORM GSTR-3B for payment of tax. However, credit will not be available on such supplies.

Table 4 Part B Section I Others

i.

This section consists details the credit notes received and amendment thereof which have been declared and filed by your suppliers in their FORM GSTR-1 and 5

ii.

This table provides only the credit notes on which ITC is not available.

iii. Such credit

shall be reversed under Table 4(B)(2) of FORM GSTR-3B.

[Form GSTR-3]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 61(1)]

Monthly return

{

Year

Month

|

}]

1

GSTIN

2

(a)

Legal name of the registered person

(b)

Trade name, if any

Part-A (To be auto populated)

(Amount in Rs. for all Tables)

3. Turnover

Sr. No.

Type of Turnover

Amount

1

2

3

(i)

Taxable [other than zero rated]

(ii)

Zero rated supply on payment of Tax

(iii)

Zero rated supply without payment of Tax

(iv)

Deemed exports

(v)

Exempted

(vi)

Nil Rated

(vii)

Non-GST supply

Total

4. Outward supplies

4.1

Inter-State supplies (Net Supply for the month)

Rate

Taxable Value

Amount of Tax

Integrated Tax

CESS

1

2

3

4

A. Taxable supplies (other than reverse charge and zero rated supply) [Tax Rate Wise]

B. Supplies attracting reverse charge-Tax payable by recipient of supply

C. Zero rated supply made with payment of Integrated Tax

D. Out of the supplies mentioned at A, the value of supplies made through an e-commerce operator attracting TCS-[Rate wise]

GSTIN of e-commerce operator

4.2

Intra-State supplies (Net supply for the month)

Rate

Taxable Value

Amount of Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

A. Taxable supplies (other than reverse charge) [Tax Rate wise]

B. Supplies attracting reverse charge-Tax payable by the recipient of supply

C. Out of the supplies mentioned at A, the value of supplies made though an e-commerce operator attracting TCS [Rate wise]
GSTIN of e-commerce operator

4.3

Tax effect of amendments made in respect of outward supplies

Rate

Net differential value

Amount of Tax

Integrated tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

(I) Inter-State supplies

A Taxable supplies (other than reverse charge and Zero Rated supply made with payment of Integrated Tax) [Rate wise]

B Zero rated supply made with payment of Integrated Tax [Rate wise]

C Out of the Supplies mentioned at A, the value of supplies made though an e-commerce operator attracting TCS

(II) Intra-state supplies

A Taxable supplies (other than reverse charge) [Rate wise]

B Out of the supplies mentioned at A, the value of supplies made though an e-commerce operator attracting TCS

5. Inward supplies attracting reverse charge including import of services (Net of advance adjustments)

5A.

Inward supplies on which tax is payable on reverse charge basis

Rate of tax

Taxable Value

Amount of tax

Integrated Tax

Central Tax

State/ UT tax

CESS

1

2

3

4

5

6

(I) Inter-State inward supplies [Rate Wise]

(II) Intra-State inward supplies [Rate Wise]

5B.

Tax effect of amendments in respect of supplies attracting reverse charge

Rate of tax

Differential Taxable Value

Amount of tax

Integrated Tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

6

(I) Inter-State inward supplies (Rate Wise)

(II) Intra-State inward supplies (Rate Wise)

6. Input tax credit

ITC on inward taxable supplies, including imports and ITC received from ISD [Net of debit notes/ credit notes]

Description

Taxable value

Amount of tax

Amount of ITC

Integrated Tax

Central Tax

State/ UT Tax

CESS

Integrated Tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

6

7

8

9

10

(I) On account of supplies received and debit notes/credit notes received during the current tax period

(a) Inputs

(b) Input services

(c) Capital goods

(II) On account of amendments made (of the details furnished in earlier tax periods)

(a) Inputs

(b) Input services

(c) Capital goods

7. Addition and reduction of amount in output tax for mismatch and other reasons

Description

Add to or reduce from output liability

Amount

Integrated tax

Central tax

State/ UT tax

CESS

1

2

3

4

5

6

(a)

ITC claimed on mismatched/ duplication of
invoices/ debit notes

Add

(b)

Tax liability on mismatched credit notes

Add

(c)

Reclaim on rectification of mismatched invoices/
Debit Notes

Reduce

(d)

Reclaim on rectification of mismatch credit note

Reduce

(e)

Negative tax liability from previous tax periods

Reduce

(f)

Tax paid on advance in earlier tax periods and
adjusted with tax on supplies made in current tax period

Reduce

(g)

Input Tax credit reversal/ reclaim

Add/ Reduce

8. Total tax liability

Rate of Tax

Taxable value

Amount of tax

Integrated tax

Central tax

State/ UT Tax

CESS

1

2

3

4

5

6

8A. On outward supplies

8B. On inward supplies attracting reverse charge

8C. On account of Input Tax Credit Reversal/ reclaim

8D. On account of mismatch/ rectification/ other reasons

9. Credit of TDS and TCS

Amount

Integrated tax

Central tax

State/ UT Tax

1

2

3

4

(a)

TDS

(b)

TCS

10. Interest liability (Interest as on)

On account of

Output liability on mismatch

ITC claimed on mismatched invoice

On account of other ITC reversal

Undue excess claims or excess reduction [refer
sec 50(3)]

Credit of interest on rectification of mismatch

Interest liability carry forward

Delay in payment of tax

Total interest liability

1

2

3

4

5

6

7

8

9

(a) Integrated Tax

(b) Central Tax

(c) State/ UT Tax

(d) Cess

11. Late Fee

On account of

Central Tax

State/ UT tax

1

2

3
Late fee
Part B ? 12. Tax payable and paid
Description
Tax payable
Paid in cash
Paid through ITC
Tax Paid
Integrated Tax
Central Tax
State/ UT Tax
Cess
1
2
3
4
5
6
7
8
(a) Integrated Tax
(b) Central Tax
(c) State/ UT Tax
(d) Cess
13. Interest, Late Fee and any other amount (other than tax) payable and paid
Description
Amount payable
Amount Paid
1
2
3
(I) Interest on account of
(a) Integrated tax
(b) Central Tax
(c) State/ UT Tax
(d) Cess
II Late fee
(a) Central tax
(b) State/ UT tax
14. Refund claimed from Electronic cash ledger
Description
Tax
Interest
Penalty
Fee
Other
Debit Entry Nos.
1
2
3
4

5

6

7

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

(d) Cess

Bank Account Details (Drop Down)

15. Debit entries in electronic cash/ Credit ledger for tax/ interest payment [to be populated after payment of tax and submissions of return]

Description

Tax paid in cash

Tax paid through ITC

Interest

Late fee

Integrated tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

(d) Cess

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

Instructions:-

1. Terms Used :-

a) GSTIN :- Goods and Services Tax Identification Number

b) TDS :- Tax Deducted at source

c) TCS :- Tax Collected at source

2. GSTR 3 can be generated only when GSTR-1 and GSTR- 2 of the tax period have been filed.

3. Electronic liability register, electronic cash ledger and electronic credit ledger of taxpayer will be updated on generation of GSTR-3 by taxpayer.

4. Part-A of GSTR-3 is auto-populated on the basis of GSTR 1, GSTR 1A and GSTR 2.

5. Part-B of GSTR-3 relates to payment of tax, interest, late fee etc. by utilising credit available in electronic credit ledger

and cash ledger.

6. Tax liability relating to outward supplies in Table 4 is net of invoices, debit/ credit notes and advances received.
7. Table 4.1 will not include zero rated supplies made without payment of taxes.
8. Table 4.3 will not include amendments of supplies originally made under reverse charge basis.
9. Tax liability due to reverse charge on inward supplies in Table 5 is net of invoices, debit/ credit notes, advances paid and adjustments made out of tax paid on advances earlier.
10. Utilization of input tax credit should be made in accordance with the provisions of section 49.
11. GSTR-3 filed without discharging complete liability will not be treated as valid return.
12. If taxpayer has filed a return which was not valid earlier and later on, he intends to discharge the remaining liability, then he has to file the Part B of GSTR-3 again.
13. Refund from cash ledger can only be claimed only when all the return related liabilities for that tax period have been discharged.
14. Refund claimed from cash ledger through Table 14 will result in a debit entry in electronic cash ledger on filing of valid GSTR 3.

[Form GSTR-3A]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 68]

Reference No. :

Date :

To

_____ GSTIN

_____ Name

_____ Address

Notice to return defaulter u/s 46 for not filing return

Tax Period -

Type of Return -

Being a registered taxpayer, you are required to furnish return for the supplies made or received and to discharge resultant tax liability for the aforesaid tax period by due date. It has been noticed that you have not filed the said return till date.

2. You are, therefore, requested to furnish the said return within 15 days failing which the [tax liability may]

[Substituted 'tax liability will' by Notification No. G.S.R. 4(E), dated 1.1.2020 (w.e.f. 19.6.2017).]

be assessed u/s 62 of the Act, based on the relevant material available with this office. Please note that in addition to tax so assessed, you will also be liable to pay interest and penalty as per provisions of the Act.

3. Please note that no further communication will be issued for assessing the liability.

4. The notice shall be deemed to have been withdrawn in case the return referred above, is filed by you before issue of the assessment order.

5. [This is a system generated notice and does not require signature.]

[Inserted by Notification No. G.S.R. 4(E), dated 1.1.2020 (w.e.f. 19.6.2017).]

Or

Notice to return defaulter u/s 46 for not filing final return upon cancellation of registration

Cancellation order No. -

Date -

Application Reference Number, if any -

Date -

Consequent upon applying for surrender of registration or cancellation of your registration for the reasons specified in the order, you were required to submit a final return in form GSTR-10 as required under section 45 of the Act.

2. It has been noticed that you have not filed the final return by the due date.

3. You are, therefore, requested to furnish the final return as specified under section 45 of the Act within 15 days failing which your tax liability for the aforesaid [tax period may]

[Substituted 'tax period will' by Notification No. G.S.R. 4(E), dated 1.1.2020 (w.e.f. 19.6.2017).]

be determined in accordance with the provisions of the Act based on the relevant material available with or gathered by

this office. Please note that in addition to tax so assessed, you will also be liable to pay interest as per provisions of the Act.

4. This notice shall be deemed to be withdrawn in case the return is filed by you before issue of the assessment order.

5. [This is a system generated notice and does not require signature.]

[Inserted by Notification No. G.S.R. 4(E), dated 1.1.2020 (w.e.f. 19.6.2017).]

Signature

Name

Designation

[Form GSTR-3B]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 61(5)]

{|

Year

Month

|

|}

1

GSTIN

2

(a)

Legal name of the registered person

3.1

Details of Outward Supplies and inward supplies liable to reverse charge

Nature of Supplies

Total Taxable value

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

(a) Outward taxable supplies (other than zero rated, nil rated and exempted)

(b) Outward taxable supplies (zero rated)

(c) Other outward supplies (Nil rated, exempted)

(d) Inward supplies (liable to reverse charge)

(e) Non-GST outward supplies

3.2

Of the supplies shown in 3.1 (a) above, details of inter-State supplies made to unregistered persons, composition taxable persons and UIN holders

Place of Supply (State/ UT)

Total Taxable value

Amount of Integrated Tax

1

2

3

4

Supplies made to Unregistered Persons

Supplies made to Composition Taxable Persons

Supplies made to UIN holders

4. Eligible ITC

Details

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

(A) ITC Available (whether in full or part)

(1) Import

of goods

(2) Import

of services

(3) Inward

supplies liable to reverse charge (other than 1 & 2 above)

(4) Inward

supplies from ISD

(5) All

other ITC

(B) ITC Reversed

(1) As per

rules 42 & 43 of CGST Rules

(2) Others

(C) Net ITC Available (A) ? (B)

(D) Ineligible ITC

(1) As per

section 17(5)

(2) Others

5. Values of exempt, nil-rated and non-GST inward supplies

Nature of

supplies

Inter-State supplies

Intra-State supplies

1

2

3

From a supplier under composition scheme, Exempt
and Nil rated supply

Non GST supply

6.1

Payment of tax

Description

Tax payable

Paid through ITC

Tax paid TDS./ TCS

Tax/ Cess paid in cash

Interest

Late Fee

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

Integrated Tax

Central Tax

State/ UT Tax

Cess

6.2

TDS/ TCS Credit

Details

Integrated Tax

Central Tax

State/ UT Tax

1

2

3

4

TDS

TCS

Verification (by Authorised signatory)

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed there from.

Instructions :

1.

) Value of Taxable Supplies = Value of invoices + value of Debit Notes - value of credit notes + value of advances received for which invoices have not been issued in the same month - value of advances adjusted against invoices

2.

) Details of advances as well as adjustment of same against invoices to be adjusted and not shown separately

3.

) Amendment in any details to be adjusted and not shown separately.

[Form GSTR-4]

[Substituted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[See rule 62]

Return for financial year of registered person who has opted for composition levy or availing benefit of notification No. 02/2019- Central Tax (Rate)

{|

Year

|
|}
1.
GSTIN
2.
(a)
Legal name of the registered person
< Auto >
(b)
Trade name, if any
< Auto >
3.
(a)
Aggregate Turnover in the preceding Financial Year(Auto populated)
(b)
ARN
< Auto >(after filing)>
(c)
Date of ARN
< Auto>(after filing)>
4. Inward supplies including supplies on which tax is to be paid on reverse charge
GSTIN of supplier
Invoice details
Rate
Taxable value
Amount of tax
Place of Supply (Name of State/ UT)
No.
Date
Value
Integrated Tax
Central Tax
State/ UT Tax
Cess
1
2
3
4
5
6
7
8
9
10
11
4A. Inward supplies received from a registered supplier (other than supplies attracting reverse charge)
4B. Inward supplies received from a registered supplier (attracting reverse charge)
4C. Inward supplies received from an unregistered supplier
4D. Import of service
5. Summary of self-assessed liability as per FORM GST CMP-08
(Net of advances, credit and debit notes and any other adjustment due to amendments etc.)

Sr. No.

Description

Value

Amount of tax

Integrated tax

Central tax

State/ UT tax

Cess

1

2

3

4

5

6

7

1

Outward supplies (including exempt supplies)

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

2

Inward supplies attracting reverse charge

including import of services

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

3

Tax paid (1+2)

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

4

Interest paid, if any

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

6. Tax rate wise details of outward supplies / inward supplies attracting reverse charge during the year
(Net of advances, credit and debit notes and any other adjustment due to amendments etc.)

Sr. No.

Type of supply (Outward/ Inward)

Rate of tax (%)

Value

Amount of tax

Integrated tax

Central tax

State/ UT tax

Cess

1

2

3

4

5

6

7

8

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

< Auto>

Total

< Auto>

< Auto>

< Auto>

< Auto>

7. TDS/TCS Credit received

GSTIN of Deductor / e-commerce operator

Gross Value

Amount

Central Tax

State/UT Tax

1

2

3

4

8. Tax, interest, late fee payable and paid

Sr. No.

Type of tax

Tax amount payable (As per table 6)

Tax Amount already paid (Through FORM GST

CMP-08)

Balance amount of tax payable, if any (3-4)

Interest payable

Interest paid

Late fee payable

Late fee paid

1

2
3
4
5
6
7
8
9
1

Integrated tax

< Auto>

< Auto>

< Auto>

2

Central tax

< Auto>

< Auto>

< Auto>

3

State/UT tax

< Auto>

< Auto>

< Auto>

4

Cess

< Auto>

< Auto>

< Auto>

9. Refund claimed from Electronic cash ledger

Description

Tax

Interest

Penalty

Fee

Other

Debit Entry Nos.

1
2
3
4
5
6
7

(a) Integrated tax

(b) Central Tax

(c) State/UT Tax

(d) Cess

Bank Account Details (Drop Down)

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

PlaceDate

Signature of Authorised SignatoryName of Authorised SignatoryDesignation /Status

Instructions: -

1. Terms used:

(a)

GSTIN : Goods and Services Tax Identification Number

(b)

TDS : Tax Deducted at Source

(c)

TCS : Tax Collected at Source

2. The details in FORM GSTR-4, for every financial year or part thereof, should be furnished till the thirtieth day of April following the end of such financial year.

3. Aggregate turnover of the taxpayer for the immediate preceding financial year would be auto-populated.

4. Table 4 to capture information, on a consolidated basis, related to inward supplies, rate-wise, GSTIN wise:

(i)

Table 4A to capture inward supplies from registered supplier other than those attracting reverse charge;

(ii)

Table 4B to capture inward supplies from registered supplier attracting reverse charge;

(iii)

Table 4C to capture supplies from unregistered supplier;

(iv)

Table 4D to capture import of services.

5. Table 5 to capture details (and adjustments thereof) of outward supplies (including exempt supplies) and inward supplies attracting reverse charge including import of services as declared earlier in FORM GST CMP-08 during the financial year.

6. TDS/TCS credit received from deductor/e-commerce operator would be auto-populated in Table 7.

[Form GSTR-4A]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rules 59(3) & 66(2)]

Auto-drafted details for registered person opting for composition levy

(Auto-drafted from GSTR-1, GSTR-5 and GSTR-7)

Year

Quarter

1

GSTIN

2

(a)

Legal name of the registered person

(b)

Trade name, if any

3. Inward supplies received from registered person including supplies attracting reverse charge

GSTIN of supplier

Invoice details

Rate

Taxable value

Amount of tax

Place of Supply (Name of State/ UT)

No.

Date

Value

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

3A. Inward supplies received from a registered supplier (other than supplies attracting reverse charge)

3B. Inward supplies received from a registered supplier (attracting reverse charge)

4. Debit notes/ credit notes (including amendments thereof) received during current period

Details of original invoice

Revised details of invoice

Rate

Taxable value

Amount

Place of supply (Name of State/ UT)

GSTIN

No.

Date

GSTIN

No.

Date

Value

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

14

5. TDS Credit received

GSTIN of Deductor

Gross Value

Amount

Central Tax

State/ UT Tax

1

2

3

4

[Form GSTR-5]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 63]

Return for Non-resident taxable person

{|

Year

Month

|

|}

1.

GSTIN

2.

(a)

Legal name of the registered person

(b)

Trade name, if any

(c)

Validity period of registration

(d) [

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

ARN

Auto Populated

(e)

Date of ARN

Auto Populated.]

3. Inputs/ Capital goods received from Overseas (Import of goods)

(Amount in Rs. for all Tables)

Details of bill of entry

Rate

Taxable value

Amount

Amount of ITC available

No.

Date

Value

Integrated Tax

Cess

Integrated Tax

Cess

1

2

3

4

5

6
7
8
9
4. Amendment in the details furnished in any earlier return
Original details
Revised details
Differential ITC (+/-)
Bill of entry
Bill of entry
Rate
Taxable value
Amount
Amount of ITC available
No
Date
No
Date
Value
Integrated Tax
Cess
Integrated Tax
Cess
Integrated tax
Cess
1
2
3
4
5
6
7
8
9
10
11
12
13
5. Taxable outward supplies made to registered persons (including UIN holders)
GSTIN/ UIN
Invoice details
Rate
Taxable value
Amount
Place of Supply (Name of State/ UT)
No.
Date
Value
Integrated Tax
Central Tax
State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

6. Taxable outward inter-State supplies to un-registered persons where invoice value is more than Rs 2.5 lakh

Place of Supply (State/ UT)

Invoice details

Rate

Taxable Value

Amount

No.

Date

Value

Integrated Tax

Cess

1

2

3

4

5

6

7

8

7. Taxable supplies (net of debit notes and credit notes) to unregistered persons other than the supplies mentioned at Table 6

Rate of tax

Total Taxable value

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7A. Intra-State supply (Consolidated, rate wise)

7B. Inter-State Supplies where the value of invoice is upto

Rs 2.5 Lakh [Rate wise]

Place of Supply (Name of State)

8. Amendments to taxable outward supply details furnished in returns for earlier tax periods in Table 5 and 6 [including

debit note/ credit notes and amendments thereof]

Details of original document

Revised details of document of details of original Debit/ Credit Notes

Rate

Taxable value

Amount

Place of supply

GSTIN

No.

Date

GSTIN

No.

Date

Value

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

14

8A. If the invoice details furnished were incorrect

8B. Debit Notes/ Credit Notes [original]

8C. Debit Notes/ Credit Notes [amendment of debit notes/
credit notes furnished in earlier tax periods]

9. Amendments to taxable outward supplies to unregistered persons furnished in returns for Earlier tax periods in Table
7

Rate of tax

Total Taxable value

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

Tax period for which the details are being revised

9A. Intra-State Supplies [Rate wise]

9B. Inter-State Supplies [Rate wise]

Place of Supply (Name of State)

10. Total tax liability [(including reverse charge liability, if any)]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Rate of tax

Total Taxable value

Amount

Integrated Tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

10A. On account of outward supply

10B. On account of differential ITC being negative in Table 4

10C. [On account of inward supplies liable to reverse charge]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

11. Tax payable and paid

Description

Tax payable

Paid in cash

Paid through ITC

Tax Paid

Integrated tax

Cess

1

2

3

4

5

6

(a) Integrated Tax

(b) Central Tax

(c) State/ UT Tax

(d) Cess

12. Interest, late fee and any other amount payable and paid

Description

Amount payable

Amount paid

1

2

3

I Interest on account of

(a)

Integrated tax

(b) Central
Tax

(c) State/
UT Tax

(d) Cess

II Late fee on account of

(a) Central
tax

(b) State/
UT tax

13. Refund claimed from electronic cash ledger

Description

Tax

Interest

Penalty

Fee

Other

Debit Entry Nos.

1

2

3

4

5

6

7

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

(d) Cess

Bank Account Details (Drop Down)

14. Debit entries in electronic cash/ credit ledger for tax/ interest payment [to be populated after payment of tax and submissions of return]

Description

Tax paid in cash

Tax paid through ITC

Interest

Late fee

Integrated tax

Cess

1

2

3

4

5

6

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

(d) Cess

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my

knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

Instructions:-

1. Terms used :

(a)

GSTIN : Goods and Services Tax Identification Number

b. UIN: Unique Identity Number

c. UQC: Unit Quantity Code

d. HSN: Harmonized System of Nomenclature

e. POS: Place of Supply (Respective State)

f. B to B: From one registered person to another registered person

g. B to C: From registered person to unregistered person

2. GSTR-5 is applicable to non-resident taxable person and it is a monthly return.

3. The details in GSTR-5 should be furnished by 20th of the month succeeding the relevant tax period or within 7 days from the last date of the registration whichever is earlier.

4. Table 3 consists of details of import of goods, bill of entry wise and taxpayer has to specify the amount of ITC eligible on such import of goods.

5. Recipient to provide for Bill of Entry information including six digits port code and seven digits bill of entry number.

6. Table 4 consists of amendment of import of goods which are declared in the returns of earlier tax period.

7. [Invoice-level information, rate-wise, pertaining to the tax period should be reported as under:

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

(i)

for all B to B supplies (whether inter-State or intra-State), invoice level details should be uploaded in Table 5;

(ii)

for all inter-state B to C supplies, where invoice value is more than Rs. 2,50,000/- (B to C Large) invoice level detail to be provided in Table 6; and

(iii)

for all B to C supplies, other than those reported in table 6, shall be reported in Table 7 providing State-wise summary of such supplies.]

8. Table 8 consists of amendments in respect of -

i. B2B outward supplies declared in the previous tax period;

ii. "B2C inter-State invoices where invoice value is more than [rupees]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

2.5 lakhs" reported in the previous tax period; and

iii. Original Debit and credit note details and its amendments.

9. Table 9 covers the Amendments in respect of B2C outward supplies other than inter-State supplies where invoice value is more than Rs 250000/-.

10. [Table 10 consists of tax liability on account of outward supplies declared in the current tax period and negative ITC on account of amendment to import of goods in the current tax period. Inward supplies attracting reverse charge shall be reported in Part C of the table.]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[Form GSTR-5A]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 64]

Details of supplies of online information and database access or retrieval services by a person located outside India

made to non-taxable persons in India

1. GSTIN of the supplier-

2. (a) Legal name of the registered person -

(b)

Trade name, if any -

3. Name of the Authorised representative in India filing the return -

4. Period : Month - Year -

[4(a) ARN:

4.

(b)

Date of ARN:]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

5. Taxable outward supplies made to consumers in India

(Amount in Rupees)

Place of supply (State/ UT)

Rate of tax

Taxable value

Integrated tax

Cess

1

2

3

4

5

5A. Amendments to taxable outward supplies to non-taxable persons in India

(Amount in Rupees)

Month

Place of supply (State/ UT)

Rate of tax

Taxable value

Integrated tax

Cess

1

2

3

4

5

6

6. [Calculation of interest, or any other amount

Sr. No.

Description

Place of supply (State/UT)

Amount due (Interest/Other)

Integrated tax

Cess

1

2

3

4

5

1.

Interest

2.

Others (Please specify)

Total

]

7. [Tax, interest and any other amount payable and paid

(Amount in Rupees)

Sr. No.

Description

Amount payable

Debit entry no.

Amount paid

Integrated tax

Cess

Integrated tax

Cess

1

2

3

4

5

6

7

1.

Tax Liability(based on Table 5 & 5A)

2.

Interest(based on Table 6)

3.

Others(based on Table 6)

]

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

[Form GSTR-6]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 65]

Return for input service distributor

{

Year

Month

|

}}

1

GSTIN

2

(a)

Legal name of the registered person

(b)

Trade name, if any

3. Input tax credit received for distribution

GSTIN

of supplier

Invoice

details

Rate

Taxable

value

Amount

of Tax

No

Date

Value

Integrated

tax

Central

Tax

State/

UT Tax

CESS

1

2

3

4

5

6

7

8

9

10

(Amount in Rs. for all Tables)

4. Total ITC/ Eligible ITC/ Ineligible ITC to be distributed for tax period (From Table No. 3)

Description

Integrated tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

(a) Total ITC available for distribution

(b) Amount of eligible ITC

(c) Amount of ineligible ITC

5. Distribution of input tax credit reported in Table 4

GSTIN of recipient/ State, if recipient is
unregistered

ISD invoice

Distribution of ITC by ISD

No.

Date

Integrated Tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

6

7

5A. Distribution of the amount of eligible ITC

5B. Distribution of the amount of ineligible ITC

6. Amendments in information furnished in earlier returns in Table No. 3

Original details

Revised details

GSTIN of supplier

No.

Date

GSTIN of supplier

Invoice/ debit note/ credit note details

Rate

Taxable value

Amount of Tax

No

Date

Value

Integrated tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

6

7

8

9

10

11

12

13

6A. Information furnished in Table 3 in an earlier period was

incorrect

6B. Debit Notes/ Credit Notes received [Original]

6C. Debit Notes/ Credit Notes [Amendments]

7. Input tax credit mis-matches and reclaims to be distributed in the tax period

Description

Integrated tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

7A. Input tax credit mismatch

7B. Input tax credit reclaimed on rectification of mismatch

8. Distribution of input tax credit reported in Table No. 6 and 7 (plus/ minus)

GSTIN of recipient

ISD credit no.

ISD invoice

Input tax distribution by ISD

No.

Date

No.

Date

Integrated Tax

Central Tax

State Tax

CESS

1

2

3

4

5

6

7

8

9

8A. Distribution of the amount of eligible ITC

8B. Distribution of the amount of ineligible ITC

9. Redistribution of ITC distributed to a wrong recipient (plus/ minus)

Original input tax credit distribution

Re-distribution of input tax credit to the
correct recipient

GSTIN of original recipient

ISD invoice detail

ISD credit note

GSTIN of new recipient

ISD invoice

Input tax credit redistributed

No.

Date	
No	
Date	
No.	
Date	
Integrated Tax	
Central Tax	
State Tax	
CESS	
1	
2	
3	
4	
5	
6	
7	
8	
9	
10	
11	
12	
9A. Distribution of the amount of eligible ITC	
9B. Distribution of the amount of ineligible ITC	
10. Late Fee	
On account of	
Central Tax	
State/ UT tax	
Debit Entry No.	
1	
2	
3	
4	
Late fee	
11. Refund claimed from electronic cash ledger	
Description	
Fee	
Other	
Debit Entry Nos.	
1	
2	
3	
4	
(a) Central Tax	
(b) State/ UT Tax	
Bank Account Details (Drop Down)	
Verification	
I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.	
Signature of Authorised Signatory	
Place	
Name of Authorised Signatory	

.....

Date

Designation/ Status

.....

Instructions :-

1. Terms Used :-

a. GSTIN :- Goods and Services Tax Identification Number

b. ISD :- Input Service Distributor

c. ITC :- Input tax Credit.

2. GSTR-6 can only be filed only after 10th of the month and before 13th of the month succeeding the tax period.

3. ISD details will flow to Part B of GSTR-2A of the Registered Recipients Units on filing of GSTR-6.

4. ISD will not have any reverse charge supplies. If ISD wants to take reverse charge supplies, then in that case ISD has to separately register as Normal taxpayer.

5. ISD will have late fee and any other liability only.

6. ISD has to distribute both eligible and ineligible ITC to its Units in the same tax period in which the inward supplies have been received.

7. Ineligible ITC will be in respect of supplies made as per Section 17(5).

8. Mismatch liability between GSTR-1 and GSTR-6 will be added to ISD and further ISD taxpayer has to issue ISD credit note to reduce the ITC distributed earlier to its registered recipients units.

9. Table 7 in respect of mismatch liability will be populated by the system.

10. Refund claimed from cash ledger through Table 11 will result in a debit entry in electronic cash ledger.

[Form GSTR-6A]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See Rule 59(3) & 65]

Details of supplies auto-drafted form

(Auto-drafted from GSTR-1)

{|

Year

Month

|

|}

1

GSTIN

2

(a)

Legal name of the registered person

(b)

Trade name, if any

3. Input tax credit received for distribution

(Amount in Rs. for all Tables)

GSTIN of supplier

Invoice details

Rate

Taxable value

Amount of Tax

No

Date

Value

Integrated tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

4. Debit/ Credit notes (including amendments thereof) received during current tax period

Details of original document

Revised details of document or details of Debit/

Credit Note

GSTIN of supplier

No.

Date

GSTIN of supplier

No.

Date

Value

Rate

Taxable value

Amount of tax

Integrated tax

Central Tax

State/ UT Tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

13

[Form GSTR-7]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 66 (1)]

Return for Tax Deducted at Source

{

Year

Month

|

}}

- 1
- GSTIN
- 2
- (a)
- Legal name of the Deductor
- (b)
- Trade name, if any
3. Details of the tax deducted at source
(Amount in Rs. for all Tables)
- GSTIN of deductee
- Amount paid to deductee on which tax is deducted
- Amount of tax deducted at source
- Integrated Tax
- Central Tax
- State/ UT Tax
- 1
- 2
- 3
- 4
- 5
4. Amendments to details of tax deducted at source in respect of any earlier tax period
- Original details
- Revised details
- Month
- GSTIN of deductee
- Amount paid to deductee on which tax is deducted
- GSTIN of deductee
- Amount paid to deductee on which tax is deducted
- Amount of tax deducted at source
- Integrated Tax
- Central Tax
- State/ UT Tax
- 1
- 2
- 3
- 4
- 5
- 6
- 7
- 8
5. Tax deduction at source and paid
- Description
- Amount of tax deducted
- Amount paid
- 1
- 2
- 3
- (a) Integrated Tax
- (b) Central Tax
- (c) State/ UT Tax
6. Interest, late Fee payable and paid

Description

Amount payable

Amount paid

1

2

3

(I) Interest on account of TDS in respect of

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

(II) Late fee

(a) Central tax

(b) State/ UT tax

7. Refund claimed from electronic cash ledger

Description

Tax

Interest

Penalty

Fee

Other

Debit Entry Nos.

1

2

3

4

5

6

7

(a) Integrated Tax

(b) Central Tax

(c) State/ UT Tax

Bank Account Details (Drop Down)

8. Debit entries in electronic cash ledger for TDS/ interest payment [to be populated after payment of tax and submissions of return]

Description

Tax paid in cash

Interest

Late fee

1

2

3

4

(a) Integrated Tax

(b) Central Tax

(c) State/ UT Tax

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

Instructions -

1. Terms used :

a) GSTIN : Goods and Services Tax Identification Number

b) TDS : Tax Deducted at Source

2. Table 3 to capture details of tax deducted.

3. Table 4 will contain amendment of information provided in earlier tax periods.

4. Return cannot be filed without full payment of liability.

[Form GSTR-7A]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 66(3)]

Tax Deduction at Source Certificate

1. TDS Certificate No. -

2. GSTIN of deductor -

3. Name of deductor -

4. GSTIN of deductee -

5. (a) Legal name of the deductee -

(b)

Trade name, if any -

6. Tax period in which tax deducted and accounted for in GSTR-7 -

7. Details of supplies Amount of tax deducted -

Value on which tax deducted

Amount of Tax deducted at source (Rs.)

Integrated Tax

Central Tax

State/ UT Tax

1

2

3

4

Signature

Name

Designation

Office -

[Form GSTR-8]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 67(1)]

Statement for tax collection at source

{

Year

Month

|

}

1

GSTIN

2

(a)

Legal name of the registered person

(b)

Trade name, if any

3. Details of supplies made through e-commerce operator

(Amount in Rs. for all Tables)

GSTIN of the supplier

Details of supplies made which attract TCS

Amount of tax collected at source

Gross value of supplies made

Value of supplies returned

Net amount liable for TCS

Integrated Tax

Central Tax

State/ UT Tax

1

2

3

4

5

6

7

3A. Supplies made to registered persons

3B. Supplies made to unregistered persons

4. Amendments to details of supplies in respect of any earlier statement

Original details

Revised details

Month

GSTIN of supplier

GSTIN of supplier

Details of supplies made which attract TCS

Amount of tax collected at source

Gross value of supplies made

Value of supply returned

Net amount liable for TCS

Integrated Tax

Central Tax

State/ UT Tax

1

2

3

4

5

6

7

8

9

4A. Supplies made to registered persons

4B. Supplies made to unregistered persons

5. Details of interest

On account of

Amount in default

Amount of interest

Integrated Tax

Central Tax

State/ UT Tax

1

2

3

4

5

Late payment of TCS amount

6. Tax payable and paid

Description

Tax payable

Amount paid

1

2

3

(a) Integrated Tax

(b) Central Tax

(c) State/ UT Tax

7. Interest payable and paid

Description

Amount of interest payable

Amount paid

1

2

3

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

8. Refund claimed from electronic cash ledger

Description

Tax

Interest

Penalty

Other

Debit Entry Nos.

1

2

3

4

5

6

(a) Integrated tax

(b) Central Tax

(c) State/ UT Tax

Bank Account Details (Drop Down)

9. Debit entries in cash ledger for TCS/ interest payment [to be populated after payment of tax and submissions of return]

Description

Tax paid in cash

Interest

1
2
3

- (a) Integrated Tax
(b) Central Tax
(c) State/ UT Tax

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name of Authorised Signatory

.....

Date

Designation/ Status

.....

Instructions -

1. Terms Used :-

a. GSTIN :- Goods and Services Tax Identification Number

b. TCS :- Tax Collected at source

2. An e-commerce operator can file GSTR- 8 only when full TCS liability has been discharged.

3. TCS liability will be calculated on the basis of table 3 and table 4.

4. Refund from electronic cash ledger can only be claimed only when all the TCS liability for that tax period has been discharged.

5. Cash ledger will be debited for the refund claimed from the said ledger.

6. Amount of tax collected at source will flow to Part C of GSTR- 2A of the taxpayer on filing of GSTR-8.

7. Matching of Details with supplier's GSTR-1 will be at the level of GSTIN of supplier.

[Form GSTR-9

[Substituted Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

]

[See rule 80]

Annual Return

Pt. I

1

2

3A

3B

Pt. II

Basic Details

Financial Year

GSTIN

Legal Name

Trade Name (if any)

Details of Outward and inward supplies declared

during the financial year

(Amount in Lin all tables)

Nature of Supplies

Taxable Value

Central Tax

State Tax /UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

4

Details of advances, inward and outward

supplies made during the financial year on which tax is payable

A

Supplies made to un-registered persons (B2C)

B

Supplies made to registered persons (B2B)

C

Zero rated supply (Export) on payment of tax
(except supplies to SEZs)

D

Supply to SEZs on payment of tax

E

Deemed Exports

F

Advances on which tax has been paid but invoice
has not been issued (not covered under (A) to (E) above)

G

Inward supplies on which tax is to be paid on
reverse charge basis

H

Sub-total (A to G above)

I

Credit Notes issued in respect of transactions
specified in (B) to (E) above (-)

J

Debit Notes issued in respect of transactions
specified in (B) to (E) above (+)

K

Supplies / tax declared through Amendments (+)

L

Supplies / tax reduced through Amendments (-)

M

Sub-total (I to L above)

N

Supplies and advances on which tax is to be paid
(H + M) above

5

Details of Outward supplies made during the
financial year on which tax is not payable

A

Zero rated supply (Export) without payment of
tax

B

Supply to SEZs without payment of tax

C

Supplies on which tax is to be paid by the
recipient on reverse charge basis

D

Exempted

E

Nil Rated

F

Non-GST supply (includes
?no supply?)

G

Sub-total (A to F above)

H

Credit Notes issued in respect of transactions
specified in A to F above (-)

I

Debit Notes issued in respect of transactions
specified in A to F above (+)

J

Supplies declared through Amendments (+)

K

Supplies reduced through Amendments (-)

L

Sub-Total (H to K above)

M

Turnover on which tax is not to be paid (G + L
above)

N

Total Turnover (including advances) (4N + 5M -
4G above)

Pt. III

Details of ITC for the financial year

Description

Type

Central Tax

State Tax /UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

6

Details of ITC availed during the financial
year

A

Total amount of input tax credit availed through
FORM GSTR-3B (sum total of Table 4A of FORM GSTR-3B)

< Auto>

< Auto>

< Auto>

< Auto>

B

Inward supplies (other than imports and inward supplies liable to reverse charge but includes services received from SEZs)

Inputs

Capital Goods

Input Services

C

Inward supplies received from unregistered persons liable to reverse charge (other than B above) on which tax is paid & ITC availed

Inputs

Capital Goods

Input Services

D

Inward supplies received from registered persons liable to reverse charge (other than B above) on which tax is paid and ITC availed

Inputs

Capital Goods

Input Services

E

Import of goods (including supplies from SEZs)

Inputs

Capital Goods

F

Import of services (excluding inward supplies from SEZs)

G

Input Tax credit received from ISD

H

Amount of ITC reclaimed (other than B above) under the provisions of the Act

I

Sub-total (B to H above)

J

Difference (I - A above)

K

Transition Credit through TRAN-I (including revisions if any)

L

Transition Credit through TRAN-II

M

Any other ITC availed but not specified above

N

Sub-total (K to M above)

O

Total ITC availed (I + N above)

7

Details of ITC Reversed and Ineligible ITC
for the financial year

A

As per Rule 37

B

As per Rule 39

C

As per Rule 42

D

As per Rule 43

E

As per section 17(5)

F

Reversal of TRAN-I credit

G

Reversal of TRAN-II credit

H

Other reversals (pl. specify)

I

Total ITC Reversed (Sum of A to H above)

J

Net ITC Available for Utilization (6O - 7I)

8

Other ITC related information

A

ITC as per GSTR-2A (Table 3 & 5 thereof)

< Auto>

< Auto>

< Auto>

< Auto>

B

ITC as per sum total of 6(B) and 6(H) above

< Auto>

C

[For FY 2017-18]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[ITC on inward supplies (other than imports and inward supplies liable to reverse charge but includes services received from SEZs) received during the financial year but availed in the next financial year up to specified period]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

D

Difference [A-(B+C)]

E

ITC available but not availed

F

ITC available but ineligible

G

IGST paid on import of goods (including supplies
from SEZ)

H

IGST credit availed on import of goods (as per
6(E) above)

<Auto>

I

Difference (G-H)

J

ITC available but not availed on import of goods
(Equal to I)

K

Total ITC to be lapsed in current financial year
(E + F + J)

< Auto>

< Auto>

< Auto>

< Auto>

Pt. IV

9

Details of tax paid as declared in returns filed
during the financial year

Description

Tax Payable

Paid through cash

Paid through ITC

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

Integrated Tax

Central Tax

State/UT Tax

Cess

Interest

Late fee

Penalty

Other

Pt. V

[Particulars of the transactions for the financial year declared in returns of the next financial year till the specified period.]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Description

Taxable Value

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1
2
3
4
5
6
10

Supplies / tax declared through Amendments (+)
(net of debit notes)

11

Supplies / tax reduced through Amendments (-)
(net of credit notes)

12

13

14

Reversal of ITC availed during previous
financial year

ITC availed for the previous financial year

Differential tax paid on account of declaration
in 10 & 11 above

Description

Payable

Paid

1

2

3

Integrated Tax

Central Tax

State/UT Tax

Cess

Interest

Pt. VI

Other Information

15

Particulars of Demands and Refunds

Details

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

Interest

Penalty

Late Fee/ Others

1

2

3

4

5

A

Total refund Claimed

B

Total Refund sanctioned

C

Total Refund Rejected

D

Total Refund Pending

E

Total Demand of taxes

F

Total taxes paid in respect of E above

G

Total demands pending out of E above

16

Information on supplies received from
composition taxpayers, deemed supply under section 143 and goods
sent on approval basis

Details

Taxable Value

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

A

Supplies received from Composition taxpayers

B

Deemed supply under Section 143

C

Goods sent on approval basis but not returned

17

HSN

Wise Summary of outward supplies

HSN Code

UQC

Total Quantity

Taxable Value

Rate of Tax

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

18

HSN Wise Summary of Inward supplies

HSN Code

UQC

Total Quantity

Taxable Value

Rate of Tax

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

19

Late fee payable and paid

Description

Payable

Paid

1

2

3

A

Central Tax

B

State Tax

Verification:

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom and in case of any reduction in output tax liability the benefit thereof has been/will be passed on to the recipient of supply.

SignatureName of Authorised SignatoryDesignation / Status

Place Date

Instructions: -

1. Terms used:

a. GSTIN : Goods and Services Tax Identification Number

b. UQC : Unit Quantity Code

c. HSN : Harmonized System of Nomenclature Code

2. [It is mandatory to file all FORM GSTR-1 and FORM GSTR-3B for the financial year for which the return is being filed for before filing this return and for FY 2017-18, the details for the period between July 2017 to March 2018 are to be provided in this return.]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

2A.

[In the Table, against serial numbers 4, 5, 6 and 7, the taxpayers shall report the values pertaining to the financial year only. The value pertaining to the preceding financial year shall not be reported here.]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[***]

[Omitted '3. It may be noted that additional liability for the FY 2017-18 not declared in FORM GSTR-1 and FORM GSTR-3B may be declared in this return. However, taxpayers cannot claim input tax credit unclaimed during FY 2017-18 through this return.' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

4. Part II consists of the details of all outward supplies & advances received during the financial year for which the annual return is filed. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

It may be noted that all the supplies for which payment has been made through FORM GSTR-3B between July 2017 to March 2018 shall be declared in this part. [It may be noted that additional liability for the FY 2017-18 [or FY 2018-19]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[or FY 2019-20]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[or FY 2020-21]

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

not declared in FORM GSTR-1 and FORM GSTR-3B may be declared in this return. However, taxpayers cannot claim input tax credit [***]

[Omitted 'unclaimed during FY 2017-18' by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).] through this return.] The instructions to fill Part II are as follows:

Table No.

Instructions

4A

Aggregate value of supplies made to consumers and unregistered persons on which tax has been paid shall be declared here. These will include details of supplies made through E-Commerce operators and are to be declared as net of credit notes or debit notes issued in this regard. Table 5, Table 7 along with respective amendments in Table 9 and Table 10 of FORM GSTR-1 may be used for filling up these details.

4B

Aggregate value of supplies made to registered persons (including supplies made to UINs) on which tax has been paid shall be declared here. These will include supplies made through E-Commerce operators but shall not include supplies on which tax is to be paid by the recipient on reverse charge basis. Details of debit and credit notes are to be mentioned separately. Table 4A and Table 4C of FORM GSTR-1 may be used for filling up these details.

4C

Aggregate value of exports (except supplies to SEZs) on which tax has been paid shall be declared here. Table 6A of FORM GSTR-1 may be used for filling up these details.

4D

Aggregate value of supplies to SEZs on which tax has been paid shall be declared here. Table 6B of GSTR-1 may be used for filling up these details.

4E

Aggregate value of supplies in the nature of deemed exports on which tax has been paid shall be declared here. Table 6C of FORM GSTR-1 may be used for filling up these details.

4F

Details of all unadjusted advances i.e. advance has been received and tax has been paid but invoice has not been issued in the current year shall be declared here. Table 11A of FORM GSTR-1 may be used for filling up these details.

4G

Aggregate value of all inward supplies (including advances and net of credit and debit notes) on which tax is to be paid by the recipient (i.e. by the person filing the annual return) on reverse charge basis. This shall include supplies received from registered persons, unregistered persons on which tax is levied on reverse charge basis. This shall also include aggregate value of all import of services. Table 3.1(d) of FORM GSTR-3B may be used for filling up these details.

4I

Aggregate value of credit notes issued in respect of B to B supplies (4B), exports (4C), supplies to SEZs (4D) and deemed exports (4E) shall be declared here. Table 9B of FORM GSTR-1 may be used for filling up these details. [For FY 2017-18, 2018-19]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to fill Table 4B to Table 4E net of credit notes in case there is any difficulty in reporting such details separately in this table.]

4J

Aggregate value of debit notes issued in respect of

B to B supplies (4B), exports (4C), supplies to SEZs (4D) and deemed exports (4E) shall be declared here. Table 9B of FORM GSTR-1 may be

used for filling up these details. [For FY 2017-18 and 2018-19, the registered person shall have an option to fill Table 4B to Table 4E net of debit notes in case there is any difficulty in reporting such details separately in this Table.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

4K & 4L

Details of amendments made to B to B supplies (4B), exports (4C), supplies to SEZs (4D) and deemed exports (4E), credit notes (4I), debit notes (4J) and refund vouchers shall be declared here.

Table 9A and Table 9C of FORM GSTR-1 may be used for filling up these details. [For FY 2017-18, 2018-19]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to fill Table 4B to Table 4E net of amendments in case there is any difficulty in reporting such details separately in this table.]

5A

Aggregate value of exports (except supplies to SEZs)

on which tax has not been paid shall be declared here. Table 6A of FORM GSTR-1 may be used for filling up these details.

5B

Aggregate value of supplies to SEZs on which tax has

not been paid shall be declared here. Table 6B of GSTR-1 may be used for filling up these details.

5C

Aggregate value of supplies made to registered persons

on which tax is payable by the recipient on reverse charge basis.

Details of debit and credit notes are to be mentioned separately.

Table 4B of FORM GSTR-1 may be used for filling up these details.

5D, 5E and 5F

Aggregate value of exempted, Nil Rated and Non-GST

supplies shall be declared here. Table 8 of FORM GSTR-1 may be used

for filling up these details.

The value of "no supply" shall be declared under

Non-GST supply (5F). [For FY 2017-18, 2018-19]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to either separately report his supplies as exempted, nil rated and Non-GST supply or report consolidated information for all these three heads in the "exempted" row only.]

5H

Aggregate value of credit notes issued in respect of

supplies declared in 5A, 5B, 5C, 5D, 5E and 5F shall be declared here.

Table 9B of FORM GSTR-1 may be used for filling up these details. [For FY 2017-18, 2018-19]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to fill Table 5A to Table 5F net of credit notes in case there is any difficulty in reporting such details separately in this Table.]

5I

Aggregate value of debit notes issued in respect of

supplies declared in 5A, 5B, 5C, 5D, 5E and 5F shall be declared here.

Table 9B of FORM GSTR-1 may be used for filling up these details. [For FY 2017-18, 2018-19]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to fill Table 5A to Table 5F net of debit notes in case there is any difficulty in reporting such details separately in this Table.]

5J & 5K

Details of amendments made to exports (except

supplies to SEZs) and supplies to SEZs on which tax has not been

paid shall be declared here. Table 9A and Table 9C of FORM GSTR-1 may be used for filling up these details. [For FY 2017-18, 2018-19]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to fill Table 5A to Table 5F net of amendments in case there is any difficulty in reporting such details separately in this Table.]

5N

Total turnover including the sum of all the supplies

(with additional supplies and amendments) on which tax is payable

and tax is not payable shall be declared here. This shall also include

amount of advances on which tax is paid but invoices have not been

issued in the current year. However, this shall not include the aggregate

value of inward supplies on which tax is paid by the recipient (i.e. by the

person filing the annual return) on reverse charge basis.

5. Part III consists of the details of all input tax credit availed and reversed in the financial year for which the annual

return is filed. The instructions to fill Part III are as follows:

Table No.

Instructions

6A

Total input tax credit availed in Table 4A of FORM GSTR-3B for the taxpayer would be auto populated here.

6B

Aggregate value of input tax credit availed on all inward supplies except those on which tax is payable on reverse charge basis but includes supply of services received from SEZs shall be declared here. It may be noted that the total ITC availed is to be classified as ITC on inputs, capital goods and input services. Table 4(A)(5) of FORM GSTR-3B may be used for filling up these details.

This shall not include ITC which was availed, reversed and then reclaimed in the ITC ledger. This is to be declared separately under 6(H) below. [For FY 2017-18 and 2018-19, the registered person shall have an option to either report the breakup of input tax credit as inputs, capital goods and input services or report the entire input tax credit under the "inputs" row only.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[For FY 2019-20 and 2020-21]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

, the registered person shall report the breakup of input tax credit as capital goods and have an option to either report the breakup of the remaining amount as inputs and input services or report the entire remaining amount under the "inputs" row only.]

6C

Aggregate value of input tax credit availed on all inward supplies received from unregistered persons (other than import of services) on which tax is payable on reverse charge basis shall be declared here. It may be noted that the total ITC availed is to be classified as ITC on inputs, capital goods and input services.

Table 4(A)(3) of FORM GSTR-3B may be used for filling up these details. [For FY 2017-18 and 2018-19, the registered person shall have an option to either report the breakup of input tax credit as inputs, capital goods and input services or report the entire input tax credit under the "inputs" row only.] [For FY 2019-20 and 2020-21]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

, the registered person shall report the breakup of input tax credit as capital goods and have an option to either report the breakup of the remaining amount as inputs and input services or report the entire remaining amount under the "inputs" row only.] [For FY 2017-18, 2018-19]

[Substituted 'FY 2017-18 and 2018-19' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[, 2019-20 and 2020-21]

[Substituted 'and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to either report Table 6C and Table 6D separately or report the consolidated details of Table 6C and 6D in Table 6D only.]

6D

Aggregate value of input tax credit availed on all inward supplies received from registered persons on which tax is payable on reverse charge basis shall be declared here. It may be noted that the total ITC availed is to be classified as ITC on inputs, capital goods and input services. Table 4(A)(3) of FORM GSTR-3B may be used for filling up these details. [For FY 2017-18 and 2018-19, the registered person shall have an option to either report the breakup of input tax credit as inputs, capital goods and input services or report the entire input tax credit under the "inputs" row only.] [For FY 2019-20 and 2020-21]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

, the registered person shall report the breakup of input tax credit as capital goods and have an option to either report the breakup of the remaining amount as inputs and input services or report the entire remaining amount under the "inputs" row only.][For[FY 2017-18, 2018-19 and 2019-20]

[Substituted 'FY 2017-18 and 2018-19' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

, the registered person shall have an option to either report Table 6C and Table 6D separately or report the consolidated details of Table 6C and 6D in Table 6D only.]

6E

Details of input tax credit availed on import of goods including supply of goods received from SEZs shall be declared here. It may be noted that the total ITC availed is to be classified as ITC on inputs and capital goods. Table 4(A)(1) ofFORM GSTR-3Bmay be used for filling up these details.[For FY 2017-18 and 2018-19, the registered person shall have an option to either report the breakup of input tax credit as inputs and capital goods or report the entire input tax credit under the "inputs" row only.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[For[FY 2019-20 and 2020-21]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

, the registered person shall report the breakup of input tax credit as capital goods and have an option to either report the breakup of the remaining amount as inputs and input services or report the entire remaining amount under the "inputs" row only.]

6F

Details of input tax credit availed on import of services (excluding inward supplies from SEZs) shall be declared here. Table 4(A)(2) ofFORM GSTR-3Bmay be used for filling up these details.

6G

Aggregate value of input tax credit received from input service distributor shall be declared here. Table 4(A)(4) ofFORM GSTR-3Bmay be used for filling up these details.

6H

Aggregate value of input tax credit availed, reversed and reclaimed under the provisions of the Act shall be declared here.

6J

The difference between the total amount of input tax credit availed throughFORM GSTR-3B and input tax credit declared in row B to H shall be declared here. Ideally, this amount should be zero.

6K

Details of transition credit received in the electronic credit ledger on filing ofFORM GST TRAN-Iincluding revision of TRAN-I (whether upwards or downwards), if any shall be declared here.

6L

Details of transition credit received in the electronic credit ledger after filing ofFORM GST TRAN-IIshall be declared here.

6M

Details of ITC availed but not covered in any of heads specified under 6B to 6L above shall be declared here. Details of ITC availed throughFORM ITC-01andFORM ITC-02in the financial year shall be declared here.

7A, 7B, 7C,7D, 7E, 7F,7G and 7H

Details of input tax credit reversed due to ineligibility or reversals required under rule 37, 39, 42 and 43 of the CGST Rules, 2017 shall be declared here. This column should also contain details of any input tax credit reversed under section 17(5) of the CGST Act, 2017 and details of ineligible transition credit claimed under FORM GST TRAN-I or FORM GST TRAN-II and then subsequently reversed. Table 4(B) of FORM GSTR-3B may be used for filling up these details. Any ITC reversed through FORM ITC -03 shall be declared in 7H. If the amount stated in Table

4D of FORM GSTR-3B was not included in table 4A of FORM GSTR-3B, then no entry should be made in table 7E of FORM GSTR-9. However, if amount mentioned in table 4D of FORM GSTR-3B was included in table 4A of FORM GSTR-3B, then entry will come in 7E of FORM GSTR-9. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020- 21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to either fill his information on reversals separately in Table 7A to 7E or report the entire amount of reversal under Table 7H only. However, reversals on account of TRAN-1 credit (Table 7F) and TRAN-2 (Table 7G) are to be mandatorily reported.]

8A

The total credit available for inwards supplies (other than imports and inwards supplies liable to reverse charge but includes services received from SEZs) pertaining to FY 2017-18 [the financial year for which the return is being for]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

and reflected in FORM GSTR-2A (table 3 & 5 only)

shall be auto-populated in this table. This would be the aggregate of all the input tax credit that has been declared by the corresponding suppliers in their FORM GSTR-1. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[It may be noted that the FORM GSTR-2A generated as on the 1st May, 2019 shall be auto-populated in this table.] [[Inserted by Notification No. G.S.R. 457(E),

dated 28.6.2019.]] [For FY 2018-19, It may be noted that the FORM GSTR-2A generated as on the 1st November, 2019 shall be auto-populated in this table. For FY 2017-18 and 2018-19, the registered person shall have an option to upload the details for the entries in Table 8A to 8D duly signed, in PDF format in FORM GSTR-9C (without the CA certification).]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[For FY 2019-20, it may be noted that the details from FORM GSTR-2A generated as on the 1st November, 2020 shall be auto-populated in this table.]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

8B

The input tax credit as declared in Table 6B and

6H shall be auto-populated here. [For FY 2017-18 and 2018-19, the registered person shall have an option to upload the details for the entries in Table 8A to 8D duly signed, in PDF format in FORM GSTR-9C (without the CA certification).]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

8C

[For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[Aggregate value of input tax credit availed on all inward supplies (except those on which tax is payable on reverse charge basis but includes supply of services received from SEZs) received during the financial year for which the annual return is being filed for but credit on which was availed in the next financial year within the period specified under

Section 16(4) of the CGST Act, 2017.]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

8D

Aggregate value of the input tax credit which was

available inFORM GSTR-2A(table 3 & 5 only) but not availed inFORM GSTR-3Breturns shall be computed based on values

of 8A, 8B and 8C.

However, there may be circumstances where

the credit availed inFORM GSTR-3Bwas greater than the credit

available inFORM GSTR-2A. In such cases, the value in row 8D

shall be negative.[For FY 2017-18 and 2018-19, the registered person shall have an option to upload the details for the entries in Table 8A to Table 8D duly signed, in PDF format in FORM GSTR-9C (without the CA certification).]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

8E & 8F

The credit which was available and not availed inFORM GSTR-3B and the credit was not availed inFORM GSTR-3B as the same was ineligible shall be declared here. Ideally, if 8D is positive, the sum of 8E and 8F shall be equal to 8D.

8G

Aggregate value of IGST paid at the time of imports

(including imports from SEZs) during the financial year shall

be declared here.

8H

The input tax credit as declared in Table 6E shall

be auto-populated here.

8K

The total input tax credit which shall lapse for the current financial year shall be computed in this row.

6. Part IV is the actual tax paid during the financial year. Payment of tax under Table 6.1 of FORM GSTR-3B may be used for filling up these details.

7. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

Part V consists of particulars of transactions for the previous financial year but paid in the FORM GSTR-3B [between April 2018 to March 2019]

[Substituted 'of April to September of current FY or date of filing of Annual Return for previous financial year (for example in the annual return for the FY 2017-18, the transactions declared in April to September 2018 for the FY 2017-18 shall be declared), whichever is earlier' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[For FY 2018-19, Part V consists of particulars of transactions for the previous financial year but paid in the FORM GSTR-3B between April 2019 to September 2019.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[For FY 2019-20, Part V consists of particulars of transactions for the previous financial year but paid in the FORM GSTR-3B between April 2020 to September 2020.]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[For FY 2020-21, Part V consists of particulars of transactions for the previous financial year but paid in the FORM GSTR-3B between April 2021 to September 2021.]

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

The instructions to fill Part V are as follows:

Table No.

Instructions

10 & 11

[For FY 2017- 18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

Details of additions or amendments to any of the supplies already declared in the returns of the previous financial year but such amendments were furnished in Table 9A, Table 9B and Table 9C of FORM GSTR-1 of April [2018 to March 2019]

[Substituted 'to September of the current financial year or date of filing of Annual Return for the previous financial year, whichever is earlier' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

shall be declared here. [For FY 2018-19, Details of additions or amendments to any of the supplies already declared in the returns of the previous financial year but such amendments were furnished in Table 9A, Table 9B and Table 9C of FORM GSTR-1 of April 2019 to September 2019 shall be declared here.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[For FY 2019-20, Details of additions or amendments to any of the supplies already declared in the returns of the previous financial year but such amendments were furnished in Table 9A, Table 9B and Table 9C of FORM GSTR-1 of April 2020 to September 2020 shall be declared here.]

[Inserted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[For FY 2020-21, details of additions or amendments to any of the supplies already declared in the returns of the previous financial year but such amendments were furnished in Table 9A, Table 9B and Table 9C of FORM GSTR-1 of April 2021 to September 2021 shall be declared here.]

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

12

[For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

Aggregate value of reversal of ITC which was availed in the previous financial year but reversed in returns filed for the months of April [2018 to March 2019]

[Substituted 'to September of the current financial year or date of filing of Annual Return for the previous financial year, whichever is earlier' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

shall be declared here. Table 4(B) of FORM GSTR-3B may be used for filling up these details. [For FY 2018-19, Aggregate value of reversal of ITC which was availed in the previous financial year but reversed in returns filed for the months of April 2019 to September 2019 shall be declared here. Table 4(B) of FORM GSTR-3B may be used for filling up these details. [For FY 2019-20, Aggregate value of reversal of ITC which was availed in the previous financial year but reversed in returns filed for the months of April 2020 to September 2020 shall be declared here. Table 4(B) of FORM GSTR-3B may be used for filling up these details. For FY 2019-20, the registered person shall have an option to not fill this table.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

For [FY 2017-18, 2018-19 and 2019-20]

[Substituted 'FY 2017-18 and 2018-19' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table. [For FY 2020-21, aggregate value of reversal of ITC which was availed in the previous financial year but reversed in returns filed for the months of April 2021 to September 2021 shall be declared here. Table 4(B) of FORM GSTR-3B may be used for filling up these details.]

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

13

[For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

Details of ITC for goods or services received in the previous financial year but ITC for the same was availed in returns filed for the months of April [2018 to March 2019]

[Substituted 'to September of the current financial year or date of filing of Annual Return for the previous financial year, whichever is earlier' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

shall be declared here. Table 4(A) of FORM GSTR-3B may be used for filling up these details. However, any ITC which was reversed in the FY 2017-18 as per second proviso to sub-section (2) of section 16 but was reclaimed in FY 2018-19, the

details of such ITC reclaimed shall be furnished in the annual return

for FY 2018-19.[For FY 2018-19, Details of ITC for goods or services received in the previous financial year but ITC for the same was availed in returns filed for the months of April 2019 to September 2019 shall be declared here. Table 4(A) of FORM GSTR-3B may be used for filling up these details. However, any ITC which was reversed in the FY 2018-19 as per second proviso to sub-section (2) of section 16 but was reclaimed in FY 2019-20, the details of such ITC reclaimed shall be furnished in the annual return for FY 2019-20.[For FY 2019-20, Details of ITC for goods or services received in the previous financial year but ITC for the same was availed in returns filed for the months of April 2020 to September 2020 shall be declared here. Table 4(A) of FORM GSTR-3B may be used for filling up these details. However, any ITC which was reversed in the FY 2019-20 as per second proviso to sub-section (2) of section 16 but was reclaimed in FY 2020-21, the details of such ITC reclaimed shall be furnished in the annual return for FY 2020-21.]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[For FY 2020-21, details of ITC for goods or services received in the previous financial year but ITC for the same was availed in returns filed for the months of April 2021 to September 2021 shall be declared here. Table 4(A) of FORM GSTR-3B may be used for filling up these details. However, any ITC which was reversed in the FY 2020-21 as per second proviso to sub-section (2) of section 16 but was reclaimed in FY 2021-22, the details of such ITC reclaimed shall be furnished in the annual return for FY 2021-22.]

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

For[FY 2017-18,]

[Substituted 'FY 2017-18 and 2018-19' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table.]

8. Part VI consists of details of other information. The instructions to fill Part VI are as follows:

Table No.

Instructions

15A, 15B, 15C and 15D

Aggregate value of refunds claimed, sanctioned, rejected and pending for processing shall be declared here.

Refund claimed will be the aggregate value of all the refund claims filed in the financial year and will include refunds which have been sanctioned, rejected or are pending for processing. Refund sanctioned means the aggregate value of all refund sanction orders. Refund pending will be the aggregate amount in all refund application for which acknowledgement has been received and will exclude provisional refunds received. These will not include details of non-GST refund claims.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this Table.]

15E, 15F and 15G

Aggregate value of demands of taxes for which an order confirming the demand has been issued by the adjudicating authority shall be declared here. Aggregate value of taxes paid out of the total value of confirmed demand as declared in 15E above shall be declared here. Aggregate value of demands pending recovery out of 15E above shall be declared here.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this Table.]

16A

Aggregate value of supplies received from composition taxpayers shall be declared here. Table 5 of FORM GSTR-3B may be used for filling up these details. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this Table.]

16B

Aggregate value of all deemed supplies from the principal to the job-worker in terms of sub-section (3) and sub-section (4) of Section 143 of the CGST Act shall be declared here. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table.]

16C

Aggregate value of all deemed supplies for goods which were sent on approval basis but were not returned to the principal supplier within one eighty days of such supply shall be declared here. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table.]

17 & 18

Summary of supplies effected and received against a particular HSN code to be reported only in this table. It will be optional for taxpayers having annual turnover upto L1.50 Cr. It will be mandatory to report HSN code at two digits level for taxpayers having annual turnover in the preceding year above L1.50 Cr but upto L5.00 Cr and at four digits' level for taxpayers having annual turnover above L5.00 Cr. UQC details to be furnished only for supply of goods. Quantity is to be reported net of returns. Table 12 of FORM GSTR-1 may be used for filling up details in Table 17. It

may be noted that this summary details are required to be declared only for those inward supplies which in value independently account for 10 % or more of the total value of inward supplies. [For FY 2017-18]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

, [2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table.]

19

Late fee will be payable if annual return is filed after the due date.

9. Towards the end of the return, taxpayers shall be given an option to pay any additional liability declared in this form, through FORM DRC-03. Taxpayers shall select "Annual Return" in the drop down provided in FORM DRC-03. It may be noted that such liability can be paid through electronic cash ledger only.

[Form GSTR-9A]

[Substituted Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

[See rule 80]

Annual Return (For Composition Taxpayer)

Pt. I

Basic Details

1

Financial Year

2

GSTIN

3A

Legal Name

<Auto>

3B

Trade Name (if any)

<Auto>

4

Period of composition scheme during the year (From ---- To ----)

5

Aggregate Turnover of Previous Financial Year
(Amount in Lin all tables)

Pt. II

Details of outward and inward supplies made
during the financial year

Description

Turnover

Rate of Tax

Central Tax

State /UT Tax

Integrated tax

Cess

1

2

3

4

5

6

7

6

Details of Outward supplies made during the financial year

A

Taxable

B

Exempted, Nil-rated

C

Total

7

Details of inward supplies on which tax is payable on
reverse charge basis (net of debit/credit notes) for the financial year

Description

Taxable Value

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1

2

3

4

5

6

A

Inward supplies liable to reverse charge received from registered persons

B

Inward supplies liable to reverse charge received from unregistered persons

C

Import of services

D

Net Tax Payable on (A), (B) and (C) above

8

Details of other inward supplies for the financial year

A

Inward supplies from registered persons (other than 7A above)

B

Import of Goods

Pt. III

Details of tax paid as declared in returns filed during the financial year

9

Description

Total tax payable

Paid

1

2

3

Integrated Tax

Central Tax

State/UT Tax

Cess

Interest

Late fee

Penalty

Pt. IV

Particulars of the transactions for the previous FY declared in returns of April to September of current FY or upto date of filing of annual return of previous FY whichever is earlier

Description

Turnover

Central Tax

State Tax/UT Tax

Integrated Tax

Cess

1
2
3
4
5
6
10
11
12
13
14
1
2
3
15
1
2
3
4
5
6
7

Supplies / tax (outward) declared through Amendments (+) (net of debit notes)

Inward supplies liable to reverse charge declared through Amendments (+) (net of debit notes)

Supplies / tax (outward) reduced through Amendments (-) (net of credit notes)

Inward supplies liable to reverse charge reduced through Amendments (-) (net of credit notes)

Differential tax paid on account of declaration made in 10, 11, 12 & 13 above

Description

Payable

Paid

Integrated Tax

Central Tax

State/UT Tax

Cess

Interest

Pt. V

Other Information

Particulars of Demands and Refunds

Description

Central Tax

State Tax /UT Tax

Integrated Tax

Cess

Interest

Penalty

Late Fee/Others

8

A

Total Refund claimed

B

Total Refund sanctioned

C

Total Refund Rejected

D

Total Refund Pending

E

Total demand of taxes

F

Total taxes paid in respect of E above

G

Total demands pending out of E above

16

Details of credit reversed or availed

Description

Central Tax

State Tax /UT Tax

Integrated Tax

Cess

1

2

3

4

5

A

Credit reversed on opting in the composition scheme (-)

B

Credit availed on opting out of the composition scheme (+)

17

Late fee payable and paid

Description

Payable

Paid

1

2

3

A

Central Tax

B

State Tax

Verification:

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed there from and in case of any reduction in output tax liability the benefit thereof has been/will be passed on to the recipient of supply.

PlaceDate

SignatureName of Authorised SignatoryDesignation / Status

Instructions: -

1. It is mandatory to file all your FORM GSTR-4 for the FY 2017-18 before filing this return. The details for the period

between July 2017 to March 2018 shall be provided in this return.

2. It may be noted that additional liability for the FY 2017-18 not declared in FORM GSTR-4 may be declared in this return.

3. Part I consists of basic details of taxpayer. The instructions to fill Part I are as follows :

Table No.

Instructions

5

Aggregate turnover for the previous financial year

is the turnover of the financial year previous to the year for which the return is being filed. For example for the annual return for FY 2017-18, the aggregate turnover of FY 2016-17 shall be entered into this table.

It is the sum total of turnover of all taxpayers registered on the same PAN.

4. Part II consists of the details of all outward and inward supplies in the financial year for which the annual return is filed. The instructions to fill Part II are as follows:

Table No.

Instructions

6A

Aggregate value of all outward supplies net of debit

notes / credit notes, net of advances and net of goods returned for the

entire financial year shall be declared here. Table 6 and Table 7 of FORM GSTR-4 may be used for filling up these details.

6B

Aggregate value of exempted, Nil Rated and Non-GST

supplies shall be declared here.

7A

Aggregate value of all inward supplies received from

registered persons on which tax is payable on reverse charge basis

shall be declared here. Table 4B, Table 5 and Table 8A of FORM GSTR-4 may be used for filling up these details.

7B

Aggregate value of all inward supplies received from

unregistered persons (other than import of services) on which tax

is payable on reverse charge basis shall be declared here. Table 4C,

Table 5 and Table 8A of FORM GSTR-4 may be used for filling up these details.

7C

Aggregate value of all services imported during the

financial year shall be declared here. Table 4D and Table 5 of FORM GSTR-4 may be used for filling up these details.

8A

Aggregate value of all inward supplies received

from registered persons on which tax is payable by the supplier

shall be declared here. Table 4A and Table 5 of FORM GSTR-4 may be used for filling up these details.

8B

Aggregate value of all goods imported during the

financial year shall be declared here.

5. Part IV consists of the details of amendments made for the supplies of the previous financial year in the returns of April to September of the current FY or date of filing of Annual Return for previous financial year (for example in the annual return for the FY 2017-18, the transactions declared in April to September 2018 for the FY 2017-18 shall be declared), whichever is earlier. The instructions to fill Part V are as follows:

Table No.

Instructions

10, 11, 12, 13 and 14

Details of additions or amendments to any of the supplies already declared in the returns of the previous financial year but such amendments were furnished in Table 5 (relating to inward supplies) or Table 7 (relating to outward supplies) of FORM GSTR- 4 of April to September of the current financial year or upto the date of filing of Annual Return for the previous financial year, whichever is earlier shall be declared here.

6. Part V consists of details of other information. The instruction to fill Part V are as follows:

Table No.

Instructions

15A, 15B, 15C and 15D

Aggregate value of refunds claimed, sanctioned, rejected and pending for processing shall be declared here. Refund claimed will be the aggregate value of all the refund claims filed in the financial year and will include refunds which have been sanctioned, rejected or are pending for processing. Refund sanctioned means the aggregate value of all refund sanction orders. Refund pending will be the aggregate amount in all refund application for which acknowledgement has been received and will exclude provisional refunds received. These will not include details of non-GST refund claims.

15E, 15F and 15G

Aggregate value of demands of taxes for which an order confirming the demand has been issued by the adjudicating authority has been issued shall be declared here. Aggregate value of taxes paid out of the total value of confirmed demand in 15E above shall be declared here. Aggregate value of demands pending recovery out of 15E above shall be declared here.

16A

Aggregate value of all credit reversed when a person opts to pay tax under the composition scheme shall be declared here. The details furnished in FORM ITC-03 may be used for filling up these details.

16B

Aggregate value of all the credit availed when a registered person opts out of the composition scheme shall be declared here. The details furnished in FORM ITC-01 may be used for filling up these details.

17

Late fee will be payable if annual return is filed after the due date.

7. Towards the end of the return, taxpayers shall be given an option to pay any additional liability declared in this form, through FORM DRC-03. Taxpayers shall select "Annual Return" in the drop down provided in FORM DRC-03. It may be noted that such liability shall be paid through electronic cash ledger only.

[FORM GSTR-9C]

[Substituted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

See rule 80(3)

PART - A - Reconciliation Statement

Pt. I

Basic Details

1

Financial Year

2

GSTIN

3A

Legal Name

< Auto>

3B

Trade Name (if any)

<Auto >

4

Are you liable to audit under any Act?

<<Please specify >>

(Amount in Lin all tables)

Pt. II

Reconciliation of turnover declared in audited

Annual Financial Statement with turnover declared in Annual
Return (GSTR9)

5

Reconciliation of Gross Turnover

A

Turnover (including exports) as per audited
financial statements for the State / UT (For multi-GSTIN units
under same PAN the turnover shall be derived from the audited
Annual Financial Statement)

B

Unbilled revenue at the beginning of Financial
Year

(+)

C

Unadjusted advances at the end of the Financial
Year

(+)

D

Deemed Supply under Schedule I

(+)

E

Credit Notes issued after the end of the
financial year but reflected in the annual return

(-)

F

Trade Discounts accounted for in the audited
Annual Financial Statement but are not permissible under GST

(+)

G

Turnover from April 2017 to June 2017

(-)

H

Unbilled revenue at the end of Financial Year

(-)

I

Unadjusted Advances at the beginning of the
Financial Year

(-)
J
Credit notes accounted for in the audited Annual Financial Statement but are not permissible under GST
(+)
K
Adjustments on account of supply of goods by SEZ units to DTA Units
(-)
L
Turnover for the period under composition scheme
(-)
M
Adjustments in turnover under section 15 and rules thereunder
(+/-)
N
Adjustments in turnover due to foreign exchange fluctuations
(+/-)
O
Adjustments in turnover due to reasons not listed above
(+/-)
P
Annual turnover after adjustments as above
<Auto >
Q
Turnover as declared in Annual Return (GSTR9)
R
Un-Reconciled turnover (Q - P)
AT1
6
Reasons for Un - Reconciled difference in Annual Gross Turnover
A
Reason 1
<<Text >>
B
Reason 2
<<Text >>
C
Reason 3
<<Text >>
7
Reconciliation of Taxable Turnover
A
Annual turnover after adjustments (from 5P above)
<Auto >
B

Value of Exempted, Nil Rated, Non-GST supplies,
No-Supply turnover

C

Zero rated supplies without payment of tax

D

Supplies on which tax is to be paid by the
recipient on reverse charge basis

E

Taxable turnover as per adjustments above
(A-B-C-D)

<Auto >

F

Taxable turnover as per liability declared in
Annual Return (GSTR9)

G

Unreconciled taxable turnover (F-E)

AT 2

8

Reasons for Un - Reconciled difference in
taxable turnover

A

Reason 1

<<Text >>

B

Reason 2

<<Text >>

C

Reason 3

<<Text >>

Pt. III

Reconciliation of tax paid

9

Reconciliation of rate wise liability and amount payable
thereon

Tax payable

Description

Taxable Value

Central tax

State tax /UT tax

Integrated Tax

Cess, if applicable

1

2

3

4

5

6

A

5%

B

5% (RC)

C
12%
D
12% (RC)
E
18%
F
18% (RC)
G
28%
H
28% (RC)
I
3%
J
0.25%
K
0.10%
[K-1
[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
Others
.]
L
Interest
M
Late Fee
N
Penalty
O
Others
P
Total amount to be paid as per tables above
<Auto>
<Auto>
<Auto>
<Auto>
Q
Total amount paid as declared in Annual Return (GSTR 9)
R
Un-reconciled payment of amountPT 1
10
Reasons for un-reconciled payment of amount
A
Reason 1
<<Text >>
B
Reason 2
<<Text >>
C
Reason 3
<<Text >>

11

Additional amount payable but not paid (due to reasons specified under Tables 6,8 and 10 above)

To be paid through Cash

Description

Taxable Value

Central tax

State tax / UT tax

Integrated tax

Cess, if applicable

1

2

3

4

5

6

5%

12%

18%

28%

3%

0.25%

0.10%

[Others

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

.]

Interest

Late Fee

Penalty

Others (please specify)

Pt. IV

Reconciliation of Input Tax Credit (ITC)

12

Reconciliation of Net Input Tax Credit (ITC)

A

ITC availed as per audited Annual Financial Statement for the State/ UT (For multi-GSTIN units under same PAN this should be derived from books of accounts)

B

ITC booked in earlier Financial Years claimed in current Financial Year

(+)

C

ITC booked in current Financial Year to be claimed in subsequent Financial Years

(-)

D

ITC availed as per audited financial statements or books of account

<Auto>

E

ITC claimed in Annual Return (GSTR9)

F

Un-reconciled ITC

ITC 1

13

Reasons for un-reconciled difference in ITC

A

Reason 1

<<Text >>

B

Reason 2

<<Text >>

C

Reason 3

<<Text >>

14

Reconciliation of ITC declared in Annual
Return (GSTR9) with ITC availed on expenses as per audited Annual
Financial Statement or books of account

Description

Value

Amount of Total ITC

Amount of eligible ITC availed

1

2

3

4

A

Purchases

B

Freight / Carriage

C

Power and Fuel

D

Imported goods (Including received from SEZs)

E

Rent and Insurance

F

Goods lost, stolen, destroyed, written off or disposed of by
way of gift or free samples

G

Royalties

H

Employees' Cost (Salaries, wages, Bonus etc.)

I

Conveyance charges

J

Bank Charges

K

Entertainment charges

L

Stationery Expenses (including postage etc.)

M

Repair and Maintenance

N

Other Miscellaneous expenses

O

Capital goods

P

Any other expense 1

Q

Any other expense 2

R

Total amount of eligible ITC availed

<< Auto>>

S

ITC claimed in Annual Return (GSTR9)

T

Un-reconciled ITC (ITC 2)

15

Reasons for un-reconciled difference in ITC

A

Reason 1

<<Text >>

B

Reason 2

<<Text >>

C

Reason 3

<<Text >>

16

Tax payable on un-reconciled difference in ITC
(due to reasons specified in 13 and 15 above)

Description

Amount Payable

Central Tax

State/UT Tax

Integrated Tax

Cess

Interest

Penalty

Pt. V

[Additional Liability due to non-reconciliation]

[Substituted 'Auditor's recommendation on additional Liability due to non-reconciliation' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

To be paid through Cash

Description

Value

Central tax

State tax / UT tax

Integrated tax

Cess, if applicable

1
2
3
4
5
6

5%
12%
18%
28%
3%
0.25%
0.10%

[Others

[Inserted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

.]

Input Tax Credit

Interest

Late Fee

Penalty

Any other amount paid for supplies not included

in Annual Return (GSTR 9)

Erroneous refund to be paid back

Outstanding demands to be settled

Other (Pl. specify)

[Verification of registered person:

I hereby solemnly affirm and declare that the information given herein above is true and correct and nothing has been concealed there from. I am uploading this self-certified reconciliation statement in FORM GSTR-9C. I am also uploading other statements, as applicable, including financial statement, profit and loss account and balance sheet, etc.]

[Substituted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

Signature

Place:Date:

Name of Authorized SignatoryDesignation/Status

Instructions: -

1. Terms used:

(a)

GSTIN: Goods and Services Tax Identification Number

2. It is mandatory to file all your FORM GSTR-1, FORM GSTR-3B and FORM GSTR -9 for the [current financial year]

[Substituted 'FY 2017-18' by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

before filing this return. [For FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

The details for the period between July 2017 to March 2018 are to be provided in this statement for the financial year 2017-18. The reconciliation statement is to be filed for every GSTIN separately.

3. The reference to current financial year in this statement is the financial year for which the reconciliation statement is being filed for.

4. Part II consists of reconciliation of the annual turnover declared in the audited Annual Financial Statement with the turnover as declared in the Annual Return furnished in FORM GSTR-9 for this GSTIN. The instructions to fill this part are as follows :-

Table No.

Instructions

5A

The turnover as per the audited Annual Financial Statement shall be declared here. There may be cases where multiple GSTINs (State-wise) registrations exist on the same PAN. This is common for persons / entities with presence over multiple States. Such persons / entities, will have to internally derive their GSTIN wise turnover and declare the same here. This shall include export turnover (if any). It may be noted that reference to audited Annual Financial Statement includes reference to books of accounts in case of persons / entities having presence over multiple States.

5B

Unbilled revenue which was recorded in the books of accounts on the basis of accrual system of accounting in the last financial year and was carried forward to the current financial year shall be declared here. In other words, when GST is payable during the financial year on such revenue (which was recognized earlier), the value of such revenue shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]
[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.](For example, if rupees Ten Crores of unbilled revenue existed for the financial year 2016-17, and during the current financial year, GST was paid on rupees Four Crores of such revenue, then value of rupees Four Crores rupees shall be declared here)

5C

Value of all advances for which GST has been paid but the same has not been recognized as revenue in the audited Annual Financial Statement shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]
[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5D

Aggregate value of deemed supplies under Schedule I of the CGST Act, 2017 shall be declared here. Any deemed supply which is already part of the turnover in the audited Annual Financial Statement is not required to be included here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]
[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5E

Aggregate value of credit notes which were issued after 31st of March for any supply accounted in the current financial year but such credit notes were reflected in the annual return (GSTR-9) shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5F

Trade discounts which are accounted for in the audited Annual Financial Statement but on which GST was leviable (being not permissible) shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5G

Turnover included in the audited Annual Financial Statement for April 2017 to June 2017 shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5H

Unbilled revenue which was recorded in the books of accounts on the basis of accrual system of accounting during the current financial year but GST was not payable on such revenue in the same financial year shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5I

Value of all advances for which GST has not been paid but the same has been recognized as revenue in the audited Annual Financial Statement shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5J

Aggregate value of credit notes which have been accounted for in the audited Annual Financial Statement but were not admissible under Section 34 of the CGST Act shall be declared here.[For[FY 2017-18,]
[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]
[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]
, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5K

Aggregate value of all goods supplied by SEZs to DTA units for which the DTA units have filed bill of entry shall be

declared here.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5L

There may be cases where registered persons might have opted out of the composition scheme during the current financial year. Their turnover as per the audited Annual Financial Statement would include turnover both as composition taxpayer as well as normal taxpayer. Therefore, the turnover for which GST was paid under the composition scheme shall be declared here.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5M

There may be cases where the taxable value and the invoice value differ due to valuation principles under section 15 of the CGST Act, 2017 and rules thereunder. Therefore, any difference between the turnover reported in the Annual Return (GSTR 9) and turnover reported in the audited Annual Financial Statement due to difference in valuation of supplies shall be declared here.[For[FY 2017-18, 2018-19 and 2019-20]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5N

Any difference between the turnover reported in the Annual Return (GSTR9) and turnover reported in the audited Annual Financial Statement due to foreign exchange fluctuations shall be declared here.[For[FY 2017-18, 2018-19 and 2019-20]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this table. If there are any adjustments required to be reported then the same may be reported in Table 5O.]

5O

Any difference between the turnover reported in the Annual Return (GSTR9) and turnover reported in the audited Annual Financial Statement due to reasons not listed above shall be declared here.

5Q

Annual turnover as declared in the Annual Return (GSTR 9) shall be declared here. This turnover may be derived from Sr. No. 5N, 10 and 11 of Annual Return (GSTR 9).

6

Reasons for non-reconciliation between the annual turnover declared in the audited Annual Financial Statement and turnover as declared in the Annual Return (GSTR 9) shall be specified here.

7

The table provides for reconciliation of taxable turnover from the audited annual turnover after adjustments with the taxable turnover declared in annual return (GSTR-9).

7A

Annual turnover as derived in Table 5P above would be auto-populated here.

7B

Value of exempted, nil rated, non-GST and no-supply turnover shall be declared here. This shall be reported net of credit notes, debit notes and amendments if any.

7C

Value of zero rated supplies (including supplies to SEZs) on which tax is not paid shall be declared here. This shall be reported net of credit notes, debit notes and amendments if any.

7D

Value of reverse charge supplies on which tax is to be paid by the recipient shall be declared here. This shall be reported net of credit notes, debit notes and amendments if any.

7E

The taxable turnover is derived as the difference between the annual turnover after adjustments declared in Table 7A above and the sum of all supplies (exempted, non-GST, reverse charge etc.) declared in Table 7B, 7C and 7D above.

7F

Taxable turnover as declared in Table (4N - 4G) + (10-11) of the Annual Return (GSTR9) shall be declared here.

8

Reasons for non-reconciliation between adjusted annual taxable turnover as derived from Table 7E above and the taxable turnover declared in Table 7F shall be specified here.

5. Part III consists of reconciliation of the tax payable as per declaration in the reconciliation statement and the actual tax paid as declared in Annual Return (GSTR9). The instructions to fill this part are as follows:-

Table No.

Instructions

9

The table provides for reconciliation of tax paid as per reconciliation statement and amount of tax paid as declared in Annual Return (GSTR 9). Under the head labelled "RC", supplies where tax was paid on reverse charge basis by the recipient (i.e. the person for whom reconciliation statement has been prepared) shall be declared.

9P

The total amount to be paid as per liability declared in Table 9A to 9O is auto populated here.

9Q

The amount payable as declared in Table 9 of the Annual Return (GSTR9) shall be declared here. It should also contain any differential tax paid on Table 10 or 11 of the Annual Return (GSTR9).

10

Reasons for non-reconciliation between payable / liability declared in Table 9P above and the amount payable in Table 9Q shall be specified here.

11

Any amount which is payable due to reasons specified under Table 6, 8 and 10 above shall be declared here.

6. Part IV consists of reconciliation of Input Tax Credit (ITC). The instructions to fill Part IV are as under: -
Table No.

Instructions

12A

ITC availed (after reversals) as per the audited Annual Financial Statement shall be declared here. There may be cases where multiple GSTINs (State-wise) registrations exist on the same PAN. This is common for persons / entities with presence over multiple States. Such persons / entities, will have to internally derive their ITC for each individual GSTIN and declare the same here. It may be noted that reference to audited Annual Financial Statement includes reference to books of accounts in case of persons / entities having presence over multiple States.

12B

Any ITC which was booked in the audited Annual Financial Statement of earlier financial year(s) but availed in the ITC ledger in the financial year for which the reconciliation statement is being filed for shall be declared here. This shall include transitional credit which was booked in earlier years but availed during Financial Year 2017-18.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this Table.]

12C

Any ITC which has been booked in the audited Annual Financial Statement of the current financial year but the same has not been credited to the ITC ledger for the said financial year shall be declared here.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this Table.]

12D

ITC availed as per audited Annual Financial Statement or books of accounts as derived from values declared in Table 12A, 12B and 12C above will be auto-populated here.

12E

Net ITC available for utilization as declared in Table 7J of Annual Return (GSTR9) shall be declared here.

13

Reasons for non-reconciliation of ITC as per audited Annual Financial Statement or books of account (Table 12D) and the net ITC (Table 12E) availed in the Annual Return (GSTR9) shall be specified here.

14

This table is for reconciliation of ITC declared in the Annual Return (GSTR9) against the expenses booked in the audited Annual Financial Statement or books of account. The various sub-heads specified under this table are general expenses in the audited Annual Financial

Statement or books of account on which ITC may or may not be available.

Further, this is only an indicative list of heads under which expenses are generally booked. Taxpayers may add or delete any of these heads but all heads of expenses on which GST has been paid / was payable are to be declared here.[For[FY 2017-18,]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

[2018-19, 2019-20 and 2020-21]

[Substituted '2018-19 and 2019-20' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

, the registered person shall have an option to not fill this Table.]

14R

Total ITC declared in Table 14A to 14Q above shall be auto populated here.

14S

Net ITC availed as declared in the Annual Return (GSTR9) shall be declared here. Table 7J of the Annual Return (GSTR9) may be used for filing this Table.

15

Reasons for non-reconciliation between ITC availed on the various expenses declared in Table 14R and ITC declared in Table 14S shall be specified here.

16

Any amount which is payable due to reasons specified in Table 13 and 15 above shall be declared here.

7. [Part V consists of the additional liability to be discharged by the taxpayer due to non-reconciliation of turnover or non-reconciliation of input tax credit. Any refund which has been erroneously taken and shall be paid back to the Government shall also be declared in this table. Lastly, any other outstanding demand which is to be settled by the taxpayer shall be declared in this Table.]

[Substituted by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

8. Towards the end of the return, taxpayers shall be given an option to pay any additional liability declared in this form, through FORM DRC-03. Taxpayers shall select "Reconciliation Statement" in the drop down provided in FORM DRC-03. It may be noted that such liability shall be paid through electronic cash ledger only.

[***]

[Omitted 'Part B Certification' by Notification No. G.S.R. 517(E), dated 30.7.2021 (w.e.f. 19.6.2017).]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

[Part - B- Certification]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

I.Certification in cases where the reconciliation statement (FORM GSTR-9C) is drawn up by the person who had conducted the audit:

* I/we have examined the-

(a) balance sheet as on

(b) the *profit and loss account/income and expenditure account for the period beginning fromto ending on, and

(c) the cash flow statement (if available) for the period beginning fromto ending on, -attached herewith, of M/s (Name), (Address),(GSTIN).

2. Based on our audit I/we report that the said registered person-

*has maintained the books of accounts, records and documents as required by the IGST/CGST/< >GST Act, 2017 and the rules/notifications made/issued thereunder

*has not maintained the following accounts/records/documents as required by the IGST/CGST/< >GST Act, 2017 and the rules/notifications made/issued thereunder:

1.

2.

3.

3. (a) *I/we report the following observations/ comments / discrepancies / inconsistencies; if any:

.....

.....

3. (b) *I/we further report that, -

(A) *I/we have obtained all the information and explanations which, to the best of *my/our knowledge and belief, were necessary for the purpose of the audit/ information and explanations which, to the best of *my/our knowledge and belief, were necessary for the purpose of the audit were not provided/partially provided to us.

(B) In *my/our opinion, proper books of account *have/have not been kept by the registered person so far as appears from *my/ our examination of the books.

(C) I/we certify that the balance sheet, the *profit and loss/income and expenditure account and the cash flow Statement (if available) are *in agreement/not in agreement with the books of account maintained at the Principal place of business atand **additional place of business within the State.

4. The documents required to be furnished under section 35 (5) of the CGST Act / SGST Act and Reconciliation Statement required to be furnished under section 44(2) of the CGST Act / SGST Act is annexed herewith in Form No. GSTR-9C.

5. In *my/our opinion and to the best of *my/our information and according to explanations given to *me/us, the particulars given in the said Form No.GSTR-9C are true and fair subject to following observations/qualifications, if any:

(a)

(b)

(c)

.....

.....

**(Signature and stamp/Seal of the Auditor)

Place:

Name of the signatory

Membership No.....

Date:

Full address

II. Certification in cases where the reconciliation statement (FORM GSTR-9C) is drawn up by a person other than the person who had conducted the audit of the accounts:

*I/we report that the audit of the books of accounts and the financial statements of M/s. (Name and address of the assessee with GSTIN) was conducted by M/s. (full name and address of auditor along with status), bearing membership number in pursuance of the provisions of theAct, and *I/we annex hereto a copy of their audit report dated along with a copy of each of :-

(a) balance sheet as on

(b) the *profit and loss account/income and expenditure account for the period beginning fromto ending on,

(c) the cash flow statement (if available) for the period beginning fromto ending on, and

(d) documents declared by the said Act to be part of, or annexed to, the *profit and loss account/income and expenditure account and balance sheet.

2. I/we report that the said registered person-

*has maintained the books of accounts, records and documents as required by the IGST/CGST/ <<>> GST Act, 2017 and the rules/notifications made/issued thereunder

*has not maintained the following accounts/records/documents as required by the IGST/CGST/ <<>> GST Act, 2017 and the rules/notifications made/issued thereunder:

1.

2.

3.

3. The documents required to be furnished under section 35 (5) of the CGST Act / SGST Act and Reconciliation

Statement required to be furnished under section 44(2) of the CGST Act / SGST Act is annexed herewith in Form No.GSTR-9C.

4. In *my/our opinion and to the best of *my/our information and according to examination of books of account including other relevant documents and explanations given to *me/us, the particulars given in the said Form No.9C are true and fair subject to the following observations/qualifications, if any:

- (a)
- (b)
- (c)

.....
**(Signature and stamp/Seal of the Auditor)

Place:

Name of the signatory

Membership No.....

Date:

Full address

[Form GSTR-10]

[Inserted by Notification No. G.S.R. 378(E), dated 18.4.2018 (w.e.f. 19.6.2017).]

(See rule 81)

Final Return

1.

GSTIN

2.

Legal name

3.

Trade Name, if any

4.

Address for future correspondence

5.

Effective date of cancellation of registration

(Date of closure of business or the date from which registration is to be cancelled)

6.

Reference number of cancellation order

7.

Date of cancellation order

8. Details of inputs held in stock, inputs contained in semi-finished or finished goods held in stock, and capital goods/plant and machinery on which input tax credit is required to be reversed and paid back to Government

Sr. No.

GSTIN

Invoice/Bill of Entry

Description of inputs held in stock, inputs

contained in semi-finished or finished goods held in stock and capital goods /plant and machinery

Unit Quantity Code (UQC)

Qty

Value (As adjusted by debit/credit note)

Input tax credit/Tax payable (whichever is higher) (Rs.)

No.

Date

Central tax

State/Union territory tax

Integrated tax

Cess

1

2

3

4

5

6

7

8

9

10

11

12

8 (a) Inputs held in stock (where invoice is available)

8 (b) Inputs contained in semi-finished or finished goods held in stock (where invoice is available)

8 (c) Capital goods/plant and machinery held in stock

8 (d) Inputs held in stock or inputs as contained in semi-finished /finished goods held in stock (where invoice is not available)

9. Amount of tax payable and paid (based on Table 8)

Sr. No.

Description

ITC reversible/Tax payable

Tax paid along with application for cancellation of registration (GST REG-16)

Balance tax payable (3-4)

Amount paid through debit to electronic cash ledger

Amount paid through debit to electronic credit ledger

Central Tax

State/ Union territory Tax

Integrated Tax

Cess

1

2

3

4

5

6

7

8

9

10

1.

Central Tax

2.

State/Union territory Tax

3.

Integrated Tax

4.

Cess

10. Interest, late fee payable and paid

Description

Amount payable

Amount Paid

1

2

3

(I) Interest on account of

(a) Integrated Tax

(b) Central Tax

(c) State/Union territory Tax

(d) Cess

(II) Late fee

(a) Central Tax

(b) State/Union territory tax

11. Verification

I hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of authorized signatory

Name

Designation/Status

Date - dd/mm/yyyy

Instructions:

1. This form is not required to be filed by taxpayers or persons who are registered as :-

(i)

Input Service Distributors;

(ii)

Persons paying tax under section 10;

(iii)

Non-resident taxable person;

(iv)

Persons required to deduct tax at source under section 51; and

(v)

Persons required to collect tax at source under section 52.

2. Details of stock of inputs, inputs contained in semi-finished or finished goods and stock of capital goods/plant and machinery on which input tax credit has been availed.

3. Following points need to be taken care of while providing details of stock at Sl. No.8:

(i)

where the tax invoices related to the inputs held in stock or inputs contained in semi-finished or finished goods held in stock are not available, the registered person shall estimate the amount under sub-rule (3) of rule 44 based on prevailing market price of the goods;

(ii)

in case of capital goods/ plant and machinery, the value should be the invoice value reduced by 1/60th per month or part thereof from the date of invoice/purchase taking useful life as five years.

4. The details furnished in accordance with sub-rule (3) of rule 44 in the Table at Sl. No. 8 (against entry 8 (d)) shall be duly certified by a practicing chartered accountant or cost accountant. Copy of the certificate shall be uploaded while filing the details.

[Form GSTR-11]

[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

[See rule 82]

Statement of inward supplies by persons having Unique Identification Number (UIN)

{

Year

Tax period

|

}

1.

UIN

2.

Name of the person having UIN

Auto populated

3. Details of inward supplies received

(Amount in Rs. for all Tables)

GSTIN of supplier

Invoice/Debit Note/Credit Note details

Rate

Taxable value

Amount of tax

Place of Supply

No

Date

Value

Integrated tax

Central Tax

State/ UT Tax

CESS

1

2

3

4

5

6

7

8

9

10

11

3A. Invoices received

3B. Debit/Credit Note received

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Place

Signature

Name of Authorised Signatory

Date

Designation/Status

Instructions:-

1. Terms Used :-

a. GSTIN :- Goods and Services Tax Identification Number

b. UIN :- Unique Identity Number

2. Refund application has to be filed in the same State in which the Unique Identity Number has been allotted.

3. For refund purposes only those invoices may be entered on which refund is sought

[Form GST PCT-1]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 83(1)]

Application for Enrolment as Goods and Services Tax Practitioner

Part-A { |

| -

| State/ UT - ?

| District - ?

| }

(i)

Name of the Goods and Services Tax

Practitioner

(As mentioned in PAN)

(ii)

PAN

(iii)

Email Address

(iv)

Mobile Number

Note- Information submitted above is subject to

online verification before proceeding to fill up Part-B.

Part B ? { |

| -

| 1.

| Enrolling Authority

| Centre

State

| -

| 2.

| State/ UT

|

| -

| 3.

| Date of application

|

| -

| 4.

| Enrolment sought as :

| (1) Chartered Accountant holding

COP

(2)

Company Secretary holding COP

(3)

Cost and Management Accountant

holding COP

(4)

Advocate

(5)

Graduate or Postgraduate degree
in Commerce

(6)

Graduate or Postgraduate degree
in Banking

(7)

Graduate or Postgraduate degree
in Business Administration

(8)

Graduate or Postgraduate degree
in Business Management

(9)

Degree examination of any
recognized Foreign University

(10)

Retired Government Officials

(11)

[Sales Tax practitioner under existing law for a period of not less than five years
[Inserted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

(12)

tax return preparer under existing law for a period of not less than five years]

| -

| 5.

| Membership Number

|

| -

| 5.1

| Membership Type (drop down will change based the institute
selected)

|

| -

| 5.2

| Date of Enrolment/ Membership

|

| -

| 5.3

| Membership Valid upto

|

| -

| 6.

| Advocates registered with Bar (Name of Bar Council)

|

| -

| 6.1

| Registration Number as given by Bar

|

| -

| 6.2

| Date of Registration

|
|-
| 6.3
| Valid up to
|
|-
| 7.
| Retired Government Officials
Retired from Centre/ State
7.1
Date of Retirement
-
7.2
Designation of the post held at the time of retirement
Scanned copy of Pension Certificate issued by AG office or any
other document evidencing retirement
-
8.
Applicant Details
-
8.1
Full name as per PAN
-
8.2
Father's Name
-
8.3
Date of Birth
-
8.4
Photo
-
8.5
Gender
-
8.6
Aadhaar
< optional >
-
8.7
PAN
< Pre filled from Part A >
-

| 8.8

| Mobile Number

| < Pre filled from Part A >

| -

| 8.9

| Landline Number

|

| -

| 8.10

| Email id

| < Pre filled from Part A >

| -

| 9.

| Professional Address

| (Any three will be mandatory)

| -

| 9.1

| Building No./ Flat No./ Door No.

|

| -

| 9.2

| Floor No.

|

| -

| 9.3

| Name of the Premises/ Building

|

| -

| 9.4

| Road/ Street Lane

|

| -

| 9.5

| Locality/ Area/ Village

|

| -

| 9.6

| District

|

| -

| 9.7

| State

|

| -

| 9.8

| PIN Code

|

| -

| 10.

| Qualification Details

|

| -

| 10.1

| Qualifying Degree

|

| -

| 10.2

| Affiliation University/ Institute

|

| -

|

| Consent

I on behalf of the holder of

Aadhaar number < pre-filled based on Aadhaar number provided

in the form > give consent to "Goods and Services Tax

Network" to obtain my details from UIDAI for the purpose of

authentication. "Goods and Services Tax Network" has

informed me that identity information would only be used for

validating identity of the Aadhaar holder and will be shared with

Central Identities Data Repository only for the purpose of

authentication.

[Declaration

[Inserted by Notification No. G.S.R. 549(E), dated 13.6.2018 (w.e.f. 19.6.2017).]

I hereby declare that:(i) I am a citizen of India;(ii) I am a person of sound mind;(iii) I have not been adjudicated as an insolvent; and(iv) I have not been convicted by a competent court.]

Verification

I hereby solemnly affirm and declare that the information

given herein above is true and correct to the best of my

knowledge and belief and nothing has been concealed therefrom.

| -

|

| Place

| < DSC/ E-sign of the Applicant/ EVC >

| -

|

| Date

| < Name of the Applicant >

|}

Acknowledgment

Application Reference Number (ARN) -

You have filed the application successfully.

GSTIN, if available:

Legal Name:

Form No. :

Form Description :

Date of Filing:

Time of filing:

Center Jurisdiction:

State Jurisdiction :

Filed by :

Temporary reference number, (TRN) if any:

Place:

It is a system generated acknowledgment and does not require any signature.

Note - The status of the application can be viewed through "Track Application Status" at dash board on the GST Portal.

[Form GST PCT-2]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 83(2)]

Enrolment Certificate of Goods and Services Tax Practitioner

1.

Enrolment Number

2.

PAN

3.

Name of the Goods and Services Tax Practitioner

4.

Address and Contact Information

5.

Date of enrolment as GSTP

Date

Signature of the Enrolment Authority

Name and Designation.

Centre/ State

[Form GST PCT-3]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 83(4)]

Reference No. :

Date :

To

Name

Address of the Applicant

GST practitioner enrolment No.

Show Cause Notice for disqualification

It has come to my notice that you are guilty of misconduct, the details of which are given hereunder:

1.

2.

You are hereby called upon to show cause as to why the certificate of enrolment granted to you should not be rejected for reasons stated above. You are requested to submit your response within <15> days to the undersigned from the date of receipt of this notice.

Appear before the undersigned on ----- (date) (Time)

If you fail to furnish a reply within the stipulated date or fail to appear for personal hearing on the appointed date and time, the case will be decided ex parte on the basis of available records and on merits

Signature

Name

(Designation)

[Form GST PCT-4]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 83(4)]

Reference No. :

Date :

To

Name

Address

Enrollment Number

Order of rejection of enrolment as GST Practitioner

This has reference to your reply dated ---- in response to the notice to show cause dated -----.

- Whereas no reply to notice to show cause has been submitted; or
- Whereas on the day fixed for hearing you did not appear; or
- Whereas the undersigned has examined your reply and submissions made at the time of hearing, and is of the opinion that your enrolment is liable to be cancelled for following reason(s).

1.

2.

The effective date of cancellation of your enrolment is << DD/MM/YYYY >>.

Signature

Name

(Designation)

[Form GST PCT-5]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 83(6)]

Authorisation/ withdrawal of authorisation for Goods and Services Tax Practitioner

To

The Authorised Officer

Central Tax/ State Tax.

Part-A

Sir/ Madam

I/ We < Name of the Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.) do hereby

1. *solemnly authorise,

2. *withdraw authorisation of

----- (Name of the Goods and Services Tax Practitioner), bearing Enrolment Number ----- for the purposes of Section 48 read with rule 83 to perform the following activities on behalf of ----- (Legal Name) bearing << GSTIN - >>:

Sr. No.

List of Activities

Check box

1.

To furnish details of outward and inward supplies

2.

To furnish monthly, quarterly, annual or final return

3.

To make deposit for credit into the electronic cash ledger

4.

To file an application for claim of refund

5.

To file an application for amendment or cancellation of registration

6. [

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

To furnish information for generation of e-way bill

7.

To furnish details of challan inFORM GST ITC-04

8.

To file an application for amendment or cancellation of enrolment under rule 58

9.

To file an intimation to pay tax under the composition scheme or withdraw from the said scheme.]

2. The consent of the ----- (Name of Goods and Services Tax Practitioner) is attached herewith*.

*Strike out whichever is not applicable.

Signature of the authorised signatory

Name

Designation/ Status

Date

Place

Part-B Consent of the Goods and Services Tax Practitioner

I << Name of the Goods and Services Tax Practitioner >> < Enrolment Number > do hereby solemnly accord my consent to act as the Goods and Services Tax Practitioner on behalf of ----- (Legal name), GSTIN only in respect of the activities specified by ----- (Legal name), GSTIN

Signature

Name

Enrolment No.

Date

Results of Matching after filing of the Returns of September (to be filed by 20th October)

Month

Bill of Entry No./ Invoice/ Debit Note/ Credit

Note

ITC/ Output Liability

Interest

Date

Number

Taxable Value

Integrated

Central

State/ UT

Cess

Integrated

Central

State

Cess

A. Finally Accepted Input Tax Credit

A.1 Details of Invoices, Debit and Credit Notes of the month of September that have matched

1

September

Nil

2

September

Nil

A.2 Details of Invoices, Debit and Credit

Notes of the month of August that were found to have mismatched in the return of the month of August filed by 20th September but mismatch was rectified in the return for the month of September filed by 20th October

1

August

Nil

2

August

Nil

A.3 Details of Invoices, Debit and Credit

Notes of the month of July and before but not earlier than April of the previous Financial Year which had become payable but the pairing supplier/recipient has included the details of corresponding document in his return of the month of September filed by 20th October and the reclaim is being allowed alongwith refund of interest.

1

Month

Refund

2

Month

Refund

B. Mismatches/Duplicates that have led to increase of liability in the return for September filed by 20th October

B.1 Details of Invoices, Debit and Credit

Notes of the month of July that were found to have mismatched in the return of the month of July filed by 20th August but mismatch was not rectified in the return for the month of August filed by 20th September and have become payable in the return for month of September to be filed 20th October

1

July

Two Months

2

July

Two Months

B.2 Details of Invoices, Debit and Credit

Notes of the month of August that were found to be duplicates and have become payable in the return September filed by 20th October

1

August

One Month

2

August

One Month

B.3 Details of Invoices, Debit and Credit

Notes of the month of August where reversal was reclaimed in violation of Section 42/ 43 and that have become payable in the return of September filed by 20th October

1

August

One Month-high

2

August

One Month-high

C. Mismatches/ Duplicates that will lead to increase of liability in the return for October to be filed by 20th November

C.1 Details of Invoices, Debit and Credit

Notes of the month of August that were found to have mismatched

in the return of the month of August filed by 20th September but mismatch was not rectified in the return for the month of September filed by 20th October and will become payable in the return for month of October to be filed 20th November

1

August

Two Months

2

August

Two Months

C.2 Details of Invoices, Debit and Credit

Notes of the month of September that were found to be duplicate and will become payable in the return for October to be filed by 20th November

1

September

One Month

2

September

One Month

C.3 Details of Invoices, Debit and Credit

Notes of the month of September where reversal was reclaimed in violation of Section 42/43 and that will become payable in the return of October return to be filed by 20th November

1

September

One Month-high

2

September

One Month-high

D. Mismatches/ Duplicates that may lead to increase of liability in the return for November to be filed by 20th December

D.1 Details of Invoices, Debit and Credit

Notes of the month of September that have been found to have mismatched and may become payable in the return for November to be filed by 20th December in case mismatch not rectified in the return for October to be filed by 20th November

1

September

Nil/ Two Months

2

September

Nil/ Two Months

[Form GST PCT-06]

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

[See rule 83B]

Application for Cancellation of Enrolment as Goods and Services Tax Practitioner

1. GSTP Enrolment No.

2. Name of the GST Practitioner

<Auto Populated>

3. Address

< Auto Populated>

4. Date of effect of cancellation of enrolment

I hereby request for
cancellation of enrolment as GST Practitioner for the reason(s)
noted below:

1.

2.

3.

DECLARATION

The above declaration
is true and correct to the best of my knowledge and belief. I
undertake that I shall continue to be liable for my actions as
GST Practitioner before such cancellation.

(SIGNATURE)

Place:

Date:

[Form GST PCT-07]

[Inserted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

[See rule 83B]

Order of Cancellation of Enrolment as Goods
and Services Tax Practitioner

1. GSTP Enrolment No.

2. Name of the GST Practitioner

< Auto Populated>

3. Address

<Auto Populated>

4. No. and Date of application

5. Date of effect of cancellation of enrolment

Declaration

This is to inform you
that your enrolment as GST Practitioner is hereby cancelled with
effect from.....

(Signature)

Place:

Date:

[Form GST PMT-1]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 85(1)]

Electronic Liability Register of Registered Person

(Part-I: Return related liabilities) (To be maintained at the Common Portal)

GSTIN -

Name (Legal) -

Trade name, if any

Tax Period -

Act - Central Tax/ State Tax/ UT Tax/ Integrated Tax/ CESS/ All

(Amount in Rs.) ?

Sr. No.

Date (dd/mm/yyyy)

Reference No.

Ledger used for discharging liability

Description

Type of Transaction [Debit (DR) (Payable)]/

[Credit (CR) (Paid)]/ Reduction (RD)/ Refund adjusted (RF)]

1

2

3

4

5

6

Amount debited/ credited (Central Tax/ State Tax/

UT Tax/ Integrated Tax/ CESS/ Total)

Balance (Payable) (Central Tax/ State Tax/ UT

Tax/ Integrated Tax/ CESS/ Total)

Tax

Interest

Penalty

Fee

Others

Total

Tax

Interest

Penalty

Fee

Others

Total

7

8

9

10

11

12

13

14

15

16

17

18

Note. - 1. All liabilities accruing due to return and payments made against the same will be recorded in this ledger.

2. Under description head - liabilities due to opting for composition, cancellation of registration will also be covered in this part. Such liabilities shall be populated in the liability register of the tax period in which the date of application or order falls, as the case may be.

3. Return shall be treated as invalid if closing balance is positive. Balance shall be worked out by reducing credit (amount paid) from the debit (amount payable).

4. Cess means cess levied under Goods and Services Tax (Compensation to States) Act, 2017.

[Form GST PMT-01]

[Substituted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f. 19.6.2017).]

[See rule 85(1)]

Electronic Liability Register of Registered Person

(Part-II: Other than return related liabilities)

(To be maintained at the Common Portal)

Reference No. -
 Date -
 GSTIN/Temporary Id -
 Name (Legal) -
 Trade name, if any -
 Stay status ? Stayed/ Un-stayed
 Period - From ----- To -- (dd/mm/yyyy)
 Act - Central Tax/State Tax/UT Tax/Integrated Tax/CESS /All
 (Amount in Rs.)
 Sr. No.
 Date (dd/mm/yyyy)
 Reference No.
 Tax Period, if applicable
 Ledger used for discharging liability
 Description
 Type of Transaction *
 Amount debited/credited (Central Tax/State
 Tax/UT Tax/Integrated Tax/CESS/amount under existing law/Total)
 From
 To
 Tax
 Interest
 Penalty
 Fee
 Others
 Total
 1
 2
 3
 4
 5
 6
 7
 8
 9
 10
 11
 12
 13
 14
 Balance (Payable)
 (Central Tax/State Tax/UT Tax/Integrated Tax/
 CESS/ amount under existing law/Total)
 Tax
 Interest
 Penalty
 Fee
 Others
 Total
 Status (Stayed / Un-stayed)
 15

16
17
18
19
20
21

*[Debit (DR) (Payable)] / [Credit (CR) (Paid)] / Reduction (RD)/ Refund adjusted (RF)]

Note. - 1. All liabilities accruing, other than return related liabilities, will be recorded in this ledger. Complete description of the transaction shall be recorded accordingly.

2. All payments made out of cash or credit ledger against the liabilities would be recorded accordingly.

3. Reduction or enhancement in the amount payable due to decision of appeal, rectification, revision, review etc. will be reflected here.

4. Negative balance can occur for a single Demand ID also if appeal is allowed/ partly allowed. Overall closing balance may still be positive.

5. Refund of pre-deposit can be claimed for a particular demand ID if appeal is allowed even though the overall balance may still be positive subject to the adjustment of the refund against any liability by the proper officer.

6. The closing balance in this part shall not have any effect on filing of return.

7. Reduction in amount of penalty would be automatic if payment is made within the time specified in the Act or the rules.

8. Payment made against the show cause notice or any other payment made voluntarily shall be shown in the register at the time of making payment through credit or cash. Debit and credit entry will be created simultaneously.

[Form GST PMT-2]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 86(1)]

Electronic Credit Ledger of Registered Person

(To be maintained at the Common Portal)

GSTIN -

Name (Legal) -

Trade name, if any -

Period -

From ----- To ----- (dd/mm/yyyy)

Act - Central Tax/ State Tax/ UT Tax/ Integrated Tax/ CESS/ All

(Amount in Rs.) ?

Sr. No.

Date (dd/mm/yyyy)

Reference No.

Tax Period, if any

Description (Source of credit and purpose of utilisation)

Transaction Type [Debit (DR)/ Credit (CR)]

1
2
3
4
5
6

Credit/ Debit

Balance available

Central Tax

State Tax

UT Tax

Integrated Tax

CESS

Total

Central Tax

State Tax

UT Tax

Integrated Tax

CESS

Total

7

8

9

10

11

12

13

14

15

16

17

18

Balance of Provisional credit

Sr. No.

Tax period

Amount of provisional credit balance

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

Total

1

2

3

4

5

6

7

8

Mismatch credit (other than reversed)

Sr. No.

Tax period

Amount of mismatch credit

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

Total

1

2

3
4
5
6
7
8

Note. - 1. All type of credits as per return, credit on account of merger, credit due on account of pre-registration inputs, etc., credit due to opting out from composition scheme, transition etc. will be recorded in the credit ledger.

2. Description will include sources of credit (GSTR-3, GSTR-6 etc.) and utilisation thereof towards liability related to return or demand etc. Refund claimed from the ledger will be debited and if the claim is rejected, then it will be credited back to the ledger to the extent of rejection.

[Form GST PMT-3]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rules 86(4) & 87(11)]

Order for re-credit of the amount to cash or credit ledger on rejection of refund claim

Reference No. :

Date :

1. GSTIN -

2. Name (Legal) -

3. Trade name, if any

4. Address -

5. Period/ Tax Period to which the credit relates, if any -

From ----- To -----

6. Ledger from which debit entry was made for claiming refund -
cash/ credit ledger

7. Debit entry no. and date -

8. Application reference no. and date -

9. No. and date of order vide which refund was rejected

10. Amount of credit -

Sr. No.

Act (Central Tax/ State Tax/ UT Tax Integrated

Tax/ CESS)

Amount of credit (Rs.)

Tax

Interest

Penalty

Fee

Other

Total

1
2
3
4
5
6
7
8

Signature

Name

Designation of the officer

Note. - 'Central Tax' stands for Central Goods and Services Tax; 'State Tax' stands for State Goods and Services Tax;

'UT Tax' stands for Union territory Goods and Services Tax; 'Integrated Tax' stands for Integrated Goods and Services Tax and 'Cess' stands for Goods and Services Tax(Compensation to States)

[Form GST PMT-4]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rules 85(7), 86(6) & 87(12)]

Application for intimation of discrepancy in Electronic Credit Ledger/ Cash Ledger/ Liability Register

1.

GSTIN

2.

Name (Legal)

3.

Trade name, if any

4.

Ledger/ Register in which discrepancy noticed

Credit ledger registerCashLedger liability

5.

Details of the discrepancy

Date

Type of tax

Type of discrepancy

Amount involved

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

6.

Reasons, if any

7.

Verification

I hereby solemnly

affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief.

Signature

{

Place

Name of Authorized Signatory

Date

Designation/ Status

}

Note. - 'Central Tax' stands for Central Goods and Services Tax; 'State Tax' stands for State Goods and Services Tax; 'UT Tax' stands for Union territory Goods and Services Tax; 'Integrated Tax' stands for Integrated Goods and Services Tax and 'Cess' stands for Goods and Services Tax(Compensation to States)

[Form GST PMT-5]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 87(1)]

Electronic Cash Ledger

(To be maintained at the Common Portal)

GSTIN/ Temporary Id -

Name (Legal) -

Trade name, if any

Period - From ----- To ----- (dd/mm/yyyy)

Act - Central Tax/ State Tax/ UT Tax/ Integrated Tax/ CESS/ All

(Amount in Rs.) ?

Sr. No.

Date of deposit/ Debit (dd/mm/yyyy)

Time of deposit

Reporting date (by bank)

Reference No.

Tax Period, if applicable

Description

Type of Transaction [Debit (DR)/ Credit (CR)]

1

2

3

4

5

6

7

8

Amount debited/ credited (Central Tax/ State Tax/

UT Tax/ Integrated Tax/ CESS/ Total)

Balance (Central Tax/ State Tax/ UT Tax/

Integrated Tax/ CESS/ Total)

Tax

Interest

Penalty

Fee

Others

Total

Tax

Interest

Penalty

Fee

Others

Total

9

10

11

12

13

14

15

16

17

18

19

20

Note. - 1. Reference No. includes BRN (Bank Reference Number), debit entry no., order no., if any, and acknowledgment No. of return in case of TDS & TCS credit.

2. Tax period, if applicable, for any debit will be recorded, otherwise it will be left blank.

3. GSTIN of deductor or tax collector at source, Challan Identification Number (CIN) of the challan against which deposit

has been made, and type of liability for which any debit has been made will also recorded under the head "description".

4. Application no., if any, Show Cause Notice Number, Demand ID, pre-deposit for appeal or any other liability for which payment is being made will also be recorded under the head "description" .

5. Refund claimed from the ledger or any other debits made against any liability will be recorded accordingly.

6. Date and time of deposit is the date and time of generation of CIN as reported by bank.

7. 'Central Tax' stands for Central Goods and Services Tax; 'State Tax' stands for State Goods and Services Tax; 'UT Tax' stands for Union territory Goods and Services Tax; 'Integrated Tax' stands for Integrated Goods and Services Tax and 'Cess' stands for Goods and Services Tax(Compensation to States)

[Form GST PMT-6]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 87(2)]

Challan for deposit of goods and services tax

CPIN

<< Auto Generated after submission of information >>

Date

<< Current date >>

Challan Expiry Date --

{|

GSTIN

<< Filled in/ Auto populated >>

Name (Legal)

<< Auto Populated >>

Address

<< Current date >>

|

Email address

<< Auto Populated >>

Mobile No.

<< Auto Populated >>

|}

Details of Deposit(All Amount in Rs.)

Government

Major Head

Minor Head

Tax

Interest

Penalty

Fee

Others

Total

Government of India

Central Tax (----)

Integrated Tax (----)

CESS (----)

Sub-Total

State (Name)

State Tax (----)

UT (Name)

UT Tax (----)

Total Challan Amount

Total Amount in words

Mode of Payment (relevant part will become active
when the particular mode is selected)

{|

e-Payment

(This will include all modes of e-payment such
as CC/ DC and net banking. Taxpayer will choose one of this)

|

Over the Counter (OTC)

Bank (Where cash or instrument is proposed to be deposited)

Details of Instrument

Cash

Cheque

Demand Draft

|}

NEFT/ RTGS

Remitting bank

Beneficiary name

GST

Beneficiary Account Number (CPIN)

< CPIN >

Name of beneficiary bank

Reserve Bank of India

Beneficiary Bank's Indian Financial System Code (IFSC)

IFSC of RBI

Amount

Note: Charges to be separately paid by the person making payment.

Particulars of depositor

Name

Designation/ Status (Manager, partner etc.)

Signature

Date

Paid Challan Information

GSTIN

Taxpayer Name

Name of Bank

Amount

Bank Reference No. (BRN)/ UTR

CIN

Payment Date

Bank Ack. No. (For Cheque/ DD deposited at Bank's counter)

Note. - UTR stands for Unique Transaction Number for NeFT/ RTGS payment.

[Form GST PMT-7]

[Inserted by Notification No. G.S.R. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 87(8)]

Application for intimating discrepancy relating to payment

1.

GSTIN

2.

Name (Legal)

3.

Trade name, if any

4.

Date of generation of challan from Common Portal

5.

Common Portal Identification Number (CPIN)

6.

Mode of payment (tick one)

Net banking

CC/ DC

NEFT/ RTGS

OTC

7.

Instrument detail, for OTC payment only

Cheque/ Draft No.

Date

Bank/ branch on which drawn

8.

Name of bank through which payment made

9.

Date on which amount debited/ realized

10.

Bank Reference Number (BRN)/ UTR No., if any

11.

Name of payment gateway (for CC/DC)

12.

Payment detail

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

13.

Verification (by authorized
signatory)

I hereby solemnly

affirm and declare that the information given herein above is
true and correct to the best of my knowledge and belief.

{

Signature

Place

Name of Authorized Signatory

Date

Designation/ Status

}

Note. - 1. The application is meant for the taxpayer where the amount intended to be paid is debited from his account but CIN has not been conveyed by bank to Common Portal or CIN has been generated but not reported by concerned bank.

2. The application may be filed if CIN is not conveyed within 24 hours of debit.

3. Common Portal shall forward the complaint to the Bank concerned and intimate the aggrieved person.

4. 'Central Tax' stands for Central Goods and Services Tax; 'State Tax' stands for State Goods and Services Tax; 'UT Tax' stands for Union territory Goods and Services Tax; 'Integrated Tax' stands for Integrated Goods and Services Tax and 'Cess' stands for Goods and Services Tax(Compensation to States).

[Form GST PMT ?09]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[See rule 87(13)]

Transfer of amount from one account head to
another in electronic cash ledger

{|

1

GSTIN

2

(a) Legal name

< Auto>

(b) Trade name, if any

< Auto>

3

ARN

4

Date of ARN

|-

| 5. Details of the amount to be transferred from
one account head to another

|-

|

| (Amount in Rs.)

|-

|

Amount to be transferred from

Amount to be transferred to

Major head

Minor head

Amount available

Major Head

Minor head

Amount transferred

1

2

3

4

5

6

< Central tax, State/ UT tax, Integrated tax,
Cess>

Tax

< Central tax, State/ UT tax, Integrated tax,
Cess>

Tax

Interest

Interest

Penalty

Penalty

Fee

Fee

Others

Others

Total

Total

| -

| 6. Verification

| -

| I hereby solemnly affirm and declare that the
information given herein above is true and correct to the best of
my knowledge and belief and nothing has been concealed therefrom.

| -

|

PlaceDate

SignatureName of Authorised SignatoryDesignation /Status

| -

| Instructions -

| -

| 1. Major head refers to - Integrated tax, Central tax, State/UT
tax and Cess.

| -

| 2. Minor head refers to ? tax, interest, penalty, fee and
others.

| -

| 3. The form may be filled up if amount from one major / minor
head is intended to be transferred to another major/minor head.
Minor head for transfer of amount may be same or different.

| -

| 4. The amount from one minor head can also be transferred to
another minor head under the same major head.

| -

| 5. Amount can be transferred from the head only if balance under
that head is available at the time of transfer.

| }

[Form-GST-RFD-01]

[Substituted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

[See rule 89(1)]

Application for Refund

(Applicable for casual or non-resident taxable person, tax deductor, tax collector, un-registered person and other
registered taxable person)

1

GSTIN / Temporary ID

2

Legal Name

3

Trade Name, if any

4

Address

5

Tax period (if applicable)

From <Year><Month> To

<Year><Month>

6

Amount of Refund Claimed (Rs.)

Act

Tax

Interest

Penalty

Fees

Others

Total

Central tax

State / UT tax

Integrated tax

Cess

Total

7

Grounds of refund

claim (select from drop down)

(a)

Excess balance in Electronic Cash Ledger

(b)

Exports of services- with payment of tax

(c)

Exports of goods / services- without payment of tax (accumulated ITC)

(d)

On account of order

Sr. No

Type of order Order no

Order No.

Order date

Order Issuing Authority

Payment reference no., if any

(i)

Assessment

(ii)

Finalization of Provisional assessment

(iii)

Appeal

(iv)

Any other order (specify)

(e)

ITC accumulated due to inverted tax structure
[clause (ii) of first proviso to section 54(3)]

(f)

On account of supplies made to SEZ unit/ SEZ developer (with payment of tax)

(g)

On account of supplies made to SEZ unit/ SEZ developer (without payment of tax)

(h)

Recipient of deemed export supplies/ Supplier of

deemed export supplies

(i)

Tax paid on a supply which is not provided,
either wholly or partially, and for which invoice has not been
issued (tax paid on advance payment)

(j)

Tax paid on an intra-State supply which is
subsequently held to be inter-State supply and vice versa (change
of POS)

(k)

Excess payment of tax, if any

(l)

Any other (specify)

8

Details of Bank account

Name of bank

Address of branch

IFSC

Type of account

Account No.

9

Whether Self-Declaration filed by Applicant u/s

54(4), if applicable

Yes No

[Declaration [second proviso to section 54(3)]

I hereby declare that the goods exported are not subject to any
export duty. I also declare that I have not availed any drawback
of central excise duty/service tax/central tax on goods or
services or both and that I have not claimed refund of the
integrated tax paid on supplies in respect of which refund is
claimed.

Signature

Name-

Designation/Status?

DECLARATION

[section 54(3)(ii)]

I hereby declare that the refund of input tax credit claimed in
the application does not include ITC availed on goods or services
used for making ?nil? rated or fully exempt supplies.

Signature

Name-

Designation/Status

[Declaration

[Rule 89(2)(F)]

[Substituted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

I hereby declare that tax has not been collected from the Special Economic Zone unit /the Special Economic Zone
developer in respect of supply of goods or services or both covered under this refund claim.

Signature

Name -

Designation/Status

Declaration

[rule 89(2)(g)]

(For recipient/supplier of deemed export)

In case refund claimed by recipient

I hereby declare that the refund has been claimed only for those invoices which have been detailed in statement 5B for the tax period for which refund is being claimed and the amount does not exceed the amount of input tax credit availed in the valid return filed for the said tax period. I also declare that the supplier has not claimed refund with respect to the said supplies.

In case refund claimed by supplier

I hereby declare that the refund has been claimed only for those invoices which have been detailed in statement 5B for the tax period for which refund is being claimed. I also declare that the recipient shall not claim any refund with respect of the said supplies and also, the recipient has not availed any input tax credit on such supplies.

Signature

Name-

Designation/Status

Undertaking

I hereby undertake to pay back to the Government the amount of refund sanctioned along with interest in case it is found subsequently that the requirements of clause (c) of sub-section (2) of section 16 read with sub-section (2) of section 42 of the CGST/SGST Act have not been complied with in respect of the amount refunded.

Signature

Name-

Designation/Status

Self-

Declaration [rule 89(2)(l)]

I _____ (Applicant) having GSTIN/ temporary Id -----, solemnly affirm and certify that in respect of the refund amounting to Rs. ---/ with respect to the tax, interest, or any other amount for the period from---to---, claimed in the refund application, the incidence of such tax and interest has not been passed on to any other person.

Signature

Name ?

Designation / Status

(This Declaration is not required to be furnished by applicants, who are claiming refund under clause (a) or clause (b) or clause (c) or clause (d) or clause (f) of sub-section (8) of section 54.)

10. Verification

I/We< Taxpayer Name>hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my/our knowledge and belief and nothing has been concealed therefrom.

I/We declare that no refund on this account has been received by me/us earlier.

Place

Date

Signature of Authorised Signatory

(Name)

Designation/ Status

(Annexure 1)

Statement - 1 [rule 89(5)]

Refund Type: ITC accumulated due to inverted tax structure [clause (ii) of first proviso to section 54(3)]

(Amount in Rs.)

Turnover of inverted rated supply of goods and Services

Tax payable on such inverted rated supply of

goods and services

Adjusted total turnover

Net input tax credit

Maximum refund amount to be claimed[(1 ×

4 ÷ 3)- 2]

1

2

3

4

5

[Statement - 1A [rule 89(2)(h)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type: ITC accumulated due to inverted tax structure [clause (ii) of first proviso to section 54(3)]

Sl. No.

Details of documents

of inward supplies received of inputs received

Tax paid on inward supplies

Type of Inward Supply

GSTIN of Supplier /Self GSTIN

Type of Document

No./ B/E

Port Code

Date

Taxable Value

Integrated Tax

Central Tax

State/ UT Tax

1

2

3

4

5

6

7

8

9

10

11

Details of documents of outward supplies issued

Tax paid on outward supplies

Type of Outward Supply

Type of Document

No.

Date

Taxable Value

Integrated Tax

Central Tax

State/ UT Tax

12

13

14

15

16

17

18

19

B2B/B2C

* In case of imports or supplies received under reverse charge mechanism [sub-section (3) of section 9 of the CGST Act/SGST Act or sub-section (3) of section 5 of IGST Act], the GSTIN of supplier will mean GSTIN of applicant (recipient).

[Statement - 2 [rule 89(2)(c)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type: Exports of services with payment of tax [***]

[Omitted '(accumulated ITC)' by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Sr. No.

Document Details

Integrated Tax

Cess

BRC/ FIRC

Type of Document

No.

Date

Value

Taxable value

No.

Date

Value

1

2

3

4

5

7

8

9

10

11

12

[Statement - 3 [rule 89(2)(b) and 89(2)(c)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type : Export without payment of tax (accumulated ITC)

Sr. No.

Document Details

Goods/ Services (G/S)

Shipping bill/ Bill of export

EGM Details

BRC/ FIRC

Type of Document

No.

Date

Value

Port code

No.

Date

Ref No.

Date

No.

Date

Value

1

2

3

4

5

6

7

8

9

10

11

12

13

14

Statement- 3A [rule 89(4)]

Refund Type: Export without payment of tax (accumulated ITC) - calculation of refund amount

(Amount in Rs.)

Turnover of zero rated supply of goods and
services

Net input tax credit

Adjusted total turnover

Refund amount($1 \times 2 \div 3$)

1

2

3

4

[Statement-4 [rule 89(2)(d) and 89(2)(e)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type: On account of supplies made to SEZ unit or SEZ Developer (on payment of tax)

GSTIN of recipient

Document Details

Shipping bill/ Bill of export/ Endorsed invoice

by SEZ

Taxable Value

Integrated Tax

Cess

Type of Document

No.

Date

Value

No.

Date

1

2

3

4

5

6

7

8

9

10

[Statement 4A]

[Inserted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

Refund by SEZ on account of supplies received from DTA - With payment of tax

GSTIN of Supplier

Document Details

Shipping bill/ Bill of export/ Endorsed invoice

by SEZ

Taxable Value

Integrated Tax

Cess

Type of Document

No.

Date

Value

No.

Date

1

2

3

4

5

6

7

8

9

10

[Statement-5 [rule 89(2)(d) and rule 89(2)(e)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type: On account of supplies made to SEZ unit or SEZ Developer (without payment of tax)

SI No.

Document Details

Goods/ Services (G/S)

Shipping bill/ Bill of export/ Endorsed invoice

no.

Type of Document

No.

Date

Value

No.

Date

1

2

3

4

5

6

7

8

Statement-5A [rule 89(4)]

Refund Type: On account of supplies made to SEZ unit / SEZ developer without payment of tax (accumulated ITC) - calculation of refund amount

(Amount in Rs.)

Turnover of zero rated supply of goods and services

Net input tax credit

Adjusted total turnover

Refund amount($1 \times 2 \div 3$)

1

2

3

4

[Statement 5B [rule 89(2)(g)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

Refund Type: On account of deemed exports claimed by supplier

SI. No.

Document details of inward supplies in case refund is claimed by Supplier

Tax paid

Taxable Value

No.

Date

Taxable value

Integrated Tax

Central Tax

State/Union Territory Tax

Cess

1

2

3
4
5
6
7
8
9

[Statement 5B [rule 89(2)(g)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type: On account of deemed exports claimed by recipient

Sl. No.

Document details of inward supplies in case
refund is claimed by recipient

Tax paid

Cess

GSTIN of Supplier

Type of Document

No.

Date

Taxable Value

Integrated Tax

Central Tax

State/Union Territory Tax

1
2
3
4
5
6
7
8
9
10

[Undertaking]

[Inserted by Notification No. G.S.R. 199(E), dated 23.3.2020 (w.e.f. 19.6.2017).]

I hereby undertake to deposit to the

Government the amount of refund sanctioned along with interest in
case of non-receipt of foreign exchange remittances as per the
proviso to section 16 of the IGST Act, 2017 read with rule 96B of
the CGST Rules 2017.

Signature-

Name ?

Designation / Status

[Statement-6 [rule 89(2)(j)]

[Substituted by Notification No. G.S.R. 845(E), dated 14.11.2019 (w.e.f. 19.6.2017).]

]

Refund Type: On account of change in POS (inter-State to intra-State and vice versa)

Document Type B2C/Registered

Recipoint GSTIN/UIN

Name (in case of B2C)

Document Details

Type of Document

No.

Date

Value

Taxable

Value

1

2

3

4

5

6

7

8

Details of documents covering transaction

considered as intra -State / inter-State transaction earlier

Inter/Intra

Integrated Tax

Central tax

State/UT Tax

Cess

PoS

9

10

11

12

13

14

Transaction which were held inter State / intra-State supply subsequently

Inter/Intra

Integrated Tax

Central tax

State/UT Tax

Cess

PoS

9

10

11

12

13

14

Statement-7 [rule 89(2)(k)]

Refund Type: Excess payment of tax, if any in case of last return filed.

(Amount in Rs.)

Tax period

ARN of return

Date of filing return

Tax Payable

Integrated tax

Central tax

State/ UT tax

Cess

1

2

3

4

5

6

7

Annexure-2

Certificate [rule 89(2)(m)]

This is to certify that in respect of the refund amounting to Rs.<<>> ----- (in words) claimed by M/s----- (Applicant's Name) GSTIN/ Temporary ID----- for the tax period < ---->, the incidence of tax and interest, has not been passed on to any other person. This certificate is based on the examination of the books of account and other relevant records and returns particulars maintained/ furnished by the applicant.

Signature of the Chartered Accountant/ Cost Accountant :

Name :

Membership Number :

Place :

Date :

Note. - This Certificate is not required to be furnished by the applicant, claiming refund under clause (a) or clause (b) or clause (c) or clause (d) or clause (f) of sub-section (8) of section 54 of the Act.

Instructions -

1. Terms used :

(a)

B to C :

From registered person to unregistered person

(b)

EGM :

Export General Manifest

(c)

GSTIN :

Goods and Services Tax Identification Number

(d)

IGST :

Integrated goods and services tax

(e)

ITC :

Input tax credit

(f)

POS :

Place of Supply (Respective State)

(g)

SEZ :

Special Economic Zone

(h)

Temporary ID :

Temporary Identification Number

(i)

UIN :

Unique Identity Number

2. Refund of excess amount available in electronic cash ledger can also be claimed through return or by filing application.
3. Debit entry shall be made in electronic credit or cash ledger at the time of filing the application.
4. Acknowledgement in FORM GST RFD-02 will be issued if the application is found complete in all respects.
5. Claim of refund on export of goods with payment of IGST shall not be processed through this application.
6. Bank account details should be as per registration data. Any change in bank details shall first be amended in registration particulars before quoting in the application.
7. Declaration shall be filed in cases wherever required.
8. 'Net input tax credit' means input tax credit availed on inputs during the relevant period for the purpose of Statement-1 and will include ITC on input services also for the purpose of Statement-3A and 5A.
9. 'Adjusted total turnover' means the turnover in a State or a Union territory, as defined under clause (112) of section 2 excluding the value of exempt supplies other than zero-rated supplies, during the relevant period.
10. For the purpose of Statement-1, refund claim will be based on supplies reported in GSTR-1 and GSTR-2.
11. BRC or FIRC details will be mandatory where refund is claimed against export of services details of shipping bill and EGM will be mandatory to be provided in case of export of goods.
12. Where the invoice details are amended (including export), refund shall be allowed as per the calculation based on amended value.
13. Details of export made without payment of tax shall be reported in Statement-3.
14. Availability of refund to be claimed in case of supplies made to SEZ unit or SEZ developer without payment of tax shall be worked out in accordance with the formula prescribed in rule 89(4).
15. 'Turnover of zero rated supply of goods and services' shall have the same meaning as defined in rule 89(4).

[Form-GST-RFD-01 A

[Substituted by Notification No. G.S.R. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

]

[See rules 89(1) and 97A]

Application for Refund (Manual)

(Applicable for casual taxable person or non-resident taxable person, tax deductor, tax collector and other registered taxable person)

1.
GSTIN/Temporary ID
2.
Legal Name
3.
Trade Name, if any
4.
Address
5.
Tax period (if applicable)
From <Year><Month> To <Year><Month>
6.
Amount of Refund Claimed(Rs.)
Act
Tax
Interest
Penalty
Fees
Others
Total
Central tax
State / UT tax
Integrated tax

Cess

Total

7.

Grounds of Refund Claim (select from drop down)

(a)

Excess balance in Electronic Cash Ledger

(b)

Exports of services- with payment of tax

(c)

Exports of goods / services- without payment of
tax (accumulated ITC)

(d)

ITC accumulated due to inverted tax
structure[under clause (ii) of first proviso to Section 54(3)]

(e)

On account of supplies made to SEZ unit/ SEZ
developer(with payment of tax)

(f)

On account of supplies made to SEZ unit/ SEZ
developer (without payment of tax)

(g)

Recipient of deemed export supplies/ Supplier of
deemed export supplies

(h)

{

On account of order

Sl.No.

Type of order

Order No.

Order date

Order Issuing Authority

Payment reference No., if any

(i)

Assessment

(ii)

Finalization or Provisional assessment

(iii)

Appeal

(iv)

Any other order (specify)

|

| (i)

| Tax paid on an intra-State supply which is
subsequently held to be inter-State supply and vice versa (change
of POS)

|

| (j)

| Excess

payment of tax, if any

|

| (k)

| Any other(specify)

|}

[Declaration

[second proviso to Section 54(3)]

I hereby declare that the goods exported are not subject to any export duty. I also declare that I have not availed any drawback of central excise duty/service tax/central tax on goods or services or both and that I have not claimed refund of the integrated tax paid on supplies in respect of which refund is claimed.

Signature

Name -

Designation/Status]

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Declaration

[section 54(3)(ii)]

I hereby declare that the refund of ITC claimed in the application does not include ITC availed on goods or services used for making 'nil' rated or fully exempt supplies.

Signature

Name -

Designation / Status

[Declaration

[rule 89(2)(f)]

[Substituted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

]

I hereby declare that tax has not been collected from the Special Economic Zone unit /the Special Economic Zone developer in respect of supply of goods or services or both covered under this refund claim.

Signature

Name -

Designation / Status

Declaration [rule 89(2)(g)]

(For recipient/supplier of deemed export)

In case refund claimed by recipient

I hereby declare that the refund has been claimed only for those invoices which have been detailed in statement 5B for the tax period for which refund is being claimed and the amount does not exceed the amount of input tax credit availed in the valid return filed for the said tax period. I also declare that the supplier has not claimed refund with respect to the said supplies.

In case refund claimed by supplier

I hereby declare that the refund has been claimed only for those invoices which have been detailed in statement 5B for the tax period for which refund is being claimed and the recipient shall not claim any refund with respect of the said supplies and also the recipient has not availed any input tax credit on such supplies

Signature

Name -

Designation/Status

Undertaking

I hereby undertake to pay back to the Government the amount of refund sanctioned along with interest in case it is found subsequently that the requirements of clause (c) of

sub-section (2) of section 16 read with sub-section (2) of section 42 of the CGST/SGST Act have not been complied with in respect of the amount refunded.

Signature

Name -

Designation/Status]

Self-

Declaration [rule 89(2)(l)]

I/We

_____ (Applicant) having GSTIN/ temporary Id

-----, solemnly affirm and certify that in respect of the refund amounting to Rs. ---/ with respect to the tax, interest, or any other amount for the period from---to--, claimed in the refund application, the incidence of such tax and interest has not been passed on to any other person.

Signature

Name ?

Designation / Status

(This Declaration is not required to be furnished by applicants, who are claiming refund under clause (a) or clause (b) or clause (c) or clause (d) or clause (f) of sub-section (8) of Section 54.)

8. Verification

I/We<Taxpayer Name>hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my/our knowledge and belief and nothing has been concealed therefrom.

I/We declare

that no refund on this account has been received by me/us earlier.

Place

Signature of Authorised Signatory

Date

(Name)

Designation/ Status

Annexure-1

Statement -1 [rule 89(5)]

Refund Type: ITC accumulated due to inverted tax structure [clause (ii) of first proviso to Section 54(3)]

(Amount in Rs.)

Turnover of inverted rated supply of goods and services

Tax payable on such inverted rated supply of goods and services

Adjusted total turnover

Net input tax credit

Maximum refund amount to be claimed $[(1 \times 4 \div 3) - 2]$

1

2

3

4

5

Statement - 1A [see rule 89(2)(h)]

Refund Type: ITC accumulated due to inverted tax structure [clause (ii) of first proviso to section 54(3)]

SI No.

Details of invoices of inward supplies of inputs received

Tax paid on inward supplies of inputs

Details of invoices of outward supplies issued

Tax paid on outward supplies

GSTIN of the supplier *

No.

Date

Taxable Value

Integrated Tax

Central Tax

State Tax/Union Territory Tax

No.

Date

Taxable value

Invoice type (B2B/B2C)

Integrated Tax

Central Tax

State Tax/Union Territory Tax

1

2

3

4

5

6

7

8

9

10

11

12

13

14

15

* In case of imports or supplies received under reverse charge mechanism [sub-section (3) of section 9 of the CGST Act/ SGST Act or sub-section (3) of section 5 of IGST Act], the GSTIN of supplier will mean GSTIN of applicant (recipient).

Statement - 2 [rule 89(2)(c)]

Refund Type: Exports of services with payment of tax

(Amount in Rs.)

Sr. No.

Invoice details

Integrated tax

Cess

BRC/ FIRC

Integrated tax and cess involved in debit

note, if any

Integrated tax and cess involved in credit

note, if any

Net Integrated tax and cess (6+7+10-11)

No.
Date
Value
Taxable value
Amt.

No.
Date

1
2
3
4
5
6
7
8
9
10
11
12

Statement - 3 [rule 89(2)(b) and 89(2)(c)]

Refund Type : Export without payment of tax (accumulated ITC)
(Amount in Rs.)

Sr. No.

Invoice details

Goods/ Services (G/S)

Shipping bill/ Bill of export

EGM Details

BRC/ FIRC

No.

Date

Value

Port code

No.

Date

Ref No.

Date

No.

Date

1
2
3
4
5
6
7
8
9
10
11
12
]

Statement- 3A [rule 89(4)]

Refund Type: Export without payment of tax (accumulated ITC) - calculation of refund amount

(Amount in Rs.)

Turnover of zero rated supply of goods and services

Net input tax credit

Adjusted total turnover

Refund amount $(1 \times 2 \div 3)$

1

2

3

4

Statement-4 [rule 89(2)(d) and 89(2)(e)]

Refund Type: On account of supplies made to SEZ unit or SEZ Developer (on payment of tax)

(Amount in Rs.)

GSTIN of recipient

Invoice details

Shipping bill/ Bill of export/ Endorsed

invoice by SEZ

Integrated Tax

Cess

Integrated tax and cess involved in debit note, if any

Integrated tax and cess involved in credit note, if any

Net Integrated tax and cess $(8+9+10+11)$

No.

Date

Value

No.

Date

Taxable Value

Amt.

1

2

3

4

5

6

7

8

9

10

11

12

Statement-5A [rule 89(4)]

Refund Type: On account of supplies made to SEZ unit / SEZ developer without payment of tax (accumulated ITC) - calculation of refund amount

(Amount in Rs.)

Turnover of zero rated supply of goods and services

Net input tax credit

Adjusted total turnover

Refund amount (1×2÷3)

1

2

3

4

[Statement 5B [rule 89(2)(g)]]

[Substituted by Notification No. G.S.R. 513(E), dated 18.7.2019 (w.e.f. 19.6.2017).]

Refund Type: On account of deemed exports

(Amount in Rs)

SI No.

Details of invoices/credit notes/debit notes of outward

supplies in case refund is claimed by supplier/Details of invoices of inward

supplies in case refund is claimed by recipient

Tax Paid

GSTIN of the supplier

No.

Date

Taxable Value

Type (Invoice/Credit Note/Debit Note)

Integrated Tax

Central Tax

State Tax/Union Territory Tax

Cess

1

2

3

4

5

6

7

8

9

10

Statement-6 [rule 89(2)(j)]

Refund Type: On account of change in POS (inter-State to intra-State and vice versa)

Order Details (issued in pursuance of sections 77(1) and 77(2), if any:

Order No:

Order Date:(Amount in Rs.)

Recipients' GSTIN/ UIN Name (in case B2C)

Invoice details

Details of tax paid on transaction considered
as intra ?State / inter-State transaction earlier

Taxes re-assessed on transaction which were
held inter State / intra-State supply subsequently

No.

Date

Value

Taxable Value

Integrated tax

Central tax
State/ UT tax
Cess
Place of Supply
Integrated tax
Central tax
State/ UT tax
Cess
Place of Supply

1
2
3
4
5
6
7
8
9
10
11
12
13
14
15

Statement-7 [rule 89(2)(k)]

Refund Type: Excess payment of tax, if any in case of last return filed.
(Amount in Rs.)

Tax period
ARN of return
Date of filing return
Tax Paid in Excess
Integrated tax
Central tax
State/ UT tax
Cess

1
2
3
4
5
6
7

Form-GST-RFD-01 B

[See rules 91(2), 92(1), 92(3), 92(4), 92(5) and 97A]

Refund Order details

1.
ARN
2.
GSTIN / Temporary ID
3.
Legal Name

4.
Filing Date

5.
Reason of Refund

6.
Financial Year

7.
Month

8.
Order No.:

9.
Order issuance Date:

10.
Payment Advice No.:

11.
Payment Advice Date:

12.
Refund Issued To :
Drop down: Taxpayer / Consumer Welfare Fund

13.
Issued by:

14.
Remarks:

15.
Type of Order
Drop Down: RFD- 04/ 06/ 07 (Part A)

16.
Details of Refund Amount (As per the manually
issued Order):
Description
Integrated
Tax
Central
Tax
State/
UT tax
Cess
T
I
P
F
O
Total
T
I
P
F
O
Total
T
I

P
F
O
Total
T
I
P
F
O
Total
a.
Refund amount claimed
b.
Refund Sanctioned on provisional basis
c.
Remaining Amount
d.
Refund amount in-admissible
e.
Gross amount to the paid
f.
Interest (if any)
g.
Amount adjusted against outstanding demand under the existing law
or under the Act
h.
Net amount to be paid
17.
Attachments
(Orders)
RFD-04;
RFD-06; RFD 07 (Part A)
Date:Place:
Signature
(DSC):Name:Designation;Office Address:]
[FORM GST RFD-01 W]
[Inserted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]
[Refer Rule 90(5)]
Application for Withdrawal of Refund Application
1. ARN:
2. GSTIN:
3. Name of Business (Legal):
4. Trade Name, if any:
5. Tax Period:
6. Amount of Refund Claimed:
7. Grounds for Withdrawing Refund Claim:
i. Filed the refund application by mistake
ii. Filed Refund Application under wrong category
iii. Wrong details mentioned in the refund application
iv. Others (Please Specify)
8. Declaration: I/We < Taxpayer Name> hereby solemnly affirm and declare that the information given herein is true and

correct to the best of my/ our knowledge and belief and nothing has been concealed therefrom.

Place:

Date:

Signature of Authorised Signatory

Name

Designation/ Status

[Form-GST-RFD-02]

[Substituted 'Form-GST-RFD-01, Form-GST-RFD-02, Form-GST-RFD-04, Form-GST-RFD-05, Form-GST-RFD-06, Form-GST-RFD-07, Form-GST-RFD-10 and Form-GST-RFD-11' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rules 90(1), 90(2) and 95(2)]

Acknowledgment

Your application for refund is hereby acknowledged against <

Application Reference Number >

Acknowledgment Number

:

Date of Acknowledgment

:

GSTIN/ UIN/ Temporary ID, if applicable

:

Applicant's Name

:

Form No.

:

Form Description

:

Jurisdiction (tick appropriate)

:

Centre	State	Union Territory
--------	-------	-----------------

:

Filed by

:

Refund Application Details

Tax Period

Date and Time of Filing

Reason for Refund

Amount of Refund Claimed :

Tax

Interest

Penalty

Fees

Others

Total

Central Tax

State/ UT tax

Integrated Tax

Cess

Total

Note 1: The status of the application can be viewed by entering ARN through < Refund > Track Application Status on the GST System Portal.

Note 2: It is a system generated acknowledgement and does not require any signature.

[Form-GST-RFD-03]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 90(3)]

Deficiency Memo

Reference No. :

Date :

< DD/MM/YYYY >

To

_____ (GSTIN/ UIN/ Temporary ID)

_____ (Name)

_____ (Address)

Subject : Refund Application Reference No. (ARN) Dated < DD/MM/YYYY > -Reg.

Sir/ Madam,

This has reference to your above mentioned application filed under section 54 of the Act. Upon scrutiny of your application, certain deficiencies have been noticed below:

Sr. No.

Description (select the reason from the drop down of the Refund application)

1.

< MULTI SELECT OPTION >

2.

Other < TEXT BOX > {any other reason other than the reason select from the 'reason master'}

You are advised to file a fresh refund application after rectification of above deficiencies

Date :

Signature (DSC) :

Place :

Name of Proper Officer :

Designation :

Office Address :

[Form-GST-RFD-04]

[Substituted 'Form-GST-RFD-01, Form-GST-RFD-02, Form-GST-RFD-04, Form-GST-RFD-05, Form-GST-RFD-06, Form-GST-RFD-07, Form-GST-RFD-10 and Form-GST-RFD-11' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 91(2)]

Sanction Order No. :

Date : <DD/MM/YYYY>

To

_____ (GSTIN)

_____ (Name)

_____ (Address)

Provisional Refund Order

Refund Application Reference No. (ARN) Dated < DD/MM/YYYY >-

Acknowledgment No. Dated < DD/MM/YYYY >

Sir/ Madam,

With reference to your above mentioned application for refund, the following amount is sanctioned to you on a provisional basis :

Sr. No.

Description

Central Tax

State/ UT tax

Integrated Tax

Cess

i.

Amount of refund claimed

ii.

10% of the amount claimed as refund(to be sanctioned later)

iii.

Balance amount (i-ii)

iv.

Amount of refund sanctioned

Bank Details

v.

Bank Account No. as per application

vi.

Name of the Bank

vii.

Address of the Bank/ Branch

viii.

IFSC

ix.

MICR

Date :

Signature (DSC) :

Place :

Name of Proper Officer :

Designation :

Office Address :

[Form-GST-RFD-05]

[Substituted 'Form-GST-RFD-01, Form-GST-RFD-02, Form-GST-RFD-04, Form-GST-RFD-05, Form-GST-RFD-06, Form-GST-RFD-07, Form-GST-RFD-10 and Form-GST-RFD-11' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 91(3), 92(4), 92(5) & 94]

Payment [order]

[Substituted 'Advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

Payment[order]

[Substituted 'Advice' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

No. :

Date : <DD/MM/YYYY>

[To PAO, CBIC]

[Substituted 'To Centre PAO/ Treasury/ RBI/ Bank' by Notification No. G.S.R. 457(E), dated 28.6.2019.]

Refund Sanction Order No.

Order Date < DD/MM/YYYY >

GSTIN/ UIN/ Temporary ID < >

Name : < >

Refund Amount (as per Order) :

Description

Integrated Tax

Central Tax

State/ UT tax

Cess

T

I
P
F
O
Total

T
I
P
F
O
Total

T
I
P
F
O
Total

T
I
P
F
O
Total

Net Refund amount sanctioned

Interest on delayed Refund

Total

Note - 'T' stands Tax; 'I' stands for Interest; 'P' stands for Penalty; 'F' stands for Fee and 'O' stands for Others.

Details

of the Bank

i.

Bank Account no as per application

ii.

Name of the Bank

iii.

Name and Address of the Bank/ branch

iv.

IFSC

v.

MICR

Date :

Signature (DSC) :

Place :

Name :

Designation :

Office Address :

To

_____ (GSTIN/ UIN/ Temporary ID)

_____ (Name)

_____ (Address)

[Form-GST-RFD-06]

[Substituted 'Form-GST-RFD-01, Form-GST-RFD-02, Form-GST-RFD-04, Form-GST-RFD-05, Form-GST-RFD-06,

Form-GST-RFD-07, Form-GST-RFD-10 and Form-GST-RFD-11' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 92(1), 92(3), 92(4), 92(5) & 96(7)]

Order No. :

Date : <DD/MM/YYYY>

To

_____ (GSTIN/ UIN/ Temporary ID)

_____ (Name)

_____ (Address)

Show cause notice No. (If applicable)

Acknowledgment No.

Date : <DD/MM/YYYY>

Refund Sanction/ Rejection Order

Sir/ Madam,

This has reference to your above mentioned application for refund filed under section 54 of the Act*/ interest on refund*.

<< reasons, if any, for granting or rejecting refund >>

Upon examination of your application, the amount of refund sanctioned to you, after adjustment of dues (where applicable) is as follows:

* Strike out whichever is not applicable

Description

Integrated Tax

Central Tax

State/ UT tax

Cess

T

I

P

F

O

Total

T

I

P

F

O

Total

T

I

P

F

O

Total

T

I

P

F

O

Total

1. Amount of refund/ interest* claimed

2. Refund sanctioned on provisional basis (Order

No. ?..... date) (if applicable)

3. Refund amount inadmissible <<reason dropdown>> <Multiple reasons to be allowed>

4. Gross amount to be paid (1 - 2 - 3)

5. Amount adjusted against outstanding demand

(if any) under the existing law or under the Act. Demand Order

No. ?? date??, Act Period<Multiple

rows possible- add row to be given>

6. Net amount to be paid

Note - 'T' stands Tax; 'I' stands for Interest; 'P' stands for Penalty; 'F' stands for Fee and 'O' stands for Others

*Strike out whichever is not applicable

&1. I hereby sanction an amount of INR _____

_ to M/s

_____ having GSTIN

_____ under sub-section (5) of section 54) of the Act/ under section 56 of the Act@

@Strike out whichever is not applicable

(a)

#and the amount is to be paid to the bank account specified by him in his application;

(b)

the amount is to be adjusted towards recovery of arrears as specified at serial number 5 of the Table above;

(c)

an amount of ----- rupees is to be adjusted towards recovery of arrears as specified at serial number 5 of the Table above and the remaining amount of ----- rupees is to be paid to the bank account specified by him in his application#

.....

#Strike-out whichever is not applicable.

Or

&2. I hereby credit an amount of INR _____ to Consumer Welfare Fund under sub-section (...) of Section (...) of the Act. .

&3. I hereby reject an amount of INR _____

_ to M/s

_____ having GSTIN

_____ under sub-section (...) of Section (...) of the Act.

&Strike-out whichever is not applicable

Date :

Signature (DSC) :

Place :

Name :

Designation :

Office Address :

[Form-GST-RFD-07]

[Substituted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

[See rules 92(2) & 96(6)]

Reference No.

Date : <DD/MM/YYYY>

To

_____ (GSTIN/ UIN/ Temp.ID)

_____ (Name)

_____ (Address)

_____ (ARN)

Part-A

Order for withholding the refund

Refund payable to the taxpayer with respect to ARN specified above are hereby withheld in accordance with the provisions of sub-section (10)/(11) of section 54 of the CGST Act, 2017. The reasons for withholding are given as under:

S. No.

Particulars

1

ARN

2

Amount Claimed in RFD-01

< Auto-populated>

3

Amount Inadmissible in RFD-06

< Auto-populated>

4

Amount Adjusted in RFD-06

< Auto-populated>

5

Amount Withheld

6

Reasons for

withholding

(More than one reason can be selected)

? Recoverable dues not paid

? In view of sub-section 11 of Section 54

? On account of fraud (s) of serious nature

? Others, (specify)

7

Description of the reasons

(Up to 500 characters, separate file can be attached for detailed reasons)

8

Record of Personal Hearing

(Up to 500 characters, separate file can be attached for detailed records)

Part-B

Order for release of withheld refund

This has reference to your refund application < ARN> dated < date> against which the payment of refund amount sanctioned vide order < RFD-06 order no> dated < date> was withheld by this office order < Order Reference No> dated < date>. It has been now found to my satisfaction that the conditions for withholding of refund no longer exist and therefore, the refund amount withheld is hereby allowed to be released as given under:

S. No.

Particulars

1

ARN

2

Amount Claimed in RFD-01

< Auto-populated>

3

Amount Inadmissible in RFD-06

< Auto-populated>

4

Amount Adjusted in RFD-06

< Auto-populated>

5

Amount Withheld in RFD-07 A

< Auto-populated>

6

Amount Released

7

Amount to be Paid

Date :

Signature (DSC) :

Place :

Name :

Designation :

Office Address :

[Form-GST-RFD-08]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 92(3)]

Notice for rejection of application for refund

SCN No. :

Date : <DD/MM/YYYY>

To

_____ (GSTIN/ UIN/ Temporary ID)

_____ (Name)

_____ (Address)

Acknowledgment No.

ARN

Date : <DD/MM/YYYY>

This has reference to your above mentioned application for refund, filed under section 54 of the Act. On examination, it appears that refund application is liable to be rejected on account of the following reasons :

Sr. No.

Description (select the reasons of inadmissibility of refund from the drop down)

Amount Inadmissible

i.

ii.

iii.

Other {any other reason other than the reasons mentioned in 'reason master'}

You are hereby called upon to show cause as to why your refund claim, to the extent of the amount specified above, should not be rejected for reasons stated above.

You are hereby directed to furnish a reply to this notice within fifteen days from the date of service of this notice.

You are also directed to appear before the undersigned on DD/MM/YYYY at HH/MM.

If you fail to furnish a reply within the stipulated date or fail to appear for personal hearing on the appointed date and time, the case will be decided ex parte on the basis of available records and on merits.

Date :

Signature (DSC) :

Place :

Name :

Designation :

Office Address :

[Form-GST-RFD-09]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 92(3)]

Reply to show cause notice

Date: < DD/MM/YYYY >

1.

Reference No. of Notice

Date of issue

2.

GSTIN/ UIN

3.

Name of business (Legal)

4.

Trade name, if any

5.

Reply to the notice

6.

List of documents uploaded

7.

Verification

I _____ hereby solemnly affirm and declare

that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised

Signatory

Name

Designation/ Status

Place

Date --- DD/MM/YYYY

Place

Signature of Authorised Signatory

Date

(Name)

Designation/ Status

[Form-GST-RFD-10]

[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

[See rule 95(1)]

Application for Refund by any specialized agency of UN or any Multilateral Financial Institution and Organization, Consulate or Embassy of foreign countries, etc.

1.

UIN

:

2.

Name

:

3.

Address

:

4.

Tax Period (Quarter)

:

From < DD/MM/YY > To < DD/MM/YY >

5.

ARN and date of GSTR 11

:

ARN <.....> Date < DD/MM/YY >

6.

Amount of Refund Claim

:

< INR > < In Words >

State

Central Tax

State /UT Tax

Integrated Tax

Cess

Total

7.

Details of Bank Account :

a.

Bank Account Number

b.

Bank Account Type

c.

Name of the Bank

d.

Name of the Account Holder/ Operator

e.

Address of Bank Branch

f.

IFSC

g.

MICR

8.

Verification

I _____ as an

authorised representative of << Name of Embassy/

international organization >> hereby solemnly affirm and

declare that the information given herein above is true and

correct to the best of my knowledge and belief and nothing has

been concealed therefrom.

That we are eligible to claim such refund as

specified agency of UNO/ Multilateral Financial Institution and

Organization, Consulate or Embassy of foreign countries/ any other

person/ class of persons specified/ notified by the Government.

Date :

Signature of Authorised Signatory :

Place :

Name :

Designation/Status

Instruction

1. Application for refund shall be filed on quarterly basis.
2. Table No. 6 will be auto-populated from details furnished in table 3 of GSTR - 11.
3. There will be facility to edit the refund amount as per eligibility.
4. Requisite certificate issued by MEA granting the facility of refund shall be produced before the proper officer for processing refund claim.

[Form GST RFD-10B]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[See rule 95A]

Application for refund by Duty Free Shops/Duty

Paid Shops (Retail outlets)

1. GSTIN:

2. Name:

3. Address:

4. Tax Period (Monthly/Quarterly) : From <

DD/MM/YY>To < DD/MM/YY>

5. Amount of Refund Claim: < INR>< In

Words>

6. Details of inward supplies of goods received

and corresponding outward supplies:

{|

DETAILS

OF SUPPLIES

Inward Supplies

Corresponding

outward

supplies

GSTIN

of

supplier

Invoice

details

Rate

Taxable

value

Amount

of tax

Invoice

details

No

/

Date.

HSN

Code

Qty.

Value

Integrated

Tax

Central

Tax

State

/UT

Tax
Cess
No.
/
Date
HSN
Code
Qty.
Taxable
Value
|-
| 7. Refund applied
for:
|-
|
Central
Tax
State/UT
Tax
Integrated
Tax
Cess
Total
<
Total>
<
Total>
<
Total>
<
Total>
<
Total>
|-
| 8. Details of Bank
Account:
|-
| i. Bank Account
Number
|-
ii. Bank Account Type
iii. Name of the Bank
-
iv. Name of the
Account Holder/Operator
-
v. Address of Bank
Branch
-
vi. IFSC

| -

| vii. MICR

| -

| 9. Declaration:

| -

| I _____ as an
authorized representative of _____ (Name of Duty Free
Shop/Duty Paid Shop ? retail outlet) hereby solemnly affirm
and declare that,-

| -

| (i) refund has not
been claimed against any of the invoices in respect of outward
supplies submitted with this application.

| -

| (ii) the information
given herein above is true and correct to the best of my
knowledge and belief.

| -

| Date:

| Signature of

Authorized Signatory:

| -

| Place:

| Name:

| -

|

| Designation / Status

| -

| Instructions:

|

| -

| 1. Application for
refund shall be filed on monthly/quarterly basis depending upon
the frequency of furnishing of return by retail outlets.

| -

| 2. Application shall
be made in respect of one inward supply invoice only once.
Therefore, it is advised that refund shall be applied only for
those inward supply invoices the goods received against which
have been completely supplied.

| -

| 3. Applicant should
ensure that all the invoices declared by him have the GSTIN of
the supplier and the GSTIN of the respective Duty Free Shop /Duty
Paid Shop (retail outlet) clearly marked on them.

| -

| 4. Documents to be
attached with the refund application:

| -

| (a) Undertaking that all indigenous goods on which refund is
being claimed have been received by the Duty-Free Shop/Duty Paid

Shop (retail outlet);

|-

| (b) Undertaking that the indigenous goods have been sold to eligible outgoing international tourist;

|-

| (c) Copy of the returns for the period for which application is being filed.

|}

[Form-GST-RFD-11]

[Substituted 'Form-GST-RFD-01, Form-GST-RFD-02, Form-GST-RFD-04, Form-GST-RFD-05, Form-GST-RFD-06, Form-GST-RFD-07, Form-GST-RFD-10 and Form-GST-RFD-11' by Notification No. G.S.R. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 96A]

Furnishing of bond or Letter of Undertaking for export of goods or services

1. GSTIN

2. Name

3. Indicate the type of document furnished

Bond :Letter of Undertaking

4. Details of bond furnished

Sr. No.

Reference no. of the bank guarantee

Date

Amount

Name of bank and branch

1

2

3

4

5

Note - Hard copy of the bank guarantee and bond shall be furnished to the jurisdictional officer.

5. Declaration -

(i)

The above-mentioned bank guarantee is submitted to secure the integrated tax payable on export of goods or services.

(ii)

I undertake to renew the bank guarantee well before its expiry. In case I/ We fail to do so the department will be at liberty to get the payment from the bank against the bank guarantee.

(iii)

The department will be at liberty to invoke the bank guarantee provided by us to cover the amount of integrated tax payable in respect of export of goods or services.

Signature of Authorized Signatory

Name

Designation/ Status -----

Date -----

Bond for export of goods or services without payment of integrated tax

(See rule 96A)

I/ We.....of.....,hereinafter called "obligor(s)", am/ are held and firmly bound to the President of India

(hereinafter called "the President") in the sum of.....rupees to be paid to the President for which payment will and truly to be made.

I/ We jointly and severally bind myself/ ourselves and my/ our respective heirs/ executors/ administrators/ legal representatives/ successors and assigns by these presents; Dated this day of

Whereas the above bounden obligor has been permitted from time to time to supply goods or services for export out of India without payment of integrated tax;

and whereas the obligor desires to export goods or services in accordance with the provisions of clause (a) of subsection (3) of section 16;

And Whereas the Commissioner has required the obligor to furnish bank guarantee for an amount of..... rupees endorsed in favour of the President and whereas the obligor has furnished such guarantee by depositing with the Commissioner the bank guarantee as afore mentioned;

The condition of this bond is that the obligor and his representative observe all the provisions of the Act in respect of export of goods or services, and rules made thereunder;

And if the relevant and specific goods or services are duly exported;

And if all dues of Integrated tax and all other lawful charges, are duly paid to the Government along with interest, if any, within fifteen days of the date of demand thereof being made in writing by the said officer, this obligation shall be void;

Otherwise and on breach or failure in the performance of any part of this condition, the same shall be in full force and virtue:

And the President shall, at his option, be competent to make good all the loss and damages, from the amount of bank guarantee or by endorsing his rights under the above-written bond or both;

I/ We further declare that this bond is given under the orders of the Government for the performance of an act in which the public are interested;

In the Witness Whereof these presents have been signed the day hereinbefore written by the obligor(s).

Signature(s) of obligor(s).

Date :

Place :

Witnesses

(1)

Name and Address Occupation

(2)

Name and Address Occupation

Accepted by me this..... day of (month) (year) of (Designation) for and on behalf of the President of India.

Letter of Undertaking for export of goods or services without payment of integrated tax

(See rule 96A)

To

The President of India (hereinafter called the "President"), acting through the proper officer

I/ We of (address of the registered person) having Goods & Services Tax Identification Number No., hereinafter called "the undertaker(s) including my/ our respective heirs, executors/ administrators, legal representatives/ successors and assigns by these presents, hereby jointly and severally undertake on this day of to the President

(a)

to export the goods or services supplied without payment of integrated tax within time specified in sub-rule (1) of rule 96A ;

(b)

to observes all the provisions of the Goods and Services Tax Act and rules made thereunder, in respect of export of goods or services;

(c)

pay the integrated tax, thereon in the event of failure to export the goods or services, along with an amount equal to eighteen percent interest per annum on the amount of tax not paid, from the date of invoice till the date of payment.

I/We declare that this undertaking is given under the orders of the proper officer for the performance of enacts in which

the public are interested.

In the Witness Whereof these presents have been signed the day hereinbefore written by the undertaker(s)

Signature(s) of undertaker(s).

Date :

Place :

Witnesses

(1)

Name and Address

Occupation

(2)

Name and Address

Occupation

Date

Place

Accepted by me this.....day of (month)..... (year)of
..... (Designation) for and on behalf of the President of India

[Form GST INS-1]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Authorisation for Inspection or Search

[See rule 139 (1)]

To

.....

.....

(Name and Designation of officer)

Whereas information has been presented before me and I have reasons to believe that-

A. M/s.

has suppressed transactions relating to supply of goods and/ or services

has suppressed transactions relating to the stock of goods in hand,

has claimed input tax credit in excess of his entitlement under the Act

has claimed refund in excess of his entitlement under the Act

has indulged in contravention of the provisions of this Act or rules made thereunder to evade tax under this Act;

OR

B. M/s.

is engaged in the business of transporting goods that have escaped payment of tax

is an owner or operator of a warehouse or a godown or a place where goods that have escaped payment of tax have been stored

has kept accounts or goods in such a manner as is likely to cause evasion of tax payable under this Act.

OR

C. M/s.

goods liable to confiscation/ documents relevant to the proceedings under the Act are secreted in the business/ residential premises detailed herein below

<< Details of the Premises >>

Therefore,-

in exercise of the powers conferred upon me under sub-section (1) of section 67 of the Act, I authorize and require you to inspect the premises belonging to the above mentioned person with such assistance as may be necessary for inspection of goods or documents and/ or any other things relevant to the proceedings under the said Act and rules made thereunder.

OR

in exercise of the powers conferred upon me under sub-section (2) of section 67 of the Act, I authorize and require you to search the above premises with such assistance as may be necessary, and if any goods or documents and/ or other things relevant to the proceedings under the Act are found, to seize and produce the same forthwith before me for further action under the Act and rules made thereunder.

Any attempt on the part of the person to mislead, tamper with the evidence, refusal to answer the questions relevant to

inspection/ search operations, making of false statement or providing false evidence is punishable with imprisonment and/ or fine under the Act read with section 179, 181, 191 and 418 of the Indian Penal Code.

Given under my hand & seal this day of (month) 20.... (year). Valid for day(s).

Seal

Place

Signature, Name and designation of the issuing authority

Name, Designation & Signature of the Inspection Officer/s

(i)

(ii)

[Form GST INS-02]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Order of Seizure

[See rule 139 (2)]

Whereas an inspection under sub-section (1)/ search under sub-section (2) of Section 67 was conducted by me on

/

/

_ at

:__ AM/ PM in the following premise(s):

<< Details of premises >>

which is/ are a place/ places of business/ premises belonging to:

<< Name of Person >>

<< GSTIN, if registered >>

in the presence of following witness(es):

1. << Name and address >>

2. << Name and address >>

and on scrutiny of the books of accounts, registers, documents/ papers and goods found during the inspection/ search, I have reasons to believe that certain goods liable to confiscation and/ or documents and/ or books and/ or things useful for or relevant to proceedings under this Act are secreted in place(s) mentioned above.

Therefore, in exercise of the powers conferred upon me under sub-section (2) of section 67, I hereby seize the following goods/ books/ documents and things:

(A)

Details of Goods seized :

Sr. No.

Description of goods

Quantity or units

Make/ mark or model

Remarks

1

2

3

4

5

(B)

Details of books/ documents/ things seized :

Sr. No.

Description of books/ documents/ things seized

No. of books/ documents/ things seized

Remarks

1

2

3

4

and these goods and or things are being handed over for safe upkeep to:

<< Name and address >>

with a direction that he shall not remove, part with, or otherwise deal with the goods or things except with the previous permission of the undersigned.

Place :

Name and Designation of the Officer

Date :

Signature of the Witnesses

Sr. No.

Name and address

Signature

1.

2.

To :

<< Name and address >>

[Form GST INS-03]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Order of Prohibition

[See rule 139(4)]

Whereas an inspection under sub-section (1)/search under sub-section (2) of Section 67 was conducted on

/

/_

_ at

:__ AM/ PM in the following premise(s):

<< Details of premises >>

which is/ are a place/ places of business/ premises belonging to :

<< Name of Person >>

<< GSTIN, if registered >>

in the presence of following witness(es) :

1. << Name and address >>

2. << Name and address >>

and on scrutiny of the books of accounts, registers, documents/ papers and goods found during the inspection/ search, I have reasons to believe that certain goods liable to confiscation and/ or documents and/ or books and/ or things useful for or relevant to proceedings under this Act are secreted in place(s) mentioned above.

Therefore, in exercise of the powers conferred upon me under sub-section (2) of section 67, I hereby order that you shall not/ shall not cause to remove, part with, or otherwise deal with the goods except without the previous permission of the undersigned :

Sr. No.

Description of goods

Quantity or units

Make/ mark or model

Remarks

1

2

3

4

5

Place :

Name and Designation of the Officer

Date :

Signature of the Witnesses

Name and address

Signature

1.

2.

To :

<< Name and address >>

[Form GST INS-04]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Bond for Release of Goods Seized

[See rule 140(1)]

I of hereinafter called "obligor(s)" am held and firmly bound to the President of India (hereinafter called "the President") and/or the Governor of (State) (hereinafter called/ the Governor/) in the sum of rupees to be paid to the President/ the Governor for which payment will be made. I jointly and severally bind myself and my heirs/ executors/ administrators/ legal representatives/successors and assigns by these presents; dated this.....day of.....

Whereas in accordance with the provisions of sub-section (2) of section 67, the goods have been seized vide order number dated having value rupees involving an amount of tax of rupees. On my request the goods have been permitted to be released provisionally by the proper officer on execution of the bond of value rupees and a security ofrupees against which cash/ bank guarantee has been furnished in favour of the President/ Governor; and

Whereas I undertake to produce the said goods released provisionally to me as and when required by the proper officer duly authorized under the Act.

And if all taxes, interest, penalty, fine and other lawful charges demanded by the proper officer are duly paid within ten days of the date of demand thereof being made in writing by the said proper officer, this obligation shall be void.

Otherwise and on breach or failure in the performance of any part of this condition, the same shall be in full force:

And the President/ Governor shall, at his option, be competent to make good all the losses and damages from the amount of the security deposit or by endorsing his rights under the above-written bond or both;

In the Witness thereof these presents have been signed the day hereinbefore written by the obligor(s).

Signature(s) of obligor(s).

Date :

Place :

Witnesses

(1)

Name and Address

(2)

Name and Address

Date

Place

Accepted by me this day of(month).....(year)
(designation of officer) for and on behalf of the President/ Governor.

(Signature of the Officer)

[Form GST INS-05]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

Order of Release of Goods/ Things of Prishable or Hazardous Nature

[See rule 141(1)]

Whereas the following goods and/ or things were seized on

/

/ ____ from the following premise(s):

<< Details of premises >>

which is/ are a place/ places of business/ premises belonging to:

<< Name of Person >>

<< GSTIN, if registered >>

Details of goods seized :

Sr. No.

Description of goods

Quantity or units

Make/ mark or model

Remarks

1

2

3

4

5

and since these goods are of perishable or hazardous nature and since an amount of Rs. _____ (amount in words and digits), being an amount equivalent to the:

market price of such goods or things

the amount of tax, interest and penalty that is or may become payable

has been paid, I hereby order the above mentioned goods be released forthwith.

Place :

Name and Designation of the Officer

Date :

To :

<< Name and Designation >>

[Form GST DRC - 01]

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[See rule 100 (2) & 142(1)(a)]

{}

Reference No :

Date :

To

_____ GSTIN/Temp. ID

_____ Name

_____ Address

Tax Period

F.Y. -----

Act -

Section/ sub-section under which SCN is being issued -

SCN Reference No. ----

Date ----

Summary of Show Cause Notice

Brief facts of the case :

Grounds :

Tax and other dues :

(Amount in Rs.)

[Sr. No.

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax Rate

Turnover

Tax Period

Act

POS (Place of Supply)

Tax

Interest

Penalty

Fee

Others

Total

From

To

1

2

3

4

5

6

7

8

9

10

11

12

13

Total]

Signature

Name

Designation

Jurisdiction

Address

Note -

1. Only applicable fields may be filled up.

2. Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.

3. Place of

Supply (POS) details shall be required only if the demand is created under the IGST Act.

l}

[Form GST DRC-01A]

[Inserted by Notification No. G.S.R. 772(E), dated 9.10.2019 (w.e.f. 19.6.2017).]

Intimation of tax

ascertained as being payable under section 73(5)/74(5)

[See Rule 142 (1A)]

Part A

No.:

Date:

Case ID No.

To

GSTIN.....Name.....

.....

Address.....

Sub.: Case Proceeding Reference

No.....- Intimation of liability under

section 73(5)/section 74(5) ? reg.

Please refer to the above proceedings. In this regard, the amount of tax/interest/penalty payable by you under section 73(5) / 74(5) with reference to the said case as ascertained by the undersigned in terms of the available information, as is given below:

{
|
Act
Period
Tax
CGST Act
SGST/UTGST Act
IGST Act
Cess
Total

|
| The grounds and
quantification are attached / given below:

|
| {
|
|
| }
|

| You are hereby
advised to pay the amount of tax as ascertained above alongwith
the amount of applicable interest in full by ,
failing which Show Cause Notice will be issued under section
73.

(1)

.
|
| You are hereby
advised to pay the amount of tax as ascertained above alongwith
the amount of applicable interest and penalty under section 74(5)
by , failing which Show Cause Notice will be issued
under section 74(1).

|
| In case you wish to
file any submissions against the above ascertainment, the same
may be furnished by..... in Part B of this Form

|
|
| Proper Officer
|
| Signature.....
|
| Name.....
| }

Designation.....

{|

Upload Attachment

|-

| Part B

Reply to the

communication for payment before issue of Show Cause Notice

[See Rule 142 (2A)]

|-

| No.:

| Date:

|-

| To

|

|-

| Proper Officer,

|

|-

| Wing / Jurisdiction.

|

|-

| Sub.: Case

Proceeding Reference No.....- Payment/Submissions in response
to liability intimated under Section 73(5)/74(5) ? reg.

|-

| Please refer to

Intimation ID..... in respect of Case ID.....vide which

the liability of tax payable as ascertained under section 73(5) /

74.

(5)

was intimated.

|-

| In this regard,

|-

| A. this is to inform

that the said liability is discharged partially to the extent of

Rs. through and the submissions

regarding remaining liability are attached / given below:

|-

| OR

|

|-

| B. the said liability

is not acceptable and the submissions in this regard are attached

/ given below:

|-

| {|

|-

|

|}

|-

|
Authorised Signatory
Name.....
-
GSTIN.....
-
Address.....
-
{
-
Upload Attachment
}
}
[Form GST DRC - 02]
[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]
[See rule 142(1)(b)]
{
Reference No :
Date :
To

GSTIN/ID

Name

Address
Tax Period:
F.Y. :
Section/ sub-section under which SCN is being issued:
SCN Ref. No. ----
Date -
Statement Ref. No. ----
Date -
Summary of Statement :
(a)
Brief facts of the case :
(b)
Grounds :
(c)
Tax and other dues :
(Amount in Rs.)
[Sr. No.
[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]
Tax Rate
Turnover
Tax Period
Act
POS (Place of Supply)
Tax

Interest

Penalty

Fee

Others

Total

From

To

1

2

3

4

5

6

7

8

9

10

11

12

13

Total]

Signature

Name

Designation

Jurisdiction

Address

Note -

1. Only applicable fields may be filled up.

2. Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.

3. Place of

Supply (POS) details shall be required only if the demand is created under the IGST Act.

}]

[Form GST DRC-

03]

[Substituted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

[See rule 142(2) &

142 (3)]

Intimation of payment made voluntarily or made against the show cause notice (SCN) or statement[or intimation of tax ascertained through FORM GST DRC-01A]

[Inserted by Notification No. G.S.R. 842(E), dated 01.12.2021 (w.e.f. 19.6.2017).]

{|

1

GSTIN

2

Name

< Auto>

3

Cause of payment

<< drop down>>

[Audit, inspection or investigation, voluntary, SCN, annual return, reconciliation statement, scrutiny, intimation of tax ascertained through FORM GST DRC- 01A, Mismatch (Form GSTR-1 and Form GSTR-3B), Mismatch (Form GSTR-2B and Form GSTR-3B), others (specify)]

[Substituted for 'Audit, investigation, voluntary, SCN, annual return, reconciliation statement, others (specify)' by Notification No. G.S.R. 842(E), dated 01.12.2021 (w.e.f. 19.6.2017).]

4

Section under which voluntary payment is made

<< drop down>>

5

Details of show cause notice, if payment is made [scrutiny, intimation of tax ascertained through Form GST DRC-01A, audit, inspection or investigation, others (specify)]

[Substituted for 'within 30 days of its issue' by Notification No. G.S.R. 842(E), dated 01.12.2021 (w.e.f. 19.6.2017).]

Reference No.

Date of issue

6

Financial Year

7

Details of payment

made including interest and penalty, if applicable

(Amount in Rs.)

[Sr. No.

[Substituted by Notification No. G.S.R. 842(E), dated 01.12.2021 (w.e.f. 19.6.2017).]

Tax Period

Act

Place of supply (POS)

Tax/ Cess

Interest

Penalty, if applicable

Fee

Others

Total

Ledger utilised (Cash / Credit)

Debit entry no.

Date of debit entry]

1

2

3

4

5

6

7

8

9

10

11

12

13

| -

| 10. Reasons, if any - << Text box>>

| -

| 11. Verification -

|
|-
| I hereby solemnly affirm and declare that the
information given hereinabove is true and correct to the best of
my knowledge and belief and nothing has been concealed therefrom.

|-
|
| Signature of Authorized Signatory

|-
|
| Name

|-
|
| Designation / Status

|-
|
| Date -

}|
[Form GST DRC - 04]
[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]
[See rule 142(2)]

Reference No. :

Date :

To

GSTIN/ ID

Name

Address

Tax Period _____

F.Y.

ARN - _____ Date - _____

Acknowledgment of acceptance of payment made voluntarily

The payment made by you vide application referred to above is hereby acknowledged to the extent of the amount paid
and for the reasons stated therein.

Signature

Name

Designation

[Form GST DRC- 05]
[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]
[See rule 142(3)]

Reference No. :

Date :

To

GSTIN/ ID

Name

Address

Tax Period _____

F.Y.

SCN - _____ Date - _____

ARN - _____ Date - _____

Intimation of conclusion of proceedings

This has reference to the show cause notice referred to above. As you have paid the amount of tax and other dues mentioned in the notice along with applicable interest and penalty in accordance with the provisions of section -----, the proceedings initiated vide the said notice are hereby concluded.

Signature

Name

Designation

[Form GST DRC - 06]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 142(4)]

Reply to the Show Cause Notice

1. GSTIN

2. Name

3. Details of Show Cause Notice

Reference No.

Date of issue

4. Financial Year

5. Reply

<< Text box >>

6. Documents uploaded

<< List of documents >>

7. Option for personal hearing

Yes

No

8. Verification-

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorized Signatory

Name _____

Designation/ Status _____

Date _____

[Form GST DRC - 07]

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[See rule 100(1), 100(2), 100(3) & 142(5)]

Summary of the order

{|

Reference No. -

Date -

1. Details of order. :

(a)

Order No. :

(b)

Order date :

(c)

Financial year :

(d)

Tax period : From --- To -----

2. Issues involved :

3. Description of goods / services (if applicable) :

Sr. No.

HSN code

Description

4. Section(s) of the Act under which demand is created:

5. Details of demand :

(Amount in Rs.)

[Sr. No.

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax Rate

Turnover

Tax Period

Act

POS (Place of Supply)

Tax

Interest

Penalty

Fee

Others

Total

From

To

1

2

3

4

5

6

7

8

9

10

11

12

13

Total]

You are hereby directed to make the payment by < Date> failing which proceedings shall be initiated against you to recover the outstanding dues.

Signature

Name

Designation

Jurisdiction

Address

To

_____(GSTIN/ID)

-----Name

_____(Address)

Note -

1. Only applicable fields may be filled up.

2. Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.

3. Place of

Supply (POS) details shall be required only if the demand is created under the IGST Act.

]}
 [Form GST DRC-07A]
 [Inserted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]
 [See rule 142A(1)]
 Summary of the order creating demand under existing laws
 Reference No.
 Date -
 Part A ? Basic details
 Sr. No.
 Description
 Particulars
 (1)
 (2)
 (3)
 1.
 GSTIN
 2.
 Legal name <<Auto>>
 3.
 Trade name, if any <<Auto>>
 4.
 Government Authority who passed the order
 creating the demand
 State /UT
 Centre
 5.
 Old Registration No.
 6.
 Jurisdiction under earlier law
 7.
 Act under which demand has been created
 8.
 Period for which demand has been created
 From - mm, yy To mm, yy
 9.
 Order No. (original)
 10.
 Order date (original)
 11.
 Latest order no.
 12.
 Latest order date
 13.
 Date of service of the order (optional)
 14.
 Name of the officer who has passed the order (Optional)
 15.
 Designation of the officer who has passed the order
 16.
 Whether demand is stayed
 YesNo

17.

Date of stay order

18.

Period of stay

From - to -

Part B ? Demand details

19.

Details of demand

created

(Amount in Rs. in all Tables)

Act

Tax

Interest

Penalty

Fee

Others

Total

1

2

3

4

5

6

7

Central Acts

State/ UT Acts

CST Act

20.

Amount of demand paid under existing laws

Act

Tax

Interest

Penalty

Fee

Others

Total

1

2

3

4

5

6

7

Central Acts

State/ UT Acts

CST Act

21.

(19-20)

Balance amount of

demand proposed to be recovered under GST laws

<<Auto-populated>>

Act
Tax
Interest
Penalty
Fee
Others
Total

1
2
3
4
5
6
7

Central Acts
State/ UT Acts
CST Act

SignatureNameDesignationJurisdiction

To _____

_ (GSTIN/ID) -----Name

_____ (Address) Copy to -

Note - 1. In case of demands relating to short payment of tax declared in return, acknowledgement / reference number of the return may be mentioned.

2. Only recoverable demands shall be posted for recovery under GST laws. Once, a demand has been created through Form GST DRC-07A, and the status of the demand changes subsequently, the status may be amended through Form GST DRC-08A.

3. Demand paid up to the date of uploading the summary of the order should only be mentioned in Table 20. Different heads of the liabilities under existing laws should be synchronized with the heads defined under Central or State tax.

4. Latest order number means the last order passed by the relevant authority for the particular demand.

5. Copy of the order vide which demand has been created can be attached. Documents in support of tax payment can also be uploaded, if available.

[Form GST DRC - 08]

[Substituted by Notification No. G.S.R. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[See rule 142(7)]

{}

Reference No :

Date :

Summary of Rectification /Withdrawal Order

1. Particulars of order:

(a) Financial year, if applicable

(b) Tax period, if any

From --- To ----

(c) Section under which order is passed

(d) Original order no.

(e) Original order date

(f) Rectification order no.

(g) Rectification order date

(h) ARN, if applied for rectification

(i) Date of ARN

2. Your

application for rectification of the order referred to above has

been examined

3. It has come to my notice that the above said order requires rectification (Reason for rectification as per attached annexure)

4. The order referred to above (issued under section 129) requires to be withdrawn

5. Description of goods / services (if applicable) :

{|

Sr. No.

HSN code

Description

|-

| 6. Section of the Act under which demand is created:

|

|-

| 7. Details of demand, if any, after rectification :

|

|}

Amount in Rs.

[Sr. No.

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax Rate

Turnover

Tax Period

Act

POS (Place of Supply)

Tax

Interest

Penalty

Fee

Others

Total

From

To

1

2

3

4

5

6

7

8

9

10

11

12

13

Total]

You are hereby directed to make the payment by < Date> failing which proceedings shall be initiated against you to recover the outstanding dues.

Signature

Name

Designation

Jurisdiction

Address

To

_____ GSTIN/ID

_____ Name

_____ Address

Note -

1. Only applicable fields may be filled up.

2. Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.

3. Place of

Supply (POS) details shall be required only if the demand is created under the IGST Act.

4. Demand table at serial no. 7 shall not be filled up if an order issued under section 129 is being withdrawn.

}]

[Form GST DRC-08A]

[Inserted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]

[See rule 142A(2)]

Amendment/Modification of summary of the order creating demand under existing laws

Reference no.

Date -

Part A ? Basic details

Sr. No.

Description

Particulars

(1)

(2)

(3)

1.

GSTIN

2.

Legal name

<<Auto>>

3.

Trade name, if any

<<Auto>>

4.

Reference no. vide which demand uploaded in Form

GST DRC-07A

5.

Date of FORM GST DRC-07A vide which demand uploaded

6.

Government Authority who passed the order creating the demand

State /UTCentre

<<Auto>>

7.

Old Registration No.

<<Auto, editable>>

8.

Jurisdiction under earlier law

<<Auto, editable>>

9.

Act under which demand has been created

<<Auto, editable>>

10.

Tax period for which demand has been created

<<Auto, editable>>

11.

Order No. (original)

<<Auto, editable>>

12.

Order date (original)

<<Auto, editable>>

13.

Latest order no.

<<Auto, editable>>

14.

Latest order date

<<Auto, editable>>

15.

Date of service of the order

<<Auto, editable>>

16.

Name of the officer who has passed the order
(optional)

<<Auto, editable>>

17.

Designation of the officer who has passed the
order

<<Auto, editable>>

18.

Whether demand is stayed

YesNo

19.

Date of stay order

20.

Period of Stay

21.

Reason for updation

<<Text box>>

Part B ? Demand details

22.

Details

of demand posted originally through Table 21 of Form

GST DRC-07A

(Amount
in Rs. in all tables)

<<Auto>>

Act

Tax

Interest

Penalty

Fee

Others

Total

1

2

3

4

5

6

7

Central Acts

State / UT Acts

CST Act

23.

Updation of demand

Act

Type of updation

Tax

Interest

Penalty

Fee

Others

Total

1

2

3

4

5

6

7

8

1

Quashing of demand (Complete closure of demand)

2

Amount of reduction, if any

3

Total reduction (1+2)

24.

(22-23)

Balance amount of

demand required to be recovered under the Act

<< Auto-populated >>

Act

Tax

Interest

Penalty

Fee

Others

Total

1

2

3

4

5

6

7

Central Acts

State / UT Acts

CST Act

Signature Name Designation Jurisdiction

To _____

_ (GSTIN/ID) -----Name

_____ (Address) Copy to -

Note - 1. Reduction includes payment made under existing laws. If the demand of tax is to be increased then a fresh demand may be created under Form GST DRC-07A.

2. Copy of the order vide which demand has been modified/rectified /revised/updated can be uploaded. Payment document can also be attached.

3. Amount recovered under the Act including adjustment made of refund claim will be automatically updated in the liability register. This form shall not be filed for such recoveries.

[Form GST DRC - 09]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 143]

To

Particulars of defaulter -

GSTIN -

Name -

Demand order No.

:

Date :

Reference No. of recovery

:

Date :

Period

:

Order for recovery through specified officer under section 79

Whereas a sum of Rs. << ----- >> on account of tax, cess, interest and penalty is payable under the provisions of the << SGST/ UTGST/ CGST/ IGST/ CESS >> Act by the aforesaid person who has failed to make payment of such amount. The details of arrears are given in the table below:

(Amount in Rs.)

[Act

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax/Cess

Interest

Penalty

Fee

Others

Total

1

2

3

4

5

6

7

Integrated tax

Central tax

State/UT tax

Cess

Total

]

<< Remarks >>

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 10]

[Substituted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

[See rule 144(2)&144A]

Notice for Auction under section 79 (1) (b) or section 129(6) of the Act

Demand order no.:

Date:

Period:

Whereas an order has been made by me for sale of the attached or distrained goods specified in the Schedule below for recovery of Rs. and interest thereon and admissible expenditure incurred on the recovery process in accordance with the provisions of section 79.

Or

Whereas the goods or conveyance detained or seized under Section 129 are liable for sale or disposal in accordance with the provisions of sub-section (6) of Section 129 for recovery of penalty of Rs..... payable under sub-section (3) of section 129 and the expenses incurred in safe custody and handling of such goods or conveyance and other administrative expenses

The sale will be by public auction and the goods and/or conveyance shall be put up for sale in the lots specified in the Schedule. The sale will be of the right, title and interests of the defaulter. And the liabilities and claims attached to the said properties, so far as they have been ascertained, are those specified in the Schedule against each lot.

The auction will be held on at AM/PM.

The price of each lot shall be paid at the time of sale or as per the directions of the proper officer/ specified officer and in default of payment, the goods and/or conveyance shall be again put up for auction and resold.

Schedule

Serial No.

Description of goods or conveyance

Quantity

1

2

3

Place:

Signature

Date:

Name

Designation:

[Form GST DRC - 11]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 144(5), 144A and 147(12)]

[Substituted for 'See rules 144(5) & 147(12)' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

Notice to successful bidder

To,

Please refer to Public Auction Reference No. _____

_ dated

_. On the basis of auction conducted on

_____, you have been found to be a successful bidder in the instant case.

You are hereby, required to make payment of Rs. _____ within a period of 15 days from the date of auction.

The possession of the [goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

shall be transferred to you after you have made the full payment of the bid amount.

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 12]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 144(5), 144A and 147(12)]

[Substituted for 'See rule 144(5) & 147(12)' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

Sale Certificate

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

This is to certify that the following [goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

:

(Movable [Goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

)

Serial No.

Description of [goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

Quantity

1

2

3

(Immovable [Goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

)

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

Locality/ Village

District

State

PIN Code

Latitude (optional)

Longitude (optional)

1

2

3

4

5

6

7

8

9

10

(Shares)

Sr. No.

Name of the Company

Quantity

Value

1

2

3

4

have been sold to at in public auction of the [goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

held for recovery of rupees ----- in accordance with the provisions of section 79(1)(b)/ (d) [or section 129(6)]

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

of the << SGST/ UTGST/ CGST/ IGST/ CESS >> Act and rules made thereunder on ----- and the said (Purchaser) has been declared to be the purchaser of the said [goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

at the time of sale. The sale price of the said [goods or conveyance]

[Substituted for 'goods' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

was received on The sale was confirmed on

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 13]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 145(1)]

Notice to a third person under section 79(1) (c)

To

The _____

Particulars of defaulter -

GSTIN -

Name -

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Whereas a sum of Rs. << ---->> on account of tax, cess, interest and penalty is payable under the provisions of the << SGST/ UTGST/CGST/ IGST >> Act by << Name of Taxable person >> holding << GSTIN >> who has failed to make payment of such amount; and/or

It is observed that a sum of rupees ----- is due or may become due to the said taxable person from you; or

It is observed that you hold or are likely to hold a sum of rupees ----- for or on account of the said person.

You are hereby directed to pay a sum of rupees ----- to the Government forthwith or upon the money becoming due or being held in compliance of the provisions contained in clause (c)(i) of sub-section (1) of section 79 of the Act.

Please note that any payment made by you in compliance of this notice will be deemed under section 79 of the Act to have been made under the authority of the said taxable person and the certificate from the government in Form GST DRC - 14 will constitute a good and sufficient discharge of your liability to such person to the extent of the amount specified in the certificate.

Also, please note that if you discharge any liability to the said taxable person after receipt of this notice, you will be personally liable to the State/ Central Government under section 79 of the Act to the extent of the liability discharged, or to the extent of the liability of the taxable person for tax, cess, interest and penalty, whichever is less.

Please note that, in case you fail to make payment in pursuance of this notice, you shall be deemed to be a defaulter in respect of the amount specified in the notice and consequences of the Act or the rules made thereunder shall follow.

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 14]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 145(2)]

Certificate of Payment to a Third Person

In response to the notice issued to you in Form GST DRC-13 bearing reference No. _____

_ dated

_____, you have discharged your liability by making a payment of Rs.

_____ for the defaulter named below:

GSTIN -

Name -

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

This certificate will constitute a good and sufficient discharge of your liability to above mentioned defaulter to the extent of the amount specified in the certificate.

Signature

Name

Designation

[Form GST DRC-15]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 146]

Application before the Civil Court Requesting Execution for a Decree

To

The Magistrate/ Judge of the Court of

Demand order No. :

Date :

Period

Sir/ Ma'am,

This is to inform you that as per the decree obtained in your Court on the day of 20..... by(name of defaulter) in Suit No. of 20..., a sum of rupees ----- is payable to the said person. However, the said person is liable to pay a sum of rupees ----- under the provisions of the << SGST/UTGST/ CGST/ IGST/ CESS>> Act vide order number ----- dated -----.

You are requested to execute the decree and credit the net proceeds for settlement of the outstanding recoverable amount as mentioned above.

Place :

Date :

Proper Officer/ Specified Officer

[Form GST DRC - 16]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rules 147(1) & 151(1)]

To

GSTIN -

Name -

Address -

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Notice for attachment and sale of immovable/ movable goods/ shares under section 79

Whereas you have failed to pay the amount of Rs., being the arrears of tax/ cess/ interest/ penalty/ fee payable by you under the provisions of the << SGST/UTGST/ CGST/ IGST/ CESS >> Act.

The immovable goods mentioned in the Table below are, therefore, attached and will be sold for the recovery of the said amount. You are hereby prohibited from transferring or creating a charge on the said goods in any way and any transfer or charge created by you shall be invalid.

(Movable)

Serial No.

Description of goods

Quantity

1

2

3

(Immovable)

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

Locality/ Village

District

State

PIN Code

Latitude (optional)

Longitude (optional)

1

2

3

4

5

6

7

8

9

10

(Shares)

Serial No.

Name of the Company

Quantity

1

2

3

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 17]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 147(4)]

Notice for Auction of Immovable/ Movable Property under section 79(1) (d)

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Whereas an order has been made by me for sale of the attached or distrained goods specified in the Schedule below for recovery of Rs. and interest thereon and admissible expenditure incurred on the recovery process in accordance with the provisions of section 79.

The sale will be by public auction and the goods shall be put up for sale in the lots specified in the Schedule. The sale will be of the right, title and interests of the defaulter. And the liabilities and claims attached to the said properties, so far as they have been ascertained, are those specified in the Schedule against each lot.

In the absence of any order of postponement, the auction will be held on.....(date) at

A.M/P.M. In the event the entire amount due is paid before the issuance of notice, the auction will be cancelled.

The price of each lot shall be paid at the time of sale or as per the directions of the proper officer/ specified officer and in default of payment, the goods shall be again put up for auction and resold.

(Movable)

Serial No.

Description of goods

Quantity

1

2

3

(Immovable)

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

Locality/ Village

District

State

PIN Code

Latitude (optional)

Longitude (optional)

1

2

3

4

5

6

7

8

9

10

(Shares)

Serial No.

Name of the Company

Quantity

1

2

3

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 18]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 155]

To

Name & Address of District Collector

.....

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Certificate action under clause (e) of sub-section (1) section 79

I do hereby certify that a sum of Rs. has been demanded from and is payable by M/s. holding GSTINunder << SGST/ CGST/ IGST/ UTGST/ CESS >> Act, but has not been paid and cannot be recovered from the said defaulter in the manner provided under the Act.

<< demand details >>

The said GSTIN holder owns property/ resides/ carries on business in your jurisdiction the particulars of which are given hereunder: -

<< Description >>

You are requested to take early steps to realise the sum of rupees ----- from the said defaulter as if it were an arrear of land revenue.

Signature

Name

Designation

[Form GST DRC - 19]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 156]

To,

Magistrate,

<< Name and Address of the Court >>

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Application to the Magistrate for Recovery as Fine

A sum of Rs. << ----- >> is recoverable from << Name of taxable person >> holding <> on account of tax, interest and penalty payable under the provisions of the Act. You are requested to kindly recover such amount in accordance with the provisions of clause (f) of sub-section (1) of section 79 of the Act as if it were a fine imposed by a Magistrate.

Details of Amount

Description

Central tax

State/ UT tax

Integrated tax

CESS

Tax/ Cess

Interest

Penalty

Fees

Others

Total

Signature

Name

Designation

Place :

Date :

[Form GST DRC - 20]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 158(1)]

Application for Deferred Payment/ Payment in Instalments

1. Name of the taxable person-
2. GSTIN -
3. Period _____

In accordance with the provisions of section 80 of the Act, I request you to allow me extension of time up to ----- for payment of tax/ other dues or to allow me to pay such tax/other dues in ----- instalments for reasons stated below:

Demand ID

Description

Central tax

State/ UT tax

Integrated tax

CESS

Tax/ Cess

Interest

Penalty

Fees

Others

Total

{

Reasons : -

|

Upload Document

|}

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorized Signatory _____

Name _____

Place -

Date -

[Form GST DRC - 21]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 158(2)]

Reference No. << ... >>

<< Date >>

To

GSTIN -----

Name -----

Address -----

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Application Reference No. (ARN) -

Date :

Order for acceptance/ rejection of application for deferred payment/ payment in instalments

This has reference to your above referred application, filed under section 80 of the Act. Your application for deferred payment/ payment of tax/ other dues in instalments has been examined and in this connection, you are allowed to pay tax and other dues by ----- (date) or in this connection you are allowed to pay the tax and other dues amounting to rupees ----- in ----- monthly instalments.

OR

This has reference to your above referred application, filed under section 80 of the Act. Your application for deferred payment/ payment of tax/other dues in instalments has been examined and it has not been found possible to accede to your request for the following reasons:

Reasons for rejection

Signature

Name

Designation

Place :

Date :

[FORM GST DRC - 22]

[Substituted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

[See rule 159(1)]

Reference No.:

Date:

To

_____ Name

_____ Address

(Bank/ Post Office/Financial

Institution/Immovable property registering authority/ Regional

Transport Authority/Other Relevant Authority)

Provisional attachment of property under

section 83

It is to inform that M/s

----- (name) having principal place of

business at -----

----- (address) bearing registration

number as ----- (GSTIN/ID), PAN is a registered

taxable person under the <<SGST/CGST>> Act.

or

It is to inform that

Sh.....(name) resident

of.....(address) bearing PAN

.....and/or Aadhaar No.

..... is a person specified under

sub-section (1A) of Section 122.

Proceedings have been launched against the aforesaid person under

section <<----- >> of

the said Act to determine the tax or any other amount due from

the said person. As per information available with the

department, it has come to my notice that the said person has a -

<<saving /

current / FD/RD / depository >>account in your <<

bank/post office/financial institution>> having account no.

<< A/c no. >>;

or

property located at

<< property ID & location>>.

or

Vehicle No.

..... <<description>>

or

Others (please specify)

<<description>>

In order to protect the interests of revenue and
in exercise of the powers conferred under section 83 of the Act,

I ----- (name), -----

----- (designation), hereby

provisionally attach the aforesaid account / property.

No debit shall be allowed to be made from the
said account or any other account operated by the aforesaid
person on the same PAN without the prior permission of this
department.

or

The property mentioned above shall not be
allowed to be disposed of without the prior permission of this
department.

Signature

Name

Designation

Copy to (person)

[FORM GST DRC - 22A]

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

[See rule 159(5)]

Reference No.:

Date:

ARN No. of Order in FORM GST DRC-22:

To

The Pr. Commissioner/Commissioner

.....(Jurisdiction)

Application for filing objection against provisional attachment of property

Whereas, an order in FORM GST DRC-22 has been issued for provisional attachment of the following property under
the provisions of section 83 of the Act vide ARN No.....

Ref ID

Property provisionally attached

<< property id & location>>

Account provisionally attached

<< saving/current/FD/RD/depository account

no>>

Vehicle provisionally attached

<<Vehicle details>>

Any other property

<<details >>

2. In accordance with the provisions of Rule 159(5) of the CGST Rules , 2017, I hereby submit my objection on the basis
of following facts and circumstances.

<<.....>>

<<.....Documents to be uploaded.....>>

Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my
knowledge and belief and nothing has been concealed therefrom.

Name -

GSTIN (in case of registered person) -

PAN and/or Aadhaar No. (in case of others) -

Place –

Date –

Signature of Authorized Signatory

[Form GST DRC - 23]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rules 159(3), 159(5) & 159(6)]

Reference No. :

Date :

To

_____ Name

_____ Address

(Bank/ Post Office/ Financial Institution/ Immovable property registering authority [/Regional Transport Authority/Other Relevant Authority]

[Inserted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

)

Order reference No. -

Date -

Restoration of provisionally attached property/ bank account under section 83

Please refer to the attachment of << saving/ current/ FD/ RD >> account in your << bank/ post office/ financial institution >> having account No. << ----- >>, attached vide above referred order, to safeguard the interest of revenue in the proceedings launched against the person. Now, there is no such [requirement of]

[Substituted for 'proceedings pending against the defaulting person which warrants the' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

attachment of the said accounts. Therefore, the said account may now be restored to the person concerned.

or

Please refer to the attachment of property << ID/ Locality >> attached vide above referred order to safeguard the interest of revenue in the proceedings launched against the person. Now, there is no such [requirement of]

[Substituted for 'proceedings pending against the defaulting person which warrants the' by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

attachment of the said property. Therefore, the said property may be restored to the person concerned.

Signature

Name

Designation

[Form GST DRC-24]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 160]

To

The Liquidator/ Receiver,

Name of the taxable person:

GSTIN :

Demand order No. :

Date :

Period :

Intimation to Liquidator for recovery of amount

This has reference to your letter << intimation No. & date >>, giving intimation of your appointment as liquidator for the << company name >> holding << GSTIN >>. In this connection, it is informed that the said company owes/ likely to owe the following amount to the State/ Central Government:

Current/ Anticipated Demand

(Amount in Rs.)

[Act

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax
Interest
Penalty
Fee
Other Dues
Total Arrears

1
2
3
4
5
6
7

Central tax
State/UT tax
Integrated tax
Cess

]

In compliance of the provisions of section 88 of the Act, you are hereby directed to make sufficient provision for discharge of the current and anticipated liabilities, before the final winding up of the company.

Name
Designation

Place :

Date :

[Form GST DRC - 25]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 161]

Reference No. << ... >>

<< Date >>

To

GSTIN -

Name -

Address -

Demand Order No. :

Date :

Reference No. of recovery :

Date :

Period :

Reference No. in Appeal or Revision or any other proceeding -

Date :

Continuation of Recovery Proceedings

This has reference to the initiation of recovery proceedings against you vide above referred recovery reference number for a sum of Rs.....

The Appellate/ Revisional authority/ Court << name of authority/ Court >> has enhanced/ reduced the dues covered by the above mentioned demand order No. dated vide order No. ----- dated ----- and the dues now stands at Rs. The recovery of enhanced/reduced amount of Rs. stands continued from the stage at which the recovery proceedings stood immediately before disposal of appeal or revision. The revised amount of demand after giving effect of appeal/ revision is given below:

Financial year:

(Amount in Rs.)

[Act

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax

Interest

Penalty

Fee

Other Dues

Total Arrears

1

2

3

4

5

6

7

Central tax

State/UT tax

Integrated tax

Cess

]

Signature

Name

Designation

Place :

Date :

[Form GST CPD-01]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 162(1)]

Application for Compounding of Offence

1.

GSTIN/ Temporary ID

2.

Name of the applicant

3.

Address

4.

The violation of provisions of the Act for which
prosecution is instituted or contemplated

5.

Details of adjudication order/notice

Reference Number

Date

Tax

Interest

Penalty

Fine, if any

6.

Brief facts of the case and particulars of the offence (s)
charged:

7.

Whether this is the first offence under the Act

8.

If answer to 7 is in the negative, the details of previous cases

9.

Whether any proceedings for the same or any other offence are contemplated under any other law.

10.

If answer to 9 is in the affirmative, the details thereof

Declaration

(1)

I shall pay the compounding amount, as may be fixed by the Commissioner.

(2)

I understand that I cannot claim, as a matter of right, that the offence committed by me under the Act shall be compounded.

Signature of the applicant

Name

[Form GST CPD-02]

[Substituted by Notification No. 819(E), dated 1.7.2017 (w.e.f. 19.6.2017).]

[See rule 162(3)]

Reference No. :

Date :

To

GSTIN/ ID -----

Name-----

Address -----

ARN -----

Date -----

Order for rejection/ allowance of compounding of offence

This has reference to your application referred to above. Your application has been examined in the department and the findings are as recorded below:

<< text >>

I am satisfied that you fulfil the requirements to be allowed to compound the offences in respect of the offences stated in column (2) of the table below on payment compounding amount indicated in column (3):

[Sr. No.

[Substituted by Notification No. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

Offence

Act

Compounding amount (Rs.)

(1)

(2)

(3)

(4)

Note. - (1) In case the offence committed by the taxable person falls in more than one category specified in Column (2), the compounding amount shall be the amount specified in column (3), which is the maximum of the amounts specified against the categories in which the offence sought to be compounded can be categorized.

(2)

This amount will be deposited under minor head "Other"]

You are hereby directed to pay the aforesaid compounding amount by ----- (date) and on payment of the compounding amount, you will be granted immunity from prosecution for the offences listed in column (2) of the aforesaid table.

or

Your application is hereby rejected.

Signature

Name

Designation

[Form GST ASMT - 01]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(1)]

Application for Provisional Assessment under section 60

1. GSTIN

2. Name

3. Address

4. Details of Commodity/ Service for which tax rate/ valuation
is to be determined

Sr. No.

HSN

Name of commodity/ service

Tax rate

Valuation

Average monthly turnover of the commodity/
service

Central tax

State/ UT tax

Integrated tax

Cess

1

2

3

4

5

6

7

8

9

5. Reason for seeking provisional assessment

6. Documents filed

7. Verification-

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Name

Designation/ Status -----

Date -----

[Form GST ASMT - 02]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(2)]

Reference No. :

Date :

To

_____ GSTIN

_____ Name

_____ (Address)

Application Reference No. (ARN)

Dated

Notice for Seeking Additional Information/ Clarification/ Documents for provisional assessment

Please refer to your application referred to above. While examining your request for provisional assessment, it has been found that the following information/documents are required for processing the same:

<< text >>

You are, therefore, requested to provide the information/ documents within a period of << 15 days>> from the date of service of this notice to enable this office to take a decision in the matter. Please note that in case no information is received by the stipulated date your application is liable to be rejected without any further reference to you.

You are requested to appear before the undersigned for personal hearing on << Date --- Time ---Venue --->>.

Signature

Name

Designation

[Form GST ASMT - 03]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(2)]

Reply to the notice seeking additional information

1. GSTIN

2. Name

3. Details of notice vide which additional information sought

Notice No.

Notice date

4. Reply

5. Documents filed

6. Verification-

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Name

Designation/ Status

Date

[Form GST ASMT - 04]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(3)]

Reference No. :

Date :

To

GSTIN -

Name -

Address -

Application Reference No. (ARN)

Dated

Order of Provisional Assessment

This has reference to your application mentioned above and reply dated-----, furnishing information/documents in support of your request for provisional assessment. Upon examination of your application and the reply, the provisional assessment is allowed as under:

<< text >>

The provisional assessment is allowed subject to furnishing of security amounting to Rs.----- (in words) in the form of ----- (mode) and bond in the prescribed format by ----- (date).

Please note that if the bond and security are not furnished within the stipulated date, the provisional assessment order will be treated as null and void as if no such order has been issued.

Signature

Name

Designation

[Form GST ASMT - 05]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(4)]

Furnishing of Security

1. GSTIN

2. Name

3. Order vide which security is prescribed

Order No.

Order date

4. Details of the security furnished

Sr. No.

Mode

Reference no./ Debit entry no. (for cash payment)

Date

Amount

Name of Bank

1

2

3

4

5

6

Note - Hard copy of the bank guarantee and bond shall be submitted on or before the due date mentioned in the order.

5. Declaration -

(i)

The above-mentioned bank guarantee is submitted to secure the differential tax on the supply of goods and/ or services in respect of which I/ we have been allowed to pay taxes on provisional basis.

(ii)

I undertake to renew the bank guarantee well before its expiry. In case I/We fail to do so the department will be at liberty to get the payment from the bank against the bank guarantee.

(iii)

The department will be at liberty to invoke the bank guarantee provided by us to cover the provisional assessment in case we fail to furnish the required documents/ information to facilitate finalization of provisional assessment.

Signature of Authorised Signatory

Name

Designation/ Status -----

Date -----

Bond for provisional assessment

[Rule 98(3) & 98(4)]

I/ We of, hereinafter called "obligor(s)", am/are held and firmly bound to the President of India (hereinafter called "the President"/ the Governor of (State) (hereinafter called the/ Governor/) in the sum of.....rupees to be paid to the President/ Governor for which payment will and truly to be made. I/We jointly and severally bind myself/ ourselves and my/ our respective heirs/ executors/ administrators/ legal representatives/ successors and assigns by these presents; Dated thisday of.....;

Whereas final assessment of Integrated tax/ central tax/ State tax/ Union territory tax on (name of goods/ services or both-HSN :) supplied by the above bounded obligor from time to time could not be made for want of full information with regard to the value or rate of tax applicable thereto; and whereas the obligor desires that the provisional assessment in accordance with the provisions of Section 60 be made;

And Whereas the Commissioner has required the obligor to furnish bank guarantee for an amount of rupees endorsed in favour of the President/ Governor and whereas the obligor has

furnished such guarantee by depositing with the Commissioner the bank guarantee as aforementioned;
The condition of this bond is that the obligor and his representative observe all the provisions of the Act in respect of provisional assessment under section 60;

And if all dues of Integrated tax/ Central tax/ State tax/ Union territory tax or other lawful charges, which shall be demandable after final assessment, are duly paid to the Government along with interest, if any, within thirty days of the date of demand thereof being made in writing by the said Officer, this obligation shall be void;

Otherwise and on breach or failure in the performance of any part of this condition, the same shall be in full force and virtue:

And the President/ Governor shall, at his option, be competent to make good all the loss and damages from the amount of bank guarantee or by endorsing his rights under the above-written bond or both;

I/ We further declare that this bond is given under the orders of the Central Government/ State Government for the performance of an act in which the public are interested;

In The Witness Thereof these presents have been signed the day hereinbefore written by the obligor(s).

Signature(s) of obligor(s).

Date :

Place :

Witnesses

(1) Name and Address

Occupation

(2) Name and Address

Occupation

Date

Place

Witnesses

(1) Name and Address

Occupation

(2) Name and Address

Occupation

Accepted by me this.....day of (month)..... (year)of
..... (Designation) for and on behalf of the President of India. Governor of (state)".

[Form GST ASMT - 06]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(5)]

Reference No. :

Date :

To

GSTIN -

Name -

Address -

Application Reference No. (ARN)

Date

Provisional Assessment order no. -

Date

Notice for seeking additional information/ clarification/ documents for final assessment

Please refer to your application and provisional assessment order referred to above. The following information/ documents are required for finalization of provisional assessment:

<< text >>

You are, therefore, requested to provide the information/ documents within a period of << 15 days>> from the date of receipt of this notice to enable this office to take a decision in the matter. Please note that in case no information is received by the stipulated date your application is liable to be rejected without making any further reference to you.

You are requested to appear before the undersigned for personal hearing on << Date --- Time ---Venue --->>.

Signature

Name

Designation

[Form GST ASMT - 07]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(5)]

Reference No. :

Date :

To

GSTIN

Name

Address

Provisional Assessment order No.

Dated

Final Assessment Order

Preamble - << Standard >>

In continuation of the provisional assessment order referred to above and on the basis of information available/ documents furnished, the final assessment order is issued as under:

Brief facts -

Submissions by the applicant -

Discussion and finding -

Conclusion and order -

The security furnished for the purpose can be withdrawn after compliance with the order by filing an application.

Signature

Name

Designation

[Form GST ASMT - 08]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(6)]

Application for Withdrawal of Security

1. GSTIN

2. Name

3. Details vide which security furnished

ARN

Date

4. Details of the security to be withdrawn

Sr. No.

Mode

Reference no./ Debit entry no. (for cash payment)

Date

Amount

Name of Bank

1

2

3

4

5

6

5. Verification-

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Name

Designation/ Status -

Date -

[Form GST ASMT - 09]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 98(7)]

Reference No. :

Date :

To

_____ GSTIN

_____ Name

_____ Address

Application Reference No.

Dated

Order for release of security or rejecting the application

This has reference to your application mentioned above regarding release of security amounting to Rs. -----

[----- Rupees (in words)]. Your application has been examined and the same is found to be in order. The aforesaid security is hereby released. Or

Your application referred to above regarding release of security was examined but the same was not found to be in order for the following reasons:

<< text >>

Therefore, the application for release of security is rejected.

Signature

Name

Designation

Date

[Form GST ASMT - 10]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 99(1)]

Reference No. :

Date :

To _____

GSTIN :

Name :

Address :

Tax period -

F.Y. -

Notice for intimating discrepancies in the return after scrutiny

This is to inform that during scrutiny of the return for the tax period referred to above, the following discrepancies have been noticed:

<< text >>

You are hereby directed to explain the reasons for the aforesaid discrepancies by ----- (date). If no explanation is received by the aforesaid date, it will be presumed that you have nothing to say in the matter and proceedings in accordance with law may be initiated against you without making any further reference to you in this regard.

Signature

Name

Designation

[Form GST ASMT - 11]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 99(2)]

Reply to the notice issued under section 61 intimating discrepancies in the return

1. GSTIN

2. Name

3. Details of the notice

Reference No.

Date

4. Tax Period

5. Reply to the discrepancies

Sr. No.

Discrepancy

Reply

6. Amount admitted and paid, if any -

Act

Tax

Interest

Others

Total

7. Verification-

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Name

Designation/ Status -----

Date -

[Form GST ASMT-12]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 99(3)]

Reference No. :

Date :

To

GSTIN

Name

Address

Tax Period

F.Y. -----

ARN ----

Date ----

Order of acceptance of reply against the notice issued under section 61

This has reference to your reply dated ----- in response to the notice issued vide reference no. ----- dated ---. Your reply has been found to be satisfactory and no further action is required to be taken in the matter.

Signature

Name

Designation

[Form GST ASMT - 13]

[Substituted by Notification No. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[See rule 100(1)]

{

Reference No. :

Date :

To

_____(GSTIN/ID)

_____(Name)

_____(Address)

Tax Period :

F.Y. :

Return Type :

Notice Reference No. :

Date:

Act/Rules Provisions:

Assessment order under section 62

(Assessment order under section 62)

Preamble - << standard >>

The notice referred to above was issued to you under section 46 of the Act for failure to furnish the return for the said tax period. From the records available with the department, it has been noticed that you have not furnished the said return till date.

Therefore, on the basis of information available with the department, the amount assessed and payable by you is as under:

Introduction:

Submissions, if any:

Discussions and Findings:

Conclusion:

Amount assessed and payable (Details at Annexure):

(Amount in Rs.)

Sr. No.

Tax rate

Turnover

Tax period

Act

POS (Place of supply)

Tax

Interest

Penalty

Others

Total

From

To

1

2

3

4

5

6

7

8

9

10

11

12

Total

Please note that interest has been calculated up to the date of passing the order. While making payment, interest for the period between the date of order and the date of payment shall also be worked out and paid along with the dues stated

in the order.

You are also informed that if you furnish the return within a period of 30 days from the date of service of this order, the order shall be deemed to have been withdrawn; otherwise, proceedings shall be initiated against you, after the aforesaid period, to recover the outstanding dues.

Signature

Name

Designation

Jurisdiction

Address

Note -

1. Only applicable fields may be filled up.
2. Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.
3. Place of Supply (POS) details shall be required only if demand is created under IGST Act.

l}

[Form GST ASMT - 14]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 100(2)]

Reference No. :

Date :

To _____

Name

Address

Tax Period ---

F.Y. ---

Show Cause Notice for assessment under section 63

It has come to my notice that you/ your company/ firm, though liable to be registered under section ----- of the Act, have/ has failed to obtain registration and failed to discharge the tax and other liabilities under the said Act as per the details given below:

Brief Facts -

Grounds -

Conclusion -

OR

It has come to my notice that your registration has been cancelled under sub-section (2) of section 29 with effect from ----- and that you are liable to pay tax for the above mentioned period.

Therefore, you are hereby directed to show cause as to why a tax liability along with interest not be created against you for conducting business without registration despite being liable for registration and why penalty should not be imposed for violation of the provisions of the Act or the rules made thereunder.

In this connection, you are directed to appear before the undersigned on ----- (date) at ----- (time)

Signature

Name

Designation

[Form GST ASMT - 15]

[Substituted by Notification No. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[See rule 100(2)]

{

Reference No. :

Date :

To

_____ (GSTIN/ID)

_____ Name

_____ (Address)

Tax Period:

F.Y. :

SCN Reference No. :

Date :

Act/ Rules Provisions:

Assessment order under section 63

Preamble - << standard >>

The notice referred to above was issued to you to explain the reasons for continuing to conduct business as an un-registered person, despite being liable to be registered under the Act.

OR

The notice referred to above was issued to you to explain the reasons as to why you should not pay tax for the period as your registration has been cancelled under sub-section (2) of section 29 with effect from-----

Whereas, no reply was filed by you or your reply was duly considered during proceedings held on ----- date(s).

On the basis of information available with the department / record produced during proceedings, the amount assessed and payable by you is as under:

Introduction:

Submissions, if any:

Conclusion (to drop proceedings or to create demand):

Amount assessed and payable:

(Amount in Rs.)

Sr. No.

Tax rate

Turnover

Tax period

Act

POS (Place of supply)

Tax

Interest

Penalty

Others

Total

From

To

1

2

3

4

5

6

7

8

9

10

11

12

Total

Please note that interest has been calculated upto the date of passing the order. While making payment, interest for the period between the date of order and the date of payment shall also be worked out and paid along with the dues stated in the order.

You are hereby directed to make the payment by << date >> failing which proceedings shall be initiated against you to recover the outstanding dues.

Signature

Name

Designation

Jurisdiction

Address

Note -

1. Only applicable fields may be filled up.

2. Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.

3. Place of Supply (POS) details shall be required only if demand is created under IGST Act.

}]

[Form GST ASMT - 16]

[Substituted by Notification No. 249(E), dated 29.3.2019 (w.e.f. 19.6.2017).]

[See rule 100(3)]

{]

Reference No. :

Date :

To

_____ (GSTIN/ ID)

_____ Name

_____ (Address)

Tax Period:

F.Y. :

Act/ Rules Provisions:

Assessment order under section 64

Preamble - << standard >>

It has come to my notice that un-accounted for goods are lying in stock at godown ----- (address) or in a vehicle stationed at ----- (address & vehicle detail) and you were not able to, account for these goods or produce any document showing the detail of the goods.

Therefore, I proceed to assess the tax due on such goods as under:

Introduction

Discussion & finding

Conclusion

Amount assessed and payable (details at Annexure):

(Amount in Rs.)

[Sr. No.

[Substituted by Notification No. G.S.R. 639(E), dated 15.10.2020 (w.e.f. 19.6.2017).]

Tax Rate

Turnover

Tax Period

Act

POS (Place of Supply)

Tax

Interest

Penalty

Fee

Others

Total

From

To

1

2

3
4
5
6
7
8
9
10
11
12
13

Total]

Please note that interest has been calculated upto the date of passing the order. While making payment, interest for the period between the date of order and the date of payment shall also be worked out and paid along with the dues stated in the order.

You are hereby directed to make the payment by << date >> failing which proceedings shall be initiated against you to recover the outstanding dues.

Signature

Name

Designation

Jurisdiction

Address

Note -

Only applicable fields may be filled up.

Column nos. 2, 3, 4 and 5 of the above Table i.e. tax rate, turnover and tax period are not mandatory.

Place of Supply (POS) details shall be required only if demand is created under IGST Act.

}]

[Form GST ASMT - 17]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 100(4)]

Application for withdrawal of assessment order issued under section 64

1. GSTIN/ ID

2. Name

3. Details of

the order

Reference

No.

Date

of issue of order

4. Tax

Period, if any

5. Grounds

for withdrawal

6.

Verification -

I

_____ hereby solemnly affirm

and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of

Authorised Signatory
Name

Designation/

Status -----

Date -

[Form GST ASMT - 18]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 100(5)]

Reference No. :

Date :

GSTIN/ ID

Name

Address

ARN ----

Date ----

Acceptance or Rejection of application filed under section 64 (2)

The reply furnished by you vide application referred to above has been considered and found to be in order and the assessment order no. ----- dated ----- stands withdrawn.

OR

The reply furnished by you vide application referred above has not been found to be in order for the following reasons:

<< Text box >>

Therefore, the application filed by you for withdrawal of the order is hereby rejected.

Signature

Name

Designation

[Form GST ADT - 01]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 101(2)]

Reference No. :

Date :

To,

GSTIN

Name

Address

Period - F.Y.(s) -

Notice for conducting audit

Whereas it has been decided to undertake audit of your books of account and records for the financial year(s) to in accordance with the provisions of section 65. I propose to conduct the said audit at my office/at your place of business on -----.

And whereas you are required to:-

(i)

afford the undersigned the necessary facility to verify the books of account and records or other documents as may be required in this context, and

(ii)

furnish such information as may be required and render assistance for timely completion of the audit.

You are hereby directed to attend in person or through an authorised representative on (date) at (place) before the undersigned and to produce your books of account and records for the aforesaid financial year(s) as required for audit.

In case of failure to comply with this notice, it would be presumed that you are not in possession of such books of

account and proceedings as deemed fit may be initiated as per the provisions of the Act and the rules made thereunder against you without making any further correspondence in this regard.

Signature

Name

Designation

[Form GST ADT - 02]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 101(5)]

Reference No. :

Date :

To,

GSTIN

Name

Address

Audit Report No. dated

Audit Report under section 65(6)

Your books of account and records for the F.Y..... has been examined and this Audit Report is prepared on the basis of information available/ documents furnished by you and the findings are as under:

Short

payment of

Integrated

tax

Central

tax

State/

UT tax

Cess

Tax

Interest

Any other

amount

[Upload pdf file containing audit observation]

You are directed to discharge your statutory liabilities in this regard as per the provisions of the Act and the rules made thereunder, failing which proceedings as deemed fit may be initiated against you under the provisions of the Act.

Signature

Name

Designation

[Form GST ADT - 03]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 102(1)]

Reference No. :

Date :

To,

GSTIN

Name

Address

Tax period - F.Y.(s) -

Communication to the registered person for conduct of special audit under section 66

Whereas the proceedings of scrutiny of return/ enquiry/ investigation/ are going on;

And whereas it is felt necessary to get your books of account and records examined and audited by (name), chartered accountant / cost accountant nominated by the Commissioner;

You are hereby directed to get your books of account and records audited by the said chartered accountant / cost accountant.

Signature

Name

Designation

[Form GST ADT - 04]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 102(2)]

Reference No. :

Date :

To,

GSTIN

Name

Address

Information of Findings upon Special Audit

Your books of account and records for the F.Y. has been examined by ----- (chartered accountant/ cost accountant) and this Audit Report is prepared on the basis of information available / documents furnished by you and the findings/ discrepancies are as under:

Short

payment of

Integrated

tax

Central

tax

State/

UT tax

Cess

Tax

Interest

Any other

amount

[Upload pdf file containing audit observation]

You are directed to discharge your statutory liabilities in this regard as per the provisions of the Act and the rules made thereunder, failing which proceedings as deemed fit may be initiated against you under the provisions of the Act.

Signature

Name

Designation

[Form GST ARA -01]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See Rule 104(1)]

Application Form for Advance Ruling

1.

GSTIN Number,

if any/ User-id

2.

Legal Name of

Applicant

3.

Trade Name of

Applicant (Optional)

4.

Status of the

Applicant [registered/ un-registered]

5.

Registered

Address/ Address provided while obtaining user id

6.

Correspondence

address, if different from above

7.

Mobile No.

[with STD/ ISD code]

8.

Telephone No.

[with STD/ ISD code]

9.

Email address

10.

Jurisdictional

Authority

<<

name, designation, address >>

11.

i. Name of

Authorised representative

Optional

ii. Mobile

No.

iii. Email

Address

12.

Nature of

activity(s) (proposed/ present) in respect of which advance
ruling sought

A. Category?

Factory/

Manufacturing

Wholesale

Business

Retail

Business

Warehouse/

Deport

Bonded

Warehouse

Service

Provision

Office/ Sale

Office

Leasing

Business

Service

Recipient

EOU/ STP/

EHTP

SEZ

Input Service

Distributor (ISD)

Works

Contract

B. Description (in brief)

(Provision for file attachment also)

13.

Issue/s on

which advance ruling required (Tick whichever is applicable) :-

(i)

classification of goods and/ or services or both

(ii)

applicability of a notification issued under the provisions of the Act

(iii)

determination of time and value of supply of goods or services or both

(iv)

admissibility of input tax credit of tax paid or deemed to have been paid

(v)

determination of the liability to pay tax on any goods or services or both

(vi)

whether applicant is required to be registered under the Act

(vii)

whether any particular thing done by the applicant with respect to any goods and/or services or both amounts to or results in a supply of goods and/ or services or both, within the meaning of that term ?

14.

Question(s)

on which advance ruling is required

15.

Statement

of relevant facts having a bearing on the question(s) raised.

16.

Statement

containing the applicant's interpretation of law and/ or facts, as the case may be, in respect of the aforesaid question(s) (i.e. applicant's view point and submissions on issues on which the advance ruling is sought).

17.

I hereby

declare that the question raised in the application is not (tick)

-

a. Already

pending in any proceedings in the applicant's case under any of the provisions of the Act

b. Already

decided in any proceedings in the applicant's case under any of the provisions of the Act

18.

Payment

details

Challan

Identification Number (CIN) -

Date -

Verification

I, _____

____ (name in full and in block letters), son/ daughter/ wife of

____ do hereby solemnly declare that to the best of my knowledge and belief what is stated above and in the annexure(s), including the documents is correct. I am making this application in my capacity as

_____ (designation) and that I am competent to make this application and verify it.

Signature

Place

Name

of Applicant/ Authorised Signatory

Date

Designation/

Status

[Form GST ARA -02]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See Rule 106(1)]

Appeal to the Appellate Authority for Advance Ruling

Sr.

No.

Particulars

Remarks

1

Advance

Ruling No.

2

Date of

communication of the advance ruling

DD/MM/YYYY

3

GSTIN/ User

id of the appellant

4

Legal Name of

the appellant.

5

Trade Name of
the appellant (optional).

6

Address of
appellant at which notices may be sent

7

Email Address
of the appellant

8

Mobile number
of the appellant

9

Jurisdictional
officer/ concerned officer

10

Designation
of jurisdictional officer/ concerned officer

11

Email Address
of jurisdictional officer/ concerned officer

12

Mobile number
of jurisdictional officer/ concerned officer

13

Whether the
appellant wishes to be heard in person?

Yes/

No

14.

The facts of
the case (in brief)

15.

Ground of
Appeal

16.

Payment
details

Challan

Identification Number (CIN) -

Date -

Prayer

In view of

the foregoing, it is respectfully prayed that the Ld. Appellate
Authority, <Place> may be pleased to :

a. set aside/

modify the impugned advance ruling passed by the Authority for
Advance Ruling as prayed above;

b. grant a

personal hearing; and

c. pass any

such further or other order (s) as may be deemed fit and proper in facts and circumstances of the case.

And for this

act of kindness, the appellant, as is duty bound, shall ever pray.

Verification

I, _____

_ name in full and in block letters), son/ daughter/ wife of

_ do hereby solemnly declare that to the best of my knowledge and belief what is stated above and in the annexure(s), including the documents is correct. I am making this application in my capacity as

_____ (designation) and that I am competent to make this application and verify it.

Signature

Place

Name

of Applicant/ Authorised Signatory

Date

Designation/

Status

[Form GST ARA -03]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See Rule 106(2)]

Appeal to the Appellate Authority for Advance Ruling

Sr.

No.

Particulars

Remarks

1

Advance

Ruling No.

2

Date of

communication of the advance ruling

DD/MM/YYYY

3

GSTIN, if

any/ User id of the person who had sought advance ruling

4

Legal Name of

the person referred to in serial number 3.

5

Name and

designation of jurisdictional officer/ concerned officer

6

Email Address

of jurisdictional officer/ concerned officer

7

Mobile number

of jurisdictional officer/ concerned officer

8

Whether the

jurisdictional officer/ concerned officer wishes to be heard in person?

Yes/

No

9.

Facts of the

case (in brief)

10.

Grounds of

Appeal

Prayer

In

view of the foregoing, it is respectfully prayed that the Ld.

Appellate Authority, <Place> may be pleased to:

a.

set aside/ modify the impugned advance ruling passed by the Authority for Advance Ruling as prayed above;

b.

grant a personal hearing; and

C.

pass any such further or other order (s) as may be deemed fit and proper in facts and circumstances of the case.

Verification

I, _____

(name in full and in block letters), son/daughter/wife of

_____ do hereby solemnly declare that to the best of my knowledge and belief what is stated above and in the annexure(s), including the documents are correct. I am making this application in my capacity as _____

_____ (designation) and that I am competent to make this application and verify it.

Signature

Place

Name and designation of the concerned officer / jurisdictional officer

Date _____

[Form GST APL - 01]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 108(1)]

Appeal to Appellate Authority

1. GSTIN/ Temporary ID/ UIN -

2. Legal name of the appellant -

3. Trade name, if any -

4. Address -

5. Order no. - Order date -

6. Designation and address of the officer passing the order appealed against -

7. Date of communication of the order appealed against -

8. Name of the authorised representative -

9. Details of the case under dispute -

(i)

Brief issue of the case under dispute -

(ii)

Description and classification of goods/ services in dispute-

(iii)

Period of dispute-

(iv)

Amount under dispute:

Description

Central

tax

State/

UT tax

Integrated

tax

Cess

a) Tax/ Cess

b) Interest

c) Penalty

d) Fees

e) Other

charges

(v)

Market value of seized goods

10. Whether the appellant wishes to be heard in person - Yes/ No

11. Statement of facts:-

12. Grounds of appeal:-

13. Prayer:-

14. Amount of demand created, admitted and disputed

Particulars

of demand/ refund

Particulars

Central

tax

State/

UT tax

Integrated

tax

Cess

Total

amount

Amount of

demand created (A)

a) Tax/ Cess

<

total >

<

total >

b) Interest

<

total >

c) Penalty

<
total >
d) Fees
<
total >
e) Other
charges
<
total >
Amount of
demand admitted (B)
a) Tax/ Cess
<
total >
<
total >
b) Interest
<
total >
c) Penalty
<
total >
d) Fees
<
total >
e) Other
charges
<
total >
Amount of
demand disputed (C)
a) Tax/ Cess
<
total >
<
total >
b) Interest
<
total >
c) Penalty
<
total >
d) Fees
<
total >
e) Other
charges
<
total >
15. [Details of payment of admitted amount and pre-deposit:-
(a)

Details of payment required

[Particulars

[Substituted by Notification No. G.S.R. 902(E), dated 29.12.2021 (with effect from the 1st day of January, 2022).]

Central tax

State/ UT tax

Integrated tax

Cess

Total amount

(a) Admitted amount

Tax/ Cess

< total >

< total >

Interest

< total >

Penalty

< total >

Fees

< total >

Other charges

< total >

(b) Pre-deposit (10% of disputed tax /cess but not exceeding Rs. 25 crore each in respect of CGST, SGST or cess, or not exceeding Rs. 50 crore in respect of IGST and Rs. 25 crore in respect of cess)

Tax/Cess

< total >

(c) Pre-deposit in case of sub-section (3) of section 129

Penalty

< total >]

(b)

Details of payment of admitted amount and pre-deposit (pre-deposit 10% of the disputed tax and cess but not exceeding Rs. 25 crore each in respect of CGST, SGST or cess, or not exceeding Rs. 50 crore in respect of IGST and Rs. 25 crore in respect of cess)

Sr.

No.

Description

Tax

payable

Paid

through Cash/ Credit Ledger

Debit

entry no.

Amount

of tax paid

Central

tax

State/

UT tax

Integrated

tax

CESS

1

2

3

4

5

6

7

8

9

1.

Integrated

tax

Cash Ledger

Credit Ledger

2.

Central tax

Cash Ledger

Credit Ledger

3.

State/ UT tax

Cash Ledger

Credit Ledger

4.

CESS

Cash Ledger

Credit Ledger

(c)

Interest, penalty, late fee and any other amount payable and paid

Sr.

No.

Description

Amount

payable

Debit

entry no.

Amount

paid

Integrated

tax

Central

tax

State/

UT tax

CESS

Integrated

tax

Central

tax

State/

UT tax

CESS

1

2

3

4

5

6

7

8

9

10

11

1.

Interest

2.

Penalty

3.

Late fee

4.

Others

(specify)]

16. Whether appeal is being filed after the prescribed period - Yes / No

17. If 'Yes' in item 17 -

(a)

Period of delay -

(b)

Reasons for delay -

Verification

I, < _____ >, hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Place :

Date :

< Signature >

Name of the Applicant :

18. [Place of supply wise details of the integrated tax paid (admitted amount only) mentioned in the Table in sub-clause

(a) of clause 15 (item (a)), if any

Place of Supply (Name of State/UT)

Demand

Tax

Interest

Penalty

Other

Total

1

2

3

4

5

6

7

Admitted amount [in the Table in sub-clause (a)]

of clause 15 (item (a))]]

[Form GST APL - 02]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 108(3)]

Acknowledgment for submission of appeal

< Name of applicant > < GSTIN/ Temp ID/ UIN/ Reference Number with date >

Your appeal has been successfully filed against < Application Reference Number >

1. Reference Number -

2. Date of filing -

3. Time of filing -

4. Place of filing-

5. Name of the person filing the appeal-

6. Amount of pre-deposit-

7. Date of acceptance/ rejection of appeal-

8. Date of appearance-

Date : Time :

9. Court Number/ Bench Court : Bench :

Place :

Date :

Signature >

Name :

Designation :

On behalf of Appellate Authority/ Appellate Tribunal/

Commissioner/ Additional or Joint Commissioner.

[Form GST APL - 03]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 109(1)]

Application to the Appellate Authority under sub-section (2) of Section 107

1.

Name and

designation of the appellant

Name-

Designation-

Jurisdiction-

State/

Center-

Name of the

State-

2.

GSTIN/

Temporary ID /UIN-

3.

Order no.

Date-

4.

Designation

and address of the officer passing the order appealed against-

5.

Date of

communication of the order appealed against-

6.

Details of
the case under dispute-

(i)

Brief issue
of the case under dispute-

(ii)

Description
and classification of goods/ services in dispute-

(iii)

Period of
dispute-

(iv)

Amount under
dispute-

{|

Description

Central

tax

State/

UT tax

Integrated

tax

Cess

a) Tax/ Cess

b) Interest

c) Penalty

d) Fees

e) Other

charges

|-

| 7.

| Statement of
facts-

|-

| 8.

| Grounds of
appeal-

|-

| 9.

| Prayer-

|-

| 10.

| Amount of
demand in dispute, if any -

|-

|

|

Particulars

of demand/ refund, if any

Particulars

Central

tax
State/
UT tax
Integrated
tax
Cess
Total
amount
Amount of
demand created, if any (A)
a) Tax/ Cess
< total >
< total >
b) Interest
< total >
c) Penalty
< total >
d) Fees
< total >
e) Other
charges
< total >
Amount under
dispute (B)
a) Tax/ Cess
< total >
< total >
b) Interest
< total >
c) Penalty
< total >
d) Fees
< total >
e) Other
charges
< total >
|}
Place :
Date :
Signature >
Name of the Applicant Officer :
Designation :
Jurisdiction :
[Form GST RVN - 01]
[Inserted by Notification No. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]
[See rule 109B]
Reference No.
Date
To,
.....
.....

.....

GSTIN:

Order No.-

Date-

Notice under section 108

Whereas it has come to the notice of the undersigned that decision/order passed under this Act/ the << Name of the State>> Goods and Services Tax Act, 2017/the Integrated Goods and Services Tax Act, 2017/ the Union territory Goods and Services Tax Act, 2017/ the Goods and Services Tax (Compensation to States) Act, 2017 by(Designation of officer) is erroneous in so far as it is prejudicial to the interest of revenue and is illegal or improper or has not taken into account certain material facts, and therefore, I intend to pass an order in revision under section 108 on grounds specified in the document attached herewith.

You are hereby directed to furnish a reply to this notice within seven working days from the date of service of this notice.

You are hereby directed to appear before the undersigned on DD/MM/YYYY at HH/MM

If you fail to furnish a reply within the stipulated date or fail to appear for personal hearing on the appointed date and time, the case will be decided ex parte on the basis of available records and on merits.

Place:Date:

Signature:Designation:Jurisdiction/Office-

[Form GST APL - 04]

[Substituted by Notification No. 1251(E), dated 31.12.2018 (w.e.f. 19.6.2017).]

[See rules 109B, 113(1) & 115]

Summary of the demand after issue of order by the Appellate Authority, Tribunal or Court

Reference No. :

Date -

1. GSTIN/ Temporary ID/ UIN -

2. Name of the appellant/person-

3. Address of the appellant/person

4. Order appealed against or intended to be revised -

Number -

Date -

5. Appeal no. Date -

6. Personal Hearing -

7. Order in brief -

8. Status of order - Confirmed/ Modified/ Rejected

9. Amount of demand confirmed :

Particulars

Central

tax

State/

UT tax

Integrated

tax

Cess

Total

Amount in dispute/earlier order

Determined

Amount

Amount in dispute/earlier order

Determined

Amount

Amount in dispute/earlier order

Determined

Amount

Amount in dispute/earlier order

Determined

Amount

Amount in dispute/earlier order

Determined

Amount

1

2

3

4

5

6

7

8

9

10

11

a) Tax

b) Interest

c) Penalty

d) Fees

e) Others

f) Refund

10. Place of supply wise details of IGST demand

Place of Supply (Name of State/UT)

Demand

Tax

Interest

Penalty

Other

Total

1

2

3

4

5

6

7]

Amount in dispute/earlier order

Determined Amount

[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

Place :

Date :

Signature

Name of the Appellate Authority/Tribunal/

Jurisdictional Officer

Designation :

Jurisdiction :

[Form GST APL - 05]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 110(1)]

Appeal to the Appellate Tribunal

1. GSTIN/ Temporary ID/ UIN -
2. Name of the appellant -
3. Address of the appellant
4. Order appealed against - Number - Date -
5. Name and Address of the Authority passing the order appealed against -
6. Date of communication of the order appealed against -
7. Name of the representative -
8. Details of the case under dispute:
 - (i)
Brief issue of the case under dispute
 - (ii)
Description and classification of goods/ services in dispute
 - (iii)
Period of dispute
 - (iv)
Amount under dispute:
Description
Central
tax
State/
UT tax
Integrated
tax
Cess
a) Tax/ Cess
b) Interest
c) Penalty
d) Fees
e) Other
charges
 - (v)
Market value of seized goods
9. Whether the appellant wishes to be heard in person?
10. Statement of facts
11. Grounds of appeal
12. Prayer
13. Details of demand created, disputed and admitted
Particulars
of demand
Particulars
Central
tax
State/
UT tax
Integrated
tax
Cess
Total
amount
Amount
demanded/ rejected >, if any (A)

a) Tax/ Cess
<
total >
<
total >
b) Interest
<
total >
c) Penalty
<
total >
d) Fees
<
total >
e) Other
charges
<
total >
Amount under
dispute (B)
a) Tax/ Cess
<
total >
<
total >
b) Interest
<
total >
c) Penalty
<
total >
d) Fees
<
total >
e) Other
charges
<
total >
Amount
admitted (C)
a) Tax/ Cess
<
total >
<
total >
b) Interest
<
total >
c) Penalty
<
total >

d) Fees

<

total >

e) Other

charges

<

total >

14. Details of payment of admitted amount and pre-deposit :

(a)

Details of amount payable :

Particulars

Central

tax

State/

UT tax

Integrated

tax

Cess

Total

amount

a) Admitted

amount

Tax/ Cess

<

total >

<

total >

Interest

<

total >

Penalty

<

total >

Fees

<

total >

Other charges

<

total >

b)

Pre-deposit[(20% of disputed tax/cess but not exceeding Rs.50 crore each in respect of CGST, SGST or cess or not exceeding Rs.100 crore in respect of IGST and Rs.50 crore in respect of cess)]

[Substituted '(20% of disputed tax)' by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

Tax/ Cess

<

total >

(b)

Details of payment of admitted amount and pre-deposit [(pre-deposit of 20% of the disputed admitted tax and cess but not exceeding Rs. 50 crore each in respect of CGST, SGST or cess or not exceeding Rs.100 crore in respect of IGST and Rs. 50 crore in respect of cess)]

[Substituted '(pre-deposit 20% of the disputed admitted tax and cess)' by Notification No. G.S.R. 63(E), dated 29.1.2019

(w.e.f. 19.6.2017).]

Sr.

No.

Description

Tax

payable

Paid

through Cash/ Credit Ledger

Debit

entry no.

Amount

of tax paid

Integrated

tax

Central

tax

State/UT

tax

CESS

1

2

3

4

5

6

7

8

9

1.

Integrated

tax

Cash

Ledger

Credit

Ledger

2.

Central tax

Cash

Ledger

Credit

Ledger

3.

State/ UT tax

Cash

Ledger

Credit

Ledger

4.

CESS

Cash

Ledger

Credit

Ledger

(c)

Interest, penalty, late fee and any other amount payable and paid :

Sr.

No.

Description

Amount

payable

Debit

entry no.

Amount

paid

Integrated

tax

Central

tax

State/

UT tax

CESS

Integrated

tax

Central

tax

State/

UT tax

CESS

1

2

3

4

5

6

7

8

9

10

11

1.

Interest

2.

Penalty

3.

Late fee

4.

Others

(specify)

Verification

I, < _____ >, hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Place :

Date :
Signature >
Name of the Applicant :
Designation/ Status :
15. [Place of supply wise details of the integrated tax paid (admitted amount only) mentioned in the Table in sub-clause (a) of clause 14 (item (a)), if any
Place of Supply (Name of State/UT)
Demand
Tax
Interest
Penalty
Other
Total
1
2
3
4
5
6
7
Admitted amount [in the Table in sub-clause (a) of clause 14 (item (a))]
[Form GST APL - 06]
[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]
[See rule 110(2)]
Cross-objections before the Appellate Tribunal under sub-section (5) of section 112
Sr.
No.
Particulars
1
Appeal No. -
Date of filing -
2
GSTIN/
Temporary ID/ UIN -
3
Name of the appellant-
4
Permanent address of the appellant-
5
Address for communication-
6
Order no.
Date -
7.
Designation and Address of the officer passing the order appealed against-

8.

Date of
communication of the order appealed against-

9.

Name of the
representative-

10.

Details of
the case under dispute-

(i)

Brief issue
of the case under dispute-

(ii)

Description
and classification of goods/ services in dispute-

(iii)

Period of
dispute-

(iv)

Amount
under dispute

Central
tax

State/

UT tax

Integrated
tax

Cess

a) Tax

b) Interest

c) Penalty

d) Fees

e) Other

charges (specify)

(v)

Market value
of seized goods

11

State

or Union Territory and the Commissionerate (Centre) in which the
order or decision was passed (Jurisdiction details)-

12

Date

of receipt of notice of appeal or application filed with the
Appellate Tribunal by the appellant or the Commissioner of State/
Central tax/ UT tax, as the case may be-

13

Whether

the decision or order appealed against involves any question
relating to place of supply -

Yes

No

14

In case of cross-objections filed by a person other than the Commissioner of State/ UT tax/ Central tax

(i) Name of the Adjudicating Authority-

(ii) Order Number and date of Order-

(iii) GSTIN/ UIN/ Temporary ID-

(iv) Amount involved :

Head

Tax

Interest

Penalty

Refund

Total

Integrated

tax

Central tax

State/ UT tax

Cess

15

Details of

payment

Head

Tax

Interest

Penalty

Refund

Total

Central tax

State/ UT tax

Integrated

tax

Cess

Total

16

In case of cross-objections filed by the Commissioner State/ UT tax/ Central tax :

(i)

Amount of tax

demand dropped or reduced for the period of dispute

(ii)

Amount of

interest demand dropped or reduced for the period of dispute

(iii)

Amount of

refund sanctioned or allowed for the period of dispute

(iv)

Whether no or

lesser amount imposed as penalty

Total

17

Reliefs

claimed in memorandum of cross-objections.

18

Grounds of

Cross objection

Verification

I,

the respondent, do hereby declare that what is stated above is

true to the best of my information and belief.

Verified

today, the day of 20...

Place :

Date :

<Signature>

Name

of the Applicant/ Officer :

Designation/

Status of Applicant/ officer :

[Form GST APL - 07]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 111(1)]

Application to the Appellate Tribunal under sub section (3) of Section 112

1.

Name and

Designation of the appellant

Name :

Designation

Jurisdiction

State/ Center

-

Name of the

State :

2.

GSTIN/

Temporary ID/ UIN -

3.

Appellate

Order no. Date -

4.

Designation

and Address of the Appellate Authority passing the order appealed

against-

5.

Date of

communication of the order appealed against-

6.

Details of

the case under dispute:

(i)

Brief issue

of the case under dispute-

(ii)

Description

and classification of goods/ services in dispute-

(iii)

Period of

dispute-

(iv)

Amount under

dispute:

{|

Description

Central

tax

State/

UT tax

Integrated

tax

Cess

a) Tax/ Cess

b) Interest

c) Penalty

d) Fees

e) Other

charges

|-

| 7.

| Statement of

facts-

|-

| 8.

| Grounds of

appeal-

|-

| 9.

| Prayer-

|-

| 10.

| Amount

demanded, disputed and admitted:

|-

|

|

Particulars

of demand, if any

Particulars

Central

tax

State/

UT tax

Integrated

tax

Cess

Total

amount

Amount of

demand created, if any (A)

a) Tax/ Cess

<

total >

<

total >

b) Interest

<

total >

c) Penalty

<

total >

d) Fees

<

total >

e) Other

charges

<

total >

Amount under

dispute (B)

a) Tax/ Cess

<

total >

<

total >

b) Interest

<

total >

c) Penalty

<

total >

d) Fees

<

total >

e) Other

charges

<

total >

l}

Place :

Date :

< Signature

Name of the Officer :

Designation :

Jurisdiction :-

[Form GST APL - 08]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 114(1)]

Appeal to the High Court under section 117

1. Appeal filed by ----- Taxable person/ Government of <-->
2. GSTIN/ Temporary ID/ UIN Name of the appellant/ officer-
3. Permanent address of the appellant, if applicable-
4. Address for communication-
5. Order appealed against Number Date-
6. Name and Address of the Appellate Tribunal passing the order appealed against-
7. Date of communication of the order appealed against-
8. Name of the representative
9. Details of the case under dispute :

(i)

Brief issue of the case under dispute with synopsis

(ii)

Description and classification of goods/ services in dispute

(iii)

Period of dispute

(iv)

Amount under dispute

Description

Central

tax

State/

UT tax

Integrated

tax

Cess

a) Tax/ Cess

b) Interest

c) Penalty

d) Fees

e) Other

charges

(v)

Market value of seized goods

10. Statement of facts

11. Grounds of appeal

12. Prayer

13. Annexure(s) related to grounds of appeal

Verification

I, < _____ >, hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Place:

Date:

< Signature >

Name:

Designation/ Status:

Form GST CMP-01

[See rule 3(1)]

Intimation to pay tax under section 10 (composition levy)

(Only for persons registered under the existing law migrating on the appointed day)

1. GSTIN/ Provisional ID

2. Legal name

3. Trade name, if any

4. Address of Principal Place of Business

5. Category of Registered Person < Select from drop down>

(iv)

Manufacturers, other than manufacturers of such goods as notified by the Government

(v)

Suppliers making supplies referred to in clause (b) of paragraph 6 of Schedule II

(vi)

Any other supplier eligible for composition levy.

6. Financial Year from which composition scheme is opted
2017-18

7. Jurisdiction

Centre

State

8. Declaration -

I hereby declare that the aforesaid business shall abide by the conditions and restrictions specified for payment of tax under section 10.

9. Verification

I _____ hereby solemnly

affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name

Date

Designation/ Status

Form GST CMP-02

[See rule 3(3) and 3(3A)]

[Substituted 'See rule 3(2)' by Notification No. G.S.R. 1251(E), dated 13.10.2017 (w.e.f. 19.6.2017).]

Intimation to pay tax under section 10 (composition levy)

(For persons registered under the Act)

1. GSTIN

2. Legal name

3. Trade name, if any

4. Address of Principal Place of Business

5. Category of Registered Person < Select from drop down>

(i)

Manufacturers, other than manufacturers of such goods as may be notified by the Government

(ii)

Suppliers making supplies referred to in clause (b) of paragraph 6 of Schedule II

(iii)

Any other supplier eligible for composition levy.

6. Financial Year from which composition scheme is opted
2017-18

7. Jurisdiction

Centre

State

8. Declaration -

I hereby declare that the aforesaid business shall abide by the conditions and restrictions specified for paying tax under section 10.

9. Verification

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name

Date

Designation/ Status

Form GST-CMP-03

[See rule 3(4)]

Intimation of details of stock on date of opting for composition levy

(Only for persons registered under the existing law migrating on the appointed day)

1. GSTIN

2. Legal name

3. Trade name, if any

4. Address of Principal Place of Business

5. Details of application filed to pay tax under section 10

(i) Application reference number (ARN)

(ii) Date of filing

6. Jurisdiction

Centre

State

7. Stock of purchases made from registered person under the existing law

Sr. No.

GSTIN/ TIN

Name of the supplier

Bill/ Invoice No.

Date

Value of Stock

VAT

Central Excise

Service Tax (if applicable)

Total

1

2

3

4

5

6

7

8

9

10

1

2

Total

8. Stock of purchases made from unregistered person under the existing law

Sr. No.

Name of the unregistered person

Address

Bill/ Invoice No.

Date

Value of Stock

VAT

Central Excise

Service Tax (if applicable)

Total

1

2

3

4

5

6

7

8

9

1

2

Total

{|

9. Details of tax paid

Description

Central Tax

State Tax/ UT Tax

Amount

Debit entry no.

|-

|

10. Verification

I _____ hereby solemnly

affirm and declare that the information given hereinabove is true

and correct to the best of my knowledge and belief and nothing

has been concealed therefrom.

|-

|

Signature of Authorised Signatory

Place

Name

Date

Designation/ Status

|}

Form GST - CMP-04

[See rule 6(2)]

Intimation/ Application for Withdrawal from Composition Levy

1. GSTIN

2. Legal name

3. Trade name, if any

4. Address of Principal Place of Business

5. [Category of Registered Perso]

[Substituted by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

n

(i) [

[Substituted by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

Manufacturers, other than manufacturers of such goods as may be notified by the Government

(ii)

Suppliers making supplies referred to in clause (b) of paragraph 6 of Schedule II

(iii)

Any other supplier eligible for composition levy.]

6. Nature of Business

7. Date from which withdrawal from composition scheme is sought

DD-MM-YYYY

8. Jurisdiction

Centre

State

9. Reasons for withdrawal from composition scheme

10. Verification

I _____ hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Place

Name

Date

Designation/ Status

Note. - Stock statement may be furnished separately for availing input tax credit on the stock available on the date preceding the date from which composition option is withdrawn in FORM GST ITC -01.

Form GST CMP-05

[See rule 6(4)]

Reference No. << ... >>

<< Date >>

To

GSTIN

Name

Address

Notice for denial of option to pay tax under section 10

Whereas on the basis of information which has come to my notice, it appears that you have violated the conditions and restrictions necessary for availing of the composition scheme under section 10 of the Act. I therefore propose to deny the option to you to pay tax under the said section for the following reasons: -

1.

2.

3.

....

You are hereby directed to furnish a reply to this notice within fifteen working days from the date of service of this notice.
You are hereby directed to appear before the undersigned on DD/MM/YYYY at HH/MM.

If you fail to furnish a reply within the stipulated date or fail to appear for personal hearing on the appointed date and time, the case will be decided ex parte on the basis of available records and on merits

Signature

Name of Proper Officer

Designation

Jurisdiction

Place

Date

Form GST CMP - 06

[See rule 6(5)]

Reply to the notice to show cause

9.

GSTIN

10.

Details of the show cause notice

Reference no.

Date

11.

Legal name

12.

Trade name, if any

13.

Address of the Principal Place of Business

14.

Reply to the notice

15.

List of documents uploaded

16.

Verification

I

_____ hereby solemnly affirm

and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of the

Authorised Signatory

Date

Place

Note. - 1. The reply should not be more than 500 characters. In case the same is more than 500 characters, then it should be uploaded separately.

2. Supporting documents, if any, may be uploaded in PDF format.

Form GST CMP-07

[See rule 6(5)]

[Substituted by Notification No. G.S.R. 644(E), dated, 27.6.2017 (w.e.f. 19.6.2017).]

Reference No. << ... >>

<< Date >>

To

GSTIN

Name

Address

Application Reference No. (ARN)

Date -

Order for acceptance/rejection of reply to show cause notice

This has reference to your reply dated ----- filed in response to the show cause notice issued vide reference no. ----- dated ----- . Your reply has been examined and the same has been found to be satisfactory and, therefore, your option to pay tax under composition scheme shall continue. The said show cause notice stands vacated.

or

This has reference to your reply dated ----- filed in response to the show cause notice issued vide reference no. ----- dated ----- . Your reply has been examined and the same has not been found to be satisfactory and, therefore, your option to pay tax under composition scheme is hereby denied with effect from << >>> for the following reasons:

<< text >>

or

You have not filed any reply to the show cause notice; or

You did not appear on the day fixed for hearing.

Therefore, your option to pay tax under composition scheme is hereby denied with effect from << date >> for the following reasons:

<< Text >>

Signature

Date

Name of Proper Officer

Place

Designation

Jurisdiction

[Form GST CMP - 08]

[Inserted by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

[See rule 62]

Statement for payment of self-assessed tax

{|

Financial Year

Quarter

|}

1

GSTIN

2

(a)

Legal name

< Auto>

(b)

Trade name

< Auto>

(c)

ARN < Auto>

(After filing)

(d)

Date of filing

< Auto> (After filing)

3. Summary of self-assessed liability

(net of advances, credit and debit notes and any other adjustment due to amendments etc.)

(Amount in L in all tables)

Sr. No.

Description

Value

Integrated tax

Central tax

State/ UT tax

Cess

1

2

3

4

5

6

7

1

Outward supplies (including exempt supplies)

2

Inward supplies attracting reverse charge
including import of services

3

Tax payable (1+2)

4

Interest payable, if any

5

Tax and interest paid

4. Verification

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature

Place :

Name of Authorised Signatory

Date:

Designation/Status

Instructions:

1. The taxpayer paying tax under the provisions of section 10 of the Central Goods and Services Tax Act, 2017 or by availing the benefit of notification No. 02/2019–Central Tax (Rate), dated the 7th March, 2019 [G.S.R. 189(E) dated the 7th March, 2019] shall make payment of tax on quarterly basis by the due date.
2. Adjustment on account of advances, credit/debit notes or rectifications shall be reported against the liability.
3. Negative value may be reported as such if such value comes after adjustment.
4. If the total tax payable becomes negative, then the same shall be carried forward to the next tax period for utilising the same in that tax period.
5. Interest shall be leviable if payment is made after the due date.
6. 'Nil' Statement shall be filed if there is no tax liability due during the quarter.

Form GST REG-01

[See rule 8(1)]

Application for Registration

(Other than a non-resident taxable person, a person required to deduct tax at source under section 51 and a person required to collect tax at source under section 52 and a person supplying online information and database access or retrieval services from a place outside India to a non-taxable online recipient referred to in section 14 of the Integrated Goods and Services Tax Act, 2017)

Part-A State/ UT ? District - ?

(i)

Legal Name of the Business:

(As mentioned in Permanent Account Number)

(ii)

Permanent Account Number :

(Enter Permanent Account Number of the

Business; Permanent Account Number of Individual in case of
Proprietorship concern)

(iii)

Email Address :

(iv)

Mobile Number :

Note.- Information submitted above is

subject to online verification before proceeding to fill up

Part-B. Authorised signatory filing the application shall provide
his mobile number and email address.

Part-B {

|

| 1.

| Trade Name, if any

|

|}

2.

Constitution of Business (Please Select the Appropriate)

(i) Proprietorship

(ii) Partnership

(iii) Hindu Undivided Family

(iv) Private Limited Company

(v) Public Limited Company

(vi) Society/ Club/ Trust/ Association of Persons

(vii) Government Department

(viii) Public Sector Undertaking

(ix) Unlimited Company

(x) Limited Liability Partnership

(xi) Local Authority

(xii) Statutory Body

(xiii) Foreign Limited Liability Partnership

(xiv) Foreign Company Registered (in India)

(xv) Others (Please specify)

3.

Name of the State

District

4.

Jurisdiction

State

Centre

Sector, Circle, Ward, Unit, etc. others (specify)

5.

Option for Composition

YesNo

6.

Composition Declaration

I hereby declare that the aforesaid business shall abide by the conditions and restrictions specified in the Act or the rules for opting to pay tax under the composition scheme.

6.1

Category of Registered Person < tick in check box >

(iv)

Manufacturers, other than manufacturers of such goods as may be notified by the Government for which option is not available

(v)

Suppliers making supplies referred to in clause (b) of paragraph 6 of Schedule II

(vi)

Any other supplier eligible for composition levy.

7.

Date of commencement of business

DD/MM/YYYY

8.

Date on which liability to register arises

DD/MM/YYYY

9.

Are you applying for registration as a casual taxable person?

Yes

No

10.

If selected "Yes" in Sr. No. 9, period for which registration is required

From

DD/MM/YYYY

To

DD/MM/YYYY

11.

If selected "Yes" in Sr. No. 9, estimated supplies and estimated net tax liability during the period of registration

Sr. No.

Type of Tax

Turnover (Rs.)

Net Tax Liability (Rs.)

(i)

Integrated Tax

(ii)

Central Tax

(iii)

State Tax

(iv)

UT Tax

(v)

Cess

Total

Payment Details

Challan Identification Number

Date

Amount

12.

Are you applying for registration as a SEZ Unit?

Yes

No

(i) Select name of SEZ

?

(ii) Approval order number and date of order

(iii) Designation of approving authority

13.

Are you applying for registration as a SEZ Developer?

Yes

No

(i) Select name of SEZ Developer

?

(ii) Approval order number and date of order

(iii) Designation of approving authority

14.

Reason to obtain registration :

(i) Crossing the threshold

(viii) Merger/ amalgamation of two or more registered persons

(ii) Inter-State supply

(ix) Input Service Distributor

(iii) Liability to pay tax as recipient of goods or services

u/s 9(3) or 9(4)

(x) Person liable to pay tax u/s 9(5)

(iv) Transfer of business which includes change in the ownership of business (if transferee is not a registered entity)

(xi) Taxable person supplying through e-Commerce portal

(v) Death of the proprietor (if the successor is not a registered entity)

(xii) Voluntary Basis

(vi) De-merger

(xiii) Persons supplying goods and/or services on behalf of other taxable person(s)

(vii) Change in constitution of business

(xiv) Others (Not covered above) - Specify

15.

Indicate existing registrations wherever applicable

Registration number under Value Added Tax

Central Sales Tax Registration Number

Entry Tax Registration Number

Entertainment Tax Registration Number

Hotel and Luxury Tax Registration Number

Central Excise Registration Number

Service Tax Registration Number

Corporate Identify Number/ Foreign Company Registration Number

Limited Liability Partnership Identification

Number/ Foreign Limited Liability Partnership Identification

Number

Importer/ Exporter Code Number

Registration number under Medicinal and Toilet

Preparations (Excise Duties) Act

Registration number under Shops and Establishment Act

Temporary ID, if any

Others (Please specify)

16.

(a) Address of Principal Place of Business

Building No./ Flat No.

Floor No.

Name of the Premises/Building

Road/ Street

City/ Town/ Locality/ Village

District

Taluka/Block

State

PIN Code

Latitude

Longitude

(b) Contact Information

Office Email Address

Office Telephone number

STD

Mobile Number

Office Fax Number

STD

(c) Nature of premises

Own

Leased

Rented

Consent

Shared

Others (specify)

(d) Nature of business activity being carried out at above
mentioned premises (Please tick applicable)

Factory/ Manufacturing

Wholesale Business

Retail Business

Warehouse/ Depot

Bonded Warehouse

Supplier of services

Office/ Sale Office

Leasing Business

Recipient of goods or services

EOU/ STP/ EHTP

Works Contract

Export

Import

Others (Specify)

17. Details of Bank Accounts (s)

Total number of Bank Accounts maintained by the applicant for conducting business

(Upto 10 Bank Accounts to be reported)

Details of Bank Account 1

Account Number

Type of Account

IFSC

Bank Name

Branch Address

To be auto-populated (Edit mode)

Note - Add more accounts -----

18. Details of the Goods supplied by the Business

Please specify top 5 Goods

Sr. No.

Description of Goods

HSN Code (Four digit)

(i)

(ii)

...

(v)

19. Details of the Services supplied by the Business

Please specify top 5 Services

Sr. No.

Description of Services

HSN Code (Four digit)

(i)

(ii)

...

(v)

20. Details of Additional Place(s) of Business

Number of additional places

Premises 1

(a) Details of Additional Place of Business

Building No/ Flat No

Floor No

Name of the Premises/ Building

Road/ Street

City/ Town/ Locality/ Village

District

Block/ Taluka

State

PIN Code

Latitude

Longitude

(b) Contact Information

Office Email Address

Office Telephone number

STD

Mobile Number

Office Fax Number

STD

(c) Nature of premises

Own

Leased

Rented

Consent

Shared

Others (specify)

(d) Nature of business activity being carried out at above mentioned premises (Please tick applicable)

Factory/ Manufacturing

Wholesale Business

Retail Business

Warehouse/ Depot

Bonded Warehouse

Supplier of services

Office/ Sale Office

Leasing Business

Recipient of goods or services

EOU/ STP/ EHTP

Works Contract

Export

Import

Others (Specify)

21. Details of Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.

Particulars

First Name

Middle Name

Last Name

Name

Photo

Name of Father

Date of Birth

DD/ MM/ YYYY

Gender

< Male, Female, Other >

Mobile Number

Email address

Telephone No. with STD

Designation/ Status

Director Identification Number (if any)

Permanent Account Number

Aadhaar Number

Are you a citizen of India?

Yes/ No

Passport No. (in case of foreigners)

Residential Address

Building No/ Flat No

Floor No

Name of the Premises/ Building

Road/ Street

City/ Town/ Locality/ Village

District

Block/ Taluka

State

PIN Code

Country (in case of foreigner only)

ZIP code

22. Details of Authorised Signatory

Checkbox for Primary Authorised Signatory

Details of Signatory No. 1

Particulars

First Name

Middle Name

Last Name

Name

Photo

Name of Father

Date of Birth

DD/MM/YYYY

Gender

< Male, Female, Other>

Mobile Number

Email address

Telephone No. with STD

Designation/ Status

Director Identification Number (if any)

Permanent Account Number

Aadhaar Number

Are you a citizen of India?

Yes/No

Passport No. (in case of foreigners)

Residential Address in India

Building No/ Flat No

Floor No

Name of the Premises/ Building

Road/ Street

Block/ Taluka

City/ Town/ Locality/ Village

District

State

PIN Code

23. Details of Authorised Representative

Enrolment ID, if available

Provide following details, if enrolment ID is not available

Permanent Account Number

Aadhaar, if Permanent Account Number is not available

First Name

Middle Name

Last Name

Name of Person

Designation/ Status

Mobile Number

Email address

Telephone No. with STD

FAX No. with STD

24.

State Specific Information

Profession Tax Enrolment Code (EC) No.

Profession Tax Registration Certificate (RC) No.

State Excise License No. and the name of the person in whose name Excise License is held

(a)

Field 1

(b)

Field 2

(c)

.....

(d)

.....

(e)

Field n

25.

Document Upload

A customized list of documents required to be uploaded (refer rule 8) as per the field values in the form.

26.

Consent

I on behalf of the holder of Aadhaar number < pre-filled based on Aadhaar number provided in the form > give consent to "Goods and Services Tax Network" to obtain my details from UIDAI for the purpose of authentication. "Goods and Services Tax Network" has informed me that identity information would only be used for validating identity of the Aadhaar holder and will be shared with Central Identities Data Repository only for the purpose of authentication.

27.

Verification (by authorised signatory)

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom

Signature

Place :

Name of Authorised Signatory

.....

Date :

Designation/ Status

.....

List of documents to be uploaded:-

1.

Photographs (wherever specified in the Application Form)

(a)

Proprietary Concern - Proprietor

(b)

Partnership Firm/ Limited Liability Partnership

- Managing/ Authorised/ Designated Partners (personal details of all partners are to be submitted but photos of only ten partners including that of Managing Partner are to be submitted)

(c)

Hindu Undivided Family - Karta

(d)

Company - Managing Director or the Authorised Person

(e)

Trust - Managing Trustee

(f)

Association of Persons or Body of Individuals

-Members of Managing Committee (personal details of all members are to be submitted but photos of only ten members including that of Chairman are to be submitted)

(g)

Local Authority - Chief Executive Officer or his equivalent

(h)

Statutory Body - Chief Executive Officer or his equivalent

(i)

Others - Person in Charge

2.

Constitution of Business: Partnership Deed in case of Partnership Firm, Registration Certificate/ Proof of Constitution in case of Society, Trust, Club, Government Department, Association of Persons or Body of Individuals, Local Authority, Statutory Body and Others etc.

3.

Proof of Principal Place of Business:

(a)

For Own premises -

Any document in support of the ownership of the premises like latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(b)

For Rented or Leased premises -

A copy of the valid Rent/ Lease Agreement with any document in support of the ownership of the premises of the Lessor like Latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(c)

For premises not covered in (a) and (b) above -

A copy of the Consent Letter with any document in support of the ownership of the premises of the Consenter like Municipal Khata copy or Electricity Bill copy. For shared properties also, the same documents may be uploaded.

(d)

For rented/ leased premises where the Rent/ lease agreement is not available, an affidavit to that effect along with any document in support of the possession of the premises like copy of Electricity Bill.

(e)

If the principal place of business is located in a Special Economic Zone or the applicant is an Special Economic Zone developer, necessary documents/ certificates issued by Government of India are required to be uploaded.

4

Bank Account Related Proof[, where details of such Account are furnished:]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

Scanned copy of the first page of Bank passbook or the relevant page of Bank Statement or Scanned copy of a cancelled cheque containing name of the Proprietor or Business entity, Bank Account No., MICR, IFSC and Branch details including code.

5

Authorisation Form:-

For each Authorised Signatory mentioned in the application form, Authorisation or copy of Resolution of the Managing Committee or Board of Directors to be filed in the following format:

Declaration for Authorised Signatory (Separate for each signatory) (Details of Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.)

I/ We --- (name) being (Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.) of (name of registered person)

hereby solemnly affirm and declare that << name of the authorised signatory, (status/ designation) >> is hereby authorised, vide resolution no. dated (copy submitted herewith), to act as an authorised signatory for the business << Goods and Services Tax Identification Number - Name of the Business >> for which application for registration is being filed under the Act. All his actions in relation to this business will be binding on me/ us.

Signature of the person competent to sign

Name :

Designation/ Status :

(Name of the proprietor/ Business Entity)

Acceptance as an authorised signatory

{|

I <<(Name of the authorised signatory>> hereby solemnly accord my acceptance to act as authorised signatory for the above referred business and all my acts shall be binding on the business.

{|

Signature of Authorised Signatory

Place :

(Name)

Date :

Designation/ Status :

}

}

Instructions for submission of Application for Registration.

1. Enter name of person as recorded on Permanent Account Number of the Business. In case of Proprietorship concern, enter name of proprietor against Legal Name and mention Permanent Account Number of the proprietor. Permanent Account Number shall be verified with Income Tax database.

2. Provide E-mail Id and Mobile Number of authorised signatory for verification and future communication which will be verified through One Time Passwords to be sent separately, before filling up Part-B of the application.

3. Applicant need to upload scanned copy of the declaration signed by the Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc. in case the business declares a person as Authorised Signatory.

4. The following persons can digitally sign the application for new registration:-

Constitution of Business

Person who can digitally sign the application

Proprietorship

Proprietor

Partnership

Managing/ Authorised Partners

Hindu Undivided Family

Karta

Private Limited Company

Managing/ Whole-time Directors

Public Limited Company

Managing/ Whole-time Directors

Society/ Club/ Trust/ AOP

Members of Managing Committee

Government Department

Person In charge

Public Sector Undertaking

Managing/ Whole-time Director

Unlimited Company

Managing/ Whole-time Director

Limited Liability Partnership

Designated Partners

Local Authority

Chief Executive Officer or Equivalent

Statutory Body

Chief Executive Officer or Equivalent

Foreign Company

Authorised Person in India

Foreign Limited Liability Partnership

Authorised Person in India

Others (specify)

Person In charge

5. Information in respect of authorised representative is optional. Please select your authorised representative from the list available on the common portal if the authorised representative is enrolled, otherwise provide details of such person.

6. State specific information are relevant for the concerned State only.

7. Application filed by undermentioned persons shall be signed digitally:-

Sr. No

Type of Applicant

Type of Signature required

1.
Private Limited Company
Public Limited Company
Public Sector Undertaking
Unlimited Company
Limited Liability Partnership
Foreign Company
Foreign Limited Liability Partnership
Digital Signature Certificate (DSC)- Class-2 and above.

2.
Other than above
Digital Signature Certificate class
2 and above
e-Signature

or
any other mode as may be notified

8. All information related to Permanent Account Number, Aadhaar, Director Identification Number, Challan Identification Number shall be validated online by the system and Acknowledgment Receipt Number will be generated after successful validation of all the filled up information.

9. Status of the application filed online can be tracked on the common portal by entering Application Reference Number (ARN) indicated on the Acknowledgment.

10. No fee is payable for filing application for registration.

11. Authorised signatory shall not be a minor.

12. Any person having multiple business verticals within a State, requiring a separate registration for any of its business verticals shall need to apply separately in respect of each of the vertical.

13. After approval of application, registration certificate shall be made available on the common portal.

14. Temporary Reference Number (TRN) will be allotted after successfully furnishing preliminary details in PART -A of the application which can be used for filling up details in PART-B of the application. TRN will be available on the common portal for a period of 15 days.

15. Any person who applies for registration under rule 8 may give an option to pay tax under section 10 in Part B of FORM GST REG-01, which shall be considered as an intimation to pay tax under the said section.

16. [Government departments applying for registration as suppliers may not furnish Bank Account details.]

[Inserted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

17. [Taxpayers who want to pay tax by availing benefit of notification No. 2/2019–Central Tax (Rate) dated 07.03.2019, as amended, shall indicate such option at serial no. 5 and 6.1(iii) of this Form.]

[Inserted by Notification No. G.S.R. 321(E), dated 23.4.2019 (w.e.f. 19.6.2017).]

Form GST REG-02

[See rule 8(5)]

Acknowledgment

Application Reference Number (ARN) -

You have filed the application successfully and the particulars of the application are given as under:

Date of filing

:

Time of filing

:

Goods and Services Tax Identification Number, if available :

Legal Name

:

Trade Name (if applicable)

:

Form No.

:

Form Description

:

Center Jurisdiction

:

State Jurisdiction

:

Filed by

:

Temporary reference number (TRN), if any :

Payment details *

: Challan Identification Number

: Date

: Amount

It is a system generated acknowledgment and does not require any signature.

* Applicable only in case of Casual taxable person and Non Resident taxable person

Form GST REG-03

[See rule 9(2)]

Reference Number :

Date -

To

Name of the Applicant :

Address :

GSTIN (if available) :

Application Reference No. (ARN) :

Date :

Notice for Seeking Additional Information/Clarification/Documents relating to Application for << Registration/Amendment/Cancellation >>

This is with reference to your << registration/amendment/cancellation>> application filed vide ARN < > Dated -DD/MM/YYYY The Department has examined your application and is not satisfied with it for the following reasons:

- 1.
- 2.
- 3.

You are directed to submit your reply by (DD/MM/YYYY)

*You are hereby directed to appear before the undersigned on (DD/MM/YYYY) at (HH:MM)

If no response is received by the stipulated date, your application is liable for rejection. Please note that no further notice/reminder will be issued in this matter

Signature

Name of the Proper Officer:

Designation:

Jurisdiction:

* Not applicable for New Registration Application

Form GST REG-04

[See rule 9(2)]

Clarification/ additional information/ document for << Registration/ Amendment/ Cancellation >>

- 1.

Notice details

Reference No.

Date

2.

Application details

Reference No.

Date

3.

GSTIN, if applicable

4.

Name of Business (Legal)

5.

Trade name, if any

6.

Address

7.

Whether any modification in the application for registration or fields is required. -

Yes

No

(Tick one)

8.

Additional Information

9.

List of Documents uploaded

10.

Verification

I _____
hereby solemnly affirm and declare that the information given
hereinabove is true and correct to the best of my knowledge and
belief and nothing has been concealed therefrom.

Signature of Authorised Signatory

Name

Designation/

Status :

Place :

Date :

Note :- 1. For new registration, original registration application will be available in editable mode if option "Yes" is selected in item 7.

2. For amendment of registration particulars, the fields intended to be amended will be available in editable mode if option "Yes" is selected in item 7.

Form GST REG-05

[See rule 9(4)]

Reference Number :

Date -

To

Name of the Applicant

Address -

GSTIN (if available)

Order of Rejection of Application for < Registration/ Amendment/ Cancellation/ >

This has reference to your reply filed vide ARN --- dated----. The reply has been examined and the same has not been found to be satisfactory for the following reasons:

1.

2.
3.
...Therefore, your application is rejected in accordance with the provisions of the Act.

Or

You have not replied to the notice issued vide reference no. dated within the time specified therein.
Therefore, your application is hereby rejected in accordance with the provisions of the Act.

Signature

Name

Designation

Jurisdiction

Government of India

Form GST REG-06

[See rule 10(1)]

Registration Certificate

Registration Number : < GSTIN/ UIN >

1.

Legal Name

2.

Trade Name, if any

3.

Constitution of Business

4.

Address of Principal Place of Business

5.

Date of Liability

DD/MM/ YYYY

6.

Period of Validity

(Applicable only in case of Non-Resident taxable person or
Casual taxable person)

From

DD/MM/YYYY

To

DD/MM/YYYY

7.

Type of Registration

8.

Particulars of Approving Authority

Centre

State

Signature

Name

Designation

Office

9.

Date of issue of Certificate

Note: The registration certificate is required to be
prominently displayed at all places of business in the State.

Annexure A

Goods and Services Tax Identification Number

Details of Additional

Places of Business

Legal Name

Trade Name, if any

Total Number of Additional Places of Business in the State

Sr. No. Address

1.

2.

3.

...

Annexure B

Goods and Services Tax Identification Number

Legal Name

Trade Name, if any

Details of < Proprietor/ Partners/ Karta/ Managing Director and whole-time Directors/Members of the Managing Committee of Association of Persons/ Board of Trustees etc.>

1.

{|

Photo

| Name

| -

| Designation/ Status

| -

| Resident of State

| -

| 2.

|

Photo

| Name

| -

| Designation/ Status

| -

| Resident of State

| -

| 3.

|

Photo

| Name

| -

| Designation/ Status

| -

| Resident of State

| -

| 4.

|

Photo

| Name

| -

| Designation/ Status

| -

| Resident of State

| -

| 5.
|
Photo
Name
Designation/ Status
-
Resident of State
-

| 6.
|
Photo
Name
Designation/ Status
-
Resident of State
-

| 7.
|
Photo
Name
Designation/ Status
-
Resident of State
-

| 8.
|
Photo
Name
Designation/ Status
-
Resident of State
-

| 9.
|
Photo
Name
Designation/ Status
-
Resident of State
-

| 10.
|
Photo
Name
Designation/ Status

| -

| Resident of State

| }

Form GST REG-07

[See rule 12(1)]

Application for Registration as Tax Deductor at source (u/s 51) or Tax Collector at source (u/s 52)

State/ UT - District -

Part-A { |

| -

| (i)

| Legal Name of the Tax Deductor or Tax Collector

(As mentioned in Permanent Account Number/ Tax Deduction and
Collection Account Number)

|

| -

| (ii)

| Permanent Account Number (Enter Permanent
Account Number of the Business; Permanent Account Number of
Individual in case of Proprietorship concern)

|

| -

| (iii)

| Tax Deduction and Collection Account Number
(Enter Tax Deduction and Collection Account Number, if Permanent
Account Number is not available)

|

| -

| (iv)

| Email Address

|

| -

| (v)

| Mobile Number

|

| -

| Note- Information submitted above is subject to
online verification before proceeding to fill up Part-B.

| }

Part-B { |

| -

| 1

| Trade Name, if any

|

| -

| 2

| Constitution of Business (Please Select the Appropriate)

| }

(i) Proprietorship

(ii) Partnership

(iii) Hindu Undivided Family

(iv) Private Limited Company

- (v) Public Limited Company
- (vi) Society/ Club/ Trust/ Association of Persons
- (vii) Government Department
- (viii) Public Sector Undertaking
- (ix) Unlimited Company
- (x) Limited Liability Partnership
- (xi) Local Authority
- (xii) Statutory Body
- (xiii) Foreign Limited Liability Partnership
- (xiv) Foreign Company Registered (in India)
- (xv) Others (Please specify)

3

Name of the State

District

4

Jurisdiction -

State

Centre

Sector/ Circle/ Ward/ Charge/ Unit etc.

5

Type of registration

Tax DeductorTax Collector

6

Government (Centre/ State/ Union Territory)

CenterState/ UT

7

Date of liability to deduct/ collect tax

DD/MM/YYYY

8

(a) Address of principal place of business

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/Street

City/ Town/ Locality/ Village

District

Block/ Taluka

Latitude

Longitude

State

PIN Code

(b) Contact Information

Office Email Address

Office Telephone number

Mobile Number

Office Fax Number

(c) Nature of possession of premises

Own

Leased

Rented

Consent

Shared

Others (specify)

9

Have you obtained any other registrations under
Goods and Services Tax in the same State?

YesNo

10

If Yes, mention Goods and Services Tax

Identification Number

11

IEC (Importer Exporter Code), if applicable

12

Details of DDO (Drawing and Disbursing Officer)/ Person
responsible for deducting tax/ collecting tax

Particulars

12A. [Details of Bank Accounts (s) [Optional]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

{|

Total number of Bank Accounts maintained by the applicant(Up to 10 Bank Accounts to be reported)

|}

Details of Bank Account 1

{|

Account Number

Type of Account

IFSC

Bank Name

Branch Address

To be auto-populated (Edit mode)

|-

| Note.- Add more bank accounts.]

|}

Name

First Name

Middle Name

Last Name

Father's Name

Photo

Date of Birth

DD/MM/YYYY

Gender

< Male, Female, Other>

Mobile Number

Email address

Telephone No. with STD

Designation/ Status

Director Identification Number (if any)

Permanent Account Number

Aadhaar Number

Are you a citizen of India?

Yes/ No

Passport No. (in case of Foreigners)

Residential Address

Building No./ Flat No.

Floor No.

Name of the Premise/ Building

Locality/ Village

State

PIN Code

13

Details of Authorised Signatory

Checkbox for Primary Authorised Signatory

Details of Signatory No. 1

{|

Particulars

First Name

Middle Name

Last Name

Name

Photo

Name of Father

Date of Birth

DD/MM/YYYY

Gender

< Male, Female, Other>

Mobile Number

Email address

Telephone No. with STD

Designation/ Status

Director Identification Number (if any)

Permanent A/c Number

Aadhaar Number

Are you a citizen of India?

Yes/ No

Passport No. (in case of foreigners)

|}

Residential Address (Within the Country)

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

City/ Town/ Locality/ Village

District

State

PIN Code

Block/ Taluka

Note - Add more ...

14

Consent

I on behalf of the holder of Aadhar number <

pre-filled based on Aadhar number provided in the form > give

consent to "Goods and Services Tax Network" to obtain

my details from UIDAI for the purpose of authentication. "Goods

and Services Tax Network" has informed me that identity information would only be used for validating identity of the Aadhar holder and will be shared with Central Identities Data Repository only for the purpose of authentication.

15

Verification

I hereby solemnly

affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom

{

(Signature)

Place:

Name of DDO/ Person responsible for deducting tax/
collecting tax/ Authorised Signatory

Date:

Designation

}

List of documents to be uploaded (not applicable to a department or establishment of the Central Government or State Government or Local Authority or Governmental agencies):-

Proof of Principal Place of Business:

(a) For Own premises -

Any document in support of the ownership of the premises like latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(b) For Rented or Leased premises -

A copy of the valid Rent/ Lease Agreement with any document in support of the ownership of the premises of the Lessor like Latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(c) For premises not covered in (a) and (b) above -

A copy of the Consent Letter with any document in support of the ownership of the premises of the Consenter like Municipal Khata copy or Electricity Bill copy. For shared properties also, the same documents may be uploaded.

(d) For rented/ leased premises where the Rent/

lease agreement is not available, an affidavit to that effect along with any document in support of the possession of the premises like copy of Electricity Bill.

(e) If the principal place of business is

located in an Special Economic Zone or the applicant is an Special Economic Zone developer, necessary documents/ certificates issued by Government of India are required to be uploaded.

Instructions for submission of application for registration as Tax Deductor/ Tax Collector.

1. Enter name of Tax Deductor/ Tax Collector as recorded on Tax Deduction and Collection Account Number/ Permanent Account Number of the Business. Tax Deduction and Collection Account Number/ Permanent Account Number shall be verified with Income Tax database.

2. Provide Email Id and Mobile Number of DDO (Drawing and Disbursing Officer)/ Person responsible for deducting tax/ collecting tax for verification and future communication which will be verified through One Time Passwords to be sent separately, before filling up of the application.

3. Person who is acting as DDO/ Person deducting/ collecting tax can sign the application.

4. The application filed by undermentioned persons shall be signed digitally.

Sr. No.

Type of Applicant

Digital Signature required

1.

Private Limited Company

Public Limited Company

Public Sector Undertaking

Unlimited Company

Limited Liability Partnership

Foreign Company

Foreign Limited Liability Partnership

Digital Signature Certificate(DSC) class 2 and above

2.

Other than above

Digital Signature Certificate class 2 and above,

e-Signature or any other mode as specified or as may be notified.

5. All information relating to Permanent Account Number, Aadhaar, Director Identification Number, Challan Identification Number shall be validated online by the system and Acknowledgment Receipt Number will be generated after successful validation of all the filled information.

6. Status of the application filed online can be tracked on the Common portal.

7. No fee is payable for filing application for registration.

8. Authorised shall not be a minor.

Form GST REG-08

[See rule 12(3)]

Reference No.

Date :

To

Name:

Address:

Application Reference No. (ARN)(Reply)

Date :

Order of Cancellation of Registration as Tax Deductor at source or Tax Collector at source

This has reference to the show-cause notice issued vide Reference Number dated for cancellation of registration under the Act.

- Whereas no reply to show cause notice has been filed; or

- Whereas on the day fixed for hearing you did not appear; or

- Whereas your reply to the notice to show cause and submissions made at the time of hearing have been examined.

The undersigned is of the opinion that your registration is liable to be cancelled for the following reason(s).

1.

2.

The effective date of cancellation of registration is << DD/MM/YYYY >>.

You are directed to pay the amounts mentioned below on or before ----- (date) failing which the amount will be recovered in accordance with the provisions of the Act and rules made thereunder.

(This order is also available on your dashboard).

Head

Integrated tax

Central tax

State tax

UT Tax

Cess

Tax

1.1.26

1.1.27

1.1.28

1.1.29

1.1.30

Interest

1.1.31

1.1.32

1.1.33

1.1.34

1.1.35

Penalty

1.1.36

1.1.37

1.1.38

1.1.39

1.1.40

Others

1.1.41

1.1.42

1.1.43

1.1.44

1.1.45

Total

1.1.46

1.1.47

1.1.48

1.1.49

1.1.50

Signature

Name

Designation

Jurisdiction

Form GST REG-09

[See rule 13(1)]

Application for Registration of Non Resident Taxable Person

Part -A State/ UT - District -

(i)

Legal Name of the Non-Resident Taxable Person

(ii)

Permanent Account Number of the Non-Resident Taxable person,
if any

(iii)

Passport number, if Permanent Account Number is not available

(iv)

Tax identification number or unique number on
the basis of which the entity is identified by the Government of
that country

(v)

Name of the Authorised Signatory (as per Permanent Account Number)

(vi)

Permanent Account Number of the Authorised Signatory

(vii)

Email Address of the Authorised Signatory

(viii)

Mobile Number of the Authorised Signatory (+91)

Note- Relevant information submitted above is subject to online verification, where practicable, before proceeding to fill up Part-B.

Part-B {

|

| 1.

| Details of Authorised Signatory (should be a resident of India)

|

| First Name

| Middle Name

| Last Name

|

| Photo

|

|

| Gender

| Male/ Female/ Others

|

| Designation

|

|

| Date of Birth

| DD/MM/YYYY

|

| Father's Name

|

|

| Nationality

|

|

| Aadhaar

|

|

|

|}

Address of the Authorised signatory.

Address line 1

Address Line 2

Address line 3

2.

Period for which registration is required

From

To

DD/MM/YYYY

DD/MM/YYYY

3.

Turnover Details

Estimated Turnover (Rs.)

Estimated Tax Liability (Net) (Rs.)

Intra-State

Inter-State

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

4.

Address of Non-Resident taxable person in the Country of
Origin

(In case of business entity - Address of the Office)

Address Line 1

Address Line 2

Address Line 3

Country (Drop Down)

Zip Code

E mail Address

Telephone Number

5.

Address of Principal Place of Business in India

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

City/ Town/ Village/ Locality

District

Block/ Taluka

Latitude

Longitude

State

PIN Code

Mobile Number

Telephone Number

E mail Address

Fax Number with STD

6.

Details of Bank Account in India

Account Number

Type of account

Bank Name

Branch Address

IFSC

7.

Documents Uploaded

A customized list of documents required to be uploaded
(refer Instruction) as per the field values in the form

8.

Declaration

I hereby solemnly affirm and
declare that the information given herein above is true and
correct to the best of my knowledge and belief and nothing has
been concealed therefrom.

{|

Signature

Place :

Name of Authorised Signatory

Date :

Designation

:

|}

Note. - Non-Resident taxable person is required to upload declaration (as per under mentioned format) along with
scanned copy of the passport and photograph.

List of documents to be uploaded as evidence are as follows:-

1.

Proof of Principal Place of

Business:

(a) For own premises -

Any document in

support of the ownership of the premises like Latest Property Tax
Receipt or Municipal Khata copy or copy of Electricity Bill.

(b) For Rented or Leased premises -

A copy of the valid

Rent/ Lease Agreement with any document in support of the
ownership of the premises of the Lessor like latest Property Tax
Receipt or Municipal Khata copy or copy of Electricity Bill.

(c) For premises not covered in (a)

and (b) above -

A copy of the Consent Letter with any document
in support of the ownership of the premises of the Consenter like
Municipal Khata copy or Electricity Bill copy. For shared
properties also, the same documents may be uploaded.

2.

Proof of Non-resident taxable

person:

Scanned copy of the passport of the Non

-resident taxable person with VISA details. In case of a business
entity incorporated or established outside India, the application
for registration shall be submitted along with its tax
identification number or unique number on the basis of which the
entity is identified by the Government of that country or it's
Permanent Account Number, if available.

3.

Bank Account related proof:

Scanned copy of the first page of Bank passbook
or the relevant page of Bank Statement or Scanned copy of a

cancelled cheque containing name of the Proprietor or Business entity, Bank Account No., MICR, IFSC and Branch details including code.

4.

Authorisation Form:-

For each Authorised Signatory mentioned in the application form, Authorisation or copy of Resolution of the Managing Committee or Board of Directors to be filed in the following format :

Declaration for Authorised Signatory (Separate for each signatory) (Details of Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.) I/ We --- (name) being (Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.) of (name of registered person) hereby solemnly affirm and declare that << name of the authorised signatory, (status/ designation) >> is hereby authorised, vide resolution no... dated..... (Copy submitted herewith), to act as an authorised signatory for the business << Goods and Services Tax Identification Number - Name of the Business >> for which application for registration is being filed under the Act. All his actions in relation to this business will be binding on me/ us.

Signature of the person
competent to sign

Name :

Designation/ Status :

(Name of the
proprietor/ Business Entity)

Acceptance as an
authorised signatory

Acceptance as an authorised signatory

{|

I << Name

of the authorised signatory >> hereby solemnly accord my acceptance to act as authorised signatory for the above referred business and all my acts shall be binding on the business.

{|

Place :

Signature of Authorised Signatory

Date :

Designation/ Status :

|}

|}

Instructions for submission of application for registration as Non-Resident Taxable Person.

1. Enter Name of the applicant Non-Resident taxable person as recorded on Passport.
2. The applicant shall apply at least Five days prior to commencement of the business at the common portal.
3. The applicant needs to provide Email Id and Mobile Number for verification and future communication which will be verified through One Time Passwords to be sent separately, before filling up Part-B of the application.
4. The applicant needs to upload the scanned copy of the declaration signed by the Proprietor/ all Partners/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc. in case the business declares a person as Authorised Signatory.

5. The application filed by the under-mentioned persons shall be signed digitally:-

Sr. No.

Type of Applicant

Digital Signature required

1.

Private Limited Company

Public Limited Company

Public Sector Undertaking

Unlimited Company

Limited Liability Partnership

Foreign Company

Foreign Limited Liability Partnership

Digital Signature Certificate (DSC) class 2 and above

2.

Other than above

Digital Signature Certificate class

2 and above

e-Signature

or

as may be notified

6. All information related to Permanent Account Number, Aadhaar, shall be online validated by the system and Acknowledgment Receipt Number will be generated after successful validation of all filled up information.

7. Status of the application filed online can be tracked on the common portal.

8. No fee is payable for filing application for registration.

9. Authorised signatory shall be an Indian national and shall not be a minor.

[Form GST REG-10

[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

[See rule 14(1)]

Application for registration of person supplying online information and data base access or retrieval services from a place outside India to a person in India, other than a registered person.

Part - A

(i)

Legal name of the person

(ii)

Tax identification number or unique number on the basis of which the entity is identified by the Government of that country

(iii)

Name of the Authorised Signatory

(iv)

Email Address of the Authorised Signatory

(v)

Name of the representative appointed in India, if any

(a) Permanent Account Number of the representative in India

(b) Email Address of the representative in India

(c) Mobile Number of the representative in India (+91)

Note -Relevant information submitted

above is subject to online verification, where practicable,

before proceeding to fill up Part-B.

Part - B

1.

Details of Authorised Signatory

First Name

Name Middle

Last Name

Photo

Gender

Male / Female / Others

Designation

Date of Birth

DD/MM/YYYY

Father's Name

Nationality

Aadhaar, if any

Address of the Authorised Signatory

Address line 1

Address line 2

Address line 3

2.

Date of commencement of the online service in India.

DD/MM/YYYY

3.

Uniform Resource Locators (URLs) of

the website through which taxable services are provided:

1.

2.

3.

4.

Jurisdiction

Center

Bengaluru West, CGST Commissionerate

5.

Details of Bank Account of representative in India(if appointed)

Account Number

Type of account

Bank Name

Branch Address

IFSC

6.

Documents Uploaded

A customized list of documents required to be uploaded (refer Instruction) as per the field values in the form

7.

Declaration

I hereby solemnly affirm and

declare that the information given herein above is true and

correct to the best of my knowledge and belief and nothing has

been concealed therefrom.

I, _ ??????????.

hereby declare that I am authorised to sign on behalf of the Registrant. I would charge and collect tax liable from the non-assesse online recipient located in taxable territory and deposit the same with Government of India.

Signature

Place:

Name of Authorised

Signatory:

Date:

Designation:

Note: Applicant will require to upload declaration (as per under mentioned format) along with scanned copy of the passport and photograph.

List of documents to be uploaded as evidence are as follows:-

1.

Proof of Place of

Business of representative in India, if any:

(a) For own premises

?

Any document in

support of the ownership of the premises like Latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(b) For Rented or

Leased premises ?

A copy of the valid

Rent / Lease Agreement with any document in support of the ownership of the premises of the Lessor like Latest Property Tax Receipt or Municipal Khata copy or copy of of Electricity Bill.

(c) For premises not

covered in (a) and (b) above ?

A copy of the Consent Letter with any document

in support of the ownership of the premises of the Consenter like Municipal Khata copy or Electricity Bill copy. For shared properties also, the same documents may be uploaded.

2.

Proof of :

Scanned copy of the

passport of the Non -resident tax payer with VISA details. In case of Company/Society/LLP/FCNR/ etc. person who is holding power of attorney with authorisation letter.

Scanned copy of

Certificate of Incorporation if the Company is registered outside India or in India

Scanned copy of

License is issued by origin country

Scanned copy of Clearance certificate issued by Government of India

3

Bank Account Related

Proof:

Scanned copy of the

first page of Bank passbook / one page of Bank Statement

Opening page of the Bank Passbook held in the name of the Proprietor / Business Concern ? containing the Account No., Name of the Account Holder, MICR and IFSC and Branch details.

4.

Scanned copy of documents regarding appointment as representative in India, if applicable

5.

Authorisation Form:-

For Authorised Signatory mentioned in the application form, Authorisation or copy of Resolution of the Managing Committee or Board of Directors to be filed in the following format:

Declaration for Authorised Signatory (Separate for each signatory)

I --- (Managing Director/Whole Time Director/CEO or Power of Attorney holder) hereby solemnly affirm and declare that <<name of the authorised signatory>> to act as an authorised signatory for the business << Name of the Business>> for which application for registration is being filed/ is registered under the Central Goods and Service Tax Act, 2017.

All his actions in relation to this business will be binding on me/ us.

Signatures of the persons who is in charge.

S. No.

Full Name

Designation/Status Signature

1.

Acceptance as an authorised signatory

I <<(Name of authorised signatory)>> hereby solemnly accord my acceptance to act as authorised signatory for the above referred business and all my acts shall be binding on the business.

Signature of Authorised Signatory Place

Date:

(Name)

Designation/Status

Instructions -

1. If authorised signatory is not based in India, authentication through digital signature certificate shall not be mandatory for such persons. The authentication will be done through Electronic Verification Code (EVC).
2. Appointed representative in India shall have the meaning as specified under section 14 of Integrated Goods and Services Tax Act, 2017.]

Form GST REG-11

[See rule 15(1)]

Application for extension of registration period by casual/ non-resident taxable person

1.

GSTIN

2.

Name (Legal)

3.

Trade Name, if any

4.

Address

5.

Period of Validity (original)

From

To

DD/MM/YYYY

DD/MM/YYYY

6.

Period for which extension is requested.

From

To

DD/MM/YYYY

DD/MM/YYYY

7.

Turnover Details for the extended period (Rs.)

Estimated Tax Liability (Net) for the extended period (Rs.)

Inter- State

Intra-State

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

8.

Payment details

Date

CIN

BRN

Amount

9.

Declaration -

I hereby solemnly affirm and declare that the
information given herein above is true and correct to the best of
my knowledge and belief and nothing has been concealed therefrom.

{|

Signature

Place :

Name of Authorised Signatory :

Date :

Designation/

Status :

|}

Instructions for submission of application for extension of validity

1. The application can be filed online before the expiry of the period of validity.

2. The application can only be filed when advance payment is made.

3. After successful filing, Application Reference Number will be generated which can be used to track the status of the application.

Form GST REG-12

[See rule 16(1)]

Reference Number :

Date :

To

(Name)

:

(Address)

:

Temporary Registration Number

Order of Grant of Temporary Registration/ Suo Moto Registration

Whereas the undersigned has sufficient reason to believe that you are liable for registration under the Act, and therefore, you are hereby registered on a temporary basis. The particulars of the business as ascertained from the business premises are given as under:

Details of person

to whom temporary registration granted

1.

Name and Legal Name, if applicable

2.

Gender

Male/ Female/ Other

3.

Father's Name

4.

Date of Birth

DD/MM/YYYY

5.

Address of the Person

Building No./ Flat No.

Floor No.

Name of Premises/ Building

Road/ Street

Town/ City/ Locality/ Village

Block/ Taluka

District

State

PIN Code

6.

Permanent Account Number of the person, if available

7.

Mobile No.

8.

Email Address

9.

Other ID, if any

(Voter ID No./ Passport No./ Driving License No./ Aadhaar No./

Other)

10.

Reasons for temporary registration

11.

Effective date of registration/ temporary ID

12.

Registration No./ Temporary ID

13. [Details of Bank Accounts (s) [Optional]

[Inserted by Notification No. G.S.R. 457(E), dated 28.6.2019.]

{|

Total number of Bank Accounts maintained by the applicant(Up to 10 Bank Accounts to be reported)

|}

Details of Bank Account 1

{|

Account Number

Type of Account

IFSC

Bank Name

Branch Address

To be auto-populated (Edit mode)

|-

| Note.- Add more bank accounts.]

|}

(Upload of Seizure Memo/ Detention

Memo/ Any other supporting documents)

<< You are hereby directed to

file application for proper registration[within 90 days]

[Substituted by Notification No. G.S.R. 644(E), dated 27.6.2017 (w.e.f. 19.6.2017).]

of the

issue of this order >>

{|

Signature

Place

<< Name of the Officer >> :

Date :

Designation/ Jurisdiction :

Note : A copy of the order will be sent to the
corresponding Central/ State Jurisdictional Authority.

|}

[Form GST REG-13]

[Substituted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 19.6.2017).]

[See rule 17(1)]

Application/ Form for grant of Unique Identity Number (UIN) to UN Bodies/ Embassies/ others

State/Union Territory -

District -

Part A ? {|

|-

| (i)

| Name of the Entity

|

|-

| (ii)

| Permanent Account Number (PAN) of entity [Not applicable for entities specified in clause (a) of sub-section (9) of
section 25 of the Act]

|

|-

| (iii)

| Name of the Authorised Signatory

|
|-
| (iv)
| Permanent Account Number of Authorised Signatory[Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act]
|
|-
| (v)
| Email Address of the Authorised Signatory
|
|-
| (vi)
| Mobile Number of the Authorised Signatory (+91)
|
|}
Part B ? {
|-
| 1.
| Type of Entity (Choose one)
| UN BodyEmbassyOther Person
|}
2.
Country
2A.
Ministry of External Affairs, Government of India' Recommendation (if applicable)
Letter No.
Date
3.
Notification Details
Notification No.
Date
4.
[Address of the entity in respect of which the centralized UIN is sought]
[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017)]
Building No./ Flat No.
Floor No.
Name of the Premises/ Building
Road/ Street
City/ Town/ Village
District
Block/ Taluka
Latitude
Longitude
State
PIN Code
Contact Information
Email Address
Telephone number
Fax Number
Mobile Number
5.

Details of Authorised Signatory, if applicable

Particulars

First Name

Middle Name

Last name

Name

Photo

Name of Father

Date of Birth

DD/MM/YYYY

Gender

< Male, Female, Other >

Mobile Number

Email address

Telephone No.

Designation/ Status

Director Identification Number (if any)

P.A.N. [Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act]

Aadhaar Number [Not applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act]

Are you a citizen of India?

Yes/ No

Passport No. (in case of foreigners)

Residential Address

Building No/ Flat No

Floor No

Name of the Premises/ Building

Road/ Street

Town/ City/ Village

District

Block/ Taluka

State

PIN Code

6.

Bank Account Details (add more if required)

Account Number

Type of Account

IFSC

Bank Name

Branch Address

7.

Documents Uploaded

The authorized person who is in possession of the documentary evidence shall upload the scanned copy of such documents including the copy of resolution / power of attorney, authorizing the applicant to represent the entity.

Or

The proper officer who has collected the documentary evidence from the applicant shall upload the scanned copy of such documents including the copy of resolution / power of attorney, authorizing the applicant to represent the UN Body / Embassy etc. in India and link it along with the UIN generated and allotted to respective UN Body/ Embassy etc.

8.

Verification

I hereby solemnly affirm and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Place :

(Signature)

Date :

Name of Authorised Person:

Or

(Signature)

Place :

Name of Proper Officer :

Date :

Designation

:

Jurisdiction :

Instructions for submission of application for registration for UN Bodies/ Embassies/others notified by the Government.

? [Every person required to obtain a unique identify number shall submit the application electronically or otherwise]

[Substituted by Notification No. G.S.R. 1602(E), dated 29.12.2017 (w.e.f. 19.6.2017).]

.

? Application shall be filed through Common Portal or registration can be granted suo-moto by proper officer.

? The application filed on the Common Portal is required to be signed electronically or through any other mode as specified by the Government.

? The details of the person authorized by the concerned entity to sign the refund application or otherwise, should be filled up against the "Authorised Signatory details" in the application.

? PAN/ Aadhaar will not be applicable for entities specified in clause (a) of sub-section (9) of section 25 of the Act.

Form GST REG-14

[See rule 19(1)]

Application for Amendment in Registration Particulars

(For all types of registered persons)

1. GSTIN/ UIN

2. Name of Business

3. Type of registration

4. Amendment summary

Sr. No

Field Name

Effective Date(DD/MM/YYYY)

Reasons(s)

5. List of documents uploaded

(a)

(b)

(c)

...

6. Declaration

I hereby solemnly affirm and

declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom

{|

Signature

Place:

Name of Authorised Signatory

Date:

Designation/

Status :

l}

Instructions for submission of application for amendment

1. Application for amendment shall be submitted online.
2. Changes relating to - Name of Business, Principal Place of Business, additional place(s) of business and details of partners or directors, karta, Managing Committee, Board of Trustees, Chief Executive Officer or equivalent, responsible for day to day affairs of the business which does not warrant cancellation of registration, are core fields which shall be approved by the Proper Officer after due verification.
3. For amendment in Non-Core fields, approval of the Proper Officer is not required.
4. Where a change in the constitution of any business results in change of the Permanent Account Number of a registered person, the said person shall be required to apply for fresh registration.
5. Any change in the mobile number or the e-mail address of authorised signatory as amended from time to time, shall be carried out only after online verification through the common portal.
6. All information related to Permanent Account Number, Aadhaar, Director Identification Number, Challan Identification Number shall be validated online by the system and Application Reference Number (ARN) will be generated after successful validation of necessary field.
7. Status of the application can be tracked on the common portal.
8. No fee is payable for submitting application for amendment.
9. Authorised signatory shall not be a minor.

Form GST REG-15

[See rule 19(1)]

Reference Number - << >>

Date - DD/MM/YYYY

To

(Name)

(Address)

Registration Number (GSTIN/UIN)

Application Reference No. (ARN)

Date - DD/MM/YYYY

Order of Amendment

This has reference to your application number ----- dated ---- regarding amendment in registration particulars. Your application has been examined and the same has been found to be in order. The amended certificate of registration is available on your dashboard for download.

Signature

Name

Designation

Jurisdiction

Date

Place

Form GST REG-16

[See rule 20]

Application for Cancellation of Registration

1.

GSTIN

2.

Legal name

3.

Trade name, if any

4.

Address of Principal Place of Business

5.

Address for future correspondence (including

email, mobile, telephone, fax)

Building No./ Flat No.

Floor No.

Name of Premises/ Building

Road/ Street

City/ Town/ Village

District

Block/ Taluka

Latitude

Longitude

State

PIN Code

Mobile (with country code)

Telephone

email

Fax Number

6.

Reasons for Cancellation

Discontinuance/ Closure (Select one) of business

Ceased to be liable to pay tax

Transfer of business on account of amalgamation,
merger/ demerger, sale, lease or otherwise disposed of etc.

Change in constitution of business leading to
change in Permanent Account Number

Death of Sole Proprietor

Others (specify)

7.

[In case of transfer, merger of business and change in constitution leading to change in PAN, particulars of registration of entity in which merged, amalgamated, transferred, etc.]

[Substituted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]

(i)

Goods and Services Tax Identification Number

(ii)

(a) Name (Legal)

(b) Trade name, if any

(iii)

Address of Principal Place of Business

Building No./ Flat No.

Floor No.

Name of Premises/ Building

Road/ Street

City/Town/ Village

District

Block/Taluka

Latitude

Longitude

State

PIN Code

Mobile (with country code)

Telephone

email

Fax Number

8.

Date from which registration is to be cancelled.

< DD/MM/YYYY>

9.

Particulars of last Return Filed

(i)

Tax period

(ii)

Application Reference Number

(iii)

Date

10.

Amount of tax payable in respect of inputs/ capital goods held
in stock on the effective date of cancellation of registration.

Description

Value of Stock (Rs.)

Input Tax Credit/ Tax Payable (whichever is
higher) (Rs.)

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

Inputs

Inputs contained in semi-finished goods

Inputs contained in finished goods

Capital Goods/ Plant and machinery

Total

11.

Details of tax paid, if any

Payment from Cash Ledger

Sr. No.

Debit Entry No.

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

1.

2.

Sub-Total

Payment from ITC Ledger

Sr. No.

Debit Entry No.

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

1.

2.

Sub-Total

Total Amount of Tax Paid

12.

Documents uploaded

13.

Verification

I/ We <> hereby solemnly affirm and
declare that the information given herein above is true and
correct to the best of my/ our knowledge and belief and nothing
has been concealed therefrom.

Signature of Authorised Signatory

Place

Name of the Authorised Signatory

Date

Designation/ Status

Instructions for filing of Application for Cancellation

? A registered person seeking cancellation of his registration shall electronically submit an application including details
of closing stock and liability thereon along with relevant documents, on common portal.

? The following persons shall digitally sign application for cancellation, as applicable:

Constitution of Business

Person who can digitally sign the application

Proprietorship

Proprietor

Partnership

Managing/ Authorised Partners

Hindu Undivided Family

Karta

Private Limited Company

Managing/ Whole-time Directors/ Chief Executive Officer

Public Limited Company

Managing/ Whole-time Directors/ Chief Executive Officer

Society/ Club/ Trust/ AOP

Members of Managing Committee

Government Department

Person In charge

Public Sector Undertaking

Managing/ Whole-time Directors/ Chief Executive Officer

Unlimited Company

Managing/ Whole-time Directors/ Chief Executive Officer

Limited Liability Partnership

Designated Partners

Local Authority

Chief Executive Officer or Equivalent

Statutory Body

Chief Executive Officer or Equivalent

Foreign Company

Authorised Person in India

Foreign Limited Liability Partnership

Authorised Person in India

Others

Person In charge

[In case of death of sole proprietor, application shall be made by the legal heir / successor before the concerned tax authorities. The new entity in which the applicant proposes to amalgamate itself shall register with the tax authority before submission of the application for cancellation. This application shall be made only after the new entity is registered.]

Before applying for cancellation, please file your tax return due for the tax period in which the effective date of surrender of registration falls or furnish an application to the effect that no taxable supplies have been made during the intervening period (i.e. from the date of registration to the date of application for cancellation of registration).]

[Substituted by Notification No. G.S.R. 1075(E), dated 30.10.2018 (w.e.f 19.6.2017).]

? Status of the Application may be tracked on the common portal.

? No fee is payable for filing application for cancellation.

? After submission of application for cancellation of registration, the registered person shall make payment, if not made at the time of this application, and shall furnish final return as provided in the Act.

? The registered person may also update his contact address and update his mobile number and e mail address.

Form GST REG -17

[See rule 22(1)]

Reference Number :

<< Date >>

To

Registration Number (GSTIN/UIN)

(Name)

(Address)

Show Cause Notice for Cancellation of Registration

Whereas on the basis of information which has come to my notice, it appears that your registration is liable to be cancelled for the following reasons: -

- 1.
- 2.
- 3.

You are hereby directed to furnish a reply to this notice within seven working days from the date of service of this notice .

You are hereby directed to appear before the undersigned on DD/MM/YYYY at HH/MM

If you fail to furnish a reply within the stipulated date or fail to appear for personal hearing on the appointed date and time, the case will be decided ex parte on the basis of available records and on merits

Place:

Date:

Signature

< Name of the Officer >

Designation

Jurisdiction

Form GST REG- 18

[See rule 22(2)]

Reply to the Show Cause Notice issued for cancellation for registration

1.

Reference No. of Notice

Date of issue

2.

GSTIN/ UIN

3.

Name of business (Legal)

4.

Trade name, if any

5.

Reply to the notice

6.

List of documents uploaded

7.

Verification

I

_____ hereby solemnly affirm

and declare that the information given hereinabove is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised

Signatory

Name

Designation/ Status

Place

Date

Form GST REG-19

[See rule 22(3)]

Reference Number :

Date

To

Name

Address

GSTIN/ UIN

Application Reference No. (ARN)

Date

Order for Cancellation of Registration

This has reference to your reply dated ---- in response to the notice to show cause dated -----.

Whereas no reply to notice to show cause has been submitted; or

Whereas on the day fixed for hearing you did not appear; or

Whereas the undersigned has examined your reply and submissions made at the time of hearing, and is of the opinion that your registration is liable to be cancelled for following reason(s).

1.

2.

The effective date of cancellation of your registration is << DD/MM/YYYY >>.

Determination of amount payable pursuant to cancellation:

Accordingly, the amount payable by you and the computation and basis thereof is as follows:

The amounts determined as being payable above are without prejudice to any amount that may be found to be payable you on submission of final return furnished by you.

You are required to pay the following amounts on or before ----- (date) failing which the amount will be recovered in accordance with the provisions of the Act and rules made thereunder.

Head

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

Tax

Interest

Penalty

Others

Total

Place:

Date:

Signature

< Name of the Officer >

Designation

Jurisdiction

[Form GST REG-20]

[Substituted by Notification No. G.S.R. 831(E), dated 4.9.2018 (w.e.f. 19.6.2017).]

[See rule 22(4)]

Reference Number

Date

ToNameAddressGSTIN/ UIN

Show Cause Notice No.

Date

Order for dropping the proceedings for cancellation of registration

This has reference to your reply dated ---- in response to the notice to show cause notice dated DD/MM/YYYY. Upon consideration of your reply and/ or submissions made during hearing, the proceedings initiated for cancellation of registration stands vacated due to the following reasons:

<< text >>

or

The above referred show cause notice was issued for contravention of the provisions of clause (b) or clause (c) of sub-section (2) of section 29 of the Central Goods Services Tax Act, 2017. As you have filed all the pending returns which were due on the date of issue of the aforesaid notice, and have made full payment of tax along with applicable interest and late fee, the proceedings initiated for cancellation of registration are hereby dropped.

Place:Date:

Signature< Name of the Officer >DesignationJurisdiction

Form GST REG-21

[See rule 23(1)]

Application for Revocation of Cancellation of Registration

1.

GSTIN (cancelled)

2.

Legal Name

3.

Trade Name, if any

4.

Address

(Principal place of business)

5.

Cancellation Order No.

Date -

6.

Reason for cancellation

7.

Details of last return filed

Period of Return

Application Reference Number

Date of filing

DD/MM/YYYY

8.

Reasons for revocation of cancellation

Reasons in brief. (Detailed reasoning can be filed as an attachment)

9.

Upload Documents

10.

Verification

I hereby solemnly

affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised

Signatory

Full Name

(first name, middle, surname)

Designation/ Status

Place

Date

Instructions for submission of application for revocation of cancellation of registration

? A person, whose registration is cancelled by the proper officer on his own motion, may apply for revocation of cancellation of registration, within thirty days from the date of service of the order of cancellation of registration [or within such time period as extended by the Additional Commissioner or the Joint Commissioner or Commissioner, as the case may be, in exercise of the powers provided under proviso to sub-section (1) of section 30,]

[Inserted by Notification No. G.S.R. 333(E), dated 18.5.2021 (w.e.f. 19.6.2017).]

at the common portal No application for revocation shall be submitted if the registration has been cancelled for the failure to furnish returns unless such returns are furnished and any amount due as tax in terms of such returns has been paid along with any amount payable towards interest, penalty and late fee payable in respect of the said returns.

? Any change in the mobile number or the e-mail address of authorised signatory submitted as amended from time to time, shall be carried out only after online verification through the common portal in the manner provided

? Status of the application can be tracked on the common portal.

? No fee is payable for filing application for revocation of cancellation.

Form GST REG-22

[See rule 23(2)]

Reference Number

Date -

To

GSTIN/UIN

(Name of Taxpayer)

(Address)

{|

|-

| Application Reference No. (ARN)

| Date

|}

Order for revocation of cancellation of registration

This has reference to your application dated DD/MM/YYYY for revocation of cancellation of registration. Your application has been examined and the same has been found to be in order. Accordingly, your registration is restored.

Signature

Name of Proper officer

(Designation)

Jurisdiction -

Date

Place

Form GST REG-23

[See rule 23(3)]

Reference Number :

Date -

To

Name of the Applicant/ Taxpayer

Address of the Applicant/Taxpayer

GSTIN

Application Reference No. (ARN) :

Dated

Show Cause Notice for rejection of application for revocation of cancellation of registration

This has reference to your application dated DD/MM/YYYY regarding revocation of cancellation of registration. Your application has been examined and the same is liable to be rejected for the following reasons:

- 1.
- 2.
- 3.

...

You are hereby directed to furnish a reply to this notice within seven working days from the date of service of this notice.

You are hereby directed to appear before the undersigned on DD/MM/YYYY at HH/MM.

If you fail to furnish a reply within the stipulated day or you fail to appear for personal hearing on the appointed date and time, the case will be decided ex parte on the basis of available records and on merits

Signature

Name of the Proper Officer

Designation

Jurisdiction

Form GST REG-24

[See rule 23(3)]

Reply to the notice for rejection of application for revocation of cancellation of registration

- 1.

Reference No. of Notice

Date

- 2.

Application Reference No. (ARN)

Date

- 3.

GSTIN, if applicable

- 4.

Information/ reasons

- 5.

List of documents filed

- 6.

Verification

I _____ hereby solemnly affirm

and declare that the information given hereinabove is true and correct to the best of my/ our knowledge and belief and nothing has been concealed therefrom.

Signature of Authorised
Signatory

Name

Place

Designation/ Status

Date

Government of India

Form GST REG-25

[See rule 24(1)]

Certificate of Provisional Registration

1.

[GSIN]

[Substituted 'Provisional ID' by Notification No. G.S.R. 644(E), dated 27.6.2017 (w.e.f. 19.6.2017).]

2.

Permanent Account Number

3.

Legal Name

4.

Trade Name

5.

Registration Details under Existing Law

Act

Registration Number

(a)

(b)

(c)

Date

< Date of creation of Certificate >

[* * *]

[Omitted 'Place' by Notification No. G.S.R. 644(E), dated 27.6.2017 (w.e.f. 19.6.2017).]

[* * *]

[Omitted '< State >' by Notification No. G.S.R. 644(E), dated 27.6.2017 (w.e.f. 19.6.2017).]

This is a Certificate of Provisional Registration issued under the provisions of the Act.

Form GST REG-26

[See rule 24(2)]

Application for Enrolment of Existing Taxpayer

Taxpayer Details

1.

Provisional ID

2.

Legal Name (As per Permanent Account Number)

3.

Legal Name (As per State/ Center)

4.

Trade Name, if any

5.

Permanent Account Number of the Business

6.

Constitution

7.

State

7A.
Sector, Circle, Ward, etc. as applicable

7B.
Center Jurisdiction

8.
Reason of liability to obtain Registration
Registration under earlier law

9.
Existing Registrations
Sr. No.
Type of Registration
Registration Number
Date of Registration

1
TIN Under Value Added Tax

2
Central Sales Tax Registration Number

3
Entry Tax Registration Number

4
Entertainment Tax Registration Number

5
Hotel And Luxury Tax Registration Number

6
Central Excise Registration Number

7
Service Tax Registration Number

8
Corporate Identify Number/ Foreign Company Registration

9
Limited Liability Partnership Identification Number/ Foreign
Limited Liability Partnership Identification Number

10
Import/ Exporter Code Number

11
Registration Under Duty Of Excise On Medicinal And Toiletry
Act

12
Others (Please specify)

10.
Details of Principal Place of Business
Building No./ Flat No.
Floor No.
Name of the Premises/ Building
Road/ Street
Locality/ Village
District
State
PIN Code
Latitude
Longitude

Contact Information

Office Email Address

Office Telephone Number

Mobile Number

Office Fax No

10A.

Nature of Possession of Premises

(Own; Leased; Rented; Consent; Shared)

10B.

Nature of Business Activities being carried out

Factory/ Manufacturing

Wholesale Business

Retail Business

Warehouse/ Depot

Bonded Warehouse

Service Provision

Office/ Sale Office

Leasing Business

Service Recipient

EOU/ STP/ EHTP

SEZ

Input Service Distributor (ISD)

Works Contract

Others (Specify)

11.

Details of Additional Place of Business

Building No./ Flat No.

Floor No.

Name of the Premises/ Building

Road/ Street

Locality/ Village

District

State

PIN Code

Latitude (Optional)

Longitude (Optional)

Contact Information

Office Email Address

Office Telephone Number

Mobile Number

Office Fax No

11A.

Nature of Possession of Premises

(Own; Leased; Rented; Consent; Shared)

11B.

Nature of Business Activities being carried out

Factory/ Manufacturing

Wholesale Business

Retail Business

Warehouse/ Depot

Bonded Warehouse

Service Provision

Office/ Sale Office

Leasing Business

Service Recipient

EOU/ STP/ EHTP

SEZ

Input Service Distributor (ISD)

Works Contract

Others (Specify)

Add More -----

12.

Details of Additional Place of Business

Sr. No.

Description of Goods

HSN Code

Sr. No.

Description of Services

HSN Code

13.

Total Bank Accounts maintained by you for conducting Business

Sr. No.

Account Number

Type of Account

IFSC

Bank Name

Branch Address

14.

Details of Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.

Name

< First Name>

< Middle Name>

< Last Name>

< Photo>

Name of Father/ Husband

< First Name>

< Middle Name>

< Last Name>

Date of Birth

DD/MM/YYYY

Gender

< Male, Female, Other >

Mobile Number

Email Address

Telephone Number

Identity Information

Designation

Director Identification Number

Permanent Account Number

Aadhaar Number

Are you a citizen of India?

< Yes/ No >

Passport Number

Residential Address

Building No/ Flat No

Floor No

Name of the Premises/ Building

Road/ Street

Locality/ Village

District

State

PIN Code

15.

Details of Primary Authorised Signatory

Name

< First Name >

< Middle Name >

< Last Name >

< Photo >

Name of Father/ Husband

< First Name >

< Middle Name >

< Last Name >

Date of Birth

DD/MM/YYYY

Gender

< Male, Female, Other >

Mobile Number

Email Address

Telephone Number

Identity Information

Designation

Director Identification Number

Permanent Account Number

Aadhaar Number

Are you a citizen of India?

< Yes/ No >

Passport Number

Residential Address

Building No/ Flat No

Floor No

Name of the Premises/ Building

Road/ Street

Locality/ Village

District

State

PIN Code

Add More ---

List of Documents Uploaded

A customized list of documents required to be uploaded as per the field values in the form should be auto-populated with provision to upload relevant document against

each entry in the list. (Refer instruction)

16.

Aadhaar Verification

I on behalf of the holders of Aadhaar numbers provided in the form, give consent to "Goods and Services Tax Network" to obtain details from UIDAI for the purpose of authentication. "Goods and Services Tax Network" has informed me that identity information would only be used for validating identity of the Aadhaar holder and will be shared with Central Identities Data Repository only for the purpose of authentication.

17.

Declaration

I, hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom.

Digital Signature/ E-Sign

Name of the Authorised Signatory

Place

Designation of Authorised Signatory

Date

Instructions for filing of Application for enrolment

3. Every person, other than a person deducting tax at source or an Input Service Distributor, registered under an existing law and having a Permanent Account Number issued under the Income-tax Act, 1961 (Act

43 of 1961

) shall enroll on the common portal by validating his e-mail address and mobile number.

4. Upon enrolment under clause (a), the said person shall be granted registration on a provisional basis and a certificate of registration in FORM GST REG-25, incorporating the Goods and Services Tax Identification Number therein, shall be made available to him on the common portal:

5. Authorisation Form:-

For each Authorised Signatory mentioned in the application form, Authorisation or copy of Resolution of the Managing Committee or Board of Directors to be filed in the following format:

Declaration for Authorised Signatory (Separate for each signatory)

I ---

(Details of Proprietor/all Partners/Karta/Managing Directors and whole time Director/Members of Managing Committee of Associations/Board of Trustees etc)

1. << Name of the Proprietor/all Partners/Karta/Managing Directors and whole time Director/Members of Managing Committee of Associations/Board of Trustees etc>>

2.

3.

hereby solemnly affirm and declare that << name of the authorised signatory >> to act as an authorised signatory for the business << Goods and Services Tax Identification Number - Name of the Business >> for which application for registration is being filed/ is registered under the Central Goods and Service Tax Act, 2017.

All his actions in relation to this business will be binding on me/ us.

Signatures of the persons who are Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc.

S. No.	Full Name	Designation/ Status	Signature
--------	-----------	---------------------	-----------

1.

2.

Acceptance as an authorised signatory

I << Name of the authorised signatory >>

hereby solemnly accord my acceptance to act as authorised signatory for the above referred business and all my acts shall be binding on the business.

Signature of Authorised Signatory

Designation/ Status

Date

Place

Instructions for filing online form

? Enter your Provisional ID and password as provided by the State/ Commercial Tax/ Central Excise/ Service Tax Department for log in on the GST Portal.

? Correct Email address and Mobile number of the Primary Authorised Signatory are to be provided. The Email address and Mobile Number would be filled as contact information of the Primary Authorised Signatory.

? E mail and Mobile number to be verified by separate One Time Passwords. Taxpayer shall change his user id and password after first login.

? Taxpayer shall require to fill the information required in the application form related details of Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees, Principal Place of Business and details in respect of Authorised signatories.

? Information related to additional place of business, Bank account, commodity in respect of goods and services dealt in (top five) are also required to be filled.

? Applicant need to upload scanned copy of the declaration signed by the Proprietor/ all Partners/ Karta/ Managing Directors and whole time Director/ Members of Managing Committee of Associations/ Board of Trustees etc. in case he/ she declares a person as Authorised Signatory as per Annexure specified. Documents required to be uploaded as evidence are as follows:-

1.

Photographs wherever

specified in the Application Form (maximum 10)

Proprietary Concern -

Proprietor

Partnership Firm/

Limited Liability Partnership - Managing/ Authorised

Partners (personal

details of all partners is to be submitted but photos of only ten partners including that of Managing Partner is to be submitted)

Hindu Undivided

Family - Karta

Company - Managing

Director or the Authorised Person

Trust - Managing

Trustee

Association of Person

or Body of Individual - Members of Managing Committee (personal

details of all members is to be submitted but photos of only ten members including that of Chairman is to be submitted)

Local Body - Chief

Executive Officer or his equivalent

Statutory Body -

Chief Executive Officer or his equivalent

Others - Person in Charge

2.

Constitution of

business :

Partnership Deed in case of Partnership Firm,

Registration Certificate/ Proof of Constitution in case of

Society, Trust, Club, Government Department, Association of

Person or Body of Individual, Local Authority, Statutory Body and

Others etc.

3.

Proof of Principal/

Additional Place of Business :

(a) For Own premises

-

Any document in

support of the ownership of the premises like Latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(b) For Rented or

Leased premises -

A copy of the valid

Rent/ Lease Agreement with any document in support of the ownership of the premises of the Lessor like Latest Property Tax Receipt or Municipal Khata copy or copy of Electricity Bill.

(c) For premises not

covered in (a) and (b) above -

A copy of the Consent Letter with any document

in support of the ownership of the premises of the Consenter like Municipal Khata copy or Electricity Bill copy. For shared properties also, the same documents may be uploaded.

4.

Bank Account Related

Proof :

Scanned copy of the

first page of Bank passbook/ one page of Bank Statement

Opening page of the Bank Passbook held in the

name of the Proprietor/ Business Concern - containing the Account No., Name of the Account Holder, MICR and IFSC and Branch details.

5.

For each Authorised Signatory : Letter of

Authorisation or copy of Resolution of the Managing Committee or Board of Directors to that effect as specified.

? After submitting information electronic signature shall be required. Following person can electronically sign application for enrolment:-

Constitution of Business

Person who can digitally sign the application

Proprietorship

Proprietor

Partnership

Managing/ Authorised Partners

Hindu Undivided Family

Karta

Private Limited Company

Managing/ Whole-time Directors and Managing

Director/ Whole Time Director/ Chief Executive Officer

Public Limited Company

Managing/ Whole-time Directors and Managing

Director/ Whole Time Director/ Chief Executive Officer

Society/ Club/ Trust/ AOP

Members of Managing Committee

Government Department

Person In charge

Public Sector Undertaking

Managing/ Whole-time Director and Managing

Director/ Whole Time Director/ Chief Executive Officer

Unlimited Company

Managing/ Whole-time Director and Managing

Director/ Whole Time Director/ Chief Executive Officer

Limited Liability Partnership

Designated Partners

Local Authority

Chief Executive Officer or Equivalent

Statutory Body

Chief Executive Officer or Equivalent

Foreign Company

Authorised Person in India

Foreign Limited Liability Partnership

Authorised Person in India

Others

Person In charge

? Application is required to be mandatorily digitally signed as per following :-

Sl. No

Type of Applicant

Digital Signature required

1.

Private Limited Company

Public Limited Company

Public Sector Undertaking

Unlimited Company

Limited Liability Partnership

Foreign Company

Foreign Limited Liability Partnership

Digital Signature Certificate (DSC) Class 2 and

above

2.

Other than above

Digital Signature Certificate class

2 and above

e-Signature

Note. - 1. Applicant shall require to register their DSC on common portal.

2. e-Signature facility will be available on the common portal for Aadhar holders.

All information related to Permanent Account Number, Aadhaar, Director Identification Number, Challan Identification Number, Limited Liability Partnership Identification Number shall be online validated by the system and Acknowledgment Reference Number will be generated after successful validation of all the filled up information.

Status of the online filed Application can be tracked on the common portal.

1. Authorised signatory should not be minor.

2. No fee is applicable for filing application for enrolment.

Acknowledgment

Enrolment Application - Form GST-has been filed against

Application Reference Number (ARN) <.....>

Form Number :

< = >

Form Description :

< Application for Enrolment of Existing Taxpayers >

Date of Filing :

< DD/MM/YYYY >

Taxpayer Trade Name :

< Trade Name >

Taxpayer Legal Name :

< Legal Name as shared by State/ Center >

Provisional ID Number :

< Provisional ID Number >

It is a system generated acknowledgment and

does not require any signature

Form GST REG-27

[See rule - 24(3)]

Reference No. << ... >>

<< Date-DD/MM/YYYY >>

To

Provisional ID

Name

Address

Application Reference Number (ARN) < >

< Date-DD/MM/YYYY >

Show Cause Notice for cancellation of provisional registration

This has reference to your application dated ----- . The application has been examined and the same has not been found to be satisfactory for the following reasons:-

1.

2.

...

You are hereby directed to show cause as to why the provisional registration granted to you shall not be cancelled.

Signature

Name of the Proper Officer

Designation

Jurisdiction

Date

Place

Form GST REG-28

[See rule 24(3)]

Reference No. << ... >> -

<< Date-DD/MM/YYYY >>

To

Name

Address

GSTIN/ Provisional ID

Application Reference Number (ARN)

Date-DD/MM/YYYY

Order for cancellation of provisional registration

This has reference to your reply dated ---- in response to the notice to show cause dated -----.

Whereas no reply to notice to show cause has been submitted; or

Whereas on the day fixed for hearing you did not appear; or

Whereas the undersigned has examined your reply and submissions made at the time of hearing, and is of the opinion

that your provisional registration is liable to be cancelled for following reason(s).

- 1.
- 2.

Determination of amount payable pursuant to cancellation of provisional registration:

Accordingly, the amount payable by you and the computation and basis thereof is as follows:

You are required to pay the following amounts on or before ----- (date) failing which the amount will be recovered in accordance with the provisions of the Act and rules made thereunder.

Head

Central Tax

State Tax

UT Tax

Integrated Tax

Cess

Tax

Interest

Penalty

Others

Total

Place:

Date:

Signature

< Name of the Officer >

Designation

Jurisdiction

Form GST REG-29

[See rule 24(4)]

[Application for cancellation of registration of migrated taxpayers]

[Substituted by Notification No. 1214(E), dated 29.9.2017, (w.e.f. 19.6.2017).]

Part A ? {

| -

| (i)[GSTIN]

[Substituted 'Provisional ID' by Notification No. 1214(E), dated 29.9.2017, (w.e.f. 19.6.2017).]

|

| -

| (ii) Email ID

|

| -

| (iii) Mobile Number

|

| }

Part B ? {

| -

| 1. Legal Name (As per Permanent A/c No.)

|

| }

2. Address for correspondence

Building No./ Flat No.

Floor No.

Name of Premises/ Building

Road/ Street

City/ Town/ Village/ Locality

District

Block/ Taluka

State

PIN

3. Reason for Cancellation

4. Have you issued any tax invoice during GST regime? YESNO

5. Declaration

(i) I < Name of the Proprietor/ Karta/

Authorised Signatory >, being < Designation > of <

Legal Name () > do hereby declare that I am not liable to registration under the provisions of the Act.

6. Verification

I < > hereby solemnly affirm and declare

that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed.

Aadhaar Number

Permanent Account Number

Signature of Authorised Signatory

Full Name

Designation/ Status

Place

Date

DD/MM/YYYY

Form GST REG-30

[See rule 25]

Form for Field Visit Report

Center Jurisdiction (Ward/ Circle/ Zone)

Name of the Officer : - << to be prefilled >>

Date of Submission of Report : -

Name of the taxable person

GSTIN/ UIN -

Task Assigned by : - < Name of the Authority - to be prefilled >

Date and Time of Assignment of task : - < System date and time >

Sr. No.

Particulars

Input

1.

Date of Visit

2.

Time of Visit

3.

Location details :

Latitude

Longitude

North -

Bounded By

South - Bounded By

West -

Bounded By

East - Bounded By

4.

Whether address is same as mentioned in application.

Y/N

5.

Particulars of the person available at the time of visit

(i)

Name

(ii)

Father's Name

(iii)

Residential Address

(iv)

Mobile Number

(v)

Designation/ Status

(vi)

Relationship with taxable person, if applicable.

6.

Functioning status of the business

Functioning ? Y/ N

7.

Details of the premises

Open Space

Area (in sq m.) - (approx.)

Covered

Space Area (in sq m.) - (approx.)

Floor on

which business premises located

8.

Documents verified

Yes/ No

9.

Upload photograph of the place with the person

who is present at the place where site verification is conducted.

10.

Comments (not more than < 1000 characters >

{|

Signature

Place :

Name of the Officer :

Date :

Designation :

Jurisdiction :

|}

[Form GST REG – 31]

[Inserted by Notification No. G.S.R. 786(E), dated 22.12.2020 (w.e.f. 19.6.2017).]

[See rule 21A]

Reference No.

Date: < DD>< MM>< YYYY>

To,

GSTIN

Name:

Address:

Intimation for suspension and notice for cancellation of registration

In a comparison of the following, namely,

- (i)
returns furnished by you under section 39 of the Central Goods and Services Tax Act, 2017;
- (ii)
outwards supplies details furnished by you in FORM GSTR-1;
- (iii)
auto-generated details of your inwards supplies
for the period _____
_ to
_____;

- (iv)
..... (specify)
and other available information, the following discrepancies/ anomalies have been revealed:

Observation 1

Observation 2

Observation 3

(details to be filled based on the criteria relevant for the taxpayer).

2. These discrepancies/anomalies prima facie indicate contravention of the provisions of the Central Goods and Services Tax Act, 2017 and the rules made thereunder, such that if not explained satisfactorily, shall make your registration liable to be cancelled.

3. Considering that the above discrepancies/anomalies are grave and pose a serious threat to interest of revenue, as an immediate measure, your registration stands suspended, with effect from the date of this communication, in terms of sub-rule (2A) of rule 21 A.

4. You are requested to submit a reply to the jurisdictional tax officer within thirty days from the receipt of this notice, providing explanation to the above stated discrepancy/ anomaly. Any possible misuse of your credentials on GST common portal, by any person, in any manner, may also be specifically brought to the notice of jurisdictional officer.

5. The suspension of registration shall be lifted on satisfaction of the jurisdictional officer with the reply along with documents furnished by you, and any further verification as jurisdictional officer considers necessary.

6. You may please note that your registration may be cancelled in case you fail to furnish a reply within the prescribed period or do not furnish a satisfactory reply.

Name:

Designation:

NB : This is a system generated notice and does not require signature by the issuing authority.

[Form GST TRAN - 1]

[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]

[See rule 117(1), 118, 119 & 120]

Transitional ITC/ Stock Statement

- 1. GSTIN -
- 2. Legal name of the registered person -
- 3. Trade Name, if any -
- 4. Whether all the returns required under existing law for the period of six months immediately preceding the appointed date have been furnished:- Yes/ No
- 5. Amount of tax credit carried forward in the return filed under existing laws:

(a)

Amount of Cenvat credit carried forward to electronic credit ledger as central tax (Section 140(1) and Section 140(4)(a) [and Section 140(9)]

[Inserted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

)

Sl. No.

Registration no. under existing law (Central

Excise and Service Tax)

Tax period to which the last return filed under

the existing law pertains

Date of filing of the return specified in Column

no. 3

Balance cenvat credit carried forward in the said

last return

Cenvat Credit admissible as ITC of central tax in

accordance with transitional provisions

1

2

3

4

5

6

Total

(b)

Details of statutory forms received for which credit is being carried forward

Period: 1st Apr 2015 to 30th June 2017

TIN of Issuer

Name of Issuer

Sr. No. of Form

Amount

Applicable VAT Rate

C-Form

Total

F-Form

Total

H/I-Form

Total

(c)

Amount of tax credit carried forward to electronic credit ledger as State/UT Tax (For all registrations on the same PAN and in the same State)

Registration No. in existing law

Balance of ITC of VAT and [Entry Tax] in last

return

C Forms

F Forms

ITC reversal relatable to [(3) and] (5)

H/I Forms

Transition ITC 2 - (4 + 6 - 7 + 9)

Turnover for which forms Pending

Difference tax payable on (3)

Turnover for which forms Pending

Tax payable on (5)

Turnover for which forms Pending

Tax payable on (7)

1

2

3

4

5

6

7

8

9

10

6. Details of capitals goods for which unavailed credit has not been carried forward under existing law (section140 (2)).

(a)

Amount of unavailed cenvat credit in respect of capital goods carried forward to electronic credit ledger as central tax

Sr. No.

Invoice/ Document no.

Invoice/ document Date

Supplier's registration no. under existing law

Recipients' registration no. under existing law

Details of capital goods on which credit has been
partially availed

Total eligible cenvat credit under existing law

Total cenvat credit availed under existing law

Total cenvat credit unavailed under existing law

(admissible as ITC of central tax) (9-10)

Value

Duties and taxes paid

ED/ CVD

SAD

1

2

3

4

5

6

7

8

9

10

11

Total

(b)

Amount of unavailed input tax credit carried forward to electronic credit ledger as State/UT tax

(For all registrations on the same PAN and in the same State)

Sr. No.

Invoice/ Document No.

Invoice/ document Date

Supplier's registration no. under existing law

Recipients' registration no. under existing law

Details regarding capital goods on which credit
is not availed

Total eligible VAT [and ET] credit under existing
law

Total VAT [and ET] credit availed under existing
law

Total VAT [and ET] credit unavailed under
existing law (admissible as ITC of State/ UT tax) (8-9)

Value

Taxes paid VAT [and ET]

1

2

3

4

5

6

7

8

9

10

Total

7. Details of the inputs held in stock in terms of sections 140(3), 140(4)(b), 140(5) and 140(6).

(a)

Amount of duties and taxes on inputs claimed as credit excluding the credit claimed under Table 5(a) (under sections 140(3), 140(4)(b) and [140(6) and 140(7)])

[Substituted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 1.7.2017).]

Sr. No.

Details of inputs held in stock or inputs

contained in semi-finished or finished goods held in stock

[HSN as applicable]

[Substituted 'HSN (at 6 digit level)' by Notification No. G.S.R. 965(E), dated 27.7.2017 (w.e.f. 1.7.2017).]

Unit

Qty.

Value

Eligible Duties paid on such inputs

1

2

3

4

5

6

7A Where duty paid invoices[(including Credit Transfer Document (CTD))]

[Inserted by Notification No. G.S.R. 1165(E), dated 15.9.2017 (w.e.f. 19.6.2017).]

are available

Inputs

Inputs contained in semi-finished and finished goods

7B Where duty paid invoices are not available

(Applicable only for person other than manufacturer or service
provider) - Credit in terms of Rule 117 (4)

Inputs

(b)

Amount of eligible duties and taxes/ VAT/ [ET] in respect of inputs or input services under section 140(5) [and section 140(7).]

[Inserted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 1.7.2017).]

[Registration number of the supplier or input service distributor]

[Substituted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 1.7.2017).]

Invoice number

Invoice date

Description

Quantity

UQC

Value

Eligible duties and taxes[(central taxes)]

[Inserted by Notification No. G.S.R. 1023(E), dated 17.8.2017 (w.e.f. 1.7.2017).]

VAT/ [ET]

Date on which entered in recipients books of account

1

2

3

4

5

6

7

8

9

10

(c)

Amount of VAT and Entry Tax paid on inputs supported by invoices/documents evidencing payment of tax carried forward to electronic credit ledger as SGST/UTGST under sections 140(3), 140(4)(b) and 140(6)

Details of inputs in stock

Total input tax credit claimed under earlier law

Total input tax credit related to exempt sales

not claimed under earlier law

Total Input tax credit admissible as SGST/ UTGST

Description

Unit

Qty

Value

VAT [& Entry Tax] paid

1

2

3

4

5

6

7

8

Inputs

Inputs contained in semi-finished and finished goods

(d)

Stock of goods not supported by invoices/documents evidencing payment of tax (credit in terms of rule 117 (4))

(To be there only in States having VAT at single point)

Details of inputs in stock

Description

Unit

Qty

Value

Tax paid

1

2

3

4

5

Details of description and quantity of inputs/ input services as well as date of receipt of goods or services (as entered in books of accounts) is also required.

8. Details of transfer of cenvat credit for registered person having centralized registration under existing law (Section 140(8))

Sl. No.

Registration no. under existing law (Centralized)

Tax period to which the last return filed under the existing law pertains

Date of filing of the return specified in Column

no. 3

Balance eligible cenvat credit carried forward in the said last return

GSTIN of receivers (same PAN) of ITC of Central

Tax

Distribution document/ invoice

ITC of Central Tax transferred

No.

Date

1

2

3

4

5

6

7

8

9

Total

9. Details of goods sent to job-worker and held in his stock on behalf of principal under section 141

a. Details of goods sent as principal to the job worker under section 141

Sr. No.

Challan No.

Challan date

Type of goods(inputs/ semi-finished/ finished)

Details of goods with job- worker

HSN

Description

Unit

Quantity

Value

1

2

3

4

5

6

7

8

9

GSTIN of Job Worker, if available

Total

b. Details of goods held in stock as job worker on behalf of the principal under section 141

Sr. No.

Challan No.

Challan Date

Type of goods (inputs/ semi-finished/ finished)

Details of goods with job- worker

HSN

Description

Unit

Quantity

Value

1

2

3

4

5

6

7

8

9

GSTIN of Manufacturer

Total

10. Details of goods held in stock as agent on behalf of the principal under section 142 (14) of the SGST Act

a. Details of goods held as agent on behalf of the principal

Sr. No.

GSTIN of Principal

Details of goods with Agent

Description

Unit

Quantity

Value

Input Tax to be taken

1

2

3

4

5

6

7

b. Details of goods held by the agent

Sr. No.

GSTIN of Principal

Details of goods with Agent

Description

Unit

Quantity

Value

Input Tax to be taken

1

2

3

4

5

6

7

11. Details of credit availed in terms of Section 142 (11 (c))

Sr. No.

Registration No of VAT

Service Tax Registration No.

Invoice/ document no.

Invoice/ document date

Tax Paid

VAT paid Taken as SGST Credit or Service Tax paid

as Central Tax Credit

1

2

3

4

5

6

7

Total

12. Details of goods sent on approval basis six months prior to the appointed day (section 142(12))

Sr. No.

Document No.

Document date

GSTIN no. of recipient, (if applicable)

Name & address of recipient

Details of goods sent on approval basis

HSN

Description

Unit

Quantity

Value

1

2

3

4

5

6
7
8
9
10
Total
Verification (by authorised signatory)
I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom
Signature
Place
Name of Authorised Signatory
Date
Designation/ Status
[Instructions:
1. Central Tax credit in terms of sub-section (9) of section 140 of the CGST Act, 2017 shall be availed in column 6 of table 5 (a).
2. Registered persons availing credit through Credit Transfer Document (CTD) shall also file TRANS 3 besides availing credit in table 7A under the heading "inputs."
[FORM GST TRAN - 2]
[Inserted by Notification No. 663(E), dated 28.6.2017 (w.e.f. 19.6.2017).]
[See Rule 117(4)]
1. GSTIN -
2. Name of Taxable person -
3. Tax Period : month year
4. Details of inputs held on stock on [appointed date]
[Substituted 'appointment date' by Notification No. G.S.R. 1121(E), dated 30.8.2017 (w.e.f. 19.6.2017).]
in respect of which he is not in possession of any invoice/ document evidencing payment of tax carried forward to Electronic Credit ledger.
Opening stock for the tax period
Outward supply made
Closing balance
[HSN as applicable]
[Substituted 'HSN (at 6 digit level)' by Notification No. G.S.R. 965(E), dated 27.7.2017 (w.e.f. 1.7.2017).]
Unit
Qty.
Qty.
Value
Central Tax
Integrated Tax
ITC allowed
Qty.
1
2
3
4
5
6
7
8
9

5. [Credit of]

[Substituted 'Credit on' by Notification No. G.S.R. 1121(E), dated 30.8.2017 (w.e.f. 19.6.2017).]

State Tax on the stock mentioned in 4 above (To be there only in States having VAT at single point)

Opening stock for the tax period

Outward supply made

Closing balance

[HSN as applicable]

[Substituted 'HSN (at 6 digit level)' by Notification No. G.S.R. 965(E), dated 27.7.2017 (w.e.f. 1.7.2017).]

Unit

Qty.

Qty.

Value

State Tax

Integrated Tax

ITC allowed

Qty.

1

2

3

4

5

6

7

8

9

Verification (by authorised signatory)

I hereby solemnly affirm and declare that the information given herein above is true and correct to the best of my knowledge and belief and nothing has been concealed therefrom

Signature

Place

Name of Authorised Signatory

Date

Designation/ Status

In the said rules, in Form Reg-01, in Part-B, for serial numbers 12 and 13 and the entries relating thereto, the following shall be substituted, namely: -

12. [

[Substituted by Notification No. G.S.R. 4(E), dated 1.1.2020 (w.e.f. 19.6.2017).]

Are you applying for registration as a SEZ Unit?

Yes

No

(i) Select name of SEZ

?

(ii) Approval order number and date of order

(iii) Period of validity

From

DD/MM/YYYY

To

DD/MM/YYYY

(iv) Designation of approving authority

13.

Are you applying for registration as a SEZ

Developer

Yes

No

(i) Select name of SEZ Developer

?

(ii) Approval order number and date or order

(iii) Period of validity

From

DD/MM/YYYY

To

DD/MM/YYYY

(iv) Designation of approving authority]

[Form GST INV - 1]

[Substituted by Notification No. G.S.R. 480(E), dated 30.7.2020 (w.e.f. 19.6.2017).]

(See Rules 48)

Format/Schema for e-Invoice

Note 1: Cardinality means whether reporting of the item(s) is mandatory or optional as explained below:

0.

.1: It means that reporting of item is optional and when reported, the same cannot be repeated.

1.

.1: It means that reporting of item is mandatory but cannot be repeated.

1.

.n: It means that reporting of item is mandatory and can be repeated more than once.

0.

.n: It means that reporting of item is optional but can be repeated more than once if reported. For example, previous invoice reference is optional but if required one can mention many previous invoice references.

Note 2: Field specification Number (Max length: m, n) indicates 'm' places before decimal point and 'n' places after decimal point. For example, Number (Max length: 3,3) will have the format 999.999

Schema (Version 1.1)

Sr. No.

Technical name of the field

Cardinality (0..1/ 1..1/ 0..n/ 1..n)

Brief Description of the field

Whether Mandatory/ Optional

Technical Field Specification

Sample Value of the field

Explanatory Notes

1.

Basic Details

1..1

Mandatory

Header for Basic Details

1.0

Version

1..1

Version Number

Mandatory

String (Max. Length:6)

1.1

This is version of the e-invoice schema. It will be used to keep track of version of Invoice specification.

1.1

IRN

1..1

Invoice Reference Number

Mandatory

String (Length: 64)

a5c12dca80e 7433217 b a4013750f20 46f229

This will be a unique

reference number for the invoice. However, the

supplier will not be populating this field.

The registration request may not have this

field populated. The Invoice Registration Portal (IRP) will

generate this IRN and respond to the registration

request. e-invoice is valid only when it has the IRN.

Hence, this is marked as Mandatory field.

1.2

Supply Type Code

1..1

Code for Supply Type

Mandatory

Enumerated List

B2B/B2C/SEZWP/SEZW OP/EXPWP/EXPWOP/DEXP

This will be the code to identify type of

supply. B2B: Business to Business B2C: Business to Consumer SEZWP: To SEZ with

Payment SEZWOP: To SEZ without Payment EXPWP: Export with Payment EXPWOP: Export without

Payment DEXP: Deemed Export

1.3

Document Type Code

1..1

Code for Document Type

Mandatory

Enumerated List

INV / CRN / DBN

Type of Document: INV for

Invoice, CRN for Credit Note, DBN for

Debit note.

1.4

Document_Num

1..1

Document Number

Mandatory

String (Max Length: 16)

Sa/1/2019

This is as per relevant rule in CGST/SGST/UTGST

Rules.

1.5

Document_Date

1..1

Document Date

Mandatory

String (DD/MM/YYYY)

21/07/2019

The date on which the Invoice was issued. Format

"DD/MM/YYYY"

1.6

Additional_ Currency Code

0..1

Additional Currency Code

Optional

Enumerated List

USD, EUR

The field is for reporting additional currency,

if any, in which all invoice amounts can be given, along with

INR. One such additional currency may be used in the

invoice, as per list published under ISO 4217 standard. List published and updated from time to time at

https://www.icegate.gov.in/Webappl/CUR_ENQ

1.7

Reverse Charge

0..1

Reverse Charge

Optional

String (Length:1)

Y

Whether the tax liability payable is under

Reverse Charge.

1.8

IGST Applicability despite Supplier and

Recipient located in same State/UT

0..1

IGST Applicability despite Supplier and

Recipient located in same State/UT

Optional

String (Length: 1)

N

To report the scenarios where the supply is

chargeable to IGST despite the fact that the Supplier and

Recipient are located within same State/UT

2.

Document_Period

0..1

Optional

Header for Document Period

2.1

Document Period Start Date

1..1

Document Period Start Date

Mandatory

String (DD/MM/YYYY)

21/07/2019

This is the start date of the document period

(delivery/invoice period). (This field is mandatory

only if this section is selected)

2.2

Document Period End Date

1..1

Document Period End Date

Mandatory

String (DD/MM/YYYY)

21/07/2019

This is the end date of the document period (delivery/invoice period).(This field is mandatory only if this section is selected)

3.

Preceding Document / Contract Reference

0..1

Optional

Header for Preceding Document / Contract Reference

3.1

Preceding Document Reference

0..n

Optional

Sub-header for Preceding Document Reference

3.1.1

Preceding Document Number

1..1

Preceding Document Number

Mandatory

String (Max length:16)

Sa/1/2019

This is the reference of original document/invoice to be provided optionally in the case of debit or credit notes.Credit/Debit notes, against invoices can also be referred here.(This field is mandatory only if this section is selected)

3.1.2

Preceding Document Date

1..1

Date of Preceding Document

Mandatory

String (DD/MM/YYYY)

21/07/2019

Date of preceding document/invoice.(This field is mandatory only if this section is selected)

3.1.3

Other Reference

0..1

Other Reference

Optional

String (Max length:20)

KOL01

This field is to provide any additional reference e.g. specific branch, their user ID, their employee ID,

sales centre reference etc.

3.2

Receipt / Contract References

0..n

Optional

Sub-header for Receipt / Contract References

3.2.1

Receipt Advice Reference

0..1

Receipt Advice Reference

Optional

String (Max length:20)

CREDIT30

This reference is kept for user to provide number of their receipt advice to their customer, in lieu of advance.

3.2.2

Receipt Advice Date

0..1

Date of Receipt Advice

Optional

String (DD/MM/YYYY)

21/07/2019

Date of issue of receipt advice for advance.

3.2.3

Tender or Lot Reference

0..1

Tender or Lot Reference

Optional

String (Max length:20)

TENDERJAN 2020

This reference is kept for mentioning number or details of Lot or Tender, if supplies are made under such Lot or tender.

3.2.4

Contract Reference

0..1

Contract Reference

Optional

String (Max length:20)

CONT23072019

This reference is kept for mentioning contract number, if supplies are made under any specific Contract

3.2.5

External Reference

0..1

External Reference

Optional

String (Max length:20)

EXT23222

An additional field for provision of any

additional/external reference number for the supply.

3.2.6

Project Reference

0..1

Project Reference

Optional

String (Max length:20)

PJTCODE01

This reference is kept for mentioning project number, if supplies are made under any specific project

3.2.7

PO _Ref_Num

0..1

PO Reference Number

Optional

String (Max length:16)

Vendor PO /1

This is the reference number of Purchase Order

3.2.8

PO Ref Date

0..1

PO Reference Date

Optional

String (DD/MM/YYYY)

21/07/2019

This is the date of Purchase Order.

4.

Supplier Information

1..1

Mandatory

Header for Supplier Information

4.1

Supplier Legal Name

1..1

Supplier Legal Name

Mandatory

String (Max. length:100)

XYZ Ltd.

Legal Name, as appearing in PAN of the Supplier

4.2

Supplier Trade Name

0..1

Trade Name of Supplier

Optional

String (Max length:100)

ABC Traders

A name by which the Supplier is known, i.e.

Business Name, other than legal name

4.3

Supplier GSTIN

1..1

GSTIN of Supplier

Mandatory

String (Length:15)

29AADFV75 89C1ZX

GSTIN of the Supplier

4.4

Supplier Address1

1..1

Supplier Address 1

Mandatory

String (Max length:100)

1-23-120, Flat No. 3, Nalanda Apartments, MG

Road, Vasanth Nagar

Address 1 of the Supplier (Building/Flat no.,

Road/Street, Locality etc.)

4.5

Supplier Address2

0..1

Supplier Address 2

Optional

String (Max length:100)

1-23-120, Flat No. 3, Nalanda Apartments, MG

Road, Vasanth Nagar

Address 2 of the Supplier (Building/Flat no.,

Road/Street, Locality etc.), if any

4.6

Supplier Place

1..1

Supplier Place

Mandatory

String (Max length:50)

Bangalore

Location of the Supplier (City/Town/Village)

4.7

Supplier State Code

1..1

Supplier State Code

Mandatory

Enumerated List

29

State Code of the Supplier as per GST System

List published and updated from time to time at

<https://www.icegate.gov.in/Webappl/STATEENQ>

4.8

Supplier Pin code

1..1

Supplier PIN Code

Mandatory

Number (Length: 6)

560087

PIN Code of the Supplier Locality

4.9

Supplier Phone

0..1

Supplier Phone

Optional

String (Max length:12)

9999999999

Contact number of the Supplier

4.10

Supplier Email

0..1

Supplier e-mail

Optional

String (Max length:100)

e-mail ID of the Supplier, as per REGEX (Regular Expressions) pattern

5.

Recipient Information

1..1

Mandatory

Header for Recipient Information

5.1

Recipient Legal Name

1..1

Recipient Legal Name

Mandatory

String (Max. length:100)

PQR Pvt. Ltd.

It will be legal name of recipient, as per PAN.

5.2

Recipient Trade Name

0..1

Recipient Trade Name

Optional

String (Max length:100)

Adarsha

It will be trade name of recipient, if available.

5.3

Recipient GSTIN

1..1

GSTIN of Recipient

Mandatory

String (Length:15)

29ABCCR18 32C1ZX, URP

GSTIN of the Recipient, if available. URP: In case of exports or if supplies are made to unregistered persons

5.4

Place Of Supply State Code

1..1

Place of Supply (State Code)

Mandatory

Enumerated List

29, 96

Code/State Code of Place of Supply as per GST System. List published and updated from time to time at <https://www.icegate.gov.in/Webappl/STATEENQ>

5.5

Recipient Address1

1..1

Recipient Address 1

Mandatory

String (Max length:100)

1-23-120, Flat No. 3, Nalanda Apartments, MG Road, Vasanth Nagar
Address 1 of the Recipient (Building/Flat no., Road/Street, Locality etc.)

5.6

Recipient Address2

0..1

Recipient Address 2

Optional

String (Max length:100)

1-23-120, Flat No. 3, Nalanda Apartments, MG Road, Vasanth Nagar
Address 2, if any, of the Recipient (Building/Flat no., Road/Street, Locality etc.), if any

5.7

Recipient Place

1..1

Recipient Place

Mandatory

String (Max length:100)

Mysore

Location of the Recipient (City/Town/Village)

5.8

Recipient State Code

1..1

Recipient State Code

Mandatory

Enumerated List

29

Code/State Code of the Recipient. List published and updated from time to time at <https://www.icegate.gov.in/Webappl/STATEENQ>

5.9

Recipient Pin code

0..1

Recipient PIN Code

Optional

Number (Length: 6)

560002

PIN code of the Recipient locality. In case of export, Pincode need not be mentioned.

5.10

Country Code of Export

0..1

Country Code of Export

Optional

Enumerated List

AN

Code of country of export as per ISO 3166-1

alpha-2 / Indian Customs EDI system. List published and updated from time to time at

<https://www.icegate.gov.in/Webappl/COUNTRYENQ>

5.11

Recipient Phone

0..1

Recipient Phone

Optional

String (Max length: 12)

0802223323

Contact number of the Recipient

5.12

Recipient email ID

0..1

Recipient e-mail ID

Optional

String (Max length:100)

e-mail ID of the Recipient, as per REGEX (Regular Expressions) pattern

6.

Payee Information

0..1

Optional

Header for Payee Information

6.1

Payee Name

0..1

Payee Name

Optional

String (Max length:100)

Ramesh K

Name of the person to whom payment is to be made

6.2

Payee Bank Account Number

0..1

Payee Bank Account Number

Optional

String (Max length:18)

3868501747262

Bank Account Number of Payee

6.3

Mode of Payment

0..1

Mode of Payment

Optional

String (Max length:18)

Direct Transfer

Mode of Payment: Cash/Credit/Direct Transfer

etc.

6.4

Bank Branch Code

0..1

Bank Branch Code

Optional

String (Max length:11)

SBIN9876543

Indian Financial System Code (IFSC) of Payee's

Bank Branch

6.5

Payment Terms

0..1

Payment Terms

Optional

String (Max length:100)

Text

Terms of Payment, if any, with the Recipient can be provided.

6.6

Payment Instruction

0..1

Payment Instruction

Optional

String (Max length:100)

Text

Instruction, if any, regarding payment can be provided

6.7

Credit Transfer Terms

0..1

Credit Transfer Terms

Optional

String (Max length:100)

Text

Terms to specify credit transfer payments.

6.8

Direct Debit Terms

0..1

Direct Debit Terms

Optional

String (Max length:100)

Text

Terms, if any, to specify a direct debit.

6.9

Credit Days

0..1

Credit Days

Optional

Numeric (Max length:4)

30

Number of days within which payment is due.

7.

Delivery_Information

0..1

Optional

Header for Delivery Information

7.1

Ship_To_Details

0..1

Ship To Details

Optional

Refer A 1.0

Details of location to which the supply
has to be delivered.

7.2

Dispatch_From_ Details

0..1

Dispatch From Details

Optional

Refer A 1.1

Details of location from where Supply has
to be dispatched.

8.

Invoice Item Details

1..n

Mandatory

Header for Invoice Item Details

8.1

Item_List

1..n

Item List

Mandatory

Refer A 1.2

Provides information about the goods and
services being invoiced.

9.

Document Total

1..1

Mandatory

Header for Document Total Details

9.1

Document_ Total _Details

1..1

Document Total Details

Mandatory

Refer A 1.3

Details of document total including taxes.

10.

Extra Information

0..1

Optional

Header for Extra Information

10.1

Tax Scheme

1..1

Tax Scheme

Mandatory

String (Max length: 10)

GST

To specify the tax/levy applicable - GST(This field is mandatory only if this section is selected)

10.2

Remarks

0..1

Remarks

Optional

String (Max length: 100)

New batch Items submitted

A textual note that gives unstructured information that is relevant to the Invoice as a whole e.g. reasons for any correction or assignment note in case the invoice has been factored etc.

10.3

Port Code

0..1

Port Code

Optional

Enumerated List

Alpha numeric

In case of export/supply to SEZ, port code can be mentioned as per Indian Customs EDI System (ICES), if applicable and available at the time of reporting e-invoice.

Lists published and updated from time to time at below URLs: EDI

Port Codes: <https://www.iceaate.aov.in/Webappl/LOCATIONENQ>

Non-EDI Port Codes:

<https://www.icegate.gov.in/Webappl/nonlocationdetall.isp>

10.4

Shipping Bill Number

0..1

Shipping Bill Number

Optional

String (Max length: 20)

Alpha numeric

In case of export/supply to SEZ, shipping bill number as per Indian Customs EDI System (ICES), can be mentioned, if applicable and available at the time of reporting e-invoice.

10.5

Shipping Bill Date

0..1

Shipping Bill Date

Optional

String(DD/M M/YYYY)

03/12/2020

Date of Shipping Bill as per Indian Customs EDI System (ICES)

10.6

Export Duty Amount

0..1

Export Duty Amount

Optional

Number (Max Length: 12,2)

1200000.50

Amount of Export Duty in INR, if any, applicable (in case of invoices for export)

10.7

Supplier Can Opt Refund

0..1

Supplier Can Opt Refund

Optional

String (Length: 1)

Y/N

In case of deemed export supplies, this field is for mentioning whether supplier can exercise the option of claiming refund or not.

10.8

ECOM_GSTIN

0..1

e-Commerce Operator's GSTIN

Optional

String (Length: 15)

29ABCCR1832C1CX

GSTIN of e-commerce operator, if supply is made through him/her.

11.

Additional_Sup porting Documents

0..n

Optional

Header for Additional Supporting Documents

11.1

Additional Supporting Documents URL

0..1

Additional Supporting Documents URL

Optional

String (Max length: 100)

<http://www.xyz.com/abc>

This is to enter URL reference of additional supporting documents, if any.

11.2

Additional Supporting Documents base64

0..1

Additional Supporting Document in base64

Optional

String (Max length: 1000)

Base 64 encoded Document

This is to add any additional document in

PDF/Microsoft Word in Base64 encoded format.

11.3

Additional Information

0..1

Additional Information

Optional

String (Max length: 1000)

Free text, remarks, identifiers, etc.

Any additional information, names, values, data

etc. that is specific for the Supplier-Recipient transaction e.g.

CIN, trade-specific information, Drug Licence Reg. No., FOB/CIF

etc.

12.

E-way Bill Details

0..1

Optional

Header for e-way Bill Details

12.1

Transporter ID

0..1

Transporter ID

Optional

String (Length: 15)

29AADFV7589C1ZO

Registration / Enrolment Number of the

transporter(This field is required if Part-A of

E-waybill has to be generated)

12.2

Trans Mode

0..1

Mode of Transportation

Optional

Enumerated List

1/2/3/4

Option to be provided based on mode of transport

available on e-Way Bill Portal1 for Road;2 for Rail;3

for Air;4 for Ship(This

field is required if Part-B of e-way bill is also to be

generated)

12.3

Trans Distance

1..1

Distance of Transportation

Mandatory

Number (Max length: 4)

200

Distance of

Transportation

(This field is mandatory only if this section is selected)

12.4

Transporter Name

0..1

Transporter Name

Optional

String (Max length: 100)

Sphurthi Transporters

Name of the Transporter

12.5

Trans Doc No.

0..1

Transport Document Number

Optional

String (Max length: 15)

As/34/746

Transport Document

Number

(This field is mandatory if mode of Transport is Rail or Air or Ship)

12.6

Trans Doc Date

0..1

Transport Document Date

Optional

String (DD/MM/YYYY)

21/07/2019

Date of Transport document.(This field is mandatory if mode of Transport is Rail or Air or Ship)

12.7

Vehicle No.

0..1

Vehicle Number

Optional

String (Max. length: 20)

KA12KA1234 or KA12K1234 or KA123456 or KAR1234

Vehicle Registration

Number

(This field is mandatory if mode of Transport is Road)

12.8

Vehicle Type

0..1

Vehicle Type

Optional

Enumeration List

O/R

To mention nature of
vehicle:

O: Over-Dimensional

CargoR: Regular

(This field is
mandatory if Part-B of e-way bill is also to be generated)

A 1.0

Ship To Details

0..1

Optional

Header for Annexure A 1.0: Ship To Details

Sr. No.

Parameter Name

Cardinality

Description

Whether optional or mandatory

Field Specifications

Sample Value

Explanatory Notes

A.1.0.1

Ship To Legal Name

1..1

Ship To Legal Name

Mandatory

String (Max length: 100)

ABC-1 Ltd.

Legal Name of the
entity to whom the supplies are shipped to.

(This field is mandatory only if this
section is selected)

A.1.0.2

Ship To Trade Name

0..1

Ship To Trade Name

Optional

String (Max length: 100)

XYZ-1

Trade Name of the entity to whom the supplies
are shipped to.

A.1.0.3

Ship To GSTIN

0..1

Ship To GSTIN

Optional

String (Length: 15)

36AABCT2223 L1ZF

GSTIN of the entity to whom the supplies are shipped to.

A.1.0.4

Ship To Address1

1..1

Ship To Address1

Mandatory

String (Max length: 100)

Flat No. 2, Priya Towers, Omega Road, Srinivasa Nagar

Address 1 of the entity to whom the supplies are shipped to.(This field is mandatory only if this section is selected)

A.1.0.5

Ship To Address2

0..1

Ship To Address2

Optional

String (Max length: 100)

Flat No. 2, Priya Towers, Omega Road, Srinivasa Nagar

Address 2, if any, of the entity to whom the supplies are shipped to

A.1.0.6

Ship To Place

1..1

Ship To Place

Mandatory

String (Max length: 100)

Bangalore

Place (City/Town/Village) of entity to whom the supplies are shipped to.(This field is mandatory only if this section is selected)

A.1.0.7

Ship To Pin code

1..1

Ship To Pin code

Mandatory

Number (Max length: 6)

560001

PIN code of the location to which the supplies are shipped to.(This field is mandatory only if this section is selected)

A.1.0.8

Ship To State Code

1..1

Ship To State Code

Mandatory

Enumerated List

29

Code/State Code (as

per GST System) to which the supplies are shipped to. List published and updated from time to time at <https://www.icegate.gov.in/Webappl/STATEENQ> (This field is mandatory only if this section is selected)

A 1.1

Dispatch From Details

0..1

Optional

Header for Annexure A 1.1: Dispatch From Details

Sr. No.

Parameter Name

Cardinality

Description

Whether mandatory or optional

Field Specifications

Sample Value

Explanatory Notes

A.1.1.1

Dispatch From Name

1..1

Dispatch From Name

Mandatory

String (Max length:100)

XYZ-2

Name of the entity from which goods are dispatched.(This field is mandatory only if this section is selected)

A.1.1.2

Dispatch From Address1

1..1

Dispatch From Address1

Mandatory

String (Max length: 100)

Building No. 4/2, Flat No. 3, Kakatiya Apartments, Vasanth Nagar

Address 1 of the entity from which goods are dispatched.(This field is mandatory only if this section is selected)

A.1.1.3

Dispatch From Address2

0..1

Dispatch From Address2

Optional

String (Max length: 100)

Building No. 4/2, Flat No. 3, Kakatiya Apartments, Vasanth Nagar

Address 2 of the entity from which goods are dispatched.

A.1.1.4

Dispatch From Place

1..1

Dispatch From Place

Mandatory

String (Max length: 100)

Bangalore

Place (City/Town/Village) of the entity from which goods are dispatched.(This field is mandatory only if this section is selected)

A.1.1.5

Dispatch From State Code

1..1

Dispatch From State Code

Mandatory

Enumerated List

29

Code/State Code of the entity (as per GST System), from which goods are dispatched.List published and updated from time to time at <https://www.icegate.gov.in/Webappl/STATEENQ>(This field is mandatory only if this section is selected)

A.1.1.6

Dispatch From Pin code

1..1

Dispatch From Pincode

Mandatory

Number (Length: 6)

560087

Pincode of the locality of entity from where goods are dispatched. (This field is mandatory only if this section is selected)

A 1.2

Item Details

1..n

Mandatory

Header for Annexure A 1.2: Item Details

Sr. No.

Parameter Name

Cardinality

Description

Whether mandatory or optional

Field Specifications

Sample Value

Explanatory Notes

A.1.2.1

Sl_No.

1..1

Serial Number

Mandatory

String (Max length: 6)

1,2,3

Serial number of the item

A.1.2.2

Item Description

0..1

Item Description

Optional

String (Max length: 300)

Mobile

Description of the item

A.1.2.3

Is Service

1..1

Service

Mandatory

String(Length: 1)

Y/N

Specify whether supply is service or not.

A.1.2.4

HSN_Code

1..1

HSN Code

Mandatory

String (Max length: 8)

1122

To enter applicable HSN / SAC Code of Goods /

Service

A.1.2.5

Batch Details

0..1

Optional

Refer A 1.4

Some manufacturers may mention batch details (in Section A 1.4)

A. 1.2.6

Bar code

0..1

Bar code

Optional

String (Max length: 30)

b123

Bar code, if any, of the item.

A. 1.2.7

Quantity

0..1

Quantity

Optional

Number (Max length: 10,3)

10

The quantity of items to be mentioned in the invoice. This is mandatory only in case of goods.

A.1.2.8

Free_Qty

0..1

Free Quantity

Optional

Number (Max length: 10,3)

99

Quantity of item(s), if any, given free of charge (FOC)

A.1.2.9

Unit Of Measurement

0..1

Unit of Measurement

Optional

String (Max length: 8)

Box

The Unit of Measurement (UOM), if any, applicable on invoiced goods.

A.1.2.10

Item Price

1..1

Item Price

Mandatory

Number (Max length : 12,3)

500.5

Price per unit item.

A.1.2.11

Gross Amount

1..1

Gross Amount

Mandatory

Number (Max length : 12,2)

5000

The gross price of an item (cost multiplied by quantity - rounded off to 2 decimal), exclusive of taxes.

A.1.2.12

Item Discount Amount

0..1

Item Discount Amount

Optional

Number (Max length: 12,2)

10.25

Discount amount, if any, for the item.

A.1.2.13

Pre Tax Value

0..1

Pre-Tax Value

Optional

Number (Max length: 12,2)

99.00

If pre-tax value is different from taxable

value, mention the pre-tax value and taxable values separately.

In some cases, the pre-tax value may be different from taxable value. For example, where old goods are exchanged for new ones (e.g. new phone supplied for INR 20,000 along with exchange of old phone, then pre-tax value would be INR 20,000 and taxable value would be INR 24,000, assuming exchange value of old phone is 4,000. Another example is in the case of real estate where pre-tax value may be different from taxable value.

A.1.2.14

Item Taxable Value

1..1

Item Taxable Value

Mandatory

Number (Max length: 12,2)

5000

This is the value on which tax is computed.

Value cannot be negative.

A.1.2.15

GST_Rate

1..1

GST Rate

Mandatory

Number (Max length: 3,3)

5

The GST rate, represented as percentage that applies to the invoiced item. It will be IGST rate or sum of CGST & SGST Rates.

A.1.2.16

IGST Amt

0..1

IGST Amount

Optional

Number (Max Length: 12,2)

999.45

Amount of IGST payable per item (rounded off to 2 decimals). If IGST is reported, then CGST & SGST/UTGST will be blank. For taxable supplies, either IGST or CGST & SGST/UTGST should be reported.

A.1.2.17

CGST_Amt

0..1

CGST Amount

Optional

Number (Max Length: 12,2)

650.00

Amount of CGST payable per item (rounded off to 2 decimals). If CGST is reported, then SGST/UTGST has to be reported and IGST will be blank.

A.1.2.18

SGST_UTGST Amt

0..1

SGST/UTGST Amount

Optional

Number (Max length: 12,2)

650.00

Amount of SGST/UTGST payable per item(rounded off to 2 decimals). If SGST/UTGST is reported, then CGST must be reported and IGST will be blank.

A1.2.19

Comp Cess Rate Ad valorem

0..1

Compensation Cess Rate, Ad Valorem

Optional

Number (Max length: 3,3)

2.5%

Ad valoremRate of GST Compensation Cess, applicable, if any

A1.2.20

Comp Cess Amt Ad Valorem

0..1

Compensation Cess Amount, Ad Valorem

Optional

Number (Max length: 12,2)

56.00

GST Compensation Cess amount, ad valorem (rounded off to 2 decimals)(based on value of the item)

A1.2.21

Comp Cess Amt Non Ad Valorem

0..1

Compensation Cess Amount, Non ad valorem

Optional

Number (Max length:12,2)

23.00

GST Compensation Cess amount, computed on the basis other than value of item(i.e. specific cess amount computed based on quantity, number etc.)

A1.2.22

State Cess Rate ad valorem

0..1

State Cess Rate, Ad Valorem

Optional

Number (Max length: 3,3)

1.5 %

Ad valoremRate of State/UT Cess, applicable, if any

A1.2.23

State Cess Amt Ad Valorem

0..1

State Cess Amount, ad valorem

Optional

Number (Max length: 12,2)

43.00

State/UT Cess amount, ad valorem(based on value of the item)

A1.2.24

State Cess Amt Non Ad Valorem

0..1

State Cess Amount, non ad valorem

Optional

Number (Max length: 12,2)

12.00

State/UT Cess amount, computed on the basis other than value of item(i.e. specific cess amount computed based on quantity, number etc.)

A.1.2.25

Other Charges Item Level

0..1

Other Charges (item level)

Optional

Number (Max length: 12,2)

874.95

Any other charges applicable at item level. These may not be part of taxable value, e.g. in case of pure agent reimbursement.

A.1.2.26

Purchase Order Line Reference

0..1

Purchase Order Line Reference

Optional

String (Max length: 50)

746/ABC/01

Reference of Purchase Order Line

A.1.2.27

Item Total Amt

1..1

Item Total Amount

Mandatory

Number (Max length: 12,2)

5000

The item total value that includes all taxes, cesses, as well as other charges. However, this value excludes discount, if any.

A.1.2.28

Origin Country Code

0..1

Code of Country of Origin

Optional

Enumerated List

DZ

This is to specify country of origin of the item, e.g. mobile phone sold in India could be manufactured in other country; Code of country of export as per ISO 3166-1 alpha-2 / Indian Customs EDI system (ICES). List published and

updated from time to time at

<https://www.icegate.gov.in/Webappl/COUNTRYENQ>

A.1.2.29

Unique Serial Number

0..1

Unique Serial Number

Optional

String (Max length: 20)

553

Serial number, in case of each item having a unique number.

A.1.2.30

Product Attribute Details

0..n

Optional

Refer A 1.5

Attribute details of product

A 1.3

Document Total Details

1..1

Mandatory

Header for Annexure A 1.3: Document Total

Details

Sr. No.

Parameter Name

Cardinality

Description

Whether mandatory or optional

Field Specifications

Sample Value

Explanatory Notes

A.1.3.1

Taxable Value Total

1..1

Total Taxable Value

Mandatory

Number (Max length: 14,2)

768439.35

This is the sum of the taxable values of all the items in the document.

A.1.3.2

IGST Amt Total

0..1

Total IGST Amount

Optional

Number (Max length : 14,2)

265.50

Total IGST amount for the invoice. Appropriate taxes based on rule will be applicable. For example, either of CGST & SGST/UTGST or IGST will be mandatory. As this is conditional mandatory, it is marked as 'optional'

A.1.3.3

CGST Amt Total

0..1

Total CGST Amount

Optional

Number (Max length: 14,2)

65.45

Total CGST amount for the invoice. Appropriate taxes based on rule will be applicable. For example, either of CGST & SGST/UTGST or IGST will be mandatory. As this is conditional mandatory, it is marked as 'optional'

A.1.3.4

SGST UTGST Amt Total

0..1

Total SGST/UTGST Amount

Optional

Number (Max length : 14,2)

65.45

Total SGST/UTGST amount for the invoice.

Appropriate taxes based on rule will be applicable. For example, either of CGST & SGST/UTGST or IGST will be mandatory.

As it is conditional mandatory, it is marked as 'optional'

A.1.3.5

Comp Cess Amt Total

0..1

Total Compensation Cess Amount

Optional

Number (Max length : 14,2)

24.95

Total GST Compensation Cess amount for the invoice (advalorem as well as non-ad valorem)

A.1.3.6

State Cess Amt Total

0..1

Total State Cess Amount

Optional

Number (Max length : 14,2)

5.45

Total State cess amount for the invoice (ad valorem as well as non-ad valorem)

A.1.3.7

Discount Amt Invoice Level

0..1

Invoice Level Discount Amount

Optional

Number (Max length: 14,2)

100.00

This is Discount Amount, if any, applicable on

total invoice value

A.1.3.8

Other Charges Invoice Level

0..1

Other Charges (Invoice Level)

Optional

Number(Max length: 14,2)

200.00

This is Other charges, if any, applicable on

total invoice value

A.1.3.9

Round Off Amount

0..1

Round Off Amount

Optional

Number (Max length: 2,2)

31.21

This is round off amount of total invoice value

A.1.3.10

Total Invoice Value INR

1..1

Total Invoice Value in INR

Mandatory

Number (Max length: 14,2)

745249678.50

The total value of invoice including taxes/GST
and rounded to two decimals maximum.

A.1.3.11

Total Invoice Value_FCNR

0..1

Total Invoice Value in FCNR

Optional

Number (Max length: 14,2)

\$5729.65

The total value of invoice in Additional
Currency

A.1.3.12

Paid Amount

0..1

Paid Amount

Optional

Number (Max length:14,2)

8463.50

The amount, if any, which has been paid in
advance. It must be rounded to maximum 2 decimals.

A.1.3.13

Amount Due

0..1

Amount Due

Optional

Number (Max length:14,2)

98789.50

The outstanding amount due for payment. It must be rounded to maximum 2 decimals.

A 1.4

Batch Details

0..1

Optional

Header for Annexure A 1.4: Batch Details

Sr. No.

Parameter Name

Cardinality

Description

Whether mandatory or optional

Field Specifications

Sample Value

Explanatory Notes

A.1.4.1

Batch Number

1..1

Batch Number

Mandatory

String (Max Length: 20)

673927

Certain set of manufacturers may mention batch number details.(This field is mandatory only if this section is selected)

A.1.4.2

Batch Expiry Date

0..1

Batch Expiry Date

Optional

String (DD/MM/YYYY)

21/11/2019

Expiry Date of the Batch, if any

A.1.4.3

Warranty Date

0..1

Warranty Date

Optional

String (DD/MM/YYYY)

21/11/2019

Warranty date for the Item, if any.

A 1.5

Attribute Details of Item

0..n

Optional

Header for Annexure A 1.5: Attribute Details of Item

Sr. No.

Parameter Name

Cardinality

Description

Whether mandatory or optional

Field Specifications

Sample Value

Explanatory Notes

A.1.5.1

Attribute Name

0..1

Attribute Name

Optional

String (Max Length: 100)

Colour

Attribute Name of the item.

A.1.5.2

Attribute Value

0..1

Attribute Value

Optional

String (Max Length: 100)

Red, green, etc.

Attribute Value of item.

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[Inserted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

[Substituted by Notification No. G.S.R. 63(E), dated 29.1.2019 (w.e.f. 19.6.2017).]

Related AI tags, queries and research notes

Translation